



Telecommunications

Competition and Consumer (Consumer Data Right) Rules 2020

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Competition and Consumer Act 19972010

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About this compilation

This compilation

This is a compilation of the *Competition and Consumer Act 1997* that shows the text of the law as amended and in force on 12 April 2023~~6 October 2021~~ (the *compilation date*).

The notes at the end of this compilation (the *endnotes*) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Legislation Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Legislation Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Legislation Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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An Act about telecommunications, and for related purposes

Part 1—Introduction

1 Short title

This Act may be cited as the *Telecommunications Act 1997*.

2 Commencement

(1) The following provisions of this Act commence on the day on which this Act receives the Royal Assent:

- (a) this Part;
- (b) Part 2;
- (c) Divisions 2, 3 and 4 of Part 4;
- (d) Division 3 of Part 25;
- (f) section 589;
- (g) section 594.

(2) Sections 52 to 55 (inclusive) commence on 5 June 1997.

(3) The remaining provisions of this Act commence on 1 July 1997.

3 Objects

(1) The main object of this Act, when read together with Parts XIB and XIC of the *Competition and Consumer Act 2010*, is to provide a regulatory framework that promotes:

- (a) the long-term interests of end-users of carriage services or of services provided by means of carriage services; and
- (b) the efficiency and international competitiveness of the Australian telecommunications industry; and
- (c) the availability of accessible and affordable carriage services that enhance the welfare of Australians.

(2) The other objects of this Act, when read together with Parts XIB and XIC of the *Competition and Consumer Act 2010*, are as follows:

- (a) to ensure that standard telephone services and payphones are:
 - (i) reasonably accessible to all people in Australia on an equitable basis, wherever they reside or carry on business; and
 - (ii) are supplied as efficiently and economically as practicable; and
 - (iii) are supplied at performance standards that reasonably meet the social, industrial and commercial needs of the Australian community;

-
- (c) to promote the supply of diverse and innovative carriage services and content services;
 - (d) to promote the development of an Australian telecommunications industry that is efficient, competitive and responsive to the needs of the Australian community;
 - (e) to promote the effective participation by all sectors of the Australian telecommunications industry in markets (whether in Australia or elsewhere);
 - (f) to promote:
 - (i) the development of the technical capabilities and skills of the Australian telecommunications industry; and
 - (ii) the development of the value-adding and export-oriented activities of the Australian telecommunications industry; and
 - (iii) research and development that contributes to the growth of the Australian telecommunications industry;
 - (g) to promote the equitable distribution of benefits from improvements in the efficiency and effectiveness of:
 - (i) the provision of telecommunications networks and facilities; and
 - (ii) the supply of carriage services;
 - (h) to provide appropriate community safeguards in relation to telecommunications activities and to regulate adequately participants in sections of the Australian telecommunications industry;
 - (i) to promote the placement of lines underground, taking into account economic and technical issues, where placing such lines underground is supported by the affected community;
 - (j) to promote responsible practices in relation to the sending of commercial electronic messages;
 - (k) to promote responsible practices in relation to the making of telemarketing calls;
 - (l) to promote responsible practices in relation to the sending of marketing faxes.

4 Regulatory policy

The Parliament intends that telecommunications be regulated in a manner that:

- (a) promotes the greatest practicable use of industry self-regulation; and
- (b) does not impose undue financial and administrative burdens on participants in the Australian telecommunications industry;

but does not compromise the effectiveness of regulation in achieving the objects mentioned in section 3.

5 Part 1—Preliminary +

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Part 1—Preliminary

Division 1.1—Preliminary

1.1 Name

~~_____ This instrument is the *Competition and Consumer (Consumer Data Right) Rules 2020*.~~

1.3 Authority

~~_____ This instrument is made under section 56BA of the *Competition and Consumer Act 2010*.~~

Division 1.2—Simplified outline and overview of these rules

~~_____ The following is a simplified~~**1.4—Simplified outline of this Act; these rules**

- This Act sets up a system for regulating telecommunications.
- The main entities regulated by this Act are *carriers* and *service providers*.
- A *carrier* is the holder of a carrier licence granted under this Act.
- The owner of a *network unit* that is used to supply carriage services to the public must hold a carrier licence unless responsibility for the unit is transferred from the owner to a carrier.
- There are 4 types of network *unit*:
 - 3 ways to request CDR data under these rules.
 - (a) a single line link connecting distinct places in Australia, where the line link meets certain minimum distance requirements;
 - (b) multiple line links connecting distinct places in Australia, where the line links meet certain minimum distance requirements;
 - (c) a designated radiocommunications facility;
 - (d) a facility specified in a Ministerial determination.
- Carrier licences are subject to *conditions*.
- There are 2 types of *service provider*:
 - (a) a carriage service provider;

(b) a content service provider.

- A **carriage service provider** is a person who supplies, or proposes to supply, certain carriage services.
- A **content service provider** is a person who supplies, or proposes to supply, certain content services.
- Service providers must comply with the **service provider rules**.
- The Australian Communications and Media Authority (ACMA) is to monitor, and report each year to the Minister on, significant matters relating to the **performance** of carriers and carriage service providers.
- Bodies and associations that represent sections of the telecommunications industry, the telemarketing industry or the fax marketing industry may develop **industry codes**.
- Industry codes may be **registered** by the ACMA.
- Compliance with an industry code is **voluntary** unless the ACMA directs a particular participant in the telecommunications industry, the telemarketing industry or the fax marketing industry to comply with the code.
- The ACMA has a reserve power to make an **industry standard** if there are no industry codes or if an industry code is deficient.
- Compliance with industry standards is **mandatory**.
- Carriers and carriage service providers must protect the **confidentiality** of communications.
- The ACMA, carriers and carriage service providers must do their best to prevent telecommunications networks and facilities from being used to commit offences.
- Carriers and carriage service providers must do their best to protect telecommunications networks and facilities from unauthorised interference or unauthorised access.
- Carriers and carriage service providers must ensure that it is possible to execute a **warrant** issued under the *Telecommunications (Interception and Access) Act 1979*.
- Carriage service providers may be required to supply carriage services for **defence purposes** or for the **management of natural disasters**.
- A carrier or carriage service provider may be required to enter into an agreement with the Commonwealth about:

(a) planning for network survivability; or

(b) operational requirements in times of crisis.

- The ACMA may require certain carriers and carriage service providers to provide pre-selection in favour of carriage service providers in relation to calls made using a standard telephone service.
- The ACMA must require certain carriers and carriage service providers to provide pre-selection in favour of carriage service providers in relation to calls made using a declared carriage service.
- Carriers and carriage service providers may be required to comply with certain international conventions.
- The Minister may make **Rules of Conduct** about dealings with international telecommunications operators.
- Provision is made for the **technical regulation** of customer equipment, customer cabling and cabling work.
- Numbering may be administered by a **numbering scheme manager** or by the ACMA.
- Provision is made for **standard agreements** for the supply of carriage services.
- The ACMA and the ACCC may hold **public inquiries** about certain matters relating to telecommunications.
- The ACMA may **investigate** certain matters relating to telecommunications.
- Certain switching systems must be capable of providing **calling line identification**.

• **Provision is made for the following**~~Product data requests~~

~~Any person may request a data holder to disclose CDR data that relates to products offered by the data holder. Such a request is called a product data request.~~

~~A product data request is made in accordance with relevant data standards, using a specialised service provided by the data holder. Such a request cannot be made for CDR data that relates to a particular identifiable CDR consumer. The data is disclosed, in machine-readable form, to the person who made the request. The data holder cannot impose conditions, restrictions or limitations of any kind on the use of the disclosed data.~~

~~**Consumer data requests made by CDR consumers**~~

~~A CDR consumer who, in accordance with a Schedule to these rules, is eligible to do so may directly request a data holder to disclose CDR data that relates to them. Such a request is called a consumer data request.~~

~~A consumer data request that is made directly to a data holder is made using a specialised online service provided by the data holder. The data is disclosed, in human-readable form, to the CDR consumer who made the request.~~

~~Consumer data requests made on behalf of CDR consumers~~

~~A CDR consumer who, in accordance with a Schedule to these rules, is eligible to do so may request an accredited person to request a CDR participant to disclose CDR data that relates to the consumer. The request made by the accredited person is called a consumer data request.~~

~~A consumer data request that is made to a data holder on behalf of a CDR consumer by an accredited person must be made in accordance with relevant data standards, using a specialised service provided by the data holder. The data is disclosed, in machine-readable form, to the accredited person.~~

~~Under the data minimisation principle, the accredited person may only collect and use CDR data in order to provide goods or services in accordance with a request from a CDR consumer, and may only use it for that purpose, or for a limited number of other purposes which require an additional consent from the CDR consumer.~~

~~These rules only apply in relation to certain classes of product and consumer CDR data that are set out in Schedules to these rules which relate to different designated sectors. Schedule 3 relates to the banking sector. Initially, these rules will apply only in relation to certain products that are offered by certain data holders within the banking sector. These rules will then apply to a progressively broader range of data holders and products.~~

~~These rules also deal with a range of ancillary and related matters:-~~

- ~~_____ (a) _____ information-gathering powers;~~
- ~~_____ (b) _____ powers of search, entry and seizure;~~

~~1.5 What these rules are about~~

- ~~_____ (1) These rules set out details of how the consumer data right works.~~
- ~~_____ (2) These rules should be read in conjunction with the following:~~
 - ~~_____ (a) the *Competition and Consumer Act 2010* (the Act), and in particular, Part IVD of the Act, which sets out the general framework for how the consumer data right works;~~
 - ~~_____ (b) designation instruments made under section 56AC of the Act;~~
 - ~~_____ (c) guidelines made by the Information Commissioner under section 56EQ of the Act;~~
 - ~~_____ (d) data standards made under section 56FA of the Act;~~

~~(e) regulations made under section 172 of the Act.~~

1.6 Overview of these rules

- ~~(1) Part 1 of these rules deals with preliminary matters, such as:~~
 - ~~(a) definitions of terms that are used in these rules; and~~
 - ~~(b) the usage, in these rules, of certain terms that are defined in the Act.~~
 - ~~The other provisions of these rules should be read together with these definitions and other interpretive provisions. Part 1 also deals with services that must be provided by data holders and accredited persons that allow consumers to make and manage requests for CDR data.~~
 - ~~(2) Part 2 of these rules deals with product data requests, and should be read in conjunction with relevant Schedules to these rules that deal with particular designated sectors.~~
 - ~~(3) Part 3 of these rules deals with consumer data requests that are made by CDR consumers, and should be read in conjunction with relevant Schedules to these rules that deal with particular designated sectors. Only CDR consumers who are eligible to do so may make such requests. Schedule 3 to these rules sets out eligibility criteria for the banking sector.~~
 - ~~(4) Part 4 of these rules deals with consumer data requests that involve accredited persons, and should be read in conjunction with relevant Schedules to these rules that deal with particular designated sectors.~~
 - ~~(5) Part 5 of these rules deals with how persons can become accredited persons. It also deals with ancillary matters, such as revocation and suspension of accreditation, obligations of accredited persons, and the Register of Accredited Persons. The rules set out in this Part should be read in conjunction with Division 3 of Part IVD of the Act.~~
 - ~~(6) Part 6 of these rules deals with dispute resolution.~~
 - ~~(7) Part 7 of these rules deals with rules relating to the privacy safeguards. The rules set out in this Part should be read in conjunction with Division 5 of Part IVD of the Act. Part 7 also sets out some additional civil penalty provisions that protect the privacy or confidentiality of CDR consumers' CDR data.~~
 - ~~(8) Part 8 of these rules deals with data standards. The rules set out in this Part should be read in conjunction with Division 6 of Part IVD of the Act.~~
- ~~(9) Part 9 of these rules deals with miscellaneous matters, such as review of decisions, reporting, record keeping and audit, and civil penalty provisions of the consumer data rules.~~
 - ~~(d) injunctions.~~

6 Main index

The following is a main index to this Act:

- ~~———— (10) Schedule 1 to these rules deals with default conditions on accreditations.~~
- ~~———— (11) Schedule 2 to these rules sets out detailed steps for privacy safeguard 12 (subsection 56EO(1) of the Act and rule 7.11 of these rules). These steps are also relevant to persons who hold CDR data (service data) under a CDR outsourcing arrangement, and are an element of the ongoing obligations of persons accredited at the “unrestricted” level (see paragraph 5.12(1)(a)).~~
- ~~———— (12) Schedule 3 to these rules contains details that are relevant to the banking sector. Schedule 3:~~
 - ~~———— (a) sets out the specific CDR data in respect of which requests under these rules may be made; and~~
 - ~~———— (b) sets out the circumstances in which CDR consumers are eligible in relation to requests for banking sector CDR data that relates to themselves; and~~
 - ~~———— (c) deals with the progressive application of these rules to the banking sector.~~
- ~~———— It is intended that these rules will be amended at a later time to deal with additional sectors of the economy.~~

Division 1.3—Interpretation

1.7 Definitions

Note 1: ~~A number of expressions used in this instrument are defined in the Act, including the following:~~

- ~~• Accreditation Registrar;~~
- ~~• accredited data recipient;~~
- ~~• accredited person;~~
- ~~• Australian Consumer Law;~~
- ~~• binding data standard;~~
- ~~• CDR consumer;~~
- ~~• CDR data;~~
- ~~• CDR participant;~~
- ~~• collects;~~
- ~~• Commission;~~
- ~~• court/tribunal order;~~
- ~~• data holder;~~
- ~~• Data Recipient Accreditor;~~
- ~~• data standard;~~
- ~~• Data Standards Body;~~
- ~~• Data Standards Chair;~~
- ~~• designated sector;~~
- ~~• directly or indirectly derived;~~
- ~~• privacy safeguards;~~
- ~~• Regulatory Powers Act.~~

Note 2: ~~**Information Commissioner** has the same meaning as in the Act: see section 3A of the *Australian Information Commissioner Act 2010* and paragraph 13(1)(b) of the *Legislation Act 2003*.~~

~~(1) In this instrument:~~

~~**account privileges**, in relation to:~~

- ~~(a) an account with a data holder; and~~
- ~~(b) a particular designated sector;~~

~~has the meaning set out in a Schedule to these rules that relates to that sector.~~

~~**accreditation applicant** means a person who has applied to be an accredited person under rule 5.2.~~

~~**accreditation number** of an accredited person has the meaning given by rule 5.6.~~

~~**accredited data recipient** has a meaning affected by subrule (2).~~

Note: ~~The term “accredited data recipient” is defined in the Act: see section 56AK of the Act. Subrule (2) deals with the usage of this term in these rules.~~

~~**accredited person request service** has the meaning given by subrule 1.13(3).~~

~~**Act** means the *Competition and Consumer Act 2010*.~~

~~addresses for service~~ means both of the following:

- ~~———— (a) a physical address for service in Australia;~~
- ~~———— (b) an electronic address for service.~~

~~ADI~~ (short for authorised deposit-taking institution) has the meaning given by the *Banking Act 1959*.

~~AP disclosure consent~~ has the meaning given by rule 1.10A.

~~associated person~~, of another person, means any of the following:

- ~~———— (a) a person who:~~
 - ~~———— (i) makes or participates in making, or would (if the other person were an accredited person) make or participate in making, decisions that affect the management of CDR data by the other person; or~~
 - ~~———— (ii) has, or would have (if the other person were an accredited person), the capacity to significantly affect the other person's management of CDR data;~~
- ~~———— (b) if the other person is a body corporate — a person who:~~
 - ~~———— (i) is an associate (within the meaning of the *Corporations Act 2001*) of the other person; or~~
 - ~~———— (ii) is an associated entity (within the meaning of the *Corporations Act 2001*) of the other person.~~

~~authorisation to disclose CDR data~~ means:

- ~~———— (a) an authorisation given by a CDR consumer under Part 4 to a data holder; or~~
- ~~———— (b) such an authorisation as amended in accordance with these rules.~~

~~category~~, of consents, has the meaning given by rule 1.10A.

~~CDR complaint data~~, in relation to a CDR participant, means the following:

- ~~———— (a) the number of CDR consumer complaints received by the CDR participant;~~
- ~~———— (b) the number of such complaints for each complaint type into which the CDR participant categorises complaints in accordance with its complaints handling process;~~
- ~~———— (c) the number of such complaints resolved;~~
- ~~———— (d) the average number of days taken to resolve CDR consumer complaints through internal dispute resolution;~~
- ~~———— (e) the number of CDR consumer complaints referred to a recognised external dispute resolution scheme;~~
- ~~———— (f) the number of CDR consumer complaints resolved by external dispute resolution;~~
- ~~———— (g) in relation to a CDR participant that is a data holder — the number of CDR product data complaints received.~~

Note: ~~————~~ Complaints covered by paragraph (g) are not “CDR consumer complaints”.

~~CDR consumer~~ has a meaning affected by subrule (2).

Note: ~~————~~ The term “CDR consumer” is defined in the Act: see subsection 56AI(3) of the Act. Subrule (2) deals with the usage of this term in these rules.

~~**CDR consumer complaint** means any expression of dissatisfaction made by a CDR consumer to or about a CDR participant:~~

~~————— (a) that relates to:~~

~~————— (i) the CDR participant's obligations under or compliance with:~~

~~————— (A) Part IVD of the Act; or~~

~~————— (B) these rules; or~~

~~————— (C) binding data standards; or~~

~~————— (ii) the provision to the CDR consumer, by the CDR participant, of the goods or services in respect of which the consumer granted consent under Part 4; and~~

~~————— (b) for which a response or resolution could reasonably be expected.~~

~~Note: ——— Complaints of a kind referred to in sub-subparagraph (a)(i)(B) include a complaint relating to the participant's obligations under, or compliance with, rules dealing with the handling of CDR consumer complaints.~~

~~**CDR data de-identification process** has the meaning given by rule 1.17.~~

~~**CDR data deletion process** has the meaning given by rule 1.18.~~

~~**CDR insight**, in relation to an insight disclosure consent, means the CDR data subject to the consent.~~

~~**CDR logo** means a logo or symbol, including one whose use requires a licence or authorisation from a person other than the Commonwealth, approved by the Commission for the purposes of this definition.~~

~~**CDR outsourcing arrangement** has the meaning given by rule 1.10.~~

~~**CDR participant** has a meaning affected by subrule (2).~~

~~Note: ——— The term "CDR participant" is defined in the Act: see subsection 56AL(1) of the Act. Subrule (2) deals with the usage of this term in these rules.~~

~~**CDR policy** means a policy that a CDR participant has and maintains in compliance with subsection 56ED(3) of the Act.~~

~~**CDR product data complaint** means an expression of dissatisfaction made to a data holder about its required product data or its voluntary product data for which a response or resolution could reasonably be expected.~~

~~**eo-approval option** has the meaning given by rule 4A.5.~~

~~**collection consent** has the meaning given by rule 1.10A.~~

~~**consent** means:~~

~~————— (a) a collection consent, a use consent or a disclosure consent; or~~

~~————— (b) such a consent as amended in accordance with these rules.~~

~~**consumer dashboard:**~~

~~(a) in relation to an accredited person has the meaning given by rule 1.14; and~~

~~(b) in relation to a data holder has the meaning given by rules 1.15 and 4A.13.~~

consumer data request:

~~(a) by a CDR consumer has the meaning given by rule 3.3; and~~

~~(b) by an accredited person on behalf of a CDR consumer has the meaning given by rule 4.4 or rule 4.7A.~~

Note: ~~The different types of consumer data request are summarised in the following table:~~

<u>Main Index</u>	<u>consumer data request made under:</u>	<u>is made by:</u>	<u>to:</u>	<u>for disclosure of CDR data to:</u>
<u>Item</u>	<u>Topic</u>	<u>Provisions</u>		
<u>2</u>	<u>Calling line identification</u>	<u>Part 18</u>		
<u>rule 3.3</u>	<u>Carriers' powers and immunities</u> <u>CDR consumer</u>	<u>Part 24,</u> <u>Schedule 3a</u> <u>data holder</u>	<u>the CDR consumer</u>	
<u>4</u>	<u>Carrier licence conditions</u>	<u>Part 3,</u> <u>Schedule 1</u>		
<u>5</u>	<u>Carriers</u>	<u>Part 3</u>		
<u>6</u>	<u>Communications, protection of</u>	<u>Part 13</u>		
<u>8</u>	<u>Decisions, review of</u>	<u>Part 29,</u> <u>Schedule 4</u>		
<u>9</u>	<u>Defence requirements and disaster plans</u>	<u>Part 16</u>		
<u>10</u>	<u>Enforceable undertakings</u>	<u>Part 31A</u>		
<u>11</u>	<u>Enforcement</u>	<u>Part 28</u>		
<u>12</u>	<u>Industry codes and industry standards</u>	<u>Part 6</u>		
<u>13</u>	<u>Information-gathering powers</u>	<u>Part 27</u>		
<u>14</u>	<u>Injunctions</u>	<u>Part 30</u>		
<u>15</u>	<u>Inquiries, public</u>	<u>Part 25</u>		
<u>16</u>	<u>International aspects</u>	<u>Part 20</u>		
<u>17</u>	<u>Investigations</u>	<u>Part 26</u>		
<u>19</u>	<u>Liability, vicarious</u>	<u>Part 32</u>		
<u>21</u>	<u>National interest matters</u>	<u>Part 14</u>		
<u>22</u>	<u>Network units</u>	<u>Part 2</u>		
<u>23</u>	<u>Numbering and electronic addressing</u>	<u>Part 22</u>		
<u>24</u>	<u>Penalties, civil</u>	<u>Part 31</u>		
<u>25</u> <u>rule 4.4</u>	<u>Performance of carriers and carriage service providers,</u> <u>monitoring of an accredited person</u>	<u>Part 5a</u> <u>data holder</u>	<u>the accredited person</u>	

<u>Main Index</u>	<u>is made by:</u>	<u>to:</u>	<u>for disclosure of CDR data to:</u>
<u>consumer data request made under:</u>			
<u>Item</u>	<u>Topic</u>	<u>Provisions</u>	
	<u>on behalf of a CDR consumer</u>		
<u>26</u>	<u>Pre-selection</u>	<u>Part 17</u>	
<u>28</u>	<u>Service provider rules</u>	<u>Part 4, Schedule 2</u>	
<u>29</u>	<u>Service providers</u>	<u>Part 4</u>	
<u>30</u>	<u>Standard agreements for the supply of carriage services</u>	<u>Part 23</u>	<u>the accredited person</u>
<u>rule 4.7A</u>	<u>an accredited person on behalf of a CDR consumer</u>	<u>an accredited data recipient</u>	
<u>32</u>	<u>Technical regulation</u>	<u>Part 21</u>	

7 Definitions

In this Act, unless the contrary intention appears:

ACCC means the Australian Competition and Consumer Commission.

ACCC's telecommunications functions and powers means the functions and powers conferred on the ACCC by or under:

current:

- (a) this Act; or
- (b) the *Telecommunications (Consumer Protection and Service Standards) Act 1999*; or
- (ba) the *National Broadband Network Companies Act 2011*; or
- (c) Part XIB of the *Competition and Consumer Act 2010*; or
- (d) Part XIC of the *Competition and Consumer Act 2010*; or
- (e) any other provision of the *Competition and Consumer Act 2010*, in so far as that provision applies to a matter connected with telecommunications.

For this purpose, *telecommunications* means the carriage of communications by means of guided and/or unguided electromagnetic energy.

access, in relation to an emergency call service, has a meaning affected by section 18.

ACMA means the Australian Communications and Media Authority.

ACMA's telecommunications functions means the functions that are telecommunications functions, in relation to the ACMA, for the purposes of the *Australian Communications and Media Authority Act 2005*.

ACMA's telecommunications powers means the powers conferred on the ACMA by:

(a) this Act; or

(b) the *Telecommunications (Consumer Protection and Service Standards) Act 1999*; or

(ba) Chapter 4 or 5 of the *Telecommunications (Interception and Access) Act 1979*; or

(c) the *Spam Act 2003*; or

(ca) the *Do Not Call Register Act 2006*; or

(d) Part XIC of the *Competition and Consumer Act 2010*; or

(e) section 12 of the *Australian Communications and Media Authority Act 2005*, in so far as that section relates to the ACMA's telecommunications functions.

ACNC type of entity means an entity that meets the description of a type of entity in column 1 of the table in subsection 25-5(5) of the *Australian Charities and Not-for-profits Commission Act 2012*.

adverse security assessment has the meaning given by section 35 of the *Australian Security Intelligence Organisation Act 1979*.

AFP Minister means the Minister administering the *Australian Federal Police Act 1979*.

aircraft includes a balloon.

ASIO means the Australian Security Intelligence Organisation.

Australia, when used in a geographical sense, includes the eligible Territories.

Australian number has the same meaning as in the *Do Not Call Register Act 2006*.

authorised infringement notice officer means:

(a) the Chair of the ACMA; or

(b) a member of the staff of the ACMA appointed under section 572L.

base station that is part of a terrestrial radiocommunications customer access network has the meaning given by section 34.

broadcasting service has the same meaning as in the *Broadcasting Services Act 1992*.

building lot has the meaning given by section 372Q.

building unit has the meaning given by section 372S.

cabling licence means a licence granted under section 427.

carriage service means a service for carrying communications by means of guided and/or unguided electromagnetic energy.

carriage service intermediary means a person who is a carriage service provider under subsection 87(5).

carriage service provider has the meaning given by section 87.

carrier means the holder of a carrier licence.

carrier licence means a licence granted under section 56.

carry includes transmit, switch and receive.

civil penalty provision means:

- (a) a provision of this Act (other than section 317ZB) that is declared by this Act to be a civil penalty provision; or
- (b) a provision of the *Telecommunications (Consumer Protection and Service Standards) Act 1999* that is declared by that Act to be a civil penalty provision; or
- (c) a provision of the *Telecommunications (Interception and Access) Act 1979* that is declared by that Act to be a civil penalty provision for the purposes of this Act.

commercial electronic message has the same meaning as in the *Spam Act 2003*.

communications includes any communication:

- (a) whether between persons and persons, things and things or persons and things; and
- (b) whether in the form of speech, music or other sounds; and
- (c) whether in the form of data; and
- (d) whether in the form of text; and
- (e) whether in the form of visual images (animated or otherwise); and
- (f) whether in the form of signals; and
- (g) whether in any other form; and
- (h) whether in any combination of forms.

Communications Access Co-ordinator has the meaning given by section 6R of the *Telecommunications (Interception and Access) Act 1979*.

connected, in relation to:

- (a) a telecommunications network; or
- (b) a facility; or
- (c) customer cabling; or
- (d) customer equipment;

includes connection otherwise than by means of physical contact, for example, a connection by means of radiocommunication.

connection permit means a permit issued under section 394.

constitutional corporation means a corporation to which paragraph 51(xx) of the Constitution applies.

content service has the meaning given by section 15.

content service provider has the meaning given by section 97.

controlled carriage service has the meaning given by section 14.

controlled facility has the meaning given by section 14.

controlled network has the meaning given by section 14.

customer cabling has the meaning given by section 20.

customer equipment has the meaning given by section 21.

data processing device means any article or material (for example, a disk) from which information is capable of being reproduced, with or without the aid of any other article or device.

Defence Department means the Department of State that deals with defence and that is administered by the Minister administering section 1 of the *Defence Act 1903*.

defence purposes means any one or more of the following:

- (a) the operation of command or control systems;
- (b) the operation, direction or use of a defence organisation;
- (c) the operation of intelligence systems;
- (d) the collection or dissemination of information relevant to the security or defence of:
 - (i) the Commonwealth; or
 - (ii) a foreign country that is allied or associated with the Commonwealth;
- (e) the operation or control of weapons systems, including any thing that, by itself or together with any other thing or things, is intended for defensive or offensive use in combat;
- (f) any other matter specified in the regulations.

demerged Telstra company has the meaning given by section 581J.

designated part of the spectrum has the meaning given by section 577H.

designated radiocommunications facility has the meaning given by section 31.

designated Telstra successor company: see section 581G.

Director-General of Security means the Director-General of Security holding office under the *Australian Security Intelligence Organisation Act 1979*.

directory assistance services means services that are:

- (a) provided to an end-user of a standard telephone service to help the end-user find the number of another end-user of a standard telephone service; and
- (b) provided by an operator or by means of:

-
- (i) an automated voice response system; or
 - (ii) another technology-based system.
-

distinct places has the meaning given by section 36.

draft functional separation undertaking means a draft functional separation undertaking under Division 2 of Part 9 of Schedule 1.

draft migration plan means a draft migration plan under Subdivision B of Division 2 of Part 33.

eligible partnership means a partnership where each partner is a constitutional corporation.

eligible Territory means:

- (a) the Territory of Christmas Island; or
- (b) the Territory of Cocos (Keeling) Islands; or
- (c) an external Territory prescribed for the purposes of section 10.

emergency call contractor means a person who performs services for or on behalf of a recognised person who operates an emergency call service, but does not include a person who performs such services in the capacity of an employee of the person who operates the emergency call service.

Note: **Recognised person who operates an emergency call service** is defined by section 19.

emergency call person means:

- (a) a recognised person who operates an emergency call service; or
- (b) an employee of such a person; or
- (c) an emergency call contractor; or
- (d) an employee of an emergency call contractor.

Note: **Recognised person who operates an emergency call service** is defined by section 19.

emergency call service means a service for:

- (a) receiving and handling calls to an emergency service number; and
 - (b) transferring such calls to:
 - (i) a police force or service; or
 - (ii) a fire service; or
 - (iii) an ambulance service; or
 - (iv) if there is a numbering scheme manager—a service specified by the ACMA for the purposes of this subparagraph in a legislative instrument; or
 - (iva) if there is no numbering scheme manager—a service specified for the purposes of this subparagraph in the numbering plan made by the ACMA; or
 - (v) a service for despatching a force or service referred to in subparagraph (i), (ii), (iii), (iv) or (iva).
-

For the purposes of paragraph (b), **transferring** a call includes giving information in relation to the call for purposes connected with dealing with the matter or matters raised by the call.

emergency service number has the meaning given by section 466.

exempt network-user means:

(a) a person:

(i) who is entitled to use a network unit to supply a carriage service; and

(ii) whose entitlement derives, directly or indirectly, from rights granted to a carrier; or

(b) if:

(i) a police force or service; or

(ii) a fire service; or

(iii) an ambulance service; or

(iv) an emergency service specified in the regulations;

(the **first force or service**) uses a network unit for the sole or principal purpose of enabling either or both of the following:

(v) communication between the members of the first force or service;

(vi) communication between the members of the first force or service and the members of another force or service, where the other force or service is of a kind covered by subparagraph (i), (ii), (iii) or (iv);

the first force or service.

For the purposes of paragraph (b), an employee of a force or service is taken to be a member of the force or service.

facility means:

(a) any part of the infrastructure of a telecommunications network; or

(b) any line, equipment, apparatus, tower, mast, antenna, tunnel, duct, hole, pit, pole or other structure or thing used, or for use, in or in connection with a telecommunications network.

fax marketing industry means an industry that involves carrying on a fax marketing activity (as defined by section 109C).

Federal Court means the Federal Court of Australia.

fibre-ready facility has the meaning given by subsection 372W(1).

final functional separation undertaking means a final functional separation undertaking under Division 2 of Part 9 of Schedule 1.

final migration plan means a final migration plan under Subdivision B of Division 2 of Part 33.

Finance Minister means the Minister administering the *Public Governance, Performance and Accountability Act 2013*.

fixed-line facility has the meaning given by section 372V.

fixed radiocommunications link has the meaning given by section 35.

functional fibre-ready facility has the meaning given by subsection 372W(2).

Home Affairs Department means the Department administered by the Home Affairs Minister.

Home Affairs Minister means the Minister administering the *Australian Security Intelligence Organisation Act 1979*.

Home Affairs Secretary means the Secretary of the Home Affairs Department.

hybrid fibre-coaxial network means a telecommunications network:

- (a) that is for use for the transmission of any broadcasting service; and
- (b) that is also capable of being used to supply an internet carriage service; and
- (c) the line component of which consists of optical fibre to connecting nodes, supplemented by coaxial cable connections from the nodes to the premises of end-users.

immediate circle has the meaning given by section 23.

import means import into Australia.

industry levy means levy imposed by the *Telecommunications (Industry Levy) Act 2012*.

infringement notice means an infringement notice under section 572E.

inspector has the meaning given by section 533.

integrated public number database scheme means the scheme in force under section 295A.

intercell hand-over functions has the meaning given by section 33.

internet carriage service means a carriage service that enables end-users to access the internet.

internet service provider has the same meaning as in the *Online Safety Act 2021*.

Layer 2 bitstream service means a carriage service that is:

- (a) a Layer 2 bitstream service (within the ordinary meaning of that expression); and
- (b) a listed carriage service; and
- (c) supplied using a line to premises occupied or used by an end-user.

For the purposes of determining the ordinary meaning of the expression used in paragraph (a), assume that **Layer 2** has the same meaning as in the Open System Interconnection (OSI) Reference Model for data exchange.

line means a wire, cable, optical fibre, tube, conduit, waveguide or other physical medium used, or for use, as a continuous artificial guide for or in connection with carrying communications by means of guided electromagnetic energy.

line link has the meaning given by section 30.

listed carriage service has the meaning given by section 16.

marketing fax means:

(a) a marketing fax (within the meaning of the *Do Not Call Register Act 2006*) that is sent to an Australian number; or

(b) a fax (within the meaning of the *Do Not Call Register Act 2006*) that is sent to an Australian number, where, having regard to:

(i) the content of the fax; and

(ii) the presentational aspects of the fax;

it would be concluded that the purpose, or one of the purposes, of the fax is:

(iii) to conduct opinion polling; or

(iv) to carry out standard questionnaire-based research.

member means a member of the ACMA (and does not include an associate member).

NBN corporation has the same meaning as in the *National Broadband Network Companies Act 2011*. This definition does not apply to:

(a) section 577BA; or

(b) section 577BC; or

(c) clause 17 of Schedule 1; or

(d) Part 5 of Schedule 1.

network unit has the meaning given by Division 2 of Part 2.

nominated carriage service provider means a carriage service provider covered by a declaration in force under subsection 197(4) of the *Telecommunications (Interception and Access) Act 1979*.

nominated carrier means a carrier in respect of whom a nominated carrier declaration is in force.

nominated carrier declaration means a declaration under section 81.

notifiable equipment has the same meaning as in the *Telecommunications (Interception and Access) Act 1979*.

numbering plan has the meaning given by section 455.

numbering scheme means the scheme for planning and managing:

(a) the numbering of carriage services in Australia; and

(b) the use of numbers in connection with the supply of such services; and

(c) the specification, allocation and issuing of numbers for that use.

numbering scheme manager: see subsection 454A(2).

numbering scheme principles: see subsection 454C(2).

optical fibre line means a line that consists of, or encloses, optical fibre.

owner, in relation to a network unit, means a person who legally owns the unit (whether alone or together with one or more other persons).

person includes a partnership.

point-to-multipoint service means a carriage service which allows a person to transmit a communication to more than one end-user simultaneously.

project area for a real estate development project has the meaning given by section 372Q.

public body means:

- (a) the Commonwealth, a State or a Territory; or
- (b) an authority, or institution, of the Commonwealth, a State or a Territory; or
- (c) an incorporated company all the stock or shares in the capital of which is beneficially owned by one of the following:
 - (i) the Commonwealth;
 - (ii) a State;
 - (iii) a Territory; or
- (d) an incorporated company limited by guarantee, where the interests and rights of the members in or in relation to the company are beneficially owned by one of the following:
 - (i) the Commonwealth;
 - (ii) a State;
 - (iii) a Territory.

public mobile telecommunications service has the meaning given by section 32.

radiocommunication has the same meaning as in the *Radiocommunications Act 1992*.

radiocommunications device has the same meaning as in the *Radiocommunications Act 1992*.

radiocommunications receiver has the same meaning as in the *Radiocommunications Act 1992*.

radiocommunications transmitter has the same meaning as in the *Radiocommunications Act 1992*.

real estate development project has the meaning given by section 372Q.

recognised person who operates an emergency call service has the meaning given by section 19.

recognised testing authority has the meaning given by section 409.

record-keeping rule means a rule under section 529.

registered charity means an entity that is registered under the *Australian Charities and Not-for-profits Commission Act 2012* as the type of entity mentioned in column 1 of item 1 of the table in subsection 25-5(5) of that Act.

satellite-based facility means a radiocommunications transmitter, or a radiocommunications receiver, in a satellite.

sell:

(a) when used in relation to a building lot—has the meaning given by section 372T; or

(b) when used in relation to a building unit—has the meaning given by section 372U.

service provider has the meaning given by section 86.

service provider rules has the meaning given by section 98.

spectrum has the same meaning as in the *Radiocommunications Act 1992*.

spectrum licence has the same meaning as in the *Radiocommunications Act 1992*.

standard questionnaire-based research means research that involves people being asked to answer one or more standard questions, but does not include:

(a) opinion polling; or

(b) research of a kind specified in the regulations.

standard telephone service has the meaning given by section 6 of the *Telecommunications (Consumer Protection and Service Standards) Act 1999*.

subdivision of an area of land has a meaning affected by section 372R.

subscription television broadcasting licence has the same meaning as in the *Broadcasting Services Act 1992*.

telecommunications industry includes an industry that involves:

(a) carrying on business as a carrier; or

(b) carrying on business as a carriage service provider; or

(c) supplying goods or services for use in connection with the supply of a listed carriage service; or

(d) supplying a content service using a listed carriage service; or

(e) manufacturing or importing customer equipment or customer cabling; or

(f) installing, maintaining, operating or providing access to:

(i) a telecommunications network; or

(ii) a facility;

used to supply a listed carriage service.

Telecommunications Industry Ombudsman has the same meaning as in the *Telecommunications (Consumer Protection and Service Standards) Act 1999*.

Telecommunications Industry Ombudsman scheme has the same meaning as in the *Telecommunications (Consumer Protection and Service Standards) Act 1999*.

telecommunications network means a system, or series of systems, that carries, or is capable of carrying, communications by means of guided and/or unguided electromagnetic energy.

telecommunications service has the same meaning as in the *Telecommunications (Interception and Access) Act 1979*.

telecommunications system has the same meaning as in the *Telecommunications (Interception and Access) Act 1979*.

telemarketing call means:

- (a) a telemarketing call (within the meaning of the *Do Not Call Register Act 2006*) that is made to an Australian number; or
- (b) a voice call (within the meaning of the *Do Not Call Register Act 2006*) that is made to an Australian number, where, having regard to:
 - (i) the content of the call; and
 - (ii) the presentational aspects of the call;it would be concluded that the purpose, or one of the purposes, of the call is:
 - (iii) to conduct opinion polling; or
 - (iv) to carry out standard questionnaire-based research.

telemarketing industry means an industry that involves carrying on a telemarketing activity (as defined by section 109B).

Telstra has the same meaning as in the *Telstra Corporation Act 1991*.

Telstra Infraco Limited means Telstra Infraco Limited (ACN 051 775 556), as the company exists from time to time (even if its name is later changed).

Telstra Limited means Telstra Limited (ACN 086 174 781), as the company exists from time to time (even if its name is later changed).

Telstra successor company: see section 581F.

this Act includes the regulations.

universal service obligation has the same meaning as in the *Telecommunications (Consumer Protection and Service Standards) Act 1999*.

vessel means a vessel or boat of any description, and includes:

- (a) an air-cushion vehicle; and
- (b) any floating structure.

8 Crown to be bound

- (1) This Act binds the Crown in right of the Commonwealth, of each of the States, of the Australian Capital Territory and of the Northern Territory.

(2) This Act does not make the Crown liable to a pecuniary penalty or to be prosecuted for an offence.

(3) The protection in subsection (2) does not apply to an authority of the Crown.

9 Extra-territorial application

This Act applies both within and outside Australia.

10 Extension to external Territories

(1) This Act extends to:

(a) the Territory of Christmas Island; and

(b) the Territory of Cocos (Keeling) Islands; and

(c) such other external Territories (if any) as are prescribed.

(2) The operation of this Act in relation to Norfolk Island is not affected by the amendments made by Division 1 of Part 1 of Schedule 5 to the *Territories Legislation Amendment Act 2016*.

11 Extension to offshore areas

(1) This Act applies in relation to the offshore areas of:

(a) each of the States; and

(b) each of the eligible Territories;

as if references in this Act to Australia included references to those offshore areas. This subsection has effect subject to subsection (2).

(2) The application of this Act ~~consent is *current* if it has not expired~~ in accordance with subsection (1) in relation to an offshore area extends only in relation to acts, matters and things touching, concerning, arising out of or connected with: ~~rule 4.14; and~~

(a) the exploration of the continental shelf of Australia; or

(b) the exploitation of the resources of the continental shelf of Australia.

(3) The application of this Act ~~an authorisation to disclose particular CDR data is *current* if it has not expired~~ in accordance with subsection (1) in relation to an offshore area extends in relation to all acts done by or in relation to, and all matters, circumstances and things affecting, any person who is in the offshore area for a reason touching, concerning, arising out of or connected with:

(a) the exploration of the continental shelf of Australia; or

(b) the exploitation of the resources of the continental shelf of Australia.

~~(rule 4)~~ Subsection (3) does not, by implication, limit subsection (2).-26-

(5) In this section:

offshore area, in relation to a State or Territory, has the same meaning as in the *Offshore Petroleum and Greenhouse Gas Storage Act 2006*.

11A Application of the *Criminal Code*

Chapter 2 of the *Criminal Code* (except Part 2.5) applies to all offences against this Act.

Note: Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.

12 Act subject to Radiocommunications Act

(1) This Act has effect subject to the *Radiocommunications Act 1992*.

(2) However, to avoid doubt, the fact that a person is authorised to do something under a licence under the *Radiocommunications Act 1992* does not entitle the person to do that thing if the person is prohibited by or under this Act from doing it, unless a condition of the licence requires the person to do it.

13 Continuity of partnerships

For the purposes of this Act, a change in the composition of a partnership does not affect the continuity of the partnership.

14 Controlled carriage services, controlled networks and controlled facilities

Controlled carriage services

(1) For the purposes of this Act, if:

(a) a carrier or carriage service provider supplies, or proposes to supply, a carriage service; and

(b) the carriage service involves, or will involve, the use of a controlled network, or a controlled facility, of the carrier or of the provider, as the case may be;

the carriage service is a **controlled carriage service** of the carrier or the provider, as the case may be.

Controlled networks

(2) For the purposes of this Act, if:

(a) a carrier or carriage service provider operates a telecommunications network; and

(b) the network satisfies the geographical test set out in subsection (4);

the network is a **controlled network** of the carrier or the provider, as the case may be.

Controlled facilities

(3) For the purposes of this Act, if:

(a) a carrier or carriage service provider operates a facility; and

(b) the facility satisfies the geographical test set out in subsection (4);
the facility is a ***controlled facility*** of the carrier or provider, as the case may be.

Geographical test

(4) For the purposes of this section, a telecommunications network, or a facility, ***satisfies the geographical test*** if:

(a) the whole or any part of the network or facility, as the case requires, is, or will be, located in Australia; or

(b) all of the following conditions are satisfied:

(i) a person, or a group of persons, operates the network or the facility, as the case requires;

(ii) the person, or at least one of the members of the group, carries on, or will carry on, a telecommunications-related business wholly or partly in Australia;

(iii) the network, or the facility, as the case requires, is used, or will be used, to supply a listed carriage service, or a service that is ancillary or incidental to such a service.

Definition

(5) In this section:

telecommunications-related business means a business that consists of, or includes:

(a) supplying a carriage service; or

(b) supplying goods or services for use in connection with the supply of a carriage service; or

(c) supplying a content service; or

(d) installing, maintaining, operating or providing access to:

(i) a telecommunications network; or

(ii) a facility.

15 Content service

(1) For the purposes of this Act, a ***content service*** is:

(a) a broadcasting service; or

(b) an on-line information service (for example, a dial-up information service);
or

(c) an on-line entertainment service (for example, a video-on-demand service or an interactive computer game service); or

(d) any other on-line service (for example, an education service provided by a State or Territory government); or

(e) a service of a kind specified in a determination made by the Minister for the purposes of this paragraph.

-
- (2) The Minister may, by legislative instrument, make a determination for the purposes of paragraph (1)(c).

16 Listed carriage services

- (1) For the purposes of this Act, the following carriage services are *listed carriage services*:

- (a) a carriage service between a point in Australia and one or more other points in Australia;
- (b) a carriage service between a point and one or more other points, where the first-mentioned point is in Australia and at least one of the other points is outside Australia;
- (c) a carriage service between a point and one or more other points, where the first-mentioned point is outside Australia and at least one of the other points is in Australia.

- (2) For the purposes of this section, a *point* includes a mobile or potentially mobile point, whether on land, underground, in the atmosphere, in outer space, underwater, at sea or anywhere else.

- (3) For the purposes of this section, a point that is:

- (a) in the atmosphere; and
 - (b) in or below the stratosphere; and
 - (c) above Australia;
- is taken to be a point in Australia.

- (4) For the purposes of this section, a point that is:

- (a) on a satellite; and
 - (b) above the stratosphere;
- is taken to be a point outside Australia.

18 Access to an emergency call service

For the purposes of this Act, a person is taken not to have *access* to an emergency call service unless, in the event that the person attempts to place a call to the relevant emergency service number, the call can be established and maintained.

19 Recognised person who operates an emergency call service

- (1) A reference in this Act to a *recognised person who operates an emergency call service* is a reference to a person who:

- (a) operates an emergency call service; and
- (b) is specified, in a written determination made by the ACMA for the purposes of this paragraph, as:
 - (i) a national operator of emergency call services; or

(ii) a regional operator of emergency call services.

Note: For specification by class, see subsection 13(3) of the *Legislation Act 2003*.

(2) A determination under paragraph (1)(b) is a notifiable instrument.

(3) A person may be specified in a determination under paragraph (1)(b) even if the person does not operate an emergency call service at the time the determination is made.

(4) Subsection (3) is enacted for the avoidance of doubt.

20 Customer cabling

(1) For the purposes of this Act, **customer cabling** means a line that, under the regulations, is treated as customer cabling.

(2) Regulations made for the purposes of subsection (1) may deal with a matter by reference to the boundary of a telecommunications network.

Note: **Boundary of a telecommunications network** is defined by section 22.

(3) Subsection (2) does not, by implication, limit subsection (1).

(4) If no regulations are in force for the purposes of subsection (1), then, for the purposes of this Act, **customer cabling** means a line that is used, installed ready for use or intended for use on the customer side of the boundary of a telecommunications network.

Note: **Boundary of a telecommunications network** is defined by section 22.

21 Customer equipment

(1) For the purposes of this Act, **customer equipment** means:

(a) any equipment, apparatus, tower, mast, antenna or other structure or thing;
or

(b) any system (whether software-based or otherwise);

that:

(c) is used, installed ready for use or intended for use in connection with a carriage service; and

(d) under the regulations, is treated as customer equipment;
but does not include a line.

(2) Regulations made for the purposes of subsection (1) may deal with a matter by reference to the boundary of a telecommunications network.

Note: **Boundary of a telecommunications network** is defined by section 22.

(3) Subsection (2) does not, by implication, limit subsection (1).

(4) If no regulations are in force for the purposes of subsection (1), then, for the purposes of this Act, **customer equipment** means:

(a) any equipment, apparatus, tower, mast, antenna or other structure or thing that is used, installed ready for use or intended for use on the customer side of the boundary of a telecommunications network; or

(b) any system (whether software-based or otherwise) that is used, installed ready for use or intended for use on the customer side of the boundary of a telecommunications network;

but does not include:

(c) a line; or

(d) equipment of a kind specified in regulations made for the purposes of this paragraph; or

(e) an apparatus, tower, mast, antenna or other structure or thing that is of a kind specified in regulations made for the purposes of this paragraph; or

(f) a system (whether software-based or otherwise) that is of a kind specified in regulations made for the purposes of this paragraph.

Note : *Boundary of a telecommunications network* is defined by section 22.

22 Customer cabling and customer equipment—boundary of a telecommunications network

(1) For the purposes of sections 20, 21, 30, 349, 372B, 372C and 372V, the boundary of a telecommunications network is to be ascertained in accordance with the regulations.

(2) Regulations made for the purposes of subsection (1) may deal with a matter by reference to any or all of the following:

(a) the terms of an agreement between 2 or more carriers, where the agreement is entered into for the purposes of those regulations;

(b) the terms of an agreement between 2 or more carriage service providers, where the agreement is entered into for the purposes of those regulations;

(c) the terms of an agreement between a carrier and a carriage service provider, where the agreement is entered into for the purposes of those regulations;

(d) the terms of an agreement between a carrier and a customer of the carrier, where the agreement is entered into for the purposes of those regulations;

(e) the terms of an agreement between a carriage service provider and a customer of the provider, where the agreement is entered into for the purposes of those regulations.

(3) Subsection (2) does not, by implication, limit subsection (1).

(4) If no regulations are in force for the purposes of subsection (1), then, for the purposes of sections 20, 21, 30, 349, 372B, 372C and 372V, the boundary of a telecommunications network is:

(a) in a case where a telecommunications network is used to supply a carriage service to an end-user in a building by means of a line that enters the building—the point agreed between the customer and the carrier or carriage service provider who operates the telecommunications network, or, failing agreement:

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- (i) if ~~(a)~~, there is a main distribution frame in the building and the line is connected to the frame—the side of the frame nearest to the end-user;
or
- (ii) if subparagraph (i) does not apply but the line is connected to a network termination device located in, on or within close proximity to, the building—the side of the device nearest to the end-user; or
- (iii) if neither subparagraph (i) nor (ii) applies but the line is connected to one or more sockets in the building—the side nearest to the end-user of the first socket after the building entry point; or
- (b) in a case where a telecommunications network is used to supply a carriage service to an end-user by means of a satellite-based facility that transmits to, or receives transmissions from, the point where the end user is located—the outer surface of the satellite-based facility; or
- (c) in a case where:
- (i) a telecommunications network is used to supply a carriage service to an end-user; and
- (ii) paragraphs (a) and (b) do not apply;
the outer surface of the fixed facility nearest to the end-user, where the facility is used, installed ready for use or intended for use to supply the carriage service.
- (5) If, immediately before 1 July 1997, the boundary of a telecommunications network used to supply a standard telephone service to an end-user in a building by means of a line that enters the building is the side of a main distribution frame, or a telephone socket, nearest to the end-user, paragraph (4)(a) has effect, on and after 1 July 1997, as if the customer and the carrier or carriage service provider who operates the network had agreed to the boundary at that point.
- (6) Subsection (5) does not prevent the customer and the carrier or carriage service provider agreeing to a boundary at a different point.
- (7) For the purposes of subsection (4), the **building entry point** is the point at which a line that is used to provide a carriage service to an end-user in a building meets the outer surface of that building, immediately before entering the building.
- (8) In this section:

building includes a structure, a caravan and a mobile home.

23 Immediate circle

- (1) For the purposes of this Act, a person's **immediate circle** consists of the person, together with the following persons:
- (a) if the person is an individual—an employee of the individual;
- (b) if the person is a partnership—an employee of the partnership;
- (c) if the person is a body corporate:
- (i) an officer of the body corporate;
- (ii) if another body corporate is related to the first-mentioned body corporate (within the meaning of the *Corporations Act 2001*)—that other body corporate and an officer of that other body corporate;

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- (d) if the person is the Commonwealth:
- (i) an authority or institution of the Commonwealth (other than an authority or institution that carries on a business as a core function) and a constituent member or an employee of such an authority or institution;
 - (ii) an officer or employee of the Commonwealth;
 - (iii) a member of the Australian Defence Force;
 - (iv) a member of the Australian Federal Police;
 - (v) a member of the Parliament and a member of the staff of a member of the Parliament;
 - (vi) a person who holds or performs the duties of an office under the Constitution or a law of the Commonwealth;
- (e) if the person is a State:
- (i) an authority or institution of the State (other than an authority or institution that carries on a business as a core function) and a constituent member or an employee of such an authority or institution;
 - (ii) an officer or employee of the State;
 - (iii) a member of the police force of the State;
 - (iv) a member of the Parliament of the State and a member of the staff of a member of the Parliament of the State;
 - (v) a person who holds or performs the duties of an office under a law of the State;
- (f) if the person is a Territory:
- (i) an authority or institution of the Territory (other than an authority or institution that carries on a business as a core function) and a constituent member or an employee of such an authority or institution;
 - (ii) an officer or employee of the Territory;
 - (iii) a member of the police force of the Territory;
 - (iv) a member of the Legislative Assembly of the Territory and a member of the staff of a member of the Legislative Assembly of the Territory;
 - (v) a person who holds or performs the duties of an office under a law of the Territory;
- (g) if the person is an authority or institution of the Commonwealth (other than an authority or institution that carries on a business as a core function):
- (i) a constituent member or an employee of the authority or institution;
 - (ii) the Commonwealth;
 - (iii) an officer or employee of the Commonwealth;
 - (iv) a member of the Australian Defence Force;
 - (v) a member of the Australian Federal Police;
 - (vi) a member of the Parliament and a member of the staff of a member of the Parliament;
 - (vii) a person who holds or performs the duties of an office under the Constitution or a law of the Commonwealth;
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- (viii) another authority or institution of the Commonwealth (other than an authority or institution that carries on a business as a core function) and a constituent member or an employee of the other authority or institution;
 - (h) if the person is an authority or institution of the Commonwealth, being an authority or institution that carries on a business as a core function—a constituent member or an employee of the authority or institution;
 - (i) if the person is an authority or institution of a State (other than an authority or institution that carries on a business as a core function):
 - (i) a constituent member or an employee of the authority or institution;
 - (ii) the State;
 - (iii) an officer or employee of the State;
 - (iv) a member of the police force of the State;
 - (v) a member of the Parliament of the State and a member of the staff of a member of the Parliament of the State;
 - (vi) a person who holds or performs the duties of an office under a law of the State;
 - (vii) another authority or institution of the State (other than an authority or institution that carries on a business as a core function) and a constituent member or an employee of the other authority or institution;
 - (j) if the person is an authority or institution of a State, being an authority or institution that carries on a business as a core function—a constituent member or an employee of the authority or institution;
 - (k) if the person is an authority or institution of a Territory (other than an authority or institution that carries on a business as a core function):
 - (i) a constituent member or an employee of the authority or institution;
 - (ii) the Territory;
 - (iii) an officer or employee of the Territory;
 - (iv) a member of the police force of the Territory;
 - (v) a member of the Legislative Assembly of the Territory and a member of the staff of a member of the Legislative Assembly of the Territory;
 - (vi) a person who holds or performs the duties of an office under a law of the Territory;
 - (vii) another authority or institution of the Territory (other than an authority or institution that carries on a business as a core function) and a constituent member or an employee of the other authority or institution;
 - (l) if the person is an authority or institution of a Territory, being an authority or institution that carries on a business as a core function—a constituent member or employee of the authority or institution;
 - (m) if the person is a tertiary education institution:
 - (i) a member of the governing body of the tertiary education institution;
 - (ii) an officer or employee of the tertiary education institution;
 - (iii) a student of the tertiary education institution;
 - (n) a person specified in a determination under subsection (2).
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- (2) The Minister may, by legislative instrument, make a determination specifying persons for the purposes of paragraph (1)(n).
- (3) A determination under subsection (2) may be unconditional or subject to such conditions (if any) as are specified in the determination.
- (4) Paragraphs (1)(a) to (m) (inclusive) do not, by implication, limit subsections (2) and (3).
- (5) The Minister may, by legislative instrument, make a determination providing that a specified authority or specified institution is taken to carry on a business as a core function for the purposes of subsection (1).
- (6) The Minister may, by legislative instrument, make a determination providing that a specified authority or specified institution is taken not to carry on a business as a core function for the purposes of subsection (1).
- (7) A determination under subsection (2), (5) or (6) has effect accordingly.
- (9) For the purposes of this section, a person who holds or performs the duties of the office of Administrator of the Northern Territory is taken to be an officer of that Territory.
- (10) For the purposes of this section, the Australian Federal Police is taken to be the police force of the Australian Capital Territory.
- (11) In this section:
- core function**, in relation to an authority or institution, means a function of the authority or institution other than a secondary or incidental function.
- director** includes a constituent member of a body corporate incorporated for a public purpose by a law of the Commonwealth, a State or a Territory.
- executive officer**, in relation to a body corporate, means a person, by whatever name called and whether or not a director of the body, who is concerned in, or takes part in, the management of the body.
- officer**, in relation to a body corporate, includes a director, secretary, executive officer or employee of the body.
- tertiary education institution** means:
- (a) a higher education institution (within the meaning of the *Student Assistance Act 1973*); or
- (b) a technical and further education institution (within the meaning of that Act).
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24 Extended meaning of *use*

Unless the contrary intention appears, a reference in this Act to the *use* of a thing is a reference to the use of the thing either:

- (a) in isolation; or
- (b) in conjunction with one or more other things.

Part 2—Network units

Division 1—Simplified outline

25 Simplified outline

The following is a simplified outline of this Part:

- The object of this Part is to define the expression *network unit*.
- There are 4 types of network unit:
 - (a) a single line link connecting distinct places in Australia, where the line link meets certain minimum distance requirements;
 - (b) multiple line links connecting distinct places in Australia, where the line links meet certain minimum distance requirements;
 - (c) a designated radiocommunications facility;
 - (d) a facility specified in a Ministerial determination.

Division 2—Basic definition

26 Single line links connecting distinct places in Australia

- _____ (1) If:
- _____ (a) a line link connects distinct places in Australia; and
- _____ (b) the distinct places are at least the statutory distance apart;
- _____ the line link is a ***network unit***.
- _____ (2) For the purposes of this section, the ***statutory distance*** is:
- _____ (a) 500 metres; or
- _____ (b) if a longer distance, not exceeding 50 kilometres, is specified in the regulations—that longer distance.

27 Multiple line links connecting distinct places in Australia

- _____ (1) If:
- _____ (a) the same person owns, or the same persons own, 2 or more line links; and
- _____ (b) each of those line links connects distinct places in Australia; and
- _____ (c) the aggregate of the distances between the distinct places is more than the statutory distance;
- _____ each of those line links is a ***network unit***.

Note: ***Statutory distance*** is defined by subsection (3).

- _____ (2) If:
- _____ (a) the following conditions are satisfied in relation to 2 or more line links:
- _____ (i) the owners of the line links are bodies corporate;
- _____ (ii) the owners of the line links are all members of the same related company group; and
- _____ (b) each of those line links connects distinct places in Australia; and
- _____ (c) the aggregate of the distances between the distinct places is more than the statutory distance;
- _____ each of those line links is a ***network unit***.

Note: ***Statutory distance*** is defined by subsection (3).

- _____ (3) For the purposes of this section, the ***statutory distance*** is:
- _____ (a) 5 kilometres; or
- _____ (b) if a longer distance, not exceeding 500 kilometres, is specified in the regulations—that longer distance.

- _____ (4) In this section:

owner means legal or beneficial owner, and ***own*** has a corresponding meaning.

related company group means a group of 2 or more bodies corporate, where each member of the group is related to each other member of the group.

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- (5) For the purposes of this section, the question whether a body corporate is related to another body corporate is to be determined in the same manner as that question is determined under the *Corporations Act 2001*.

28 Designated radiocommunications facility

- (1) If a designated radiocommunications facility is used, or is for use, to supply a carriage service between a point in Australia and one or more other points in Australia, the facility is a **network unit**.
- (2) It does not matter whether the supply involves:
- (a) the use of a satellite; or
 - (b) the use of a line or other facility outside Australia.
- (3) For the purposes of this section, a **point** includes a mobile or potentially mobile point, whether on land, underground, in the atmosphere, in outer space, underwater, at sea or anywhere else.
- (4) For the purposes of this section, a point that is:
- (a) in the atmosphere; and
 - (b) in or below the stratosphere; and
 - (c) above Australia;
- is taken to be a point in Australia.
- (5) For the purposes of this section, a point that is:
- (a) on a satellite; and
 - (b) above the stratosphere;
- is taken to be a point outside Australia.

29 Facilities specified in Ministerial determination

- (1) The Minister may, by legislative instrument, determine that a specified facility is a **network unit** for the purposes of this Act.
- (2) The determination has effect accordingly.
- (4) To avoid doubt, nothing in the other provisions of this Part limits the power conferred by subsection (1).

Division 3—Related definitions

30 Line links

- (1) A line constitutes a line link.
- (2) If:
- (a) a line is connected to another line; and
 - (b) the other line constitutes, or forms part of, a line link;
- the first-mentioned line, and the line link referred to in paragraph (b), together constitute a line link.
- (3) Subsection (2) is recursive, that is, the reference in paragraph (2)(b) to a line link is a reference to something that is a line link because of any other application or applications of this section.
- (4) For the purposes of subsection (2), a line is connected to another line if, and only if:
- (a) the lines are connected to each other; or
 - (b) each of the lines is connected to the same facility (other than a line);
- in such a way that a communication can be carried, by means of the 2 lines, or by means of facilities including the 2 lines, in the same way as if the 2 lines were a single line.
- (4A) A line does not form part of any line link to the extent that the line is on the customer side of the boundary of a telecommunications network.
- Note: *Boundary of a telecommunications network* is defined by section 22.
- (5) A facility other than a line does not form part of any line link.

31 Designated radiocommunications facility

- (1) A reference in this Act to a *designated radiocommunications facility* is a reference to:
- (a) a base station used, or for use, to supply a public mobile telecommunications service; or
 - (b) a base station that is part of a terrestrial radiocommunications customer access network; or
 - (c) a fixed radiocommunications link; or
 - (d) a satellite-based facility; or
 - (e) a radiocommunications transmitter of a kind specified in a determination under subsection (2); or
 - (f) a radiocommunications receiver of a kind specified in a determination under subsection (3);
- but does not include a reference to:
- (g) a base station of a kind declared under subsection (5) to be exempt from this section; or
 - (h) a fixed radiocommunications link of a kind declared under subsection (5) to be exempt from this section; or

(i) a satellite-based facility of a kind declared under subsection (5) to be exempt from this section.

Note 1: *Public mobile telecommunications service* is defined by section 32.

Note 2: *Base station that is part of a terrestrial radiocommunications customer access network* is defined by section 34.

Note 3: *Fixed radiocommunications link* is defined by section 35.

Note 4: *Satellite-based facility* is defined by section 7.

(2) The Minister may, by legislative instrument, make a determination for the purposes of paragraph (1)(e).

(3) The Minister may, by legislative instrument, make a determination for the purposes of paragraph (1)(f).

(5) The Minister may, by legislative instrument, make a declaration for the purposes of paragraph (1)(g), (h) or (i).

(7) To avoid doubt, nothing in the other provisions of this Part limits a power conferred by subsection (2), (3) or (5).

32 Public mobile telecommunications service

(1) For the purposes of this Act, if:

(a) an end-user can use a carriage service while moving continuously between places; and

(b) the customer equipment used for or in relation to the supply of the service is not in physical contact with any part of the telecommunications network by means of which the service is supplied; and

(c) the service is supplied by use of a telecommunications network that has intercell hand-over functions; and

(d) the service is not an exempt service (as defined by subsection (2), (3) or (4));

the service is a *public mobile telecommunications service*.

(2) For the purposes of this section, a carriage service is an *exempt service* if:

(a) the service is supplied by means of a telecommunications network (a *primary network*) that is connected to one or more line links or other facilities that, apart from this section, are eligible network units; and

(b) the principal function of the primary network is to supply carriage services between customer equipment connected to the primary network and other such equipment; and

(c) the supply of carriage services between such equipment and equipment connected to the network units is, at most, an ancillary function of the primary network; and

(d) despite the connection or connections referred to in paragraph (a), the primary network cannot be used in carrying a communication, as a single

transaction, between equipment connected to the network units and other such equipment.

(3) For the purposes of this section, a carriage service is an **exempt service** if the service is:

- (a) a one-way only, store-and-forward communications service; or
- (b) a service that performs the same functions as such a service.

(4) For the purposes of this section, a carriage service is an **exempt service** if all of the end-users of the service are located at the same distinct place.

(5) In this section:

eligible network unit means a network unit:

- (a) that is owned by one or more carriers; or
- (b) in relation to which a nominated carrier declaration is in force.

33 Intercell hand-over functions

(1) For the purposes of this Act, a telecommunications network is taken to have **intercell hand-over functions** if, and only if:

(a) the facilities of the network include at least 2 base stations each of which transmits and receives signals to and from customer equipment (**mobile equipment**) that is:

- (i) used for or in relation to the supply of an eligible mobile telecommunications service; and
- (ii) located within a particular area (a **cell**); and

(b) the network includes the functions necessary to do the following while the network is carrying a communication made to or from particular mobile equipment:

- (i) determine in which cell the equipment is located and cause the base station in that cell to transmit and receive signals to and from the equipment;
- (ii) when the equipment moves from one cell to another, cause the base station in the one cell to stop, and the base station in the other cell to start, transmitting and receiving signals to and from the equipment.

(2) For the purposes of this section, a carriage service is an **eligible mobile telecommunications service** if:

- (a) an end-user can use it while moving continuously between places; and
- (b) customer equipment used for or in relation to the supply of the service is not in physical contact with any part of the telecommunications network by means of which the service is supplied.

34 When a base station is part of a terrestrial radiocommunications customer access network

(1) For the purposes of this Act, a base station is part of a terrestrial radiocommunications customer access network if, and only if:

- (a) the base station is part of a telecommunications network; and

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- (b) the base station is not an exempt base station (as defined by subsection (2)); and
- (c) the base station is used, or for use, in connection with the supply of a carriage service; and
- (d) customer equipment used for or in relation to the supply of the service is not in physical contact with any part of the telecommunications network by means of which the service is supplied; and
- (e) the service is wholly or principally used, or wholly or principally for use, by each end-user:
- (i) at premises occupied or used by the end-user; or
- (ii) in the immediate vicinity of those premises; and
- (f) the network does not have intercell hand-over functions; and
- (g) the conditions (if any) specified in the regulations are satisfied; and
- (h) the network is not an exempt network (as defined by subsection (3)).
- (2) For the purposes of paragraph (1)(b), a base station is an **exempt base station** if the sole use of the base station is use by a broadcaster to:
- (a) supply broadcasting services to the public; or
- (b) supply a secondary carriage service by means of the main carrier signal of a primary broadcasting service;
- or both.
- (3) For the purposes of paragraph (1)(h), a network is an **exempt network** if:
- (a) the network is used, or for use, for the sole purpose of supplying carriage services on a non-commercial basis; or
- (b) the network is of a kind specified in the regulations.
- (4) In this section:
- broadcaster** means:
- (a) the Australian Broadcasting Corporation; or
- (b) the Special Broadcasting Service Corporation; or
- (c) the holder of a licence under the *Broadcasting Services Act 1992*; or
- (d) a person who provides a broadcasting service under a class licence under the *Broadcasting Services Act 1992*.

35 Fixed radiocommunications link

- (1) For the purposes of this Act, a **fixed radiocommunications link** is a facility, or a combination of facilities, where:
- (a) the facility or combination is used, or for use, in connection with the supply of a carriage service between 2 or more fixed points by means of radiocommunication; and

(b) some or all of the communications carried by means of the facility or combination have the characteristic of double-ended interconnection (as defined by subsection (3)); and

(c) the facility or combination does not consist of:

(i) one or more base stations that are part of a terrestrial radiocommunications customer access network; or

(ii) one or more base stations that would be part of such a network if paragraph 34(1)(h) had not been enacted.

(2) For the purposes of this section, a **fixed point** is a fixed point on:

(a) land; or

(b) a building or structure on land.

(3) For the purposes of this section, if:

(a) a communication is carried over a line link or other facility that, apart from this section, is an eligible network unit; and

(b) the communication is then carried (immediately or with a transmission delay of not longer than 30 seconds), by means of radiocommunication, between 2 or more fixed points; and

(c) the communication is then carried (immediately or with a transmission delay of not longer than 30 seconds) over another line link or other facility that, apart from this section, is an eligible network unit;

the communication referred to in paragraph (b) has the characteristic of double-ended interconnection.

(4) In this section:

eligible network unit means a network unit:

(a) that is owned by one or more carriers; or

(b) in relation to which a nominated carrier declaration is in force.

Division 4—Distinct places

36 Distinct places—basic rules

- (1) Places are distinct unless they are all in the same area because of subsection (2), (3) or (4).
- (2) Places are in the same area if they are all situated in the same property as defined by section 37.
- (3) Places are in the same area if they are situated in properties each of which forms part of a combined area as defined by section 38 and:
- (a) the same person or persons is or are the principal user (as defined by section 39) of all the properties that together constitute that combined area; or
- (b) because of a determination in force under section 40, that combined area is an eligible combined area for the purposes of this paragraph.
- (4) Places are in the same area if they are all situated in the same eligible Territory.
- (5) The later provisions of this Division have effect only for the purposes of this Division.

37 Properties

- (1) An area of land is a property if:
- (a) there is a single freehold or leasehold title in relation to that area (whether or not that title is registered under a law of a State or Territory relating to the registration of interests in land); and
- (b) no part of that area is subject to a lease granted by the holder of that title; and
- (c) the title to the area is defined by reference to geographical coordinates.
- (2) If:
- (a) there is a single freehold or leasehold title (as mentioned in paragraph (1)(a)) in relation to an area of land; and
- (b) some but not all of that area is subject to a lease granted by the holder of that title;
- then, an area of land:
- (c) all of which is within the area referred to in paragraph (a) of this subsection; and
- (d) none of which is subject to such a lease;
- is a property unless it is only part of another such area.
- (3) An area of land is not a property except as provided in this section.

(4) The regulations may prescribe the circumstances in which an area of land in relation to which there is a single freehold or leasehold title is not to constitute a property for the purposes of this Division.

(5) Despite paragraph (1)(c), the regulations may prescribe the circumstances in which an area of land, the title to which is defined otherwise than by reference to geographical coordinates, is a property.

(6) In this section:

land includes premises and a part of premises, but does not include unalienated Crown land.

lease includes sublease and *leasehold title* has a corresponding meaning.

38 Combined areas

(1) 2 contiguous properties form a combined area.

(2) If:

(a) a property is contiguous with another property; and

(b) the other property forms part of a combined area;

the first-mentioned property, and the combined area referred to in paragraph (b), together form a combined area.

(3) Subsection (2) is recursive, that is, the reference in paragraph (2)(b) to a combined area is a reference to something that is a combined area because of any other application or applications of this section.

39 Principal user of a property

(1) The principal user of a property is the person who:

(a) occupies the property; or

(b) uses the property for the purpose that is the sole or principal purpose for which the property is used.

(2) However, if 2 or more persons:

(a) together occupy a property; or

(b) together use a property for the purpose that is the sole or principal purpose for which the property is used;

they are taken to together be the principal user of the property.

40 Eligible combined areas

The Minister may, by legislative instrument, determine that specified combined areas are eligible combined areas for the purposes of paragraph 36(3)(b).

Part 3—Carriers

Division 1—Simplified outline

41 Simplified outline

The following is a simplified outline of this Part:

- The owner of a network unit that is used to supply carriage services to the public must hold a carrier licence unless:
 - (a) a nominated carrier declaration is in force in relation to the network unit; or
 - (b) an exemption applies.
- Carrier licences are granted by the ACMA.
- The holder of a carrier licence is known as a *carrier*.
- If responsibility for a network unit is transferred from the owner of the unit to a carrier, the ACMA may make a *nominated carrier declaration* that declares the carrier to be the *nominated carrier* in relation to the unit.
- Carrier licences are subject to conditions.

Division 2—Prohibitions relating to carriers

42 Network unit not to be used without carrier licence or nominated carrier declaration

- (1) If there is only one owner of a network unit, the owner of the network unit must not use the unit, either alone or jointly with one or more other persons, to supply a carriage service to the public, unless:
- (a) the owner holds a carrier licence; or
 - (b) a nominated carrier declaration is in force in relation to the unit.
- (2) If there is only one owner of a network unit, the owner of the network unit must not allow or permit another person to use the unit to supply a carriage service to the public unless:
- (a) the owner holds a carrier licence; or
 - (b) a nominated carrier declaration is in force in relation to the unit.
- (3) If there are 2 or more owners of a network unit, an owner of the network unit must not use the unit, either alone or jointly with one or more other persons, to supply a carriage service to the public, unless:
- (a) the owner holds a carrier licence; or
 - (b) a nominated carrier declaration is in force in relation to the unit.
- (4) If there are 2 or more owners of a network unit, an owner of the network unit must not, either alone or together with one or more other owners, allow or permit another person to use the unit to supply a carriage service to the public unless:
- (a) the owner holds a carrier licence; or
 - (b) a nominated carrier declaration is in force in relation to the unit.
- (5) A person who contravenes subsection (1), (2), (3) or (4) commits an offence punishable on conviction by a fine not exceeding 20,000 penalty units.

Note: See also sections 4AA and 4B of the *Crimes Act 1914*.

43 Continuing offences

A person who contravenes section 42 commits a separate offence in respect of each day (including a day of a conviction under this section or any later day) during which the contravention continues.

44 Supply to the public

- (1) This section sets out the circumstances in which a network unit is taken, for the purposes of section 42, to be used to supply a carriage service to the public.
- (2) If:
- (a) there is only one owner of a network unit; and
 - (b) no nominated carrier declaration is in force in relation to the unit; and
 - (c) any of the following conditions is satisfied:

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- (i) the unit is used for the carriage of communications between 2 end-users, where each end-user is outside the immediate circle of the owner of the unit;
 - (ii) the unit is used to supply point-to-multipoint services to end-users, where at least one end-user is outside the immediate circle of the owner of the unit;
 - (iii) the unit is used to supply designated content services (other than point-to-multipoint services) to one or more end-users, where at least one end-user is outside the immediate circle of the owner of the unit;

the unit is used to supply a carriage service to the public.

(3) If:

- (a) there are 2 or more owners of a network unit; and
- (b) no nominated carrier declaration is in force in relation to the unit; and
- (c) any of the following conditions is satisfied:

- (i) the unit is used for the carriage of communications between 2 end-users, where each end-user is outside the overlap of the immediate circles of the owners of the unit;
- (ii) the unit is used to supply point-to-multipoint services to end-users, where at least one end-user is outside the overlap of the immediate circles of the owners of the unit;
- (iii) the unit is used to supply designated content services (other than point-to-multipoint services) to one or more end-users, where at least one end-user is outside the overlap of the immediate circles of the owners of the unit;

the unit is used to supply a carriage service to the public.

(4) If:

- (a) a nominated carrier declaration is in force in relation to a network unit; and
- (b) any of the following conditions is satisfied:

- (i) the unit is used for the carriage of communications between 2 end-users, where each end-user is outside the immediate circle of the nominated carrier in relation to the unit;
- (ii) the unit is used to supply point-to-multipoint services to end-users, where at least one end-user is outside the immediate circle of the nominated carrier in relation to the unit;
- (iii) the unit is used to supply designated content services (other than point-to-multipoint services) to one or more end-users, where at least one end-user is outside the immediate circle of the nominated carrier in relation to the unit;

the unit is used to supply a carriage service to the public.

(5) For the purposes of this section, a person is outside the overlap of the immediate circles of the owners of a network unit unless the person is:

- (a) within the immediate circles of each of the owners of the unit; or

(b) the owner, or one of the owners, of the unit.

(6) For the purposes of this section, a *designated content service* is a content service of a kind specified in a written determination made by the Minister.

(7) A determination under subsection (6) is a legislative instrument.

45 Exemption—defence

(1) If the sole use of a network unit is use by, or on behalf of, a defence organisation to carry communications necessary or desirable for defence purposes, section 42 does not apply to the unit.

(2) If:

(a) the principal use of a network unit is use by, or on behalf of, a defence organisation to carry communications necessary or desirable for defence purposes; and

(b) the remaining use of the unit is use by one or more carriers, or by one or more exempt network-users, to supply carriage services and/or content services;

section 42 does not apply to the unit.

(3) In this section:

defence organisation means:

(a) the Defence Department; or

(b) the Australian Defence Force; or

(c) an organisation of a foreign country, so far as the organisation:

(i) has functions corresponding to functions of, or of a part of, the Defence Department or the Australian Defence Force; and

(ii) is authorised by the Commonwealth to operate or train in Australia or an external Territory; or

(d) a part of such an organisation or body.

46 Exemption—intelligence operations

Section 42 does not apply to a network unit that is used wholly or principally:

(a) by the Australian Secret Intelligence Service; or

(b) by the Australian Security Intelligence Organisation; or

(c) by the Australian Signals Directorate.

47 Exemption—transport authorities

(1) Section 42 does not apply to a network unit if the sole use of the unit is use by Airservices Australia to carry communications necessary or desirable for the workings of aviation services.

(3) Section 42 does not apply to a network unit if the sole use of the unit is use by a State or Territory transport authority to carry communications necessary or desirable for the workings of any or all of the following services:

(a) train services of a kind provided by the authority;

(b) bus or other road services of a kind provided by the authority;

(c) tram services of a kind provided by the authority.

(4) Section 42 does not apply to a network unit if the sole use of the unit is use by a rail corporation to carry communications necessary or desirable for the workings of train services.

(5) Section 42 does not apply to a network unit if:

(a) the principal use of the unit is use by Airservices Australia to carry communications necessary or desirable for the workings of aviation services; and

(b) the remaining use of the unit is use by one or more carriers, or by one or more exempt network-users, to supply carriage services and/or content services.

(7) Section 42 does not apply to a network unit if:

(a) the principal use of the unit is use by a State or Territory transport authority to carry communications necessary or desirable for the workings of any or all of the following services:

(i) train services of a kind provided by the authority;

(ii) bus or other road services of a kind provided by the authority;

(iii) tram services of a kind provided by the authority; and

(b) the remaining use of the unit is use by one or more carriers, or by one or more exempt network-users, to supply carriage services and/or content services.

(8) Section 42 does not apply to a network unit if:

(a) the principal use of the unit is use by a rail corporation to carry communications necessary or desirable for the workings of train services; and

(b) the remaining use of the unit is use by one or more carriers, or by one or more exempt network-users, to supply carriage services and/or content services.

(9) In this section:

rail corporation means a body corporate that manages or operates either or both of the following:

(a) rail transport services;

(b) rail transport infrastructure.

48 Exemption—broadcasting services

(1) If:

(a) the sole use of a network unit is use to carry communications that are necessary or desirable for either or both of the following purposes:

(i) the supply of broadcasting services to the public;

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- (ii) the supply of a secondary carriage service by means of the main carrier signal of a primary broadcasting service; and
 - (b) the unit does not consist of, or include, a facility used to carry communications between:
 - (i) the head end of a cable transmission system; and
 - (ii) the equipment used by an end-user to receive a broadcasting service; and
 - (c) the unit does not consist of a broadcasting transmitter transmitting a signal of a broadcasting service to its intended audience;
- section 42 does not apply to the unit.

(2) If:

- (a) the principal use of a network unit is use to carry communications that are necessary or desirable for either or both of the following purposes:
 - (i) the supply of broadcasting services to the public;
 - (ii) the supply of a secondary carriage service by means of the main carrier signal of a primary broadcasting service; and
 - (b) the unit does not consist of, or include, a facility used to carry communications between:
 - (i) the head end of a cable transmission system; and
 - (ii) the equipment used by an end-user to receive a broadcasting service; and
 - (c) the unit does not consist of a broadcasting transmitter transmitting a signal of a broadcasting service to its intended audience; and
 - (d) the remaining use of the unit is use by one or more carriers, or by one or more exempt network-users, to supply carriage services and/or content services;
- section 42 does not apply to the unit.

(3) If the sole use of a line link is use for the purpose of a re-transmission of a kind mentioned in paragraph 212(1)(a) or (b) of the *Broadcasting Services Act 1992*, section 42 of this Act does not apply to the line link.

(4) If:

- (a) the principal use of a line link is use for the purpose of a re-transmission of a kind mentioned in paragraph 212(1)(a) or (b) of the *Broadcasting Services Act 1992*; and
 - (b) the remaining use of the line link is use by one or more carriers, or by one or more exempt network-users, to supply carriage services and/or content services;
- section 42 of this Act does not apply to the line link.

(4A) For the purposes of this section, disregard subsection 212(3) of the *Broadcasting Services Act 1992*.

(5) In this section:

broadcasting transmitter means a radiocommunications transmitter used, or for use, to deliver a broadcasting service.

head end of a cable transmission system means a facility that:

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- (a) is connected to a line link; and
 - (b) is used, or for use, in connection with the delivery of a broadcasting service; and
 - (c) processes signals for delivery by the line link to end-users having equipment appropriate for receiving the service.

49 Exemption—electricity supply bodies

(1) If the sole use of a network unit is use by an electricity supply body to carry communications necessary or desirable for:

- (a) managing the generation, transmission, distribution or supply of electricity;
or
 - (b) charging for the supply of electricity;
- section 42 does not apply to the unit.

(2) If:

(a) the principal use of a network unit is use by an electricity supply body to carry communications necessary or desirable for:

- (i) managing the generation, transmission, distribution or supply of electricity; or
- (ii) charging for the supply of electricity; and

(b) the remaining use of the unit is use by one or more carriers, or by one or more exempt network-users, to supply carriage services and/or content services;

section 42 does not apply to the unit.

(3) In this section:

electricity supply body means an authority, or a body corporate, that carries on a business, or performs a function, of:

- (a) generating, transmitting, distributing or supplying electricity; or
- (b) managing the generation, transmission, distribution or supply of electricity.

50 Exemption—line links authorised by or under previous laws

(1) If:

(a) a line link consists of facilities in relation to which an authorisation was in force under paragraph 13(1)(a) of the *Telecommunications Act 1975* immediately before the repeal of that Act; and

(b) the sole use of the line link is use as provided in, and in accordance with any conditions specified in, the authorisation;

section 42 of this Act does not apply to the line link.

(2) If:

(a) a line link consists of facilities in relation to which an authorisation was in force under paragraph 13(1)(a) of the *Telecommunications Act 1975* immediately before the repeal of that Act; and

(b) the principal use of the line link is use as provided in, and in accordance with any conditions specified in, the authorisation; and

(c) the remaining use of the line link is use by one or more carriers, or by one or more exempt network-users, to supply carriage services and/or content services;

section 42 of this Act does not apply to the line link.

(3) If a line link consists of facilities that:

(a) were installed before the repeal of section 45 of the *Telecommunications Act 1989*; and

(b) immediately before that repeal, were permitted by that section to be maintained and operated;

section 42 of this Act does not apply to the line link.

(4) If:

(a) a line link consists of facilities in relation to which an authorisation was in force under section 46 of the *Telecommunications Act 1989* immediately before the repeal of that Act; and

(b) the sole use of the line link is use as provided in, and in accordance with any conditions specified in, the authorisation;

section 42 of this Act does not apply to the line link.

(5) If:

(a) a line link consists of facilities in relation to which an authorisation was in force under section 46 of the *Telecommunications Act 1989* immediately before the repeal of that Act; and

(b) the principal use of the line link is use as provided in, and in accordance with any conditions specified in, the authorisation; and

(c) the remaining use of the line link is use by one or more carriers, or by one or more exempt network-users, to supply carriage services and/or content services;

section 42 of this Act does not apply to the line link.

(6) If:

(a) a line link consists of facilities in relation to which an authorisation was in force under section 108 of the *Telecommunications Act 1991* immediately before the repeal of that Act; and

(b) the sole use of the line link is use as provided in, and in accordance with any conditions specified in, the authorisation;

section 42 of this Act does not apply to the line link.

(7) If:

(a) a line link consists of facilities in relation to which an authorisation was in force under section 108 of the *Telecommunications Act 1991* immediately before the repeal of that Act; and

(b) the principal use of the line link is use as provided in, and in accordance with any conditions specified in, the authorisation; and

(c) the remaining use of the line link is use by one or more carriers, or by one or more exempt network-users, to supply carriage services and/or content services;
section 42 of this Act does not apply to the line link.

51 Exemption—Ministerial determination

(1) The Minister may, by legislative instrument, determine that section 42 does not apply in relation to:

(a) a specified network unit; or

(b) a specified person; or

(c) a specified use of a network unit.

(2) A determination under this section may be unconditional or subject to such conditions (if any) as are specified in the determination.

(3) A determination under this section has effect accordingly.

Division 3—Carrier licences

52 Applications for carrier licence

A person may apply to the ACMA for a carrier licence, so long as the person is:

- (a) a constitutional corporation; or
- (b) an eligible partnership; or
- (c) a public body.

53 Form of application etc.

An application must be:

- (a) in writing; and
- (b) in accordance with the form approved in writing by the ACMA.

53A Copy of application to be given to Communications Access Co-ordinator

- (1) The ACMA must give a copy of the application to the Communications Access Co-ordinator.
- (2) For the purposes of sections 56A and 59, the application is taken not to have been received by the ACMA until the copy is received by the Communications Access Co-ordinator.

54 Application to be accompanied by charge

An application must be accompanied by the charge (if any) imposed on the application by Part 2 of the *Telecommunications (Carrier Licence Charges) Act 1997*.

55 Further information

- (1) The ACMA may, within 20 business days after an application is made, request the applicant to give the ACMA, within the period specified in the request, further information about the application.
- (2) The ACMA may refuse to consider the application until the applicant gives the ACMA the information.
- (3) In this section:

business day means a day on which the ACMA is open for business in the Australian Capital Territory and in Victoria.

56 Grant of licence

- (1) After considering an application, the ACMA may grant a carrier licence in accordance with the application.
- (2) If the ACMA grants a carrier licence to a person, the ACMA must give the person a written notice stating that the licence has been granted.

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- (3) If the ACMA grants a carrier licence, the ACMA must cause to be published in the *Gazette* a notice stating that the licence has been granted.

56AA Deemed carrier licence—designated Telstra successor company

Scope

- (1) This section applies to a body corporate if:

- (a) either of the following conditions are satisfied in relation to a particular time (the *relevant time*):

- (i) the relevant time occurs immediately after the commencement of this section, and the body corporate is a designated Telstra successor company at the relevant time;
- (ii) the relevant time occurs after the commencement of this section, and the body corporate becomes a designated Telstra successor company at the relevant time; and

- (b) the body corporate does not hold a carrier licence at the relevant time; and

- (c) the body corporate is a constitutional corporation at the relevant time; and

- (d) the body corporate is the owner, or one of the owners, of a network unit at the relevant time; and

- (e) no nominated carrier declaration is in force in relation to that network unit at the relevant time.

Deemed carrier licence

- (2) The ACMA is taken to have granted a carrier licence (the *deemed carrier licence*) to the body corporate under section 56 immediately after the relevant time.

Application for carrier licence

- (3) The body corporate must:

- (a) apply under section 52 for a carrier licence; and

- (b) do so within 5 business days after the relevant time.

- (4) If the body corporate fails to comply with subsection (3), the body corporate is taken, at the end of the period of 5 business days, to have applied under section 52 for a carrier licence.

- (5) The application mentioned in subsection (3) or (4) is exempt from charge imposed by Part 2 of the *Telecommunications (Carrier Licence Charges) Act 1997*.

- (6) The ACMA must decide the application mentioned in subsection (3) or (4) as if the deemed carrier licence did not exist.

Duration of deemed carrier licence

(7) The deemed carrier licence remains in force until:

- (a) the ACMA grants a carrier licence to the body corporate in response to the application mentioned in subsection (3) or (4); or
- (b) if the ACMA refuses to grant a carrier licence to the body corporate in response to the application mentioned in subsection (3) or (4)—the latest of the following times:
 - (i) the end of the 28-day period beginning when the body corporate is informed by the ACMA of the refusal;
 - (ii) if, during that 28-day period, the body corporate applies under section 558 for the ACMA to reconsider the refusal—the end of the 28-day period beginning when the ACMA makes its decision on reconsideration of the refusal;
 - (iii) if, during the 28-day period last mentioned in subparagraph (ii), the body corporate makes an application under section 562 to the Administrative Appeals Tribunal for review of the refusal decision—the end of the 28-day period beginning when the application is finally determined;
 - (iv) if, during the 28-day period last mentioned in subparagraph (iii), the body corporate appeals to the Federal Court under section 44 of the *Administrative Appeals Tribunal Act 1975* from the decision of the Administrative Appeals Tribunal on the application mentioned in subparagraph (iii)—when the appeal is determined.

Section 56A does not apply

(8) Section 56A does not apply to the deemed carrier licence.

56A Consultation with Communications Access Co-ordinator

- (1) The ACMA must not grant a carrier licence unless it has consulted the Communications Access Co-ordinator about the licence application.
- (2) Within 15 business days after the date on which the ACMA received the licence application, the Communications Access Co-ordinator may give a written notice to the ACMA, stating that the Communications Access Co-ordinator does not require any further consultation about the application. The notice cannot be revoked.

Note: Under section 53A, the application is treated as not being received by the ACMA until a copy has been received by the Communications Access Co-ordinator.

- (3) Within 15 business days after the date on which the ACMA received the licence application, the Communications Access Co-ordinator may give a written notice to the ACMA:
 - (a) stating that, while the notice remains in force, the ACMA must not grant the carrier licence; and
 - (b) specifying the period during which the notice remains in force (unless earlier revoked), which period cannot end more than 3 months after the date of the notice.

However, the Communications Access Co-ordinator cannot give such a notice if the Communications Access Co-ordinator has earlier given a notice under subsection (2) in relation to the application.

(4) At any time while a notice is in force under subsection (3), or under this subsection, the Communications Access Co-ordinator may give a further written notice to the ACMA:

(a) stating that, while the notice remains in force, the ACMA must not grant the carrier licence; and

(b) specifying the period during which the notice remains in force (unless earlier revoked), which period cannot end more than 3 months after the date of the notice or more than 12 months after the date of the notice under subsection (3).

(5) The Communications Access Co-ordinator may, by notice in writing to the ACMA, revoke a notice under subsection (3) or (4).

(6) The Communications Access Co-ordinator cannot issue a further notice under subsection (3) or (4) in respect of the application after it has revoked such a notice.

(7) The ACMA must give the applicant a copy of each notice that the ACMA receives from the Communications Access Co-ordinator under subsection (3), (4) or (5).

(8) The ACMA must not grant the carrier licence while a notice is in force under subsection (3) or (4).

(9) In this section:

business day means a day on which the ACMA is open for business in the Australian Capital Territory and in Victoria.

57 Carrier licence has effect subject to this Act

(1) A carrier licence has effect subject to this Act.

(2) In this section:

this Act includes the *Telecommunications (Consumer Protection and Service Standards) Act 1999* and regulations under that Act.

58 Refusal of carrier licence—disqualified applicant

(1) The ACMA may refuse to grant a carrier licence to an applicant if, immediately before the ACMA makes its decision on the application, the applicant is disqualified.

*When body corporate is **disqualified***

(2) For the purposes of this section, a body corporate is **disqualified** at a particular time (the **test time**) if:

- (a) at any time before the test time, a carrier licence held by the body corporate was cancelled under subsection 72(1), (2A) or (2B); or
- (b) at any time before the test time, a carrier licence held by a partnership in which the body corporate was a partner was cancelled under subsection 72(1), (2A) or (2B); or
- (c) at the test time, any of the following individuals is disqualified:
 - (i) a director of the body corporate;
 - (ii) the secretary of the body corporate;
 - (iii) a person (by whatever name called and whether or not a director of the body corporate) who is concerned in, or takes part in, the management of the body corporate.

*When individual is **disqualified**—failure to pay annual charge*

(3) For the purposes of subsection (2), an individual is **disqualified** at a particular time (the **test time**) if:

- (a) at any time before the test time, a carrier licence held by a body corporate or partnership was cancelled under subsection 72(1) because of a failure by the body corporate or partnership to pay in full the charge referred to in that subsection; and
- (b) in the case of a body corporate—at the time when the charge referred to in subsection 72(1) was due and payable, the individual was:
 - (i) a director of the body corporate; or
 - (ii) the secretary of the body corporate; or
 - (iii) a person (by whatever name called and whether or not a director of the body corporate) who was concerned in, or took part in, the management of the body corporate; and
- (c) in the case of a partnership—at the time when the charge referred to in subsection 72(1) was due and payable, the individual:
 - (i) was an employee of the partnership; and
 - (ii) was concerned in, or took part in, the management of the partnership; and
- (d) the individual:
 - (i) aided, abetted, counselled or procured the failure of the body corporate or partnership; or
 - (ii) was in any way, by act or omission, directly or indirectly, knowingly concerned in, or party to, the failure of the body corporate or partnership.

*When individual is **disqualified**—failure to pay industry levy*

(4A) For the purposes of subsection (2), an individual is **disqualified** at a particular time (the **test time**) if:

- (a) at any time before the test time, a carrier licence held by a body corporate or partnership was cancelled under subsection 72(2A) because of a failure

by the body corporate or partnership to pay in full the industry levy referred to in that subsection; and

(b) in the case of a body corporate—at the time when the industry levy referred to in subsection 72(2A) was due and payable, the individual was:

(i) a director of the body corporate; or

(ii) the secretary of the body corporate; or

(iii) a person (by whatever name called and whether or not a director of the body corporate) who was concerned in, or took part in, the management of the body corporate; and

(c) in the case of a partnership—at the time when the industry levy referred to in subsection 72(2A) was due and payable, the individual:

(i) was an employee of the partnership; and

(ii) was concerned in, or took part in, the management of the partnership; and

(d) the individual:

(i) aided, abetted, counselled or procured the failure of the body corporate or partnership; or

(ii) was in any way, by act or omission, directly or indirectly, knowingly concerned in, or party to, the failure of the body corporate or partnership.

*When individual is **disqualified**—failure to pay funding charge*

(4B) For the purposes of subsection (2), an individual is **disqualified** at a particular time (the **test time**) if:

(a) at any time before the test time, a carrier licence held by a body corporate or partnership was cancelled under subsection 72(2B) because of a failure by the body corporate or partnership to pay in full the charge referred to in that subsection; and

(b) in the case of a body corporate—at the time when the charge referred to in subsection 72(2B) was due and payable, the individual was:

(i) a director of the body corporate; or

(ii) the secretary of the body corporate; or

(iii) a person (by whatever name called and whether or not a director of the body corporate) who was concerned in, or took part in, the management of the body corporate; and

(c) in the case of a partnership—at the time when the charge referred to in subsection 72(2B) was due and payable, the individual:

(i) was an employee of the partnership; and

(ii) was concerned in, or took part in, the management of the partnership; and

(d) the individual:

(i) aided, abetted, counselled or procured the failure of the body corporate or partnership; or

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- (ii) was in any way, by act or omission, directly or indirectly, knowingly concerned in, or party to, the failure of the body corporate or partnership.

When partnership is disqualified

- (5) For the purposes of this section, a partnership is **disqualified** at a particular time (the **test time**) if:

- (a) at any time before the test time, a carrier licence held by the partnership was cancelled under subsection 72(1), (2A) or (2B); or
(b) at the test time, any of the partners is disqualified; or
(c) at the test time, an individual who:
(i) is an employee of the partnership; and
(ii) is concerned in, or takes part in, the management of the partnership; is disqualified.

This section does not limit grounds for refusal to grant carrier licence

- (6) This section does not, by implication, limit the grounds on which the ACMA may refuse to grant a carrier licence.

58A Refusal of carrier licence—security

- (1) If the Home Affairs Minister, after consulting the Prime Minister and the Minister administering this Act, considers that the grant of a carrier licence to a particular person would be prejudicial to security, the Home Affairs Minister may give a written direction to the ACMA not to grant a carrier licence to the person.
(2) The ACMA must comply with a direction under subsection (1).
(3) While a direction is in force under this section:
(a) the ACMA cannot reconsider a non-compulsory refusal to grant a carrier licence to the person; and
(b) the Administrative Appeals Tribunal cannot consider an application for review of a non-compulsory refusal to grant a carrier licence to the person.
(4) If an application for a carrier licence is pending at the time when the Home Affairs Minister gives a direction to the ACMA under this section, then the application lapses.

Note: Section 73A provides for refund of the application charge.

- (5) In this section:

non-compulsory refusal means a refusal to grant a carrier licence, other than a refusal that is required by section 56A or this section.

security has the same meaning as in the *Australian Security Intelligence Organisation Act 1979*.

59 Time limit on licence decision

Deemed refusal of licence application if no decision by deadline

- (1) If the ACMA neither grants, nor refuses to grant, a carrier licence before the end of the deadline day worked out under the following subsections, then the ACMA is taken, at the end of that day, to have refused to grant the licence.

Case 1: no section 55 request and no section 56A notice in force

- (2) If:
- (a) the ACMA did not give a section 55 request; and
 - (b) there is no section 56A notice in force at the end of the 20th business day after the application day;
- then the deadline day is the 20th business day after the application day.

Case 2: no section 55 request but section 56A notice in force

- (3) If:
- (a) the ACMA did not give a section 55 request; and
 - (b) there is a section 56A notice in force at the end of the 20th business day after the application day;
- then the deadline day is the fifth business day after the section 56A expiration day. For this purpose, the **section 56A expiration day** is the first day after the end of that 20th business day on which there is no notice in force under section 56A.

Case 3: section 55 request complied with and no section 56A notice in force

- (4) If:
- (a) the ACMA gave a section 55 request; and
 - (b) the request was complied with; and
 - (c) there is no section 56A notice in force at the end of the tenth business day after the day on which the request was complied with;
- then the deadline day is the tenth business day after the day on which the request was complied with.

Case 4: section 55 request complied with and section 56A notice in force

- (5) If:
- (a) the ACMA gave a section 55 request; and
 - (b) the request was complied with; and
 - (c) there is a section 56A notice in force at the end of the tenth business day after the day on which the request was complied with;
- then the deadline day is the fifth business day after the section 56A expiration day. For this purpose, the **section 56A expiration day** is the first day after the end of that tenth business day on which there is no notice in force under section 56A.

Case 5: section 55 request not complied with and no section 56A notice in force

(6) If:

(a) the ACMA gave a section 55 request; and

(b) the request was not complied with; and

(c) there is no section 56A notice in force at the end of the tenth business day after the day specified in the section 55 request;

then the deadline day is the tenth business day after the day specified in the section 55 request.

Case 6: section 55 request not complied with and section 56A notice in force

(7) If:

(a) the ACMA gave a section 55 request; and

(b) the request was not complied with; and

(c) there is a section 56A notice in force at the end of the tenth business day after the day specified in the section 55 request;

then the deadline day is the fifth business day after the section 56A expiration day. For this purpose, the **section 56A expiration day** is the first day after the end of that tenth business day on which there is no notice in force under section 56A.

(8) In this section:

application day means the day on which the ACMA received the licence application.

Note: Under section 53A, the application is treated as not being received by the ACMA until a copy has been received by the Communications Access Co-ordinator.

business day means a day on which the ACMA is open for business in the Australian Capital Territory and in Victoria.

section 55 request means a request under section 55 in relation to the licence application.

section 56A notice means a notice under subsection 56A(3) or (4) in relation to the licence application.

60 Notification of refusal of application

If the ACMA refuses to grant a carrier licence, the ACMA must give written notice of the refusal to the applicant.

61 Conditions of carrier licence specified in Schedule 1

A carrier licence is subject to the conditions specified in Schedule 1.

62 Condition of carrier licence set out in section 152AZ of the Competition and Consumer Act 2010

A carrier licence is subject to the condition set out in section 152AZ of the Competition and Consumer Act 2010.

Note: Section 152AZ of the *Competition and Consumer Act 2010* deals with standard access obligations.

62A Condition of carrier licence set out in section 152BCO of the *Competition and Consumer Act 2010*

A carrier licence is subject to the condition set out in section 152BCO of the *Competition and Consumer Act 2010*.

Note: Section 152BCO of the *Competition and Consumer Act 2010* deals with access determinations.

62B Condition of carrier licence set out in section 152BDF of the *Competition and Consumer Act 2010*

A carrier licence is subject to the condition set out in section 152BDF of the *Competition and Consumer Act 2010*.

Note: Section 152BDF of the *Competition and Consumer Act 2010* deals with binding rules of conduct.

62C Condition of carrier licence set out in section 152BEC of the *Competition and Consumer Act 2010*

A carrier licence is subject to the condition set out in section 152BEC of the *Competition and Consumer Act 2010*.

Note: Section 152BEC of the *Competition and Consumer Act 2010* deals with access agreements.

62D Condition of carrier licence set out in section 152CJC of the *Competition and Consumer Act 2010*

A carrier licence held by an NBN corporation is subject to the condition set out in section 152CJC of the *Competition and Consumer Act 2010*.

Note: Section 152CJC of the *Competition and Consumer Act 2010* deals with rules about the supply of services by NBN corporations.

62E Condition of carrier licence set out in section 37 of the *National Broadband Network Companies Act 2011*

A carrier licence held by an NBN corporation is subject to the condition set out in section 37 of the *National Broadband Network Companies Act 2011*.

Note: Section 37 of the *National Broadband Network Companies Act 2011* deals with rules about:

- (a) the supply of goods and services by NBN corporations; and
- (b) the investment of money by NBN corporations; and
- (c) the functional separation of NBN corporations; and
- (d) the divestment of assets by NBN corporations.

63 Conditions of carrier licence declared by Minister

Conditions applying to each carrier licence

- (1) The Minister may, by legislative instrument, declare that each carrier licence is subject to such conditions as are specified in the instrument.

Conditions applying to specified existing carrier licences

- (2) The Minister may, by legislative instrument, declare that a specified carrier licence is subject to such conditions as are specified in the instrument.

Note: A licence may be specified by name, by inclusion in a specified class or in any other way.

Conditions applying to specified future carrier licences

- (3) The Minister may, by legislative instrument, declare that, in the event that a carrier licence is granted to a specified person during a specified period, the carrier licence is subject to such conditions as are specified in the instrument.

Declarations have effect

- (4) A declaration under this section has effect accordingly.

Variation of conditions

- (5) The Minister may, by legislative instrument, vary an instrument under subsection (1), (2) or (3).

Revocation of conditions

- (6) The Minister may, by legislative instrument, revoke an instrument under subsection (1), (2) or (3).

Notification of conditions—existing licences

- (7) As soon as practicable after the Minister makes an instrument under subsection (1), (2), (5) or (6) that relates to a licence, the Minister must give the holder of the licence a copy of the instrument.

Notification of conditions—future licences

- (8) As soon as practicable after the Minister makes an instrument under subsection (3) that relates to a licence, the Minister must give the applicant for the licence a copy of the instrument.

Validity not affected by failure to notify conditions

- (9) A contravention of subsection (7) or (8) does not affect the validity of an instrument.

Date of effect—future licences

- (12) An instrument under subsection (3) relating to a licence takes effect when the licence is granted.

63A Conditions of a carrier licence held by Telstra Limited

- (1) Until the first occasion after the commencement of this section on which a declaration under subsection 63(2) takes effect in relation to a carrier licence held by Telstra Limited:

- (a) the carrier licence is subject to the conditions set out in sections 7, 8, 9, 10, 12, 13, 14, 15, 16, 17 and 18 of the *Telecommunications (Carrier Licence Conditions - Telstra Corporation Limited) Declaration 2019* as in force immediately before the commencement of this section; and
- (b) for that purpose, a reference in those sections (and Schedule 1 to that declaration) to the licensee is to be read as a reference to Telstra Limited.

- (2) Until the first occasion after the commencement of this section on which a declaration under subsection 63(2) takes effect in relation to a carrier licence held by Telstra Limited:

- (a) the carrier licence is subject to the conditions set out in section 11 of the *Telecommunications (Carrier Licence Conditions - Telstra Infraco Limited) Declaration 2019*; and
- (b) for that purpose, a reference in that section to the licensee is to be read as a reference to Telstra Limited.

- (3) If:

- (a) a carrier licence held by a particular Telstra company (the **first Telstra company**) is (whether in accordance with subsection (2) of this section or otherwise) subject to a condition set out in section 11 of the *Telecommunications (Carrier Licence Conditions - Telstra Infraco Limited) Declaration 2019*; and
- (b) a carrier licence held by another Telstra company is also subject to the condition (whether in accordance with subsection (2) of this section or otherwise); and
- (c) the other Telstra company complies with the condition;
the first Telstra company is taken to have complied with the condition.

- (4) Until the first occasion after the commencement of this section on which a declaration under subsection 63(2) takes effect in relation to a carrier licence held by Telstra Limited:

- (a) the carrier licence is subject to:
- (i) the conditions set out in an interim Telstra carrier licence condition declaration; and
- (ii) the interim conditions set out in the *Telecommunications (Carrier Licence Conditions - Telstra Infraco Limited) Declaration 2019*; and

(b) for that purpose, a reference in those conditions to the licensee is to be read as a reference to Telstra Limited.

(5) If:

(a) a carrier licence held by a particular Telstra company (the **first Telstra company**) is (whether in accordance with subsection (4) of this section or otherwise) subject to:

(i) a condition set out in an interim Telstra carrier licence condition declaration; or

(ii) an interim condition set out in the *Telecommunications (Carrier Licence Conditions - Telstra Infraco Limited) Declaration 2019*; and

(b) a carrier licence held by another Telstra company is also subject to the condition (whether in accordance with subsection (4) of this section or otherwise); and

(c) the other Telstra company complies with the condition;
the first Telstra company is taken to have complied with the condition.

(6) For the purposes of this section, **Telstra company** means:

(a) Telstra Infraco Limited; or

(b) Telstra Limited.

Note: See also section 581U (transitional—references in legislation to Telstra Infraco Limited).

(7) For the purposes of this section, **interim Telstra carrier licence condition declaration** means a declaration under subsection 63(2) that:

(a) relates to a carrier licence held by Telstra Infraco Limited; and

(b) came into force during the period:

(i) beginning at the start of the day on which the Bill for the Act that inserted this section was introduced into the Parliament; and

(ii) ending immediately before the commencement of this section.

Note: See also section 581U (transitional—references in legislation to Telstra Infraco Limited).

(8) For the purposes of this section, an **interim condition** set out in the *Telecommunications (Carrier Licence Conditions - Telstra Infraco Limited) Declaration 2019* means a condition inserted in that declaration (when the declaration was known as the *Telecommunications (Carrier Licence Conditions - Telstra Corporation Limited) Declaration 2019*) during the period:

(a) beginning at the start of the day on which the Bill for the Act that inserted this section was introduced into the Parliament; and

(b) ending immediately before the commencement of this section.

64 Consultation about declared licence conditions

(1) Before making an instrument under subsection 63(1), (2), (5) or (6) that relates to a licence, the Minister must first:

(a) cause the holder of the licence to be given a written notice setting out a draft version of the instrument and inviting the holder to make submissions to the Minister on the draft; and

(b) consider any submissions that were received within the time limit specified in the notice.

(2) The time limit specified in a notice under subsection (1) must be at least 30 days.

(3) Before making an instrument under subsection 63(3) that relates to a licence, the Minister must first:

(a) cause the applicant for the licence to be given a written notice setting out a draft version of the instrument and inviting the applicant to make submissions to the Minister on the draft; and

(b) consider any submissions that were received within the time limit specified in the notice.

65 Conditions about foreign ownership or control

(1) A condition of a carrier licence may relate to the extent of foreign ownership or control (whether direct or indirect) of the holder.

(2) Subsection (1) does not, by implication, limit the conditions that may be declared under section 63.

67 Carrier licence conditions—special provisions

(1) A condition of a carrier licence held by a carrier has effect subject to the provisions of a licence under the *Radiocommunications Act 1992* under which the carrier is authorised to do something.

(2) A condition of a carrier licence held by a carrier may remove or restrict a right or privilege that the carrier would otherwise have under a provision of this Act (whether or not in the carrier's capacity as a carrier).

(3) In this section:

this Act includes the *Telecommunications (Consumer Protection and Service Standards) Act 1999* and regulations under that Act.

68 Compliance with conditions

(1) A carrier must not contravene a condition of the carrier licence held by the carrier.

(2) A person must not:

(a) aid, abet, counsel or procure a contravention of subsection (1); or

(b) induce, whether by threats or promises or otherwise, a contravention of subsection (1); or

(c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (1); or

(d) conspire with others to effect a contravention of subsection (1).

(3) Subsections (1) and (2) are *civil penalty provisions*.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

69 Remedial directions—breach of condition

(1) This section applies if a carrier has contravened, or is contravening, a condition of the carrier licence held by the carrier.

(2) The ACMA may give the carrier a written direction requiring the carrier to take specified action directed towards ensuring that the carrier does not contravene the condition, or is unlikely to contravene the condition, in the future.

(3) The following are examples of ~~there are the following 3~~ kinds of direction that may be given to a carrier under subsection (2):

(a) a direction that the carrier implement effective administrative systems for monitoring compliance with a condition of the licence;

(b) a direction that the carrier implement a system designed to give the carrier's employees, agents and contractors a reasonable knowledge and understanding of the requirements of a condition of the licence, in so far as those requirements affect the employees, agents or contractors concerned.

(4) A carrier must not contravene a direction under subsection (2).

(4A) Subsection (1) does not apply to a condition set out in Part 1 of Schedule 1 in so far as that condition relates to section 142C, 143, 143B, 151ZA, 151ZB, 151ZD, 151ZF, 151ZG, 151ZH or 151ZI.

Note: Sections 142C, 143, 143B, 151ZA, 151ZB, 151ZD, 151ZF, 151ZG, 151ZH and 151ZI are set out in Part 8 (local access lines).

(5) Subsection (1) does not apply to a condition set out in Part 1 of Schedule 1 in so far as that condition relates to section 369.

Note: Section 369 deals with Rules of Conduct under section 367.

(5A) Subsection (1) does not apply to a condition set out in Part 1 of Schedule 1 in so far as that condition relates to section 577AD, 577CD or 577ED.

Note: Sections 577AD, 577CD and 577ED deal with undertakings given, or originally given, by Telstra.

(6) Subsection (1) does not apply to a condition set out in Part 3, 4 or 5 of Schedule 1.

Note: Parts 3, 4 and 5 of Schedule 1 deal with access to network information and access to facilities.

(6B) Subsection (1) does not apply to the condition set out in clause 84 of Schedule 1.

Note: Clause 84 of Schedule 1 deals with control by Telstra of certain spectrum licences.

(7) Subsection (1) does not apply to the condition set out in section 152AZ of the *Competition and Consumer Act 2010*.

Note: Section 152AZ of the *Competition and Consumer Act 2010* deals with standard access obligations.

(7A) Subsection (1) does not apply to the condition set out in section 152BCO of the *Competition and Consumer Act 2010*.

Note: Section 152BCO of the *Competition and Consumer Act 2010* deals with access determinations.

(7B) Subsection (1) does not apply to the condition set out in section 152BDF of the *Competition and Consumer Act 2010*.

Note: Section 152BDF of the *Competition and Consumer Act 2010* deals with binding rules of conduct.

(7C) Subsection (1) does not apply to the condition set out in section 152BEC of the *Competition and Consumer Act 2010*.

Note: Section 152BEC of the *Competition and Consumer Act 2010* deals with access agreements.

(7D) Subsection (1) does not apply to the condition set out in section 152CJC of the *Competition and Consumer Act 2010*.

Note: Section 152CJC of the *Competition and Consumer Act 2010* deals with rules about the supply of services by NBN corporations.

(7E) Subsection (1) does not apply to the condition set out in section 37 of the *National Broadband Network Companies Act 2011*.

Note: Section 37 of the *National Broadband Network Companies Act 2011* deals with rules about:

- (a) the supply of goods and services by NBN corporations; and
- (b) the investment of money by NBN corporations; and
- (c) the functional separation of NBN corporations; and
- (d) the divestment of assets by NBN corporations.

(7F) Subsection (1) does not apply to a condition covered by section 41 of the *National Broadband Network Companies Act 2011*.

Note: Section 41 of the *National Broadband Network Companies Act 2011* deals with rules about the supply of services by NBN corporations.

(8) A direction under subsection (2) is not a legislative instrument.

69AA Remedial directions—breach of conditions relating to access

Scope

(1) This section applies if:

- (a) a carrier has contravened, or is contravening, a condition of the carrier licence held by the carrier; and
- (b) the condition is set out in Part 3, 4 or 5 of Schedule 1.

Note: Parts 3, 4 and 5 of Schedule 1 deal with access to network information and access to facilities.

Direction

(2) The ACCC may give the carrier a written direction requiring the carrier to take specified action directed towards ensuring that the carrier does not contravene the condition, or is unlikely to contravene the condition, in the future.

(3) The following are examples of the kinds of direction that may be given to a carrier under subsection (2):

(a) a direction that the carrier implement effective administrative systems for monitoring compliance with the condition;

(b) a direction that the carrier implement a system designed to give the carrier's employees, agents and contractors a reasonable knowledge and understanding of the requirements of the condition, in so far as those requirements affect the employees, agents or contractors concerned.

(4) The ACCC must not give a direction under subsection (2) if the direction would have the effect of:

(aa) preventing a designated Telstra successor company from complying with an undertaking in force under section 577A; or

(a) preventing Telstra from complying with an undertaking in force under section 577C or 577E; or

(b) if a final migration plan is in force—requiring a designated Telstra successor company to engage in conduct in connection with matters covered by the final migration plan.

(5) A carrier must not contravene a direction under subsection (2).

(6) A direction under subsection (2) is not a legislative instrument.

70 Formal warnings—breach of condition

(1) The ACMA may issue a formal warning if a carrier contravenes a condition of the carrier licence held by the carrier.

(1A) Subsection (1) does not apply to a condition set out in Part 1 of Schedule 1 in so far as that condition relates to section 142C, 143, 143B, 151ZA, 151ZB, 151ZD, 151ZF, 151ZG, 151ZH or 151ZI.

Note: Sections 142C, 143, 143B, 151ZA, 151ZB, 151ZD, 151ZF, 151ZG, 151ZH and 151ZI are set out in Part 8 (local access lines).

(2) Subsection (1) does not apply to a condition set out in Part 1 of Schedule 1 in so far as that condition relates to section 369.

Note: Section 369 deals with Rules of Conduct under section 367.

(2A) Subsection (1) does not apply to a condition set out in Part 1 of Schedule 1 in so far as that condition relates to section 577AD, 577CD or 577ED.

Note: Sections 577AD, 577CD and 577ED deal with undertakings given, or originally given, by Telstra.

(3) Subsection (1) does not apply to a condition set out in Part 3, 4 or 5 of Schedule 1.

Note: Parts 3, 4 and 5 of Schedule 1 deal with access to network information and access to facilities.

(3B) Subsection (1) does not apply to the condition set out in clause 84 of Schedule 1.

Note: Clause 84 of Schedule 1 deals with control by Telstra of certain spectrum licences.

(4) Subsection (1) does not apply to the condition set out in section 152AZ of the *Competition and Consumer Act 2010*.

Note: Section 152AZ of the *Competition and Consumer Act 2010* deals with standard access obligations.

(4A) Subsection (1) does not apply to the condition set out in section 152BCO of the *Competition and Consumer Act 2010*.

Note: Section 152BCO of the *Competition and Consumer Act 2010* deals with access determinations.

(4B) Subsection (1) does not apply to the condition set out in section 152BDF of the *Competition and Consumer Act 2010*.

Note: Section 152BDF of the *Competition and Consumer Act 2010* deals with binding rules of conduct.

(4C) Subsection (1) does not apply to the condition set out in section 152BEC of the *Competition and Consumer Act 2010*.

Note: Section 152BEC of the *Competition and Consumer Act 2010* deals with access agreements.

(4D) Subsection (1) does not apply to the condition set out in section 152CJC of the *Competition and Consumer Act 2010*.

Note: Section 152CJC of the *Competition and Consumer Act 2010* deals with rules about the supply of services by NBN corporations.

(4E) Subsection (1) does not apply to the condition set out in section 37 of the *National Broadband Network Companies Act 2011*.

Note: Section 37 of the *National Broadband Network Companies Act 2011* deals with rules about:

- (a) the supply of goods and services by NBN corporations; and
- (b) the investment of money by NBN corporations; and
- (c) the functional separation of NBN corporations; and
- (d) the divestment of assets by NBN corporations.

(4F) Subsection (1) does not apply to a condition covered by section 41 of the *National Broadband Network Companies Act 2011*.

Note: Section 41 of the *National Broadband Network Companies Act 2011* deals with rules about the supply of services by NBN corporations.

(5) The ACCC may issue a formal warning if a carrier contravenes any of the following conditions of the carrier licence held by the carrier:

(aaa) the condition set out in Part 1 of Schedule 1 in so far as that condition relates to section 142C, 143, 143B, 151ZA, 151ZB, 151ZD, 151ZF, 151ZG, 151ZH or 151ZI;

(a) the condition set out in Part 1 of Schedule 1 in so far as that condition relates to section 369;

(aa) the condition set out in Part 1 of Schedule 1 in so far as that condition relates to section 577AD, 577CD or 577ED;

(b) a condition set out in Part 3, 4 or 5 of Schedule 1;

(c) the condition set out in section 152AZ of the *Competition and Consumer Act 2010*;

(d) the condition set out in section 152BCO of the *Competition and Consumer Act 2010*;

(e) the condition set out in section 152BDF of the *Competition and Consumer Act 2010*;

(f) the condition set out in section 152BEC of the *Competition and Consumer Act 2010*;

(g) the condition set out in section 152CJC of the *Competition and Consumer Act 2010*;

(h) the condition set out in section 37 of the *National Broadband Network Companies Act 2011*;

(i) a condition covered by section 41 of the *National Broadband Network Companies Act 2011*.

71 Surrender of carrier licence

A carrier may, by written notice given to the ACMA, surrender the carrier licence held by the carrier.

72 Cancellation of carrier licence

Failure to pay annual charge

(1) The ACMA may cancel a carrier licence held by a carrier if the carrier fails to pay in full any annual charge on or before the date on which the charge becomes due and payable. For this purpose, **annual charge** means charge imposed by Part 3 of the *Telecommunications (Carrier Licence Charges) Act 1997*.

Failure to pay industry levy

(2A) The ACMA may cancel a carrier licence held by a carrier if the carrier fails to pay in full any industry levy on or before the date on which the industry levy becomes due and payable.

Note: **Industry levy** is defined by section 7 to mean levy imposed by the *Telecommunications (Industry Levy) Act 2012*.

Failure to pay funding charge

(2B) The ACMA may cancel a carrier licence held by a carrier if the carrier fails to pay in full any funding charge on or before the date on which the funding charge becomes due and payable. For this purpose, **funding charge** means charge

imposed by the *Telecommunications (Regional Broadband Scheme) Charge Act 2020*.

Becoming a disqualified body corporate

- (3) If the holder of a carrier licence becomes a disqualified body corporate (within the meaning of section 58), the ACMA may cancel the licence.

Becoming a disqualified partnership

- (4) If the holder of a carrier licence becomes a disqualified partnership (within the meaning of section 58), the ACMA may cancel the licence.

Ceasing to be a constitutional corporation, eligible partnership or public body

- (5) If, at a particular time, the holder of a carrier licence is none of the following:

(a) a constitutional corporation;

(b) an eligible partnership;

(c) a public body;

the licence is taken to have been cancelled at that time.

Submissions relating to proposed cancellation

- (6) The ACMA must not cancel a carrier licence under subsection (1), (2), (3) or (4) unless the ACMA has first:

(a) given the carrier a written notice:

(i) setting out a proposal to cancel the licence; and

(ii) inviting the carrier to make a submission to the ACMA on the proposal; and

(b) considered any submission that was received within the time limit specified in the notice.

Time limit

- (7) A time limit specified in the notice under subsection (6) must run for at least 7 days.

Notification of cancellation

- (8) If a carrier licence held by a person is cancelled, the ACMA must give written notice of the cancellation to the person.

73 Collection of charges relating to carrier licences

Definitions

- (1) In this section:

annual charge means charge imposed by Part 3 of the *Telecommunications (Carrier Licence Charges) Act 1997*.

application charge means charge imposed by Part 2 of the *Telecommunications (Carrier Licence Charges) Act 1997*.

late payment penalty means an amount that is payable by way of penalty in accordance with a determination under subsection (4).

When application charge due and payable

- (2) Application charge imposed on an application for a carrier licence is due and payable when the application is made.

When annual charge due and payable

- (3) Annual charge is due and payable at the time ascertained in accordance with a written determination made by the ACMA.

Late payment penalty

- (4) The ACMA may, by written instrument, determine that, if any annual charge payable by a person remains unpaid after the time when it became due for payment, the person is liable to pay to the Commonwealth, by way of penalty, an amount calculated at the rate of:

(a) 20% per annum; or

(b) if the determination specifies a lower percentage—that lower percentage per annum;

on the amount unpaid, computed from that time.

Determination has effect

- (5) A determination under subsection (4) has effect accordingly.

Remission of penalty

- (6) A determination under subsection (4) may authorise the ACMA to make decisions about the remission of the whole or a part of an amount of late payment penalty.

Payment of charge and late payment penalty

- (7) Annual charge, application charge and late payment penalty are payable to the ACMA on behalf of the Commonwealth.

Recovery of charge and penalty

- (8) Annual charge, application charge and late payment penalty may be recovered by the ACMA, on behalf of the Commonwealth, as debts due to the Commonwealth.

Payment to the Commonwealth

- (9) Amounts received by way of annual charge, application charge or late payment penalty must be paid to the Commonwealth.

Legislative instrument

- (10) A determination under subsection (3) or (4) is a legislative instrument.

73A Refund of application charge

- (1) This section applies to application charge that has been paid in respect of an application for a carrier licence if:

- (a) the application lapses under section 58A; or
(b) the application has been refused and there is no longer any possibility of the refusal decision being set aside.

- (2) The ACMA, on behalf of the Commonwealth, must refund the application charge to the applicant.

- (3) The Consolidated Revenue Fund is appropriated for payments under this section.

- (4) In this section:

application charge means charge imposed by Part 2 of the *Telecommunications (Carrier Licence Charges) Act 1997*.

74 Collection of charges on behalf of the Commonwealth

The ACMA may enter into an arrangement with a person under which the person may, on behalf of the Commonwealth, collect payments of charge imposed by the *Telecommunications (Carrier Licence Charges) Act 1997*.

75 Cancellation of certain exemptions from charge

- (1) This section cancels the effect of a provision of another Act that would have the effect of exempting a person from liability to pay charge imposed by the *Telecommunications (Carrier Licence Charges) Act 1997*.

- (2) The cancellation does not apply if the provision of the other Act is enacted after the commencement of this section and refers specifically to charge imposed by the *Telecommunications (Carrier Licence Charges) Act 1997*.

76 Commonwealth not liable to charge

- (1) The Commonwealth is not liable to pay charge imposed by the *Telecommunications (Carrier Licence Charges) Act 1997*.

(2) A reference in this section to the *Commonwealth* includes a reference to an authority of the Commonwealth that cannot, by law of the Commonwealth, be made liable to taxation by the Commonwealth.

Division 4—Nominated carrier declarations

77 Applications for nominated carrier declarations

A carrier may apply to the ACMA for a nominated carrier declaration in relation to one or more specified network units.

Note: A network unit may be specified by name, by inclusion in a specified class or in any other way.

78 Application to be accompanied by charge etc.

(1) An application must be accompanied by:

- (a) the charge (if any) fixed by a determination under section 60 of the *Australian Communications and Media Authority Act 2005*; and
- (b) the consent of the owner, or each of the owners, of the network units; and
- (c) the election of the applicant accepting responsibility for the units for the purposes of this Act.

(2) In this section:

this Act includes the *Telecommunications (Consumer Protection and Service Standards) Act 1999* and regulations under that Act.

79 Form of application etc.

The application, consent and election must be:

- (a) in writing; and
- (b) in accordance with a form approved in writing by ~~the~~ collection consents;
 - ~~• use consents;~~
 - ~~• disclosure consents.~~

data holder has a meaning affected by subrule (2).

Note: The term “data holder” is defined in the *ACMA*.

80 Further information

- (1) The ACMA may request the applicant to give the ACMA, within the period specified in the request, further information about the application.
- (2) The ACMA may refuse to consider the application until the applicant gives the ACMA the information.

81 Making a nominated carrier declaration

- (1) After considering the application, the ACMA may declare in writing that the applicant is the nominated carrier in relation to the network units if the ACMA is satisfied that:
- (a) if the declaration were made, the applicant would be in a position to comply with all ~~Act: see subsection 56AJ~~ of the obligations imposed on the applicant in the applicant's capacity as the nominated carrier in relation to the units; and
 - (b) the making of the declaration will not impede the efficient ~~administration~~ ~~Act. Subrule (2) deals with the usage of this Act~~ term in these rules.
- (2) The ACMA may only declare one carrier to be the nominated carrier in relation to the network units.
- (3) The ACMA must give a copy of the declaration to:
- (a) the applicant; and
 - (b) the owner, or each of the owners, of the network units.
- (4) A copy of the declaration is to be published in the *Gazette*.
- (5) In this section:
- this Act* includes the *Telecommunications (Consumer Protection and Service Standards) Act 1999* and regulations under that Act.

81A Obligations of nominated carrier

- (1) If at any time the nominated carrier does not own or operate the network units, this Act nevertheless applies to the nominated carrier in relation to the network units as if they were owned or operated by the nominated carrier.
- (2) Subsection (1) does not affect the application of this Act in relation to any other person who owns or operates the network units.
- (3) In this section:
- this Act* includes the *Telecommunications (Consumer Protection and Service Standards) Act 1999* and regulations under that Act.

82 Notification of refusal of application

- If the ACMA refuses to make a nominated carrier declaration, the ACMA must give written notice of the refusal to:
- (a) the applicant; and
 - (b) the owner, or each of the owners, of the network units.

83 Revocation of nominated carrier declaration

- (1) The ACMA may, by writing, revoke a nominated carrier declaration relating to a nominated carrier if the ACMA is satisfied that, if it were assumed that the

nominated carrier were to apply for the declaration, the ACMA would refuse to make the declaration.

(2) The ACMA must, by writing, revoke the nominated carrier declaration relating to a nominated carrier and relating to one or more network units if:

(a) the owner, or any of the owners, of the network units gives the ACMA a written notice stating that the owner does not consent to the continued operation of the declaration; or

(b) the nominated carrier gives the ACMA a written notice stating that it does not accept responsibility for the units for the purposes of this Act.

(3) The ACMA must give a copy of the revocation to:

(a) the former nominated carrier; and

(b) the owner, or each of the owners, of the network units concerned.

(4) A copy of the revocation must be published in the *Gazette*.

(5) A revocation under subsection (1) or (2) takes effect on the date specified in the revocation.

(6) The ACMA must not revoke a nominated carrier declaration under subsection (1) unless the ACMA has first:

(a) given the nominated carrier a written notice:

(i) setting out a proposal to revoke the declaration; and

(ii) inviting the nominated carrier to make a submission to the ACMA on the proposal; and

(b) considered any submission that was received within the time limit specified in the notice.

(7) A time limit specified in a notice under subsection (6) must run for at least 7 days.

(8) In this section:

this Act includes the *Telecommunications (Consumer Protection and Service Standards) Act 1999* and regulations under that Act.

Division 5—Register of nominated carrier declarations and carrier licences

84 Register of nominated carrier declarations and carrier licences

- _____ (1) The ACMA is to maintain a Register in which the ACMA includes:
- _____ (a) all nominated carrier declarations currently in force; and
- _____ (b) all carrier licences currently in force; and
- _____ (c) all conditions of such licences.
- _____ (2) The Register may be maintained by electronic means.
- _____ (3) A person may, on payment of the charge (if any) fixed by a determination under section 60 of the *Australian Communications and Media Authority Act 2005*:
- _____ (a) inspect the Register; and
- _____ (b) make a copy of, or take extracts from, the Register.
- _____ (4) For the purposes of this section, if the Register is maintained by electronic means, a person is taken to have made a copy of, or taken an extract from, the Register if the ACMA gives the person a printout of, or of the relevant parts of, the Register.
- _____ (5) If a person requests that a copy be provided in an electronic form, the ACMA may provide the relevant information:
- _____ (a) on a data processing device; or
- _____ (b) by way of electronic transmission.

Part 4—Service providers

Division 1—Simplified outline

85 Simplified outline

The following is a simplified outline of this Part:

- ~~A *data minimisation principle* has the meaning given by rule 1.8.~~
- ~~Data Standards Advisory Committee has the meaning given by rule 8.2.~~
- ~~de-identification consent has the meaning given by rule 1.10A.~~
- ~~direct marketing consent has the meaning given by rule 1.10A.~~

~~direct request service provider~~ is:

- ~~(a) a carriage service provider; or~~
- ~~(b) a content service provider.~~
- A *carriage service provider* is a person who supplies, or proposes to supply, certain carriage services.
- A *content service provider* is a person who supplies, or proposes to supply, certain content services.
- Service providers must comply with the *service provider rules*.

Division 2—Service providers

86 Service providers

For the purposes of this Act, a *service provider* is:

(a) a carriage service provider; or

(b) a content service provider.

Note 1: *Carriage service provider* is defined by section 87.

Note 2: *Content service provider* is defined by section 97.

Division 3—Carriage service providers

87 Carriage service providers

Basic definition

(1) For the purposes of this Act, if a person supplies, or proposes to supply, a listed carriage service to the public using:

(a) a network unit owned by one or more carriers; or

(b) a network unit in relation to which a nominated carrier declaration is in force;

the person is a ***carriage service provider***.

International carriage service providers

(2) For the purposes of this Act, if:

(a) a person supplies, or proposes to supply, a listed carriage service to the public using:

(i) a line link connecting a place in Australia and a place outside Australia; or

(ii) a satellite-based facility; and

(b) the carriage service is mentioned in paragraph 16(1)(b) or (c);

the person is a ***carriage service provider***.

Secondary users of exempt network units

(3) For the purposes of this Act, if:

(a) a carrier or an exempt network-user supplies a carriage service as mentioned in any of the following provisions:

(i) paragraph 45(2)(b);

(ii) paragraph 47(5)(b);

(iii) paragraph 47(6)(b);

(iv) paragraph 47(7)(b);

(v) paragraph 47(8)(b);

(vi) paragraph 48(2)(d);

(vii) paragraph 48(4)(b);

(viii) paragraph 49(2)(b);

(ix) paragraph 50(2)(c);

(x) paragraph 50(5)(c);

(xi) paragraph 50(7)(c); and

(b) the carriage service is supplied to the public;

the carrier or the exempt network-user, as the case may be, is a ***carriage service provider***.

Declared carriage service providers

- (4) The Minister may, by legislative instrument, declare that a specified person who supplies, or proposes to supply, a specified listed carriage service is a **carriage service provider** for the purposes of this Act. A declaration under this subsection has effect accordingly.

Note: For specification by class, see subsection 13(3) of the *Legislation Act 2003*.

Intermediaries

- (5) For the purposes of this Act, if:

- (a) a person (the **first person**), for reward, arranges, or proposes to arrange, for the supply of a listed carriage service by a carriage service provider to a third person; and
- (b) the first person would be a carriage service provider under subsection (1) or (2) if the person had supplied that carriage service; and
- (c) the commercial relationship between the first person and the third person is, or is to be, governed (in whole or in part) by an agreement between the first person and the third person that deals with one or more matters relating to the continuing supply of the service (whether or not that supply is, or is to be, for a readily ascertainable period); and
- (d) the conditions (if any) specified in a determination under subsection (8) are satisfied;

the person is a **carriage service provider**.

Note: Under section 7, **carriage service intermediary** is defined to mean a person who is a carriage service provider under this subsection.

- (6) For the purposes of paragraph (5)(a), it does not matter whether the first person makes arrangements as agent for:

- (a) the carriage service provider; or
- (b) the third person; or
- (c) any other person.

- (7) The reference in paragraph (5)(a) to **reward** does not include a reference to remuneration received in the capacity of employee.

- (8) The Minister may, by legislative instrument, make a determination for the purposes of paragraph (5)(d).

88 Supply to the public

- (1) This section sets out the circumstances in which a carriage service is taken, for the purposes of subsections 87(1), (2) and (3), to be supplied to the public.

- (2) If:

- (a) a carriage service is used for the carriage of communications between 2 end-users; and
- (b) each end-user is outside the immediate circle of the supplier of the service; the service is supplied to the public.

- (3) If:

(a) a carriage service is used to supply point-to-multipoint services to end-users; and

(b) at least one end-user is outside the immediate circle of the supplier of the service;

the service is supplied to the public.

(4) If:

(a) a carriage service is used to supply designated content services (other than point-to-multipoint services) to end-users; and

(b) at least one end-user is outside the immediate circle of the supplier of the service;

the service is supplied to the public.

(5) For the purposes of this section, a *designated content service* is a content service of a kind specified in a written determination made by the Minister.

(6) A determination under subsection (5) is a legislative instrument.

89 Exemption from definition—customers located on the same premises

(1) If:

(a) the supplier of a carriage service manages a business or other activity carried on at particular premises; and

(b) that business or activity is the sole or principal use of the premises; and

(c) all of the customers of the service are physically present on the premises; subsections 87(1) and (2) do not apply to the carriage service.

(2) In this section:

premises includes:

(a) land; and

(b) a group of buildings that is located in the same vicinity.

90 Exemption from definition—defence

(1) If the sole or principal use of a carriage service is use by, or on behalf of, a defence organisation to carry communications necessary or desirable for defence purposes, subsections 87(1) and (2) do not apply to the service.

(2) In this section:

defence organisation means:

(a) the Defence Department; or

(b) the Australian Defence Force; or

(c) an organisation of a foreign country, so far as the organisation:

(i) has functions corresponding to functions of, or of a part of, the Defence Department or the Australian Defence Force; and

-
- (ii) is authorised by the Commonwealth to operate or train in Australia or an external Territory; or
 - (d) a part of such an organisation or body.

91 Exemption from definition—intelligence operations

Subsections 87(1) and (2) do not apply to a carriage service that is used wholly or principally:

- (a) by the Australian Secret Intelligence Service; or
- (b) by the Australian Security Intelligence Organisation; or
- (c) by the Australian Signals Directorate.

92 Exemption from definition—transport authorities

- (1) Subsections 87(1) and (2) do not apply to a carriage service if the sole or principal use of the carriage service is use by Airservices Australia to carry communications necessary or desirable for the workings of aviation services.
- (3) Subsections 87(1) and (2) do not apply to a carriage service if the sole or principal use of the unit is use by a State or Territory transport authority to carry communications necessary or desirable for the workings of the following services:
 - (a) train services of a kind provided by the authority;
 - (b) bus or other road services of a kind provided by the authority;
 - (c) tram services of a kind provided by the authority.
- (4) Subsections 87(1) and (2) do not apply to a carriage service if the sole or principal use of the carriage service is use by a rail corporation to carry communications necessary or desirable for the workings of train services.
- (5) In this section:

rail corporation means a body corporate that manages or operates either or both of the following:

- (a) rail transport services;
- (b) rail transport infrastructure.

93 Exemption from definition—broadcasting services

- (1) If:
 - (a) the sole or principal use of a carriage service is use to carry communications that are necessary or desirable for either or both of the following purposes:
 - (i) the supply of broadcasting services to the public;
 - (ii) the supply of a secondary carriage service by means of the main carrier signal of a primary broadcasting service; and
 - (b) those communications are neither:
 - (i) communications carried between the head end of a cable transmission system and the equipment used by an end-user to receive a broadcasting service; nor

(ii) communications carried from a broadcasting transmitter transmitting a signal of a broadcasting service to its intended audience;
subsections 87(1) and (2) do not apply to the carriage service.

(2) If the sole or principal use of a carriage service is use for the purpose of a re-transmission of a kind mentioned in paragraph 212(1)(a) or (b) of the *Broadcasting Services Act 1992*, subsections 87(1) and (2) of this Act do not apply to the service.

(2A) For the purposes of this section, disregard subsection 212(3) of the *Broadcasting Services Act 1992*.

(3) In this section:

broadcasting transmitter means a radiocommunications transmitter used, or for use, to deliver a broadcasting service.

head end of a cable transmission system means a facility that:

(a) is connected to a line link; and

(b) is used, or for use, in connection with the delivery of a broadcasting service; and

(c) processes signals for delivery by the line link to end-users having equipment appropriate for receiving the service.

94 Exemption from definition—electricity supply bodies

(1) If the sole or principal use of a carriage service is use by an electricity supply body to carry communications necessary or desirable for:

(a) managing the generation, transmission, distribution or supply of electricity;
or

(b) charging for the supply of electricity;

subsection 87(1) does not apply to the service.

(2) In this section:

electricity supply body means an authority, or a body corporate, that carries on a business, or performs a function, of:

(a) generating, transmitting, distributing or supplying electricity; or

(b) managing the generation, transmission, distribution or supply of electricity.

95 Exemption from definition—Ministerial determination

(1) The Minister may, by legislative instrument, determine that a specified eligible definition provision does not apply in relation to:

(a) a specified carriage service; or

(b) a specified person.

Note: For specification by class, see subsection 13(3) of the *Legislation Act 2003*.

(2) A determination under this section may be unconditional or subject to such conditions (if any) as are specified in the determination.

(3) A determination under this section has effect accordingly.

(5) For the purposes of this section, each of the following provisions is an **eligible definition provision**:

(a) subsection 87(1);

(b) subsection 87(2);

(c) subsection 87(3);

(d) subsection 87(5).

96 Exemption from certain regulatory provisions—Ministerial determination

(1) The Minister may, by legislative instrument, determine that a specified regulatory provision does not apply to a specified person in the person's capacity as a designated carriage service provider. For this purpose, a **designated carriage service provider** is a person who is a carriage service provider under subsection 87(4) or (5).

Note: For specification by class, see subsection 13(3) of the *Legislation Act 2003*.

(2) A determination under this section may be unconditional or subject to such conditions (if any) as are specified in the determination.

(3) A determination under this section has effect accordingly.

(5) For the purposes of this section, a **regulatory provision** is a provision of:

(a) this Act; or

(b) any other law of the Commonwealth;

that contains a reference to a carriage service provider or to carriage service providers.

Division 4—Content service providers

97 Content service providers

- _____ (1) For the purposes of this Act, if a person uses, or proposes to use, a listed carriage service to supply a content service to the public, the person is a ***content service provider***.
- _____ (2) For the purposes of subsection (1), a content service is supplied to the public if, and only if, at least one end-user of the content service is outside the immediate circle of the supplier of the content service.

Division 5—Service provider rules

98 Service provider rules

(1) For the purposes of this Act, the following are the *service provider rules*:

(a) the rules set out in Schedule 2;

(b) the rules (if any) set out in service provider determinations in force under section 99.

(2) In addition to the rules mentioned in subsection (1), the rule set out in subsection 152BA(2) of the *Competition and Consumer Act 2010* is a service provider rule for the purposes of this Act.

Note: Subsection 152BA(2) of the *Competition and Consumer Act 2010* provides that a carriage service provider must comply with any standard access obligations that are applicable to the provider.

(3) In addition to the rules mentioned in subsection (1), the rule set out in subsection 152BCP(2) of the *Competition and Consumer Act 2010* is a service provider rule for the purposes of this Act.

Note: Subsection 152BCP(2) of the *Competition and Consumer Act 2010* provides that a carriage service provider must comply with any access determinations that are applicable to the provider.

(4) In addition to the rules mentioned in subsection (1), the rule set out in subsection 152BDG(2) of the *Competition and Consumer Act 2010* is a service provider rule for the purposes of this Act.

Note: Subsection 152BDG(2) of the *Competition and Consumer Act 2010* provides that a carriage service provider must comply with any binding rules of conduct that are applicable to the provider.

(5) In addition to the rules mentioned in subsection (1), the rule set out in subsection 152BED(2) of the *Competition and Consumer Act 2010* is a service provider rule for the purposes of this Act.

Note: Subsection 152BED(2) of the *Competition and Consumer Act 2010* deals with access agreements.

(6) In addition to the rules mentioned in subsection (1), the rule set out in subsection 152CJD(2) of the *Competition and Consumer Act 2010* is a service provider rule for the purposes of this Act.

Note: Subsection 152CJD(2) of the *Competition and Consumer Act 2010* deals with rules about the supply of services by NBN corporations.

(7) In addition to the rules mentioned in subsection (1), the rule set out in subsection 38(2) of the *National Broadband Network Companies Act 2011* is a service provider rule for the purposes of this Act.

Note: Subsection 38(2) of the *National Broadband Network Companies Act 2011* deals with rules about:

- (a) the supply of goods and services by NBN corporations; and
- (b) the investment of money by NBN corporations; and
- (c) the functional separation of NBN corporations; and
- (d) the divestment of assets by NBN corporations.

99 Service provider determinations

- (1) The ACMA may, by legislative instrument, make a determination setting out rules that apply to service providers in relation to the supply of either or both of the following:
- (a) specified carriage services;
 - (b) specified content services.
- The determination is called a **service provider determination**.
- (1A) The Minister may, by legislative instrument, make a determination setting out rules that apply to carriage service providers in relation to the supply of specified carriage services. The determination is called a **service provider determination**.
- (2) A service provider determination has effect only to the extent that:
- (a) it is authorised by paragraph 51(v) of the Constitution (either alone or when read together with paragraph 51(xxxix) of the Constitution); or
 - (b) both:
 - (i) it is authorised by section 122 of the Constitution; and
 - (ii) it would have been authorised by paragraph 51(v) of the Constitution (either alone or when read together with paragraph 51(xxxix) of the Constitution) if section 51 of the Constitution extended to the Territories.
- (3) The ACMA must not make a service provider determination unless the determination relates to a matter specified in the regulations or in section 346.
- (4) Before making a service provider determination, the ACMA must consult the ACCC.
- (5) A service provider determination may make provision for or in relation to a particular matter by empowering the ACMA to make decisions of an administrative character.
- (6) A service provider determination under subsection (1) has no effect to the extent to which it is inconsistent with a service provider determination under subsection (1A).

100 Exemptions from service provider rules

- (1) The Minister may, by legislative instrument, determine that a specified service provider is exempt from the service provider rules.
- (2) The Minister may, by legislative instrument, determine that a specified service provider is exempt from a specified service provider rule.
- (3) A determination under this section may be unconditional or subject to such conditions (if any) as are specified in the determination.
- (4) A determination under this section has effect accordingly.
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101 Service providers must comply with service provider rules

- (1) A service provider must comply with the service provider rules that apply to the provider.

Note: *Service provider rules* is defined by section 98.

- (2) A person must not:

- (a) aid, abet, counsel or procure a contravention of subsection (1); or
- (b) induce, whether by threats or promises or otherwise, a contravention of subsection (1); or
- (c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (1); or
- (d) conspire with others to effect a contravention of subsection (1).

- (3) Subsections (1) and (2) are *civil penalty provisions*.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

102 Remedial directions—breach of service provider rules

- (1) This section applies if a service provider has contravened, or is contravening, a service provider rule.

- (2) The ACMA may give the provider a written direction requiring the provider to take specified action directed towards ensuring that the provider does not contravene the rule, or is unlikely to contravene the rule, in the future.

- (3) The following are examples of the kinds of direction that may be given to a service provider under subsection (2):

- (a) a direction that the provider implement effective administrative systems for monitoring compliance with a service provider rule;
- (b) a direction that the provider implement a system designed to give the provider's employees, agents and contractors a reasonable knowledge and understanding of the requirements of a service provider rule, in so far as those requirements affect the employees, agents or contractors concerned.

- (4) A service provider must not contravene a direction under subsection (2).

- (4A) Subsection (1) does not apply to the rule set out in Part 1 of Schedule 2 in so far as that rule relates to section 142C, 143, 143B, 151ZA, 151ZB, 151ZD, 151ZF, 151ZG, 151ZH or 151ZI.

Note: Sections 142C, 143, 143B, 151ZA, 151ZB, 151ZD, 151ZF, 151ZG, 151ZH and 151ZI are set out in Part 8 (local access lines).

- (5) Subsection (1) does not apply to the rule set out in Part 1 of Schedule 2 in so far as that rule relates to section 369.

Note: Section 369 deals with Rules of Conduct under section 367.

- (6) Subsection (1) does not apply to the rule set out in subsection 152BA(2) of the *Competition and Consumer Act 2010*.

Note: Subsection 152BA(2) of the *Competition and Consumer Act 2010* provides that a carriage service provider must comply with any standard access obligations that are applicable to the provider.

(6A) Subsection (1) does not apply to the rule set out in subsection 152BCP(2) of the *Competition and Consumer Act 2010*.

Note: Subsection 152BCP(2) of the *Competition and Consumer Act 2010* provides that a carriage service provider must comply with any access determinations that are applicable to the provider.

(6B) Subsection (1) does not apply to the rule set out in subsection 152BDG(2) of the *Competition and Consumer Act 2010*.

Note: Subsection 152BDG(2) of the *Competition and Consumer Act 2010* provides that a carriage service provider must comply with any binding rules of conduct that are applicable to the provider.

(6C) Subsection (1) does not apply to the rule set out in subsection 152BED(2) of the *Competition and Consumer Act 2010*.

Note: Subsection 152BED(2) of the *Competition and Consumer Act 2010* deals with access agreements.

(6D) Subsection (1) does not apply to the rule set out in subsection 152CJD(2) of the *Competition and Consumer Act 2010*.

Note: Subsection 152CJD(2) of the *Competition and Consumer Act 2010* deals with rules about the supply of services by NBN corporations.

(6E) Subsection (1) does not apply to the rule set out in subsection 38(2) of the *National Broadband Network Companies Act 2011*.

Note: Subsection 38(2) of the *National Broadband Network Companies Act 2011* deals with rules about:

- (a) the supply of goods and services by NBN corporations; and
- (b) the investment of money by NBN corporations; and
- (c) the functional separation of NBN corporations; and
- (d) the divestment of assets by NBN corporations.

(7) A direction under subsection (2) is not a legislative instrument.

103 Formal warnings—breach of service provider rules

(1) The ACMA may issue a formal warning if a person contravenes a service provider rule.

(1A) Subsection (1) does not apply to the rule set out in Part 1 of Schedule 2 in so far as that rule relates to section 142C, 143, 143B, 151ZA, 151ZB, 151ZD, 151ZF, 151ZG, 151ZH or 151ZI.

Note: Sections 142C, 143, 143B, 151ZA, 151ZB, 151ZD, 151ZF, 151ZG, 151ZH and 151ZI are set out in Part 8 (local access lines).

(2) Subsection (1) does not apply to the rule set out in Part 1 of Schedule 2 in so far as that rule relates to section 369.

Note: Section 369 deals with Rules of Conduct under section 367.

(3) Subsection (1) does not apply to the rule set out in subsection 152BA(2) of the *Competition and Consumer Act 2010*.

Note: Subsection 152BA(2) of the *Competition and Consumer Act 2010* provides that a carriage service provider must comply with any standard access obligations that are applicable to the provider.

(3A) Subsection (1) does not apply to the rule set out in subsection 152BCP(2) of the *Competition and Consumer Act 2010*.

Note: Subsection 152BCP(2) of the *Competition and Consumer Act 2010* provides that a carriage service provider must comply with any access determinations that are applicable to the provider.

(3B) Subsection (1) does not apply to the rule set out in subsection 152BDG(2) of the *Competition and Consumer Act 2010*.

Note: Subsection 152BDG(2) of the *Competition and Consumer Act 2010* provides that a carriage service provider must comply with any binding rules of conduct that are applicable to the provider.

(3C) Subsection (1) does not apply to the rule set out in subsection 152BED(2) of the *Competition and Consumer Act 2010*.

Note: Subsection 152BED(2) of the *Competition and Consumer Act 2010* deals with access agreements.

(3D) Subsection (1) does not apply to the rule set out in subsection 152CJD(2) of the *Competition and Consumer Act 2010*.

Note: Subsection 152CJD(2) of the *Competition and Consumer Act 2010* deals with rules about the supply of services by NBN corporations.

(3E) Subsection (1) does not apply to the rule set out in subsection 38(2) of the *National Broadband Network Companies Act 2011*.

Note: Subsection 38(2) of the *National Broadband Network Companies Act 2011* deals with rules about:

- (a) the supply of goods and services by NBN corporations; and
- (b) the investment of money by NBN corporations; and
- (c) the functional separation of NBN corporations; and
- (d) the divestment of assets by NBN corporations.

(4) The ACCC may issue a formal warning if a person contravenes the service provider rule set out in subsection 152BA(2) of the *Competition and Consumer Act 2010*.

(4A) The ACCC may issue a formal warning if a person contravenes the service provider rule set out in subsection 152BCP(2) of the *Competition and Consumer Act 2010*.

(4B) The ACCC may issue a formal warning if a person contravenes the service provider rule set out in subsection 152BDG(2) of the *Competition and Consumer Act 2010*.

(4C) The ACCC may issue a formal warning if a person contravenes the service provider rule set out in subsection 152BED(2) of the *Competition and Consumer Act 2010*.

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- (4D) The ACCC may issue a formal warning if a person contravenes the service provider rule set out in subsection 152CJD(2) of the *Competition and Consumer Act 2010*.
- (4E) The ACCC may issue a formal warning if a person contravenes the service provider rule set out in subsection 38(2) of the *National Broadband Network Companies Act 2011*.
- (4F) The ACCC may issue a formal warning if a person contravenes the service provider rule set out in Part 1 of Schedule 2 in so far as that rule relates to section 142C, 143, 143B, 151ZA, 151ZB, 151ZD, 151ZF, 151ZG, 151ZH or 151ZI.
- (5) The ACCC may issue a formal warning if a person contravenes the service provider rule set out in Part 1 of Schedule 2 in so far as that rule relates to section 369.

Part 5—Monitoring of the performance of carriers and carriage service providers

104 Simplified outline

The following is a simplified outline of this Part:

- The ACMA is to monitor and report each financial year on matters relating to the performance of carriers and carriage service providers.
- The ACMA may be directed by the Minister to monitor, and report on, specified matters relating to the performance of carriers and carriage service providers.
- The ACCC is to monitor, and report each financial year to the Minister on, breaches by a designated Telstra successor company of an undertaking about structural separation.

105 Monitoring of performance—annual report

(5A) The ACMA must monitor, and report each financial year on:

- (a) the operation of Part 14 and on the costs of compliance with the requirements of that Part; and
- (b) without limiting paragraph (a), the costs of compliance with the requirements of Part 5-1A of the *Telecommunications (Interception and Access) Act 1979* (about data retention).

(5B) Paragraph (5A)(a) does not apply in relation to Part 14 to the extent that Part 14 was amended by the *Telecommunications and Other Legislation Amendment Act 2017*.

(6) The ACMA must publish a report under subsection (5A) on its website as soon as practicable and no later than 6 months after the end of the financial year concerned.

105A Monitoring of performance—additional report

(1) The ACMA must monitor, and report to the Minister on, specified matters relating to the performance of carriers and carriage service providers in accordance with any written direction given by the Minister to the ACMA.

(2) The ACMA must give a report under subsection (1) to the Minister:

- (a) if paragraph (b) does not apply—as soon as practicable after the end of a period specified in the direction; or
- (b) if the direction requires the report to be given before a specified time—before that time.

(3) If the direction requires the report to be in a specified form, the report must be in that form.

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- (4) The ACMA must comply with any requirement in the direction as to the publication of the report.

105C Monitoring of breaches by a designated Telstra successor company of an undertaking about structural separation

Monitoring

- (1) The ACCC must monitor, and report each financial year to the Minister on, breaches by a designated Telstra successor company of an undertaking in force under section 577A.

Report

- (2) The ACCC must give a report under subsection (1) to the Minister as soon as practicable after the end of the financial year concerned.
- (3) The Minister must cause a copy of a report under subsection (1) to be tabled in each House of the Parliament within 15 sitting days of that House after receiving the report.

Part 6—Industry codes and industry standards

Division 1—Simplified outline

106 Simplified outline

The following is a simplified outline of this Part.

- Bodies and associations that represent sections of the telecommunications industry, the telemarketing industry or the fax marketing industry may develop industry codes.
- Industry codes may be registered by the ACMA.
- Compliance with an industry code is voluntary unless the ACMA directs a particular participant in the telecommunications industry, the telemarketing industry or the fax marketing industry to comply with the code.
- The ACMA has a reserve power to make an industry standard if there are no industry codes or if an industry code is deficient.
- Compliance with industry standards is mandatory.

Division 2—Interpretation

107 Industry codes

For the purposes of this Part, an *industry code* is a code developed under this Part (whether or not in response to a request under this Part).

108 Industry standards

For the purposes of this Part, an *industry standard* is a standard determined under this Part.

108A Electronic messaging service provider

(1) For the purposes of this Part, if a person supplies, or proposes to supply, an electronic messaging service to the public, the person is an *electronic messaging service provider*.

(2) For the purposes of subsection (1), a service is supplied to the public if, and only if, at least one end-user of the service is outside the immediate circle of the supplier of the service.

(3) In this section:

electronic message has the same meaning as in the *Spam Act 2003*.

electronic messaging service means a service that enables any or all of the following electronic messages to be sent or received:

- (a) web-based email;
- (b) instant messages;
- (c) text messages;
- (d) messages of a kind specified in the regulations.

message has the same meaning as in the *Spam Act 2003*.

108B Telecommunications industry

For the purposes of this Part, the *telecommunications industry* includes an industry that involves carrying on business as an electronic messaging service provider.

109 Telecommunications activity

For the purposes of this Part, a *telecommunications activity* is an activity that consists of:

- (a) carrying on business as a carrier; or
- (b) carrying on business as a carriage service provider; or

-
- (c) supplying goods or services for use in connection with the supply of a listed carriage service; or
 - (d) supplying a content service using a listed carriage service; or
 - (e) manufacturing or importing customer equipment or customer cabling; or
 - (f) installing, maintaining, operating or providing access to:
 - (i) a telecommunications network; or
 - (ii) a facility;used to supply a listed carriage service; or
 - (g) carrying on business as an electronic messaging service provider.

109B Telemarketing activity

(1) For the purposes of this Part, a **telemarketing activity** is an activity to which subsection (2), (3) or (4) applies.

(2) This subsection applies to an activity that:

- (a) is carried on by a person (the **first person**) under a contract or arrangement (other than a contract of employment); and
- (b) consists of:
 - (i) using telemarketing calls to market, advertise or promote goods or services, where the first person is not the supplier or prospective supplier of the goods or services; or
 - (ii) using telemarketing calls to advertise or promote a supplier or prospective supplier of goods or services, where the first person is not the supplier or prospective supplier of the goods or services; or
 - (iii) using telemarketing calls to market, advertise or promote land or interests in land, where the first person is not the supplier or prospective supplier of the land or interests in land; or
 - (iv) using telemarketing calls to advertise or promote a supplier or prospective supplier of land or interests in land, where the first person is not the supplier or prospective supplier of the land or interests in land; or
 - (v) using telemarketing calls to market, advertise or promote business opportunities or investment opportunities, where the first person is not the provider or prospective provider of the business opportunities or investment opportunities; or
 - (vi) using telemarketing calls to advertise or promote a provider, or prospective provider, of business opportunities or investment opportunities, where the first person is not the provider or prospective provider of the business opportunities or investment opportunities.

(3) This subsection applies to an activity carried on by a person if the activity consists of:

- (a) using telemarketing calls to market, advertise or promote goods or services, where the person is the supplier or prospective supplier of the goods or services; or
- (b) using telemarketing calls to advertise or promote a supplier or prospective supplier of goods or services, where the person is the supplier or prospective supplier of the goods or services; or

(c) using telemarketing calls to market, advertise or promote land or interests in land, where the person is the supplier or prospective supplier of the land or interests in land; or

(d) using telemarketing calls to advertise or promote a supplier or prospective supplier of land or interests in land, where the person is the supplier or prospective supplier of the land or interests in land; or

(e) using telemarketing calls to market, advertise or promote business opportunities or investment opportunities, where the person is the provider or prospective provider of the business opportunities or investment opportunities; or

(f) using telemarketing calls to advertise or promote a provider, or prospective provider, of business opportunities or investment opportunities, where the person is the provider or prospective provider of the business opportunities or investment opportunities.

(4) This subsection applies to an activity carried on by a person if the activity consists of:

(a) using telemarketing calls to solicit donations; or

(b) using telemarketing calls to conduct opinion polling; or

(c) using telemarketing calls to carry out standard questionnaire-based research.

(5) An expression (other than **telemarketing call**) used in this section and in section 5 of the *Do Not Call Register Act 2006* has the same meaning in this section as it has in that section.

109C Fax marketing activity

(1) For the purposes of this Part, a **fax marketing activity** is an activity to which subsection (2), (3) or (4) applies.

(2) This subsection applies to an activity that:

(a) is carried on by a person (the **first person**) under a contract or arrangement (other than a contract of employment); and

(b) consists of:

(i) using marketing faxes to market, advertise or promote goods or services, where the first person is not the supplier or prospective supplier of the goods or services; or

(ii) using marketing faxes to advertise or promote a supplier or prospective supplier of goods or services, where the first person is not the supplier or prospective supplier of the goods or services; or

(iii) using marketing faxes to market, advertise or promote land or interests in land, where the first person is not the supplier or prospective supplier of the land or interests in land; or

(iv) using marketing faxes to advertise or promote a supplier or prospective supplier of land or interests in land, where the first person

is not the supplier or prospective supplier of the land or interests in land; or

(v) using marketing faxes to market, advertise or promote business opportunities or investment opportunities, where the first person is not the provider or prospective provider of the business opportunities or investment opportunities; or

(vi) using marketing faxes to advertise or promote a provider, or prospective provider, of business opportunities or investment opportunities, where the first person is not the provider or prospective provider of the business opportunities or investment opportunities.

(3) This subsection applies to an activity carried on by a person if the activity consists of:

(a) using marketing faxes to market, advertise or promote goods or services, where the person is the supplier or prospective supplier of the goods or services; or

(b) using marketing faxes to advertise or promote a supplier or prospective supplier of goods or services, where the person is the supplier or prospective supplier of the goods or services; or

(c) using marketing faxes to market, advertise or promote land or interests in land, where the person is the supplier or prospective supplier of the land or interests in land; or

(d) using marketing faxes to advertise or promote a supplier or prospective supplier of land or interests in land, where the person is the supplier or prospective supplier of the land or interests in land; or

(e) using marketing faxes to market, advertise or promote business opportunities or investment opportunities, where the person is the provider or prospective provider of the business opportunities or investment opportunities; or

(f) using marketing faxes to advertise or promote a provider, or prospective provider, of business opportunities or investment opportunities, where the person is the provider or prospective provider of the business opportunities or investment opportunities.

(4) This subsection applies to an activity carried on by a person if the activity consists of:

(a) using marketing faxes to solicit donations; or

(b) using marketing faxes to conduct opinion polling; or

(c) using marketing faxes to carry out standard questionnaire-based research.

(5) An expression (other than **marketing fax**) used in this section and in section 5B of the *Do Not Call Register Act 2006* has the same meaning in this section as it has in that section.

110 Sections of the telecommunications industry

(1) For the purposes of this Part, **sections of the telecommunications industry** are to be ascertained in accordance with this section.

(2) For the purposes of this Part, each of the following groups is a **section of the telecommunications industry**:

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- (a) carriers;
 - (b) service providers;
 - (c) carriage service providers;
 - (d) carriage service providers who supply standard telephone services;
 - (e) carriage service providers who supply public mobile telecommunications services;
 - (f) content service providers;
 - (g) persons who perform cabling work (within the meaning of Division 9 of Part 21);
 - (h) persons who manufacture or import customer equipment or customer cabling;
 - (i) electronic messaging service providers;
 - (j) persons who install:
 - (i) optical fibre lines; or
 - (ii) facilities used, or for use, in or in connection with optical fibre lines.
- (3) The ACMA may, by written instrument, determine that persons carrying on, or proposing to carry on, one or more specified kinds of telecommunications activity constitute a section of the telecommunications industry for the purposes of this Part.
- (4) The section must be identified in the determination by a unique name and/or number.
- (5) A determination under subsection (3) has effect accordingly.
- (6) Sections of the telecommunications industry determined under subsection (3):
 - (a) need not be mutually exclusive; and
 - (b) may consist of the aggregate of any 2 or more sections of the telecommunications industry mentioned in subsection (2) or determined under subsection (3); and
 - (c) may be subsets of a section of the telecommunications industry mentioned in subsection (2) or determined under subsection (3).
- (7) Subsection (6) does not, by implication, limit subsection (3).
- (8) A copy of a determination under subsection (3) is to be published in the *Gazette*.

110B Sections of the telemarketing industry

- (1) For the purposes of this Part, *sections of the telemarketing industry* are to be ascertained in accordance with this section.
- (2) If no determination is in force under subsection (3), all of the persons carrying on, or proposing to carry on, telemarketing activities constitute a single section of the telemarketing industry for the purposes of this Part.

(3) The ACMA may, by legislative instrument, determine that persons carrying on, or proposing to carry on, one or more specified kinds of telemarketing activity constitute a section of the telemarketing industry for the purposes of this Part.

(4) The section must be identified in the determination by a unique name and/or number.

(5) A determination under subsection (3) has effect accordingly.

(6) Sections of the telemarketing industry determined under subsection (3):

(a) need not be mutually exclusive; and

(b) may consist of the aggregate of any 2 or more sections of the telemarketing industry mentioned in subsection (2) or determined under subsection (3); and

(c) may be subsets of a section of the telemarketing industry mentioned in subsection (2) or determined under subsection (3).

(7) Subsection (6) does not, by implication, limit subsection (3).

110C Sections of the fax marketing industry

(1) For the purposes of this Part, *sections of the fax marketing industry* are to be ascertained in accordance with this section.

(2) If no determination is in force under subsection (3), all of the persons carrying on, or proposing to carry on, fax marketing activities constitute a single section of the fax marketing industry for the purposes of this Part.

(3) The ACMA may, by legislative instrument, determine that persons carrying on, or proposing to carry on, one or more specified kinds of fax marketing activity constitute a section of the fax marketing industry for the purposes of this Part.

(4) The section must be identified in the determination by a unique name and/or number.

(5) A determination under subsection (3) has effect accordingly.

(6) Sections of the fax marketing industry determined under subsection (3):

(a) need not be mutually exclusive; and

(b) may consist of the aggregate of any 2 or more sections of the fax marketing industry mentioned in subsection (2) or determined under subsection (3); and

(c) may be subsets of a section of the fax marketing industry mentioned in subsection (2) or determined under subsection (3).

(7) Subsection (6) does not, by implication, limit subsection (3).

111 Participants in a section of the telecommunications industry

For the purposes of this Part, if a person is a member of a group that constitutes a section of the telecommunications industry, the person is a *participant* in that section of the telecommunications industry.

111AA Participants in a section of the telemarketing industry

For the purposes of this Part, if a person is a member of a group that constitutes a section of the telemarketing industry, the person is a *participant* in that section of the telemarketing industry.

111AB Participants in a section of the fax marketing industry

For the purposes of this Part, if a person is a member of a group that constitutes a section of the fax marketing industry, the person is a *participant* in that section of the fax marketing industry.

111B Unsolicited commercial electronic messages

(1) For the purposes of this Part, an *unsolicited commercial electronic message* is a commercial electronic message that is sent:

- (a) without the consent of the relevant electronic account-holder; or
- (b) to a non-existent electronic address.

(2) An expression used in this section and in the *Spam Act 2003* has the same meaning in this section as it has in that Act.

Division 3—General principles relating to industry codes and industry standards

112 Statement of regulatory policy

- (1) The Parliament intends that bodies or associations that the ACMA is satisfied represent sections of the telecommunications industry should develop codes (*industry codes*) that are to apply to participants in the respective sections of the industry in relation to the telecommunications activities of the participants.
- (1B) The Parliament intends that bodies or associations that the ACMA is satisfied represent sections of the telemarketing industry should develop codes (*industry codes*) that are to apply to participants in the respective sections of the industry in relation to the telemarketing activities of the participants.
- (1C) The Parliament intends that bodies or associations that the ACMA is satisfied represent sections of the fax marketing industry should develop codes (*industry codes*) that are to apply to participants in the respective sections of the industry in relation to the fax marketing activities of the participants.
- (2) The Parliament intends that the ACMA, in exercising its powers under sections 117, 118, 119, 123, 124, 125, 125AA, 125A and 125B, will act in a manner that, in the opinion of the ACMA, enables public interest considerations to be addressed in a way that does not impose undue financial and administrative burdens on participants in sections of the telecommunications industry, the telemarketing industry or the fax marketing industry.
- (3) In determining whether public interest considerations are being addressed in a way that does not impose undue financial and administrative burdens on participants in sections of the telecommunications industry (other than electronic messaging service providers), the ACMA must have regard to:
- (a) the number of customers who would be likely to benefit from the code or standard concerned; and
 - (b) the extent to which those customers are residential or small business customers; and
 - (c) the legitimate business interests of participants in sections of the telecommunications industry; and
 - (d) the public interest, including the public interest in the efficient, equitable and ecologically sustainable supply of:
 - (i) carriage services; and
 - (ii) goods for use in connection with carriage services; and
 - (iii) services for use in connection with carriage services;in a manner that reflects the legitimate expectations of the Australian community.
- (3A) In determining whether public interest considerations are being addressed in a way that does not impose undue financial and administrative burdens on participants in the section of the telecommunications industry that consists of electronic messaging service providers, the ACMA must have regard to:

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- (a) the number of end-users who would be likely to benefit from the code or standard concerned; and
 - (b) the extent to which those end-users are residential or small business end-users; and
 - (c) the legitimate business interests of electronic messaging service providers.

(3C) In determining whether public interest considerations are being addressed in a way that does not impose undue financial and administrative burdens on participants in sections of the telemarketing industry, the ACMA must have regard to:

- (a) the number of persons who would be likely to benefit from the code or standard concerned; and
- (b) the extent to which those persons are householders or small business operators; and
- (c) the legitimate business interests of participants in sections of the telemarketing industry.

(3D) In determining whether public interest considerations are being addressed in a way that does not impose undue financial and administrative burdens on participants in sections of the fax marketing industry, the ACMA must have regard to:

- (a) the number of persons who would be likely to benefit from the code or standard concerned; and
- (b) the extent to which those persons are householders or small business operators; and
- (c) the legitimate business interests of participants in sections of the fax marketing industry.

(4) Subsections (3), (3A), (3B), (3C) and (3D) do not, by implication, limit the matters to which regard may be had.

113 Examples of matters that may be dealt with by industry codes and industry standards

(1) This section sets out examples of matters that may be dealt with by industry codes and industry standards.

(2) The applicability of a particular example will depend on which section of the telecommunications industry, the telemarketing industry or the fax marketing industry is involved.

(3) The examples are as follows:

- (a) telling customers about:
 - (i) goods or services on offer; and
 - (ii) the prices of those goods or services; and
 - (iii) the other terms and conditions on which those goods or services are offered;

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- (b) giving customers information about performance indicators customers can use to evaluate the quality of services;
 - (c) regular reporting to customers about performance against those performance indicators;
 - (d) the internal handling of customer complaints;
 - (e) reporting about customer complaints;
 - (f) privacy and, in particular:
 - (i) the protection of personal information; and
 - (ii) the intrusive use of telecommunications by carriers or service providers; and
 - (iii) the monitoring or recording of communications; and
 - (iv) calling number display; and
 - (v) the provision of directory products and services;
 - (g) the “churning” of customers;
 - (h) security deposits given by customers;subrule 1.13(2).
 - (i) debt collection practices;
 - (j) customer credit practices;
 - (k) disconnection of customers;
 - (l) ensuring that customers have an informed basis on which to enter into agreements of a kind mentioned in paragraph 22(2)(d) or (e) or (4)(a) (which deal with boundaries of telecommunications networks);
 - (m) the quality of standard telephone services;
 - (n) the accuracy of billing of customers of carriage service providers in relation to the supply of standard telephone services;
 - (o) the timeliness and comprehensibility of bills;
 - (p) the procedures to be followed in order to generate standard billing reports to assist in the investigation of customer complaints about bills;
 - (pa) the design features of:
 - (i) optical fibre lines; or
 - (ii) facilities used, or for use, in or in connection with optical fibre lines;
 - (pb) performance requirements to be met by:
 - (i) optical fibre lines; or
 - (ii) facilities used, or for use, in or in connection with optical fibre lines;
 - (pc) the characteristics of carriage services supplied using optical fibre lines;
 - (pd) performance requirements to be met by carriage services supplied using optical fibre lines;
 - (q) procedures to be followed by:
 - (i) internet service providers; and
 - (ii) electronic messaging service providers;in dealing with unsolicited commercial electronic messages (including procedures relating to the provision or use of regularly updated software for filtering unsolicited commercial electronic messages);
 - (r) giving customers information about the availability, use and appropriate application of software for filtering unsolicited commercial electronic messages;
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- (s) action to be taken to assist in the development and evaluation of software for filtering unsolicited commercial electronic messages;
 - (t) action to be taken in order to minimise or prevent the sending or delivery of unsolicited commercial electronic messages, including:
 - (i) the configuration of servers so as to minimise or prevent the sending or delivery of unsolicited commercial electronic messages; and
 - (ii) the shutdown of open relay servers;
 - (u) action to be taken to ensure responsible practices in relation to the use of commercial electronic messages to market, advertise or promote goods or services to individuals who are under 18 years of age;
 - (v) procedures to be followed in relation to the giving of consent by relevant electronic account-holders (within the meaning of the *Spam Act 2003*) to the sending of commercial electronic messages;
 - (w) record-keeping practices to be followed in relation to telemarketing calls made or attempted to be made;
 - (x) action to be taken to limit the total number of telemarketing calls attempted to be made, by a particular participant in a section of the telemarketing industry, during a particular period, where the recipient answers the attempted call, but the attempted call does not have any content;
 - (y) action to be taken to limit the total number of telemarketing calls made, or attempted to be made, by a particular participant in a section of the telemarketing industry, during a particular period to a particular Australian number;
 - (z) record-keeping practices to be followed in relation to marketing faxes sent or attempted to be sent;
 - (za) action to be taken to limit the total number of marketing faxes sent or attempted to be sent, by a particular participant in a section of the fax marketing industry, during a particular period to a particular Australian number.

114 Industry codes and industry standards may confer powers on the Telecommunications Industry Ombudsman

- (1) If the Telecommunications Industry Ombudsman consents, an industry code or industry standard may confer functions and powers on the Telecommunications Industry Ombudsman.
- (2) The continuity of a consent under subsection (1) is not affected by:
 - (a) a change in the occupancy of the position of Telecommunications Industry Ombudsman; or
 - (b) a vacancy in the position of Telecommunications Industry Ombudsman that does not continue for more than 4 months.

115 Industry codes and industry standards not to deal with certain design features and performance requirements

- (1) For the purposes of this Part, an industry code or an industry standard has no effect:
- (a) to the extent (if any) to which compliance with the code or standard is likely to have the effect (whether direct or indirect) of requiring customer equipment, customer cabling, a telecommunications network or a facility:
 - (i) to have particular design features; or
 - (ii) to meet particular performance requirements; or
 - (b) to the extent (if any) to which it deals with the content of content services.
- (2) The rule in subsection (1) does not apply to an industry code or an industry standard to the extent (if any) to which compliance with the code or standard is likely:
- (a) to have the indirect effect of requiring customer equipment, customer cabling, a telecommunications network or a facility to have particular design features that relate to:
 - (i) the accuracy of billing of customers of carriage service providers in relation to the supply of standard telephone services; or
 - (ii) the quality of standard telephone services; or
 - (iii) a matter specified in the regulations; or
 - (b) to have the direct or indirect effect of requiring customer equipment, customer cabling, a telecommunications network or a facility to meet performance requirements that relate to:
 - (i) the accuracy of billing of customers of carriage service providers in relation to the supply of standard telephone services; or
 - (ii) the quality of standard telephone services; or
 - (iii) a matter specified in the regulations.
- (3) The rule in subsection (1) does not apply to an industry code or an industry standard to the extent (if any) to which the code or standard deals with a matter referred to in paragraph 113(3)(f) or (t).
- (4) The rule in subsection (1) does not apply to an industry code made for the purposes of Division 2AA of Part V of the *Copyright Act 1968*.
- (5) The rule in subsection (1) does not apply to an industry code or an industry standard to the extent (if any) to which compliance with the code or standard is likely to have the effect (whether direct or indirect) of requiring:
- (a) optical fibre lines; or
 - (b) facilities used, or for use, in or in connection with optical fibre lines; to:
 - (c) have particular design features; or
 - (d) meet particular performance requirements.

116 Industry codes and industry standards not to deal with matters dealt with by codes and standards under Part 9 of the Broadcasting Services Act

For the purposes of this Part, an industry code or an industry standard that deals with a matter relating to a content service has no effect to the extent (if any) to which the matter is dealt with by a code registered, or standard determined, under Part 9 of the *Broadcasting Services Act 1992*.

116A Industry codes and standards do not affect *Privacy Act 1988*

Neither an industry code nor an industry standard derogates from a requirement made by or under the *Privacy Act 1988* or a registered APP code (as defined in that Act).

Division 4—Industry codes

117 Registration of industry codes

(1) This section applies if:

- (a) the ACMA is satisfied that a body or association represents a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry; and
- (b) that body or association develops an industry code that applies to participants in that section of the industry and deals with one or more matters relating to the telecommunications activities, telemarketing activities or fax marketing activities, as the case may be, of those participants; and
- (c) the body or association gives a copy of the code to the ACMA; and
- (d) the ACMA is satisfied that:
 - (i) in a case where the code deals with matters of substantial relevance to the community—the code provides appropriate community safeguards for the matters covered by the code; or
 - (ii) in a case where the code does not deal with matters of substantial relevance to the community—the code deals with the matters covered by the code in an appropriate manner; and
- (e) the ACMA is satisfied that, before giving the copy of the code to the ACMA:
 - (i) the body or association published a draft of the code on its website, and invited participants in that section of the industry to make submissions to the body or association about the draft within a specified period; and
 - (ii) the body or association gave consideration to any submissions that were received from participants in that section of the industry within that period; and
 - (iii) the body or association complied with the section 119B publication requirements in relation to any submissions that were received from participants in that section of the industry within that period; and
- (f) the ACMA is satisfied that, before giving the copy of the code to the ACMA:
 - (i) the body or association published a draft of the code on its website, and invited members of the public to make submissions to the body or association about the draft within a specified period; and
 - (ii) the body or association gave consideration to any submissions that were received from members of the public within that period; and
 - (iii) the body or association complied with the section 119B publication requirements in relation to any submissions that were received from members of the public within that period; and
- (g) the ACMA is satisfied that the ACCC has been consulted about the development of the code; and
- (h) except in a case where:

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- (i) the code applies to participants in a section of the telemarketing industry and deals with one or more matters relating to the telemarketing activities of those participants; or
- (ii) the code applies to participants in a section of the fax marketing industry and deals with one or more matters relating to the fax marketing activities of those participants;
- the ACMA is satisfied that the Telecommunications Industry Ombudsman has been consulted about the development of the code; and
- (i) the ACMA is satisfied that at least one body or association that represents the interests of consumers has been consulted about the development of the code; and
- (j) in a case where the code deals with a matter set out in paragraph 113(3)(f)—the ACMA is satisfied that the Information Commissioner has been consulted by the body or association about the development of the code before the body or association gave the copy of the code to the ACMA; and
- (k) the ACMA has consulted the Information Commissioner about the code and consequently believes that he or she is satisfied with the code, if the code deals directly or indirectly with a matter dealt with by:
- (i) the Australian Privacy Principles; or
- (ii) other provisions of the *Privacy Act 1988* that relate to those principles; or
- (iii) a registered APP code (as defined in that Act) that binds a participant in that section of the telecommunications industry, the telemarketing industry or the fax marketing industry; or
- (iv) provisions of that Act that relate to the registered APP code
- (2) The ACMA must register the code by including it in the Register of industry codes kept under section 136.
- (3) A period specified under subparagraph (1)(e)(i) or (1)(f)(i) must run for at least 30 days.
- (4) If:
- (a) an industry code (the *new code*) is registered under this Part; and
- (b) the new code is expressed to replace another industry code;
- the other code ceases to be registered under this Part when the new code is registered.
- Note: An industry code also ceases to be registered when it is removed from the Register of industry codes under section 122A.

118 ACMA may request codes

- (1) If the ACMA is satisfied that a body or association represents a particular section of the telecommunications industry, the telemarketing industry or the fax

marketing industry, the ACMA may, by written notice given to the body or association, request the body or association to:

- (a) develop an industry code that applies to participants in that section of the industry and deals with one or more specified matters relating to the telecommunications activities, telemarketing activities or fax marketing activities, as the case may be, of those participants; and
- (b) give the ACMA a copy of the code within the period specified in the notice.

Note: The ACMA may request the body or association to develop the industry code to replace an earlier industry code that the Information Commissioner (exercising functions under the *Privacy Act 1988*) has advised the ACMA is inconsistent with the Australian Privacy Principles or a relevant registered APP code (as defined in that Act).

(2) The period specified in a notice under subsection (1) must run for at least 120 days.

(3) The ACMA must not make a request under subsection (1) in relation to a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry unless the ACMA is satisfied that:

- (a) the development of the code is necessary or convenient in order to:
 - (i) provide appropriate community safeguards; or
 - (ii) otherwise deal with the performance or conduct of participants in that section of the industry; and
- (b) in the absence of the request, it is unlikely that an industry code would be developed within a reasonable period.

(4) The ACMA must not make a request under subsection (1) in relation to a code if:

- (a) the code would deal with a matter referred to in paragraph 113(3)(f) (which relates to privacy); and
- (b) compliance with the code would be likely to have the effect (whether direct or indirect) of requiring customer equipment, customer cabling, a telecommunications network or a facility:
 - (i) to have particular design features; or
 - (ii) to meet particular performance requirements.

However, this rule does not apply if the ACMA is satisfied that the benefits to the community from the operation of the code would outweigh the costs of compliance with the code.

(4AA) The rule in subsection (4) does not apply to a code to the extent (if any) to which compliance with the code is likely to have the effect (whether direct or indirect) of requiring:

- (a) optical fibre lines; or
 - (b) facilities used, or for use, in or in connection with optical fibre lines;
- to:
- (c) have particular design features; or
 - (d) meet particular performance requirements.

(4A) The ACMA must consult the Information Commissioner before making a request under subsection (1) for the development of an industry code that could reasonably be expected to deal directly or indirectly with a matter dealt with by:

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- (a) the Australian Privacy Principles; or
 - (b) other provisions of the *Privacy Act 1988* relating to those principles; or
 - (c) a registered APP code (as defined in that Act) that binds one or more participants in the section of the telecommunications industry, the telemarketing industry or the fax marketing industry to which the request relates; or
 - (d) provisions of that Act that relate to the registered APP code.

(5) The ACMA may vary a notice under subsection (1) by extending the period specified in the notice.

(6) Subsection (5) does not, by implication, limit the application of subsection 33(3) of the *Acts Interpretation Act 1901*.

(7) A notice under subsection (1) may specify indicative targets for achieving progress in the development of the code (for example, a target of 60 days to develop a preliminary draft of the code).

119 Publication of notice where no body or association represents a section of the telecommunications industry, the telemarketing industry or the fax marketing industry

(1) If the ACMA is satisfied that a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry is not represented by a body or association, the ACMA may publish a notice in the *Gazette*:

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- (a) stating that, if such a body or association were to come into existence within a specified period, the ACMA would be likely to give a notice to that body or association under subsection 118(1); and
 - (b) setting out the matter or matters relating to telecommunications activities, telemarketing activities or fax marketing activities, as the case may be, that would be likely to be specified in the subsection 118(1) notice.

(2) The period specified in a notice under subsection (1) must run for at least 60 days.

119A Variation of industry codes

Scope

(1) This section applies if:

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- (a) an industry code is registered under this Part; and
 - (b) the code:
 - (i) applies to participants in a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry; and

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- (ii) deals with one or more matters relating to the telecommunications activities, telemarketing activities or fax marketing activities, as the case may be, of those participants; and
 - (c) the body or association that developed the code gives a draft variation of the code to the ACMA; and
 - (d) disregarding any provisions of the code that are not affected (whether directly or indirectly) by the variation, the ACMA is satisfied that:
 - (i) in a case where the code (as proposed to be varied) deals with matters of substantial relevance to the community—the code (as proposed to be varied) provides appropriate community safeguards for the matters covered by the code (as proposed to be varied); or
 - (ii) in a case where the code (as proposed to be varied) does not deal with matters of substantial relevance to the community—the code (as proposed to be varied) deals with the matters covered by the code (as proposed to be varied) in an appropriate manner; and
 - (e) except in a case where the draft variation is of a minor nature—the ACMA is satisfied that, before giving the copy of the draft variation to the ACMA:
 - (i) the body or association published the draft variation on its website and invited participants in that section of the industry to make submissions to the body or association about the draft variation within a specified period; and
 - (ii) the body or association gave consideration to any submissions that were received from participants in that section of the industry within that period; and
 - (iii) the body or association complied with the section 119B publication requirements in relation to any submissions that were received from participants in that section of the industry within that period; and
 - (f) except in a case where the draft variation is of a minor nature—the ACMA is satisfied that, before giving the copy of the draft variation to the ACMA:
 - (i) the body or association published the draft variation on its website and invited members of the public to make submissions to the body or association about the draft variation within a specified period; and
 - (ii) the body or association gave consideration to any submissions that were received from members of the public within that period; and
 - (iii) the body or association complied with the section 119B publication requirements in relation to any submissions that were received from members of the public within that period; and
 - (g) the ACMA is satisfied that the ACCC has been consulted about the development of the draft variation; and
 - (h) except in a case where:
 - (i) the code (as proposed to be varied) applies to participants in a section of the telemarketing industry and deals with one or more matters relating to the telemarketing activities of those participants; or
 - (ii) the code (as proposed to be varied) applies to participants in a section of the fax marketing industry and deals with one or more matters relating to the fax marketing activities of those participants;
- the ACMA is satisfied that the Telecommunications Industry Ombudsman has been consulted about the development of the draft variation; and
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- (i) the ACMA is satisfied that at least one body or association that represents the interests of consumers has been consulted about the development of the draft variation; and
 - (j) in a case where the draft variation deals with a matter set out in paragraph 113(3)(f)—the ACMA is satisfied that the Information Commissioner has been consulted by the body or association about the development of the draft variation before the body or association gave the copy of the draft variation to the ACMA; and
 - (k) the ACMA has consulted the Information Commissioner about the draft variation and consequently believes that he or she is satisfied with the draft variation, if the draft variation deals directly or indirectly with a matter dealt with by:
 - (i) the Australian Privacy Principles; or
 - (ii) other provisions of that Act that relate to those Principles; or
 - (iii) an approved privacy code (as defined in that Act) that binds a participant in that section of the telecommunications industry, the telemarketing industry or the fax marketing industry; or
 - (iv) provisions of that Act that relate to the approved privacy code.

Approval of variation

- (2) The ACMA must, by written notice given to the body or association, approve the draft variation.
- (3) If the ACMA approves the draft variation, the code is varied accordingly.

Period for making submissions

- (4) A period specified under subparagraph (1)(e)(i) or (1)(f)(i) must run for at least 30 days.

119B Publication requirements for submissions

- (1) This section sets out the publication requirements that apply to submissions that:
 - (a) are about a particular draft; and
 - (b) were received by a body or association as mentioned in:
 - (i) subparagraph 117(1)(e)(iii); or
 - (ii) subparagraph 117(1)(f)(iii); or
 - (iii) subparagraph 119A(1)(e)(iii); or
 - (iv) subparagraph 119A(1)(f)(iii).

Publication of submissions

- (2) The body or association must publish those submissions on its website.
- (3) Subsection (2) has effect subject to subsections (4) and (6).

Confidential or commercially sensitive material

(4) If:

- (a) a submission made by a person consists wholly or partly of material that is claimed by the person to be confidential or commercially sensitive; and
- (b) the person has requested the body or association not to publish the material; and
- (c) the body or association is satisfied that the material is confidential or commercially sensitive;

then:

- (d) if the submission consists wholly of the material—the body or association is not required to publish the submission on its website; or

(e) if:

- (i) the submission consists partly of the material; and
- (ii) it is practicable for the body or association to remove the material from the submission;

the body or association may remove the material from the submission before publishing the submission on its website; or

(f) if:

- (i) the submission consists partly of the material; and
- (ii) it is not practicable for the body or association to remove the material from the submission;

the body or association is not required to publish the submission on its website.

- (5) If, under subsection (4), the body or association removes material from a submission before publishing the submission on its website, the body or association must publish on its website a statement to the effect that confidential or commercially sensitive material in the submission has not been published.

Defamatory material

- (6) If the body or association considers that a submission consists wholly or partly of material that is, or is likely to be, defamatory:

- (a) if the submission consists wholly of the material—the body or association is not required to publish the submission on its website; or

(b) if:

- (i) the submission consists partly of the material; and
- (ii) it is practicable for the body or association to remove the material from the submission;

the body or association may remove the material from the submission before publishing the submission on its website; or

(c) if:

- (i) the submission consists partly of the material; and
- (ii) it is not practicable for the body or association to remove the material from the submission;

the body or association is not required to publish the submission on its website.

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- (7) If, under subsection (6), the body or association removes material from a submission before publishing the submission on its website, the body or association must publish on its website a statement to the effect that material in the submission has not been published on the grounds that the material is, or is likely to be, defamatory.

Statistical statement

- (8) The body or association must publish on its website a statement that sets out:
- (a) the total number of those submissions; and
 - (b) if a number of those submissions have not been published, or have been published in a modified form, because of subsection (4) or (6)—that number.

120 Replacement of industry codes

Changes to an industry code may be achieved by replacing the code instead of varying the code. However, this does not prevent the ACMA from removing under section 122A an industry code, or a provision of an industry code, from the Register of industry codes kept under this Part.

121 Directions about compliance with industry codes

(1) If:

- (a) a person is a participant in a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry; and
- (b) the ACMA is satisfied that the person has contravened or is contravening an industry code that:
 - (i) is registered under this Part; and
 - (ii) applies to participants in that section of the industry;

the ACMA may, by written notice given to the person, direct the person to comply with the industry code.

- (1A) If the ACMA is satisfied that the contravention of the industry code relates directly or indirectly to a matter dealt with by the Australian Privacy Principles or by a registered APP code (within the meaning of the *Privacy Act 1988*), the ACMA must consult the Information Commissioner before giving the direction.

(1B) If:

- (a) at a time when an industry code (the *original code*) was registered under this Part, a direction could have been given to a person under subsection (1) in respect of the original code; and
- (b) the original code has been replaced by another code that is registered under this Part; and
- (c) the person could have been given a direction under subsection (1) in respect of the replacement code, if the conduct concerned had occurred after the replacement code was registered;

then, during the period when the replacement code is registered under this Part, the person may be given a direction under subsection (1) in respect of the replacement code.

(2) A person must comply with a direction under subsection (1).

(3) A person must not:

(a) aid, abet, counsel or procure a contravention of subsection (2); or

(b) induce, whether by threats or promises or otherwise, a contravention of subsection (2); or

(c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (2); or

(d) conspire with others to effect a contravention of subsection (2).

(4) Subsections (2) and (3) are *civil penalty provisions*.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

(5) A direction under subsection (1) is not a legislative instrument.

122 Formal warnings—breach of industry codes

(1) This section applies to a person who is a participant in a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry.

(2) The ACMA may issue a formal warning if the person contravenes an industry code registered under this Part.

(3) If the ACMA is satisfied that the contravention of the industry code relates directly or indirectly to a matter dealt with by the Australian Privacy Principles or by a registered APP code (within the meaning of the *Privacy Act 1988*), the ACMA must consult the Information Commissioner before issuing the warning.

(4) If:

(a) at a time when an industry code (the *original code*) was registered under this Part, a formal warning could have been given to a person under subsection (2) in respect of the original code; and

(b) the original code has been replaced by another code that is registered under this Part; and

(c) the person could have been given a formal warning under subsection (2) in respect of the replacement code, if the conduct concerned had occurred after the replacement code was registered;

then, during the period when the replacement code is registered under this Part, the person may be given a formal warning under subsection (2) in respect of the replacement code.

122A De-registering industry codes and provisions of industry codes

(1) The ACMA may remove from the Register of industry codes kept under section 136:

(a) an industry code; or

(b) a provision of an industry code.

(2) An industry code ceases to be registered when it is removed from the Register.

(3) If the ACMA removes a provision of an industry code from the Register, this Part has effect in relation to things occurring after the removal of the provision as if the code registered under this Part did not include the provision removed.

Division 5—Industry standards

123 ACMA may determine an industry standard if a request for an industry code is not complied with

- (1) This section applies if:
- (a) the ACMA has made a request under subsection 118(1) in relation to the development of a code that is to:
 - (i) apply to participants in a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry; and
 - (ii) deal with one or more matters relating to the telecommunications activities, telemarketing activities or fax marketing activities, as the case may be, of those participants; and
 - (b) any of the following conditions is satisfied:
 - (i) the request is not complied with;
 - (ii) if indicative targets for achieving progress in the development of the code were specified in the notice of request—any of those indicative targets were not met;
 - (iii) the request is complied with, but the ACMA subsequently refuses to register the code; and
 - (c) the ACMA is satisfied that it is necessary or convenient for the ACMA to determine a standard in order to:
 - (i) provide appropriate community safeguards in relation to that matter or those matters; or
 - (ii) otherwise regulate adequately participants in that section of the industry in relation to that matter or those matters.
- (2) The ACMA may, by legislative instrument, determine a standard that applies to participants in that section of the industry and deals with that matter or those matters. A standard under this subsection is to be known as an ***industry standard***.
- (3) Before determining an industry standard under this section, the ACMA must consult the body or association to whom the request mentioned in paragraph (1)(a) was made.

124 ACMA may determine industry standard where no industry body or association formed

- (1) This section applies if:
- (a) the ACMA is satisfied that a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry is not represented by a body or association; and
 - (b) the ACMA has published a notice under subsection 119(1) relating to that section of the industry; and
 - (c) that notice:

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- (i) states that, if such a body or association were to come into existence within a particular period, the ACMA would be likely to give a notice to that body or association under subsection 118(1); and
 - (ii) sets out one or more matters relating to the telecommunications activities, telemarketing activities or fax marketing activities, as the case may be, of the participants in that section of the industry; and
 - (d) no such body or association comes into existence within that period; and
 - (e) the ACMA is satisfied that it is necessary or convenient for the ACMA to determine a standard in order to:
 - (i) provide appropriate community safeguards in relation to that matter or those matters; or
 - (ii) otherwise regulate adequately participants in that section of the industry in relation to that matter or those matters.
- (2) The ACMA may, by legislative instrument, determine a standard that applies to participants in that section of the industry and deals with that matter or those matters. A standard under this subsection is to be known as an **industry standard**.

125 ACMA may determine industry standards where industry codes fail

- (1) This section applies if:
- (a) an industry code that:
 - (i) applies to participants in a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry; and
 - (ii) deals with one or more matters relating to the telecommunications activities, telemarketing activities or fax marketing activities, as the case may be, of those participants;
 - has been registered under this Part for at least 180 days; and
 - (b) the ACMA is satisfied that the code is deficient (as defined by subsection (7)); and
 - (c) the ACMA has given the body or association that developed the code a written notice requesting that deficiencies in the code be addressed within a specified period; and
 - (d) that period ends and the ACMA is satisfied that it is necessary or convenient for the ACMA to determine a standard that applies to participants in that section of the industry and deals with that matter or those matters.
- (2) The period specified in a notice under paragraph (1)(c) must run for at least 30 days.
- (3) The ACMA may, by legislative instrument, determine a standard that applies to participants in that section of the industry and deals with that matter or those

matters. A standard under this subsection is to be known as an **industry standard**.

- (4) If the ACMA is satisfied that a body or association represents that section of the industry, the ACMA must consult the body or association before determining an industry standard under subsection (3).
- (6) The industry code ceases to be registered under this Part on the day on which the industry standard comes into force.
- (7) For the purposes of this section, an industry code that applies to participants in a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry and deals with one or more matters relating to the telecommunications activities, telemarketing activities or fax marketing activities, as the case may be, of those participants is **deficient** if, and only if:
 - (a) the code is not operating to provide appropriate community safeguards in relation to that matter or those matters; or
 - (b) the code is not otherwise operating to regulate adequately participants in that section of the industry in relation to that matter or those matters.

125AA ACMA must determine an industry standard if directed by the Minister

- (1) The ACMA may, by legislative instrument, determine a standard that:
 - (a) applies to participants in a particular section of the telecommunications industry; and
 - (b) deals with one or more matters relating to the telecommunications activities of those participants.

Note 1: For examples of matters that may be dealt with by industry standards, see section 113.

Note 2: For variation and revocation, see subsection 33(3) of the *Acts Interpretation Act 1901*.

- (2) A standard under subsection (1) is to be known as an **industry standard**.
- (3) If the ACMA is satisfied that a body or association represents that section of the telecommunications industry, the ACMA must consult the body or association before determining a standard under subsection (1).
- (4) The Minister may, in writing, direct the ACMA to:
 - (a) determine a standard under subsection (1) that:
 - (i) applies to participants in a specified section of the telecommunications industry; and
 - (ii) deals with one or more specified matters relating to the telecommunications activities of those participants; and
 - (b) do so within a specified period.
- (5) The ACMA must not determine a standard under subsection (1) unless it does so in accordance with a direction under subsection (4).

125A ACMA must determine certain industry standards relating to the telemarketing industry

- (1) Before the commencement of Part 2 of the *Do Not Call Register Act 2006*, the ACMA must, by legislative instrument, determine a standard that:
- (a) applies to participants in each section of the telemarketing industry; and
 - (b) deals with the following matters relating to the telemarketing activities of those participants:
 - (i) restricting the hours and/or days during which telemarketing calls may be made or attempted to be made;
 - (ii) requiring that a telemarketing call must contain specified information about the relevant participant;
 - (iii) requiring that, if a person other than the relevant participant caused a telemarketing call to be made, the call must contain specified information about the person who caused the call to be made;
 - (iv) requiring the relevant participant to terminate a telemarketing call if a specified event happens;
 - (v) requiring the relevant participant to ensure that calling line identification is enabled in respect of the making of a telemarketing call; and
 - (c) is expressed to commence at the same time as the commencement of Part 2 of the *Do Not Call Register Act 2006*.
- (2) A standard under subsection (1) is to be known as an *industry standard*.
- (3) If the ACMA is satisfied that a body or association represents a section of the telemarketing industry, the ACMA must consult the body or association before determining a standard under subsection (1).
- (4) The ACMA must ensure that a standard is in force under subsection (1) at all times after the commencement of Part 2 of the *Do Not Call Register Act 2006*.

125B ACMA must determine certain industry standards relating to the fax marketing industry

- (1) The ACMA may, by legislative instrument, determine a standard that:
- (a) applies to participants in each section of the fax marketing industry; and
 - (b) deals with the following matters relating to the fax marketing activities of those participants:
 - (i) restricting the hours and/or days during which marketing faxes may be sent, or attempted to be sent, to an Australian number;
 - (ii) requiring that a marketing fax sent to an Australian number must contain specified information about the person who authorised the sending of the fax;

(iii) restricting the total number of marketing faxes sent, or attempted to be sent, by the relevant participant during a particular period to a particular Australian number;

(iv) requiring that, if a marketing fax sent to an Australian number is authorised by a particular person (the *authorising person*), the fax must contain information about how the recipient of the fax may send a message to the effect that the recipient does not want to receive any marketing faxes authorised by the authorising person.

Note: For variation and revocation, see subsection 33(3) of the *Acts Interpretation Act 1901*.

(2) A standard under subsection (1) is to be known as an *industry standard*.

(3) If the ACMA is satisfied that a body or association represents a section of the fax marketing industry, the ACMA must consult the body or association before determining a standard under subsection (1).

(4) The ACMA must ensure that a standard is in force under subsection (1) at all times after the commencement of this section.

(5) For the purposes of this section, *authorise*, when used in relation to a marketing fax, has the same meaning as in the *Do Not Call Register Act 2006*.

126 Industry standards not to be determined for certain privacy matters

The ACMA must not determine an industry standard if:

(a) the standard would deal with a matter referred to in paragraph 113(3)(f) (which relates to privacy); and

(b) compliance with the standard would be likely to have the effect (whether direct or indirect) of requiring customer equipment, customer cabling, a telecommunications network or a facility:

(i) to have particular design features; or

(ii) to meet particular performance requirements.

However, this rule does not apply if the ACMA is satisfied that the benefits to the community from the operation of the standard would outweigh the costs of compliance with the standard.

128 Compliance with industry standards

(1) If an industry standard that applies to participants in a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry is registered under this Part, each participant in that section of the industry must comply with the standard.

(2) A person must not:

(a) aid, abet, counsel or procure a contravention of subsection (1); or

(b) induce, whether by threats or promises or otherwise, a contravention of subsection (1); or

(c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (1); or

(d) conspire with others to effect a contravention of subsection (1).

(3) Subsections (1) and (2) are *civil penalty provisions*.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

129 Formal warnings—breach of industry standards

(1) This section applies to a person who is a participant in a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry.

(2) The ACMA may issue a formal warning if the person contravenes an industry standard registered under this Part.

130 Variation of industry standards

The ACMA may, by legislative instrument, vary an industry standard that applies to participants in a particular section of the telecommunications industry, the telemarketing industry or the fax marketing industry if it is satisfied that it is necessary or convenient to do so to:

(a) provide appropriate community safeguards in relation to one or more matters relating to the telecommunications activities, telemarketing activities or fax marketing activities, as the case may be, of those participants; and

(b) otherwise regulate adequately those participants in relation to one or more matters relating to the telecommunications activities, telemarketing activities or fax marketing activities, as the case may be, of those participants.

Note: The ACMA may be satisfied that it is necessary or convenient to vary an industry standard that is inconsistent with the Australian Privacy Principles or a registered APP code (as defined in the *Privacy Act 1988*), following advice given by the Information Commissioner in the exercise of his or her functions under that Act.

131 Revocation of industry standards

(1) The ACMA may, by legislative instrument, revoke an industry standard.

(2) If:

(a) an industry code is registered under this Part; and

(b) the code is expressed to replace an industry standard;

the industry standard is revoked when the code is registered.

132 Public consultation on industry standards

(1) Before determining or varying an industry standard, the ACMA must:

(a) cause to be published in a newspaper circulating in each State a notice:

(i) stating that the ACMA has prepared a draft of the industry standard or variation; and

(ii) stating that free copies of the draft will be made available to members of the public during normal office hours throughout the period specified in the notice; and

(iii) specifying the place or places where the copies will be available; and

(iv) inviting interested persons to give written comments about the draft to the ACMA within the period specified under subparagraph (ii); and

(b) make copies of the draft available in accordance with the notice.

(2) The period specified under subparagraph (1)(a)(ii) must run for at least 30 days after the publication of the notice.

(3) Subsection (1) does not apply to a variation if the variation is of a minor nature.

(4) If interested persons have given comments in accordance with a notice under subsection (1), the ACMA must have due regard to those comments in determining or varying the industry standard, as the case may be.

(5) In this section:

State includes the Northern Territory and the Australian Capital Territory.

133 Consultation with ACCC and the Telecommunications Industry Ombudsman

(1) Before determining or varying an industry standard, the ACMA must consult the ACCC.

(1A) Before determining or varying an industry standard (other than an industry standard under section 125A or 125B), the ACMA must consult the Telecommunications Industry Ombudsman.

(2) Before revoking an industry standard under subsection 131(1), the ACMA must consult the ACCC and the Telecommunications Industry Ombudsman.

134 Consultation with Information Commissioner

(1) This section applies to an industry standard that deals with a matter set out in paragraph 113(3)(f), including a matter dealt with by:

(a) the Australian Privacy Principles; or

(b) other provisions of the *Privacy Act 1988* relating to those principles; or

(c) a registered APP code (as defined in that Act); or

(d) provisions of that Act that relate to a registered APP code.

(2) Before determining or varying the industry standard, the ACMA must consult the Information Commissioner.

(3) Before revoking the industry standard under subsection 131(1), the ACMA must consult the Information Commissioner.

135 Consultation with consumer body

(1) Before determining or varying an industry standard, the ACMA must consult at least one body or association that represents the interests of consumers.

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- (2) Before revoking an industry standard under subsection 131(1), the ACMA must consult at least one body or association that represents the interests of consumers.

135A Consultation with the States and Territories

Before determining or varying an industry standard under section 125A or 125B, the ACMA must consult:

- (a) each State; and
- (b) the Australian Capital Territory; and
- (c) the Northern Territory.

Division 6—Register of industry codes and industry standards

136 ACMA to maintain Register of industry codes and industry standards

- (1) The ACMA is to maintain a Register in which the ACMA includes:
- (a) all industry codes required to be registered under this Part, as those codes are in force from time to time; and
 - (b) all industry standards; and
 - (c) all requests made under section 118; and
 - (d) all notices under section 119; and
 - (e) all directions given under section 121.
- (1A) Paragraph (1)(a) does not require the ACMA to continue to include in the Register an industry code, or a provision of an industry code, removed from the Register under section 122A.
- (2) The Register may be maintained by electronic means.
- (3) A person may, on payment of the charge (if any) fixed by a determination under section 60 of the *Australian Communications and Media Authority Act 2005*:
- (a) inspect the Register; and
 - (b) make a copy of, or take extracts from, the Register.
- (4) For the purposes of this section, if the Register is maintained by electronic means, a person is taken to have made a copy of, or taken an extract from, the Register if the ACMA gives the person a printout of, or of the relevant parts of, the Register.
- (5) If a person requests that a copy be provided in an electronic form, the ACMA may provide the relevant information:
- (a) on a data processing device; or
 - (b) by way of electronic transmission.

Division 6A—Reimbursement of costs of development or variation of consumer-related industry codes

136A Application for eligibility for reimbursement of costs of development or variation of consumer-related industry code

(1) If a body or association proposes to develop or vary an industry code that:

(a) applies to participants in a particular section of the telecommunications industry; and

(b) deals with one or more matters relating to the telecommunications activities of those participants; and

(c) deals wholly or mainly with one or more matters relating to the relationship between carriage service providers and their retail customers;

the body or association may apply to the ACMA for a declaration that the body or association is eligible for reimbursement of refundable costs incurred by it in developing the code or varying the code, as the case may be.

Note: For *refundable cost*, see section 136E.

Form of application etc.

(2) An application must be:

(a) in writing; and

(b) in accordance with the form approved in writing by the ACMA; and

(c) accompanied by:

(i) an estimate of the total of the refundable costs likely to be incurred by the body or association in developing the code or varying the code, as the case may be; and

(ii) a statement breaking down that estimate into categories of refundable costs.

Further information

(3) The ACMA may, within 20 business days after an application is made, request the applicant to give the ACMA, within the period specified in the request, further information about the application.

(4) The ACMA may refuse to consider the application until the applicant gives the ACMA the information.

Definition

(5) In this section:

business day means a day on which the ACMA is open for business in the Australian Capital Territory and in Victoria.

136B Declaration of eligibility for reimbursement of costs of development or variation of consumer-related industry code

Development of code

- (1) If a body or association makes an application under subsection 136A(1) for a declaration in relation to the development of a code, the ACMA must make the declaration if it is satisfied that:
- (a) the body or association represents the section of the telecommunications industry referred to in paragraph 136A(1)(a); and
 - (b) the code will deal wholly or mainly with one or more matters relating to the relationship between carriage service providers and their retail customers; and
 - (c) the process for developing the code, as outlined in the application, is likely to ensure that the interests of those retail customers are adequately represented in relation to the development of the code; and
 - (d) the total of the refundable costs likely to be incurred by the body or association in developing the code, as set out in the estimate that accompanied the application, is reasonable.

- (2) If the ACMA is not satisfied as to the matters set out in subsection (1), the ACMA must, by written notice given to the applicant, refuse to make the declaration.

Variation of code

- (2A) If a body or association makes an application under subsection 136A(1) for a declaration in relation to the variation of a code, the ACMA must make the declaration if it is satisfied that:
- (a) the body or association represents the section of the telecommunications industry referred to in paragraph 136A(1)(a); and
 - (b) the code is registered under this Part; and
 - (c) the code deals wholly or mainly with one or more matters relating to the relationship between carriage service providers and their retail customers; and
 - (d) the process for varying the code, as outlined in the application, is likely to ensure that the interests of those retail customers are adequately represented in relation to the variation of the code; and
 - (e) the total of the refundable costs likely to be incurred by the body or association in varying the code, as set out in the estimate that accompanied the application, is reasonable.

- (2B) If the ACMA is not satisfied as to the matters set out in subsection (2A), the ACMA must, by written notice given to the applicant, refuse to make the declaration.

General provisions

- (3) A declaration under this section is irrevocable, and remains in force for 2 years.
- (4) A declaration under this section is not a legislative instrument.

136C Reimbursement of costs of developing or varying consumer-related industry code

Reimbursement of costs—development of code

(1) If:

- (a) a section 136B declaration was made in relation to the development of an industry code by a body or association; and
 - (b) when the section 136B declaration was in force, the body or association gave a copy of the code to the ACMA under section 117; and
 - (c) the ACMA is satisfied that the code deals wholly or mainly with one or more matters relating to the relationship between carriage service providers and their retail customers; and
 - (d) the ACMA is satisfied that the process for the development of the code ensured that the interests of those retail customers were adequately represented in relation to the development of the code; and
 - (e) the copy of the code was accompanied by:
 - (i) a written statement itemising one or more costs incurred by the body or association in developing the code; and
 - (ii) a written claim for reimbursement of those costs; and
 - (iii) a written declaration by an approved auditor that he or she is of the opinion that the subparagraph (i) statement complies with the approved auditing requirements; and
 - (iv) a written statement describing the process for the development of the code; and
 - (f) the ACMA is satisfied that each of the costs itemised in the subparagraph (e)(i) statement:
 - (i) is a refundable cost incurred by the body or association in developing the code; and
 - (ii) was incurred when the section 136B declaration was in force;
- the ACMA must, by written notice given to the body or association, determine that the body or association is entitled to be paid a specified amount.

Note: For *refundable cost*, see section 136E.

(2) The specified amount must be equal to whichever is the lesser of the following:

- (a) the total of the costs itemised in the subparagraph (1)(e)(i) statement;
- (b) the estimate that accompanied the application for the section 136B declaration.

(3) The ACMA, on behalf of the Commonwealth, must pay the specified amount to the body or association within 30 days after the day on which the body or association was notified under subsection (1) of its entitlement to be paid that amount.

Reimbursement of costs—variation of code

(3A) If:

- (a) a section 136B declaration was made in relation to the variation of an industry code by a body or association; and
 - (b) when the section 136B declaration was in force, the body or association gave a copy of the variation to the ACMA under section 119A; and
 - (c) the ACMA is satisfied that the code deals wholly or mainly with one or more matters relating to the relationship between carriage service providers and their retail customers; and
 - (d) the ACMA is satisfied that the process for the variation of the code ensured that the interests of those retail customers were adequately represented in relation to the variation of the code; and
 - (e) the copy of the variation was accompanied by:
 - (i) a written statement itemising one or more costs incurred by the body or association in varying the code; and
 - (ii) a written claim for reimbursement of those costs; and
 - (iii) a written declaration by an approved auditor that he or she is of the opinion that the subparagraph (i) statement complies with the approved auditing requirements; and
 - (iv) a written statement describing the process for the variation of the code; and
 - (f) the ACMA is satisfied that each of the costs itemised in the subparagraph (e)(i) statement:
 - (i) is a refundable cost incurred by the body or association in varying the code; and
 - (ii) was incurred when the section 136B declaration was in force;
- the ACMA must, by written notice given to the body or association, determine that the body or association is entitled to be paid a specified amount.

Note: For **refundable cost**, see section 136E.

(3B) The specified amount must be equal to whichever is the lesser of the following:

- (a) the total of the costs itemised in the subparagraph (3A)(e)(i) statement;
- (b) the estimate that accompanied the application for the section 136B declaration.

(3C) The ACMA, on behalf of the Commonwealth, must pay the specified amount to the body or association within 30 days after the day on which the body or association was notified under subsection (3A) of its entitlement to be paid that amount.

Appropriation

(4) The Consolidated Revenue Fund is appropriated for payments under this section.

Approved auditors and approved auditing requirements

(5) The ACMA may make a written determination specifying:

- (a) the persons who are to be **approved auditors** for the purposes of this section; and

(b) the requirements that are to be ***approved auditing requirements*** for the purposes of this section.

Note: For specification by class, see subsection 13(3) of the *Legislation Act 2003*.

(6) A determination under subsection (5) has effect accordingly.

(7) A determination under subsection (5) is a legislative instrument.

136D Costs—transactions between persons not at arm's length

If:

(a) a body or association has incurred a cost in connection with a transaction where the parties to the transaction are not dealing with each other at arm's length in relation to the transaction; and

(b) apart from this section, the cost is counted for the purposes of the application of this Division to the body or association; and

(c) the amount of the cost is greater than is reasonable;

the amount of the cost is taken, for the purposes of the application of this Division in relation to the body or association, to be the amount that would have been reasonable if the parties were dealing with each other at arm's length.

136E Refundable cost

(1) For the purposes of this Division, a ***refundable cost*** incurred by a body or association in developing or varying a code is a cost incurred by the body or association in developing the code or varying the code, as the case may be, other than a cost specified in a written determination made by the ACMA under this subsection.

Note: For specification by class, see subsection 13(3) of the *Legislation Act 2003*.

(2) A determination under subsection (1) is a legislative instrument.

Division 7—Miscellaneous

137 Protection from civil proceedings

Civil proceedings do not lie against:

- (a) an internet service provider; or
- (b) an electronic messaging service provider;

in respect of anything done by the provider in connection with:

- (c) an industry code registered under this Part; or
- (d) an industry standard;

in so far as the code or standard deals with the procedures referred to in paragraph 113(3)(q).

138 Implied freedom of political communication

This Part does not apply to the extent (if any) that it would infringe any constitutional doctrine of implied freedom of political communication.

139 Agreements for the carrying on of telemarketing activities or fax marketing activities must require compliance with this Part

- (1) A person (the *first person*) must not enter into a contract or arrangement, or arrive at an understanding, with another person, if:

- (a) under the contract, arrangement or understanding, the other person undertakes to carry on one or more telemarketing activities or fax marketing activities; and
- (b) the contract, arrangement or understanding does not contain an express provision to the effect that the other person will comply with this Part in relation to the telemarketing activities or fax marketing activities covered by the contract, arrangement or understanding.

Ancillary contraventions

- (2) A person must not:

- (a) aid, abet, counsel or procure a contravention of subsection (1); or
- (b) induce, whether by threats or promises or otherwise, a contravention of subsection (1); or
- (c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (1); or
- (d) conspire with others to effect a contravention of subsection (1).

Civil penalty provisions

- (3) Subsections (1) and (2) are *civil penalty provisions*.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

Validity of contracts, arrangements or understandings

- (4) A failure to comply with subsection (1) does not affect the validity of any contract, arrangement or understanding.

Part 8—Local access lines

Division 1—Introduction

142 Simplified outline of this Part

- A controller of a local access line (other than a line that is part of the infrastructure of the national broadband network) must not use the line to supply an eligible service to a person other than a carrier or a service provider, if:
 - (a) the line came into existence, or was upgraded, on or after the designated commencement date; and
 - (b) the line is used, or is proposed to be used, to supply a superfast carriage service wholly or principally to residential customers, or prospective residential customers, in Australia; and
 - (c) no functional separation undertaking is in force.
- A controller of a telecommunications network (other than the national broadband network) must not use a local access line to supply an eligible service to a person other than a carrier or a service provider, if:
 - (a) the line is part of the infrastructure of the network; and
 - (b) the network came into existence, or was upgraded, on or after 1 January 2011, but before the designated commencement date; and
 - (c) the network is used, or is proposed to be used, to supply a superfast carriage service wholly or principally to residential customers, or prospective residential customers, in Australia; and
 - (d) no functional separation undertaking is in force.

142A Definitions

In this Part:

alter, in relation to a telecommunications network or line, has a meaning affected by section 159.

associate has the meaning given by section 152.

business unit means a part of a corporation.

close proximity has a meaning affected by section 162.

corporation means a body corporate.

customer interface means an interface for the purposes of:

- (a) ordering; and
- (b) provisioning; and
- (c) billing; and
- (d) service activation; and

(e) fault rectification;

in relation to the supply of local access line services.

declared service has the same meaning as in Part XIC of the *Competition and Consumer Act 2010*.

designated carriage service has the meaning given by section 142BD.

designated commencement date means the date on which Schedule 2 to the *Telecommunications Legislation Amendment (Competition and Consumer) Act 2020* commences.

electricity supply body has the same meaning as in the *National Broadband Network Companies Act 2011*.

eligible service has the same meaning as in section 152AL of the *Competition and Consumer Act 2010*.

fixed-line carriage service means a carriage service that is supplied using a line to premises occupied or used by an end-user.

functional includes organisational.

functional separation undertaking means:

(a) a standard functional separation undertaking; or

(b) a joint functional separation undertaking.

fundamental provision of a functional separation undertaking has the meaning given by subsection 151A(9) or 151C(9).

gas supply body has the same meaning as in the *National Broadband Network Companies Act 2011*.

joint functional separation undertaking means an undertaking under section 151C.

local access line has the meaning given by section 158.

local access line service means an eligible service supplied using a local access line.

multi-unit building means:

(a) a building that has 2 or more units for occupation as a place of residence or business; or

(b) a building in a complex, where each building has 2 or more units for occupation as a place of residence or business.

national broadband network has the same meaning as in the *National Broadband Network Companies Act 2011*.

rail corporation has the same meaning as in the *National Broadband Network Companies Act 2011*.

residential customer has a meaning affected by section 161.

retail business unit of a corporation means a business unit by which the corporation deals with the corporation's retail customers in relation to the supply of local access line services.

retail customer means a customer other than a wholesale customer.

retailer, when used in relation to a joint functional separation undertaking, means a person identified in the undertaking as the retailer, or one of the retailers, for the purposes of the undertaking.

Note: See paragraph 151C(2)(a).

sewerage services body has the same meaning as in the *National Broadband Network Companies Act 2011*.

standard functional separation undertaking means an undertaking under section 151A.

State or Territory road authority has the same meaning as in the *National Broadband Network Companies Act 2011*.

storm water drainage services has the same meaning as in the *National Broadband Network Companies Act 2011*.

storm water drainage services body has the same meaning as in the *National Broadband Network Companies Act 2011*.

superfast carriage service means a carriage service, where:

- (a) the carriage service enables end-users to download communications; and
- (b) the download transmission speed of the carriage service is normally 25 megabits per second or more; and
- (c) the carriage service is supplied using a line to premises occupied or used by an end-user.

supply, in relation to a service, includes supply of the service by a corporation to itself. This definition does not apply to subsection 142C(2) or 143(2).

unsatisfactory compliance record has a meaning affected by section 142BC.

upgrade, in relation to a telecommunications network or line, has a meaning affected by section 160.

water supply body has the same meaning as in the *National Broadband Network Companies Act 2011*.

wholesale business unit of a corporation means a business unit by which the corporation deals with its wholesale customers, and its retail business unit, in relation to the supply of local access line services.

wholesale customer means a customer that is:

- (a) a carrier; or

(b) a service provider.

wholesaler, when used in relation to a joint functional separation undertaking, means a person identified in the undertaking as the wholesaler, or one of the wholesalers, for the purposes of the undertaking.

Note: See paragraph 151C(2)(a).

worker means an individual who is:

- (a) an employee; or
- (b) a contractor or subcontractor; or
- (c) an employee of a contractor or subcontractor.

142B Functional separation undertaking given by a person

A reference in this Part to a functional separation undertaking given by a person is a reference to a functional separation undertaking given by the person either:

- (a) alone; or
- (b) jointly with one or more other persons.

142BA Promotion of the long-term interests of end-users of carriage services and of services supplied by means of carriage services

For the purposes of this Part, the question whether a particular thing promotes the long-term interests of end-users of carriage services or of services supplied by means of carriage services is to be determined in the same manner as it is determined for the purposes of Part XIC of the *Competition and Consumer Act 2010*.

142BB Terms and conditions

For the purposes of this Part:

- (a) a notional contract (however described) between a corporation's business units is to be treated as if it were an actual contract; and
- (b) any terms and conditions (whether or not relating to price or a method of ascertaining price) in such a notional contract are to be treated as if they were actual terms and conditions.

142BC Unsatisfactory compliance record

For the purposes of this Part, the question of whether a person has an unsatisfactory compliance record in relation to functional separation is to be determined having regard only to:

- (a) any breaches by the person of functional separation undertakings given by the person, so long as the breaches occurred when the undertakings were in force; and

-
- (b) any contraventions by the person of section 143B, 151ZA, 151ZB, 151ZF, 151ZG, 151ZH or 151ZI.

142BD Designated carriage service

(1) For the purposes of this Part, *designated carriage service* means:

(a) if a carriage service is specified in an instrument under subsection (2)—that carriage service; or

(b) otherwise—a Layer 2 bitstream service.

(2) The ACCC may, by legislative instrument, specify a carriage service for the purposes of paragraph (1)(a).

(3) The ACCC must not specify a carriage service under subsection (2) unless:

(a) the carriage service enables end-users to download communications; and

(b) the download transmission speed of the carriage service is normally 25 megabits per second or more; and

(c) the carriage service is supplied using a line to premises occupied or used by an end-user; and

(d) there is in force a declaration under subsection 152AL(3) of the *Competition and Consumer Act 2010* that relates to the carriage service.

Division 2—Supply of eligible services to be on wholesale basis

142C Supply of eligible services to be on wholesale basis—lines that come into existence on or after the designated commencement date etc.

Scope

(1) This section applies to a local access line if:

(a) the line is part of the infrastructure of a telecommunications network in Australia; and

(b) the network is not the national broadband network; and

(c) the line is used, or proposed to be used, to supply a superfast carriage service wholly or principally to residential customers, or prospective residential customers, in Australia; and

(d) either:

(i) the line came into existence on or after the designated commencement date; or

(ii) the line was altered or upgraded on or after the designated commencement date, and as a result of the alteration or upgrade, the line became capable of being used to supply a superfast carriage service to residential customers in Australia.

Note 1: See also section 156A (certain lines deemed to have come into existence on or after the designated commencement date).

Note 2: See also section 158A (certain line extensions deemed to be local access lines in their own right, and to have come into existence on or after the designated commencement date).

Note 3: For exemptions, see sections 143A to 151.

Use of line

(2) If a person (the ***first person***):

(a) is in a position to exercise control of the line; or

(b) is an associate of a person who is in a position to exercise control of the line;

the first person must not, on or after the designated commencement date, use the line, either alone or jointly with one or more other persons, to supply an eligible service unless the service is supplied to:

(c) a carrier; or

(d) a service provider.

Note: For when a person is in a position to exercise control of a line, see section 155A.

(3) Subsection (2) does not apply to the use of the line if a functional separation undertaking given by the first person is in force, unless:

(a) the ACCC has given a notice under section 151W revoking the undertaking; and

(b) the revocation has not taken effect; and

(c) the line came into existence after the notice was given.

Note 1: A functional separation undertaking relates to the supply of eligible services using a local access line, irrespective of when the line came into existence.

Note 2: See also section 142B.

Ancillary contraventions

(4) A person must not:

(a) aid, abet, counsel or procure a contravention of subsection (2); or

(b) induce, whether by threats or promises or otherwise, a contravention of subsection (2); or

(c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (2); or

(d) conspire with others to effect a contravention of subsection (2).

Civil penalty provisions

(5) Subsections (2) and (4) are ***civil penalty provisions***.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

143 Supply of eligible services to be on wholesale basis—networks in existence before the designated commencement date etc.

Scope

(1) This section applies to a local access line if:

(a) the local access line is part of the infrastructure of a telecommunications network in Australia; and

(b) the network is used, or proposed to be used, to supply a superfast carriage service wholly or principally to residential customers, or prospective residential customers, in Australia; and

(c) the network is not the national broadband network; and

(d) either:

(i) the network came into existence on or after 1 January 2011, but before the designated commencement date; or

(ii) the network was altered or upgraded on or after 1 January 2011, but before the designated commencement date, and, as a result of the alteration or upgrade, the network became capable of being used to supply a superfast carriage service to residential customers, or prospective residential customers, in Australia.

Note 1: See also section 156 (deemed networks).

Note 2: For exemptions, see sections 143A to 151.

Use of network

(2) If a person (the ***first person***):

(a) is in a position to exercise control of the network; or

(b) is an associate of a person who is in a position to exercise control of the network;

the first person must not use the line, either alone or jointly with one or more other persons, to supply an eligible service unless the service is supplied to:

(c) a carrier; or

(d) a service provider.

Note: For when a person is in a position to exercise control of a network, see section 155.

(3) Subsection (2) does not apply to the use of the line if a functional separation undertaking given by the first person is in force, unless:

(a) the ACCC has given a notice under section 151W revoking the undertaking; and

(b) the revocation has not taken effect; and

(c) the line came into existence after the notice was given.

Note 1: A functional separation undertaking relates to the supply of eligible services using a local access line, irrespective of when the line came into existence.

Note 2: See also section 142B.

(4) Subsection (2) does not apply to the use of the line if:

(a) the *Carrier Licence Conditions (Networks supplying Superfast Carriage Services to Residential Customers) Declaration 2014* is in force; and

(b) the line is part of the infrastructure of a designated telecommunications network (within the meaning of that declaration); and

(c) a carrier owns or operates the network; and

(d) as a result of the application of section 5 of that declaration to the network, the carrier licence held by the carrier is subject to the conditions set out in subsections 6(5), (5A), (6), (7) and (8) of that declaration.

Ancillary contraventions

(5) A person must not:

(a) aid, abet, counsel or procure a contravention of subsection (2); or

(b) induce, whether by threats or promises or otherwise, a contravention of subsection (2); or

(c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (2); or

(d) conspire with others to effect a contravention of subsection (2).

Civil penalty provisions

(6) Subsections (2) and (5) are *civil penalty provisions*.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

143AA Judicial enforcement of prohibitions

(1) If the Federal Court is satisfied that a person has, on or after the designated commencement date, contravened subsection 142C(2) or (4) or 143(2) or (5), the Court may, on the application of:

(a) the ACCC; or

(b) a carrier; or

(c) a carriage service provider;

make all or any of the following orders:

(d) an order directing the person to comply with that subsection;

(e) an order directing the person to compensate any other person (who may be the applicant) who has suffered loss or damage as a result of the contravention;

(f) any other order that the Court thinks appropriate.

(2) The Federal Court may discharge or vary an order granted under this section.

Division 2A—Exemptions

143A Class exemptions

Determination providing for exemption

(1) The ACCC may, by legislative instrument, determine that, if:

- (a) a person is included in a specified class of persons; and
 - (b) the person has, by written notice given to the ACCC, elected to be bound by the determination; and
 - (c) the person has not, by written notice given to the ACCC, cancelled the election; and
 - (d) in a case where the person is not a member of an associated group—the number of residential customers to whom the person supplies fixed-line carriage services does not exceed:
 - (i) 2,000; or
 - (ii) if a higher number (not exceeding 12,000) is specified in the regulations—that higher number; and
 - (e) in a case where the person is a member of an associated group—the total number of residential customers to whom the members of the group supply fixed-line carriage services does not exceed:
 - (i) 2,000; or
 - (ii) if a higher number (not exceeding 12,000) is specified in the regulations—that higher number;
- the person is exempt from section 142C.

Note: For *associated group*, see subsection (10) of this section.

(2) The ACCC may, by legislative instrument, determine that, if:

- (a) a person is included in a specified class of persons; and
- (b) the person has, by written notice given to the ACCC, elected to be bound by the determination; and
- (c) the person has not, by written notice given to the ACCC, cancelled the election; and
- (d) in a case where the person is not a member of an associated group—the number of residential customers to whom the person supplies fixed-line carriage services does not exceed:
 - (i) 2,000; or
 - (ii) if a higher number (not exceeding 12,000) is specified in the regulations—that higher number; and
- (e) in a case where the person is a member of an associated group—the total number of residential customers to whom the members of the group supply fixed-line carriage services does not exceed:
 - (i) 2,000; or

(ii) if a higher number (not exceeding 12,000) is specified in the regulations—that higher number;
the person is exempt from section 143.

Note: For *associated group*, see subsection (10) of this section.

(3) A determination under subsection (1) or (2) is subject to the following conditions and limitations:

(a) the person must ensure that a designated carriage service is available for supply to wholesale customers, or prospective wholesale customers, of the person;

(b) the person must not discriminate between the person's wholesale customers, or the person's prospective wholesale customers, in relation to the supply of designated carriage services;

(c) the person must not discriminate in favour of itself in relation to the supply of designated carriage services;

(d) the person must not, in carrying on any of the following activities, discriminate between the person's wholesale customers or the person's prospective wholesale customers:

(i) developing a new eligible service;

(ii) enhancing an eligible service;

(iii) extending or enhancing the capability of a facility or telecommunications network by means of which an eligible service is, or is to be, supplied;

(iv) planning for a facility or telecommunications network by means of which an eligible service is, or is to be, supplied;

(v) an activity that is preparatory to the supply of an eligible service;

(vi) an activity that is ancillary or incidental to the supply of an eligible service;

(vii) giving information to service providers about any of the above activities;

(e) the person must not discriminate in favour of itself in relation to the carrying on of any of the following activities:

(i) developing a new eligible service;

(ii) enhancing an eligible service;

(iii) extending or enhancing the capability of a facility or telecommunications network by means of which an eligible service is, or is to be, supplied;

(iv) planning for a facility or telecommunications network by means of which an eligible service is, or is to be, supplied;

(v) an activity that is preparatory to the supply of an eligible service;

(vi) an activity that is ancillary or incidental to the supply of an eligible service;

(vii) giving information to service providers about any of the above activities;

(f) such other conditions and limitations as are specified in the determination.

Note 1: For compliance with conditions and limitations, see section 143B.

Note 2: For judicial enforcement of conditions and limitations, see section 143C.

(4) The rule in paragraph (3)(b) does not prevent discrimination against a wholesale customer, or prospective wholesale customer, if the person has reasonable grounds to believe that the wholesale customer or prospective wholesale customer would fail, to a material extent, to comply with the terms and conditions on which the person supplies designated carriage services.

(5) Examples of grounds for believing as mentioned in subsection (4) include:

- (a) evidence that the wholesale customer or prospective wholesale customer is not creditworthy; and
- (b) repeated failures by the wholesale customer or prospective wholesale customer to comply with the terms and conditions on which the person supplied eligible services (whether or not using the line).

(6) A determination under subsection (1) or (2) must not specify a condition or limitation of a kind specified in a determination under subsection (7).

(7) The Minister may, by legislative instrument, determine one or more kinds of condition or limitation for the purposes of subsection (6).

Criteria for making determination

(8) In deciding whether to make a determination under subsection (1) or (2), the ACCC must have regard to:

- (a) whether the determination promotes the long-term interests of end-users of carriage services or of services supplied by means of carriage services; and
- (b) the matters (if any) specified in a determination under subsection (9); and
- (c) such other matters (if any) as the ACCC considers relevant.

(9) The Minister may, by legislative instrument, determine one or more matters for the purposes of paragraph (8)(b).

Associated group

(10) For the purposes of this section, if:

- (a) a person is in a position to exercise control of:
 - (i) a local access line; or
 - (ii) a telecommunications network; and
- (b) the person has one or more associates;

then:

- (c) the person is taken to belong to an associated group; and
- (d) the associated group consists of the person and those associates.

143B Compliance with conditions and limitations of exemption determinations

(1) A person must, on or after the designated commencement date, comply with the conditions or limitations of a determination under subsection 143A(1) or (2).

Ancillary contraventions

(2) A person must not:

- (a) aid, abet, counsel or procure a contravention of subsection (1); or
- (b) induce, whether by threats or promises or otherwise, a contravention of subsection (1); or
- (c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (1); or
- (d) conspire with others to effect a contravention of subsection (1).

Civil penalty provisions

(3) Subsections (1) and (2) are ***civil penalty provisions***.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

143C Judicial enforcement of conditions and limitations of exemption determinations

(1) If the Federal Court is satisfied that a person has, on or after the designated commencement date, contravened any of the conditions or limitations of a determination under subsection 143A(1) or (2), the Court may, on the application of:

- (a) the ACCC; or
- (b) a carrier; or
- (c) a carriage service provider;

make all or any of the following orders:

- (d) an order directing the person to comply with the condition or limitation;
- (e) an order directing the person to compensate any other person (who may be the applicant) who has suffered loss or damage as a result of the contravention;
- (f) any other order that the Court thinks appropriate.

(2) The Federal Court may discharge or vary an order granted under this section.

143D Publication of list of persons who have elected to be bound by exemption determinations

If a determination is in force under subsection 143A(1) or (2), the ACCC must publish on its website a list setting out the names of the persons who:

- (a) have elected to be bound by the determination; and
- (b) have not cancelled the election concerned.

143E Exemptions—certain real estate development projects etc.

(1) If:

- (a) a part of the infrastructure of a telecommunications network is situated in a particular area that:
 - (i) on 1 January 2011, was being developed as a particular stage of a real estate development project; or

-
- (ii) before 1 January 2011, was developed as a particular stage of a real estate development project; and
- (b) on or after the designated commencement date, the network is extended to another area that is being, or is to be, developed as another stage of the project; and
- (c) a carrier installs telecommunications network infrastructure; and
- (d) the infrastructure mentioned in paragraph (c) is part of the extension; the infrastructure mentioned in paragraph (c) is exempt from sections 142C and 143.
- (2) If:
- (a) a part of the infrastructure of a telecommunications network is situated in a particular area that:
- (i) on 1 January 2011, was being developed as a particular stage of a real estate development project; or
- (ii) before 1 January 2011, was developed as a particular stage of a real estate development project; and
- (b) during the period:
- (i) beginning at the start of the designated commencement date; and
- (ii) ending when the Minister makes a declaration under section 48 of the *National Broadband Network Companies Act 2011* that, in the Minister's opinion, the national broadband network should be treated as built and fully operational;
- the network is extended to an area that is:
- (iii) the project area of a real estate development project specified under subsection (3); or
- (iv) the project area of a real estate development project that belongs to a class of real estate development projects specified under subsection (5); or
- (v) the project area of a building redevelopment project specified under subsection (6); or
- (vi) the project area of a building redevelopment project that belongs to a class of building redevelopment projects specified under subsection (8); and
- (c) a carrier installs telecommunications network infrastructure; and
- (d) the infrastructure mentioned in paragraph (c) is part of the extension; the infrastructure mentioned in paragraph (c) is exempt from sections 142C and 143.
- (3) The Minister may, by notifiable instrument, specify one or more real estate development projects for the purposes of subparagraph (2)(b)(iii).
- (4) Subsection 13(3) of the *Legislation Act 2003* does not apply to subsection (3) of this section.
-

(5) The Minister may, by legislative instrument, specify one or more classes of real estate development projects for the purposes of subparagraph (2)(b)(iv).

(6) The Minister may, by notifiable instrument, specify one or more building redevelopment projects for the purposes of subparagraph (2)(b)(v).

(7) Subsection 13(3) of the *Legislation Act 2003* does not apply to subsection (6) of this section.

(8) The Minister may, by legislative instrument, specify one or more classes of building redevelopment projects for the purposes of subparagraph (2)(b)(vi).

Building redevelopment project

(9) For the purposes of this section, a project is a **building redevelopment project** if the project involves:

(a) the significant refurbishment or repurposing of one or more buildings so as to bring into existence one or more building units; and

(b) the making available of any or all of those building units for sale or lease.

(10) For the purposes of this section, the area or areas occupied by the building or buildings are the **project area** for the building redevelopment project.

(11) For the purposes of subsection (9), it is immaterial whether:

(a) the project has been, is being, or will be, implemented in stages; or

(b) different elements of the project have been, are being, or will be, carried out by different persons; or

(c) one or more approvals are given, are required, or will be required, under a law of the Commonwealth, a State or a Territory, for the project, or any element of the project.

143F Exemptions—lines installed in close proximity to other lines

(1) If:

(a) a telecommunications network came into existence on or after 1 January 2011; and

(b) a line came into existence on or after the designated commencement date for the purposes of connecting particular premises to the network; and

(c) the coming into existence of the line enables or enabled the occupier of the premises to become a customer in relation to carriage services supplied using the line; and

(d) the premises are in close proximity to a line that forms part of the infrastructure of the network as the network stood immediately before the designated commencement date; and

(e) the line mentioned in paragraph (b) is used to supply a superfast carriage service;

the line mentioned in paragraph (b) is exempt from section 142C.

Note 1: See also section 156A (certain lines deemed to have come into existence on or after the designated commencement date).

Note 2: See also section 158A (certain line extensions deemed to be local access lines in their own right, and to have come into existence on or after the designated commencement date).

(2) If:

- (a) a designated telecommunications network (within the meaning of the *Carrier Licence Conditions (Networks supplying Superfast Carriage Services to Residential Customers) Declaration 2014*) was in existence immediately before the designated commencement date; and
- (b) a line came into existence on or after the designated commencement date for the purposes of connecting particular premises to the network; and
- (c) the coming into existence of the line enables or enabled the occupier of the premises to become a customer in relation to carriage services supplied using the line; and
- (d) the premises are in close proximity to a line that forms part of the infrastructure of the network as the network stood immediately before the designated commencement date; and
- (e) the line mentioned in paragraph (b) is used to supply a superfast carriage service;

the line mentioned in paragraph (b) is exempt from section 142C.

Note 1: See also section 156A (certain lines deemed to have come into existence on or after the designated commencement date).

Note 2: See also section 158A (certain line extensions deemed to be local access lines in their own right, and to have come into existence on or after the designated commencement date).

143G Exemptions—networks covered by exemption instruments

(1) If:

- (a) the *Telecommunications (Network Exemption—TransACT Very Small Scale Networks) Instrument 2012* was in force at the start of the designated commencement date; and
 - (b) a line came into existence on or after the designated commencement date; and
 - (c) the line forms part of the infrastructure of:
 - (i) an ACT Very Small Scale Network that is a FTTP network or a VDSL network (within the meaning of that instrument); or
 - (ii) a Victorian Very Small Scale Network that is a FTTP network, a VDSL network or a HFC network (within the meaning of that instrument); and
 - (d) that instrument has not ceased to be in force;
- the line is exempt from section 142C.

Note 1: See also section 156A (certain lines deemed to have come into existence on or after the designated commencement date).

Note 2: See also section 158A (certain line extensions deemed to be local access lines in their own right, and to have come into existence on or after the designated commencement date).

(2) If:

(a) the *Telecommunications (Network Exemption—Telstra South Brisbane Network) Instrument 2012* was in force at the start of the designated commencement date; and

(b) a line came into existence on or after the designated commencement date; and

(c) the line forms part of the infrastructure of the Telstra South Brisbane Network (within the meaning of that instrument); and

(d) that instrument has not ceased to be in force;

the line is exempt from section 142C.

Note 1: See also section 156A (certain lines deemed to have come into existence on or after the designated commencement date).

Note 2: See also section 158A (certain line extensions deemed to be local access lines in their own right, and to have come into existence on or after the designated commencement date).

(3) If:

(a) the *Telecommunications (Network Exemption—TransACT Upgraded VDSL Networks) Instrument 2012* was in force at the start of the designated commencement date; and

(b) a line came into existence on or after the designated commencement date; and

(c) the line forms part of the infrastructure of a TransACT Upgraded VDSL Network (within the meaning of that instrument); and

(d) that instrument has not ceased to be in force;

the line is exempt from section 142C.

Note 1: See also section 156A (certain lines deemed to have come into existence on or after the designated commencement date).

Note 2: See also section 158A (certain line extensions deemed to be local access lines in their own right, and to have come into existence on or after the designated commencement date).

(4) If:

(a) the *Telecommunications (Network Exemption—Specified Velocity Networks) Instrument 2012* was in force at the start of the designated commencement date; and

(b) a line came into existence on or after the designated commencement date; and

(c) the line forms part of the infrastructure of a Specified Velocity Network (within the meaning of that instrument); and

(d) that instrument has not ceased to be in force;

the line is exempt from section 142C.

Note 1: See also section 156A (certain lines deemed to have come into existence on or after the designated commencement date).

Note 2: See also section 158A (certain line extensions deemed to be local access lines in their own right, and to have come into existence on or after the designated commencement date).

- (5) For the purposes of paragraph (4)(c) of this section, assume that paragraph (c) of the definition of **Specified Velocity Network** in the *Telecommunications (Network Exemption—Specified Velocity Networks) Instrument 2012* were modified by omitting all the words from and including “in accordance with” to and including “project”.

143H Exemption—networks marketed as business networks

(1) If:

- (a) a local access line is part of the infrastructure of a telecommunications network operated by a carrier; and
- (b) the network is marketed by the carrier exclusively as a business network; and
- (c) the line is used, or proposed to be used, to supply a superfast carriage service wholly or principally to residential customers, or prospective residential customers, in Australia; and
- (d) that use or proposed use, when considered in relation to the use or proposed use of all of the local access lines that are part of the infrastructure of the network, is minor; and
- (e) the other conditions (if any) determined under subsection (2) have been satisfied;

the line is exempt from section 142C.

- (2) The Minister may, by legislative instrument, determine one or more conditions for the purposes of paragraph (1)(e).

144 Exemptions—Ministerial instrument

- (1) The Minister may, by written instrument, exempt a specified network from section 143.

Note: For specification by class, see the *Acts Interpretation Act 1901*.

- (2) The Minister may, by written instrument, exempt a specified local access line from section 143.

Note: For specification by class, see the *Acts Interpretation Act 1901*.

- (3) The Minister may, by written instrument, exempt a specified person from subsection 143(2).

Note: For specification by class, see the *Acts Interpretation Act 1901*.

- (4) An instrument under subsection (1), (2) or (3) may be:

- (a) unconditional; or
- (b) subject to such conditions (if any) as are specified in the instrument.

(5) Before making an instrument under subsection (1), (2) or (3), the Minister must consult:

- (a) the ACCC; and
- (b) the ACMA.

(6) An instrument under subsection (1), (2) or (3) is not a legislative instrument.

(7) The Minister must not make an instrument under subsection (1), (2) or (3) on or after the designated commencement date.

(8) Subsection (7) does not prevent the Minister from varying an instrument that was in force immediately after the start of the designated commencement date.

145 Exemption—transport authorities

(1) Subsections 142C(2) and 143(2) do not apply if:

(a) both:

- (i) the eligible service is a carriage service; and
- (ii) the sole use of the carriage service is use by Airservices Australia to carry communications necessary or desirable for the workings of aviation services; or

(b) the eligible service is a service that facilitates the supply of a carriage service covered by paragraph (a) of this subsection.

(2) Paragraph (1)(a) does not apply to a carriage service supplied to Airservices Australia unless the carriage service is supplied on the basis that Airservices Australia must not re-supply the carriage service.

(3) Subsections 142C(2) and 143(2) do not apply if:

(a) the eligible service is a carriage service, and the sole use of the carriage service is use by a State or Territory transport authority to carry communications necessary or desirable for the workings of the following services:

- (i) train services of a kind provided by the authority;
- (ii) bus or other road services of a kind provided by the authority;
- (iii) tram services of a kind provided by the authority; or

(b) the eligible service is a service that facilitates the supply of a carriage service covered by paragraph (a) of this subsection.

(4) Paragraph (3)(a) does not apply to a carriage service supplied to a State or Territory transport authority unless the carriage service is supplied on the basis that the State or Territory transport authority must not re-supply the carriage service.

(5) Subsections 142C(2) and 143(2) do not apply if:

(a) both:

- (i) the eligible service is a carriage service; and
- (ii) the sole use of the carriage service is use by a rail corporation to carry communications necessary or desirable for the workings of train services; or

(b) the eligible service is a service that facilitates the supply of a carriage service covered by paragraph (a) of this subsection.

(6) Paragraph (5)(a) does not apply to a carriage service supplied to a rail corporation unless the carriage service is supplied on the basis that the rail corporation must not re-supply the carriage service.

146 Exemption—electricity supply bodies

(1) Subsections 142C(2) and 143(2) do not apply if:

(a) the eligible service is a carriage service, and the sole use of the carriage service is use by an electricity supply body to carry communications necessary or desirable for:

(i) managing the generation, transmission, distribution or supply of electricity; or

(ii) charging for the supply of electricity; or

(b) the eligible service is a service that facilitates the supply of a carriage service covered by paragraph (a) of this section.

(2) Paragraph (1)(a) does not apply to a carriage service supplied to an electricity supply body unless the carriage service is supplied on the basis that the electricity supply body must not re-supply the carriage service.

147 Exemption—gas supply bodies

(1) Subsections 142C(2) and 143(2) do not apply if:

(a) the eligible service is a carriage service, and the sole use of the carriage service is use by a gas supply body to carry communications necessary or desirable for:

(i) managing the transmission or distribution of natural gas in a pipeline; or

(ii) charging for the supply of natural gas transmitted or distributed in a pipeline; or

(b) the eligible service is a service that facilitates the supply of a carriage service covered by paragraph (a) of this section.

(2) Paragraph (1)(a) does not apply to a carriage service supplied to a gas supply body unless the carriage service is supplied on the basis that the gas supply body must not re-supply the carriage service.

148 Exemption—water supply bodies

(1) Subsections 142C(2) and 143(2) do not apply if:

(a) the eligible service is a carriage service, and the sole use of the carriage service is use by a water supply body to carry communications necessary or desirable for:

(i) managing the distribution of water in a pipeline; or

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- (ii) charging for the supply of water distributed in a pipeline; or
 - (b) the eligible service is a service that facilitates the supply of a carriage service covered by paragraph (a) of this section.

- (2) Paragraph (1)(a) does not apply to a carriage service supplied to a water supply body unless the carriage service is supplied on the basis that the water supply body must not re-supply the carriage service.

149 Exemption—sewerage services bodies

- (1) Subsections 142C(2) and 143(2) do not apply if:

- (a) the eligible service is a carriage service, and the sole use of the carriage service is use by a sewerage services body to carry communications necessary or desirable for:

- (i) managing the supply of sewerage services; or
 - (ii) charging for the supply of sewerage services; or

- (b) the eligible service is a service that facilitates the supply of a carriage service covered by paragraph (a) of this section.

- (2) Paragraph (1)(a) does not apply to a carriage service supplied to a sewerage services body unless the carriage service is supplied on the basis that the sewerage services body must not re-supply the carriage service.

150 Exemption—storm water drainage services bodies

- (1) Subsections 142C(2) and 143(2) do not apply if:

- (a) the eligible service is a carriage service, and the sole use of the carriage service is use by a storm water drainage services body to carry communications necessary or desirable for:

- (i) managing the supply of storm water drainage services; or
 - (ii) charging for the supply of storm water drainage services; or

- (b) the eligible service is a service that facilitates the supply of a carriage service covered by paragraph (a) of this section.

- (2) Paragraph (1)(a) does not apply to a carriage service supplied to a storm water drainage services body unless the carriage service is supplied on the basis that the storm water drainage services body must not re-supply the carriage service.

151 Exemption—State or Territory road authorities

- (1) Subsections 142C(2) and 143(2) do not apply if:

- (a) the eligible service is a carriage service, and the sole use of the carriage service is use by a State or Territory road authority to carry communications necessary or desirable for the management or control of road traffic; or

- (b) the eligible service is a service that facilitates the supply of a carriage service covered by paragraph (a) of this section.

- (2) Paragraph (1)(a) does not apply to a carriage service supplied to a State or Territory road authority unless the carriage service is supplied on the basis that the State or Territory road authority must not re-supply the carriage service.

Division 2B—Functional separation undertakings

151A Standard functional separation undertaking

- (1) If a person is a corporation, the person may give a written undertaking (a *standard functional separation undertaking*) to the ACCC.
- (2) The undertaking must:
- (a) provide that the person will maintain:
 - (i) a single wholesale business unit; and
 - (ii) a single retail business unit; and
 - (b) provide that the person will maintain arm's length functional separation between:
 - (i) the person's wholesale business unit; and
 - (ii) the person's retail business unit; and
 - (c) provide that the person will ensure that:
 - (i) the terms and conditions relating to price or a method of ascertaining price; and
 - (ii) other terms and conditions;on which the person's wholesale business unit supplies local access line services to the person's retail business unit are documented; and
 - (d) provide that the person will, to the extent specified in the undertaking, ensure that the workers who perform their duties for the person's wholesale business unit are different from the workers who perform their duties for the person's retail business unit; and
 - (e) provide that the person will, to the extent specified in the undertaking, ensure that there are separate:
 - (i) operational support systems; and
 - (ii) business systems; and
 - (iii) communications systems; and
 - (iv) accounts;for:
 - (v) the person's wholesale business unit; and
 - (vi) the person's retail business unit; and
 - (f) provide that the person will publish on the person's website:
 - (i) the terms and conditions relating to price or a method of ascertaining price; and
 - (ii) other terms and conditions;on which the person's wholesale business unit offers to supply local access line services to the following:
 - (iii) the person's retail business unit;

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- (iv) the person's wholesale customers or prospective wholesale customers; and
- (g) provide that the person will:
- (i) if requested to do so by a wholesale customer or prospective wholesale customer, supply a local access line service to the wholesale customer or prospective wholesale customer; and
- (ii) do so on the terms and conditions that were published on the person's website at the time when the request was made; and
- (h) provide that the person will ensure that information provided to the person's wholesale business unit by the person's wholesale customers is not disclosed to the person's retail business unit; and
- (i) provide that the person will ensure that the person's retail business unit does not obtain, access or use information provided to the person's wholesale business unit by the person's wholesale customers; and
- (j) provide that the person will ensure that information provided to the person's retail business unit by a carrier or carriage service provider (other than information of a kind specified in a determination under subsection (13)) is not disclosed to the person's wholesale business unit; and
- (k) provide that the person will ensure that the person's wholesale business unit does not obtain, access or use information provided to the person's retail business unit by a carrier or carriage service provider (other than information of a kind specified in a determination under subsection (13)); and
- (l) provide that the person will use the same customer interface for dealings between:
- (i) the person's wholesale business unit; and
- (ii) the person's wholesale customers;
- as the person uses for dealings between:
- (iii) the person's wholesale business unit; and
- (iv) the person's retail business unit; and
- (m) contain such other provisions (if any) as are specified in a determination under subsection (14); and
- (n) not contain a provision of a kind specified in a determination under subsection (15).

Note: A standard functional separation undertaking is supplemented by section 151ZF (which requires eligible services to be supplied on a non-discriminatory basis) and section 151ZG (which requires related activities to be carried on on a non-discriminatory basis).

- (3) An extent specified under paragraph (2)(d) or (e) may be a nil extent.

Form etc.

- (4) The undertaking must:
- (a) be in a form approved in writing by the ACCC; and
- (b) be accompanied by such information as is reasonably likely to assist the ACCC to decide whether to accept or reject the undertaking; and

(c) be accompanied by the fee (if any) specified in, or ascertained in accordance with, a determination under subsection (16).

Expiry time

(5) The undertaking must specify the expiry time of the undertaking.

(6) The expiry time of the undertaking may be described by reference to the end of a period beginning when the undertaking comes into force.

(7) Subsection (6) does not, by implication, limit subsection (5).

(8) The expiry time of the undertaking must not be more than 10 years after the undertaking comes into force.

Fundamental provisions

(9) The undertaking:

(a) must state that the provisions of the undertaking covered by paragraphs (2)(a), (b), (c), (f), (g), (h), (i), (j) and (k) are fundamental provisions; and

(b) may state that one or more other provisions of the undertaking are fundamental provisions.

Compliance reports

(10) The undertaking must provide that the person will give the ACCC periodic reports (to be known as compliance reports) that:

(a) relate to the person's compliance with the undertaking; and

(b) are in a form approved in writing by the ACCC.

Note: See section 151ZJ (self-incrimination).

Compliance plans

(11) The undertaking must provide that the person will:

(a) prepare a plan (to be known as a compliance plan) setting out the actions to be taken by the person for the purpose of ensuring that the person complies with the undertaking; and

(b) give the ACCC:

(i) a copy of the compliance plan; and

(ii) a copy of any variation of the compliance plan.

ACCC may perform functions or exercise powers

(12) If the undertaking provides for the ACCC to perform functions or exercise powers in relation to the undertaking, the ACCC may perform those functions, and exercise those powers, in accordance with the undertaking.

Determinations

- (13) The ACCC may, by legislative instrument, determine one or more kinds of information for the purposes of paragraphs (2)(j) and (k).
- (14) The Minister may, by legislative instrument, determine one or more provisions for the purposes of paragraph (2)(m).
- (15) The Minister may, by legislative instrument, determine one or more kinds of provisions for the purposes of paragraph (2)(n).
- (16) The ACCC may, by legislative instrument, determine a fee, or a method of ascertaining a fee, for the purposes of paragraph (4)(c).
- (17) A fee determined under, or ascertained in accordance with, subsection (16) must not be such as to amount to taxation.

151B Deemed standard functional separation undertaking

- (1) The ACCC may, by legislative instrument, determine that, if:
- (a) a corporation is included in a specified class of corporations; and
 - (b) the corporation has, by written notice given to the ACCC, elected to be bound by the determination; and
 - (c) the corporation has not, by written notice given to the ACCC, cancelled the election; and
 - (d) the ACCC has not revoked the election under subsection (7);
this Act has effect as if:
 - (e) the corporation had given a standard functional separation undertaking in the terms set out in the determination; and
 - (f) the ACCC had accepted the undertaking; and
 - (g) if the election was given before the designated commencement date—the undertaking had come into force on the designated commencement date; and
 - (h) if the election was given on or after the designated commencement date—the undertaking had come into force when the election was given to the ACCC.
- (1A) A functional separation undertaking covered by a determination under subsection (1) must comply with the following provisions:
- (a) paragraphs 151A(2)(a) to (m);
 - (b) subsections 151A(9), (10) and (11).
- (1B) A functional separation undertaking covered by a determination under subsection (1) must not contain a provision of a kind specified in a determination under subsection 151A(15).
- (2) The following provisions do not apply to a functional separation undertaking covered by a determination under subsection (1):
- (a) subsections 151A(4) to (8);
 - (b) section 151N;
 - (c) section 151P;

(d) section 151Q;

(e) section 151W.

(3) If, as a result of an election under a determination under subsection (1), a corporation is taken to have given a standard functional separation undertaking:

(a) this Act does not prevent the corporation from giving the ACCC another standard functional separation undertaking; and

(b) if the other standard functional separation undertaking comes into force—the corporation is taken to have cancelled the election immediately before the other standard functional separation undertaking comes into force.

(4) If, as a result of an election under a determination under subsection (1), a corporation is taken to have given a standard functional separation undertaking:

(a) this Act does not prevent the corporation, together with one or more other persons, from giving the ACCC a joint functional separation undertaking; and

(b) if the joint functional separation undertaking comes into force—the corporation is taken to have cancelled the election immediately before the joint functional separation undertaking comes into force.

(5) Before making a determination under subsection (1), the ACCC must:

(a) publish on the ACCC's website a notice:

(i) setting out the draft determination; and

(ii) inviting persons to make submissions to the ACCC about the draft determination within the time limit specified in the notice; and

(b) consider any submissions received within the time limit specified in the notice.

(6) The time limit must not be shorter than 15 business days after the notice is published.

(7) If:

(a) a standard functional separation undertaking is in force as the result of an election made by a person as mentioned in paragraph (1)(b); and

(b) any of the following conditions is satisfied:

(i) the person has breached a fundamental provision of the undertaking;

(ii) the person has contravened section 151ZF or 151ZG;

(iii) the ACCC is satisfied that the person has an unsatisfactory compliance record in relation to functional separation;

the ACCC may, by written notice given to the person, revoke the election.

151C Joint functional separation undertaking

(1) If 2 or more persons are corporations, those persons may give a joint written undertaking (a *joint functional separation undertaking*) to the ACCC.

(2) The undertaking must:

-
- (a) identify:
- (i) one or more (but not all) of those persons as the wholesaler or wholesalers for the purposes of the undertaking; and
 - (ii) the remaining person or persons as the retailer or retailers for the purposes of the undertaking; and
- (b) provide that a wholesaler will not supply a local access line service to a person unless the person is a wholesale customer; and
- (c) provide that a retailer will not supply a local access line service to a person unless the person is a retail customer; and
- (d) provide that a wholesaler will, to the extent specified in the undertaking, ensure that the wholesaler's workers will perform their duties exclusively for the wholesaler; and
- (e) provide that a retailer will, to the extent specified in the undertaking, ensure that the retailer's workers will perform their duties exclusively for the retailer; and
- (f) provide that a wholesaler will, to the extent specified in the undertaking, ensure that the workers who:
- (i) are engaged by persons other than the wholesaler; and
 - (ii) perform duties for the wholesaler;
- are different from the workers who:
- (iii) are engaged by persons other than the wholesaler; and
 - (iv) perform duties for a retailer; and
- (g) provide that a retailer will, to the extent specified in the undertaking, ensure that the workers who:
- (i) are engaged by persons other than the retailer; and
 - (ii) perform duties for the retailer;
- are different from the workers who:
- (iii) are engaged by persons other than the retailer; and
 - (iv) perform duties for a wholesaler; and
- (h) provide that a wholesaler will ensure that no director of the wholesaler is a director of a retailer; and
- (i) provide that a retailer will ensure that no director of the retailer is a director of a wholesaler; and
- (j) provide that:
- (i) the wholesaler or wholesalers; and
 - (ii) the retailer or retailers;
- will, to the extent specified in the undertaking, have separate:
- (iii) operational support systems; and
 - (iv) business systems; and
 - (v) communications systems; and
 - (vi) accounts; and
- (k) provide that a wholesaler will publish on the wholesaler's website:
- (i) the terms and conditions relating to price or a method of ascertaining price; and
 - (ii) other terms and conditions;
-

on which the wholesaler offers to supply local access line services to the following:

(iii) a retailer;

(iv) its wholesale customers or prospective wholesale customers; and

(l) provide that a wholesaler will:

(i) if requested to do so by a wholesale customer or prospective wholesale customer, supply a local access line service to the wholesale customer or prospective wholesale customer; and

(ii) do so on the terms and conditions that were published on the wholesaler's website at the time when the request was made; and

(m) provide that a wholesaler will ensure that information provided by its wholesale customers (other than the retailer or retailers) is not disclosed to any of the retailers; and

(n) provide that a retailer will ensure that it does not obtain, access or use information provided to any of the wholesalers by the wholesaler's wholesale customers; and

(o) provide that a retailer will ensure that information provided to the retailer by a carrier or carriage service provider, other than:

(i) information provided by a wholesaler; or

(ii) information of a kind specified in a determination under subsection (15);

is not disclosed to any of the wholesalers; and

(p) provide that a wholesaler will ensure that it does not obtain, access or use information provided to any of the retailers by a carrier or carriage service provider, other than:

(i) information provided by a wholesaler; or

(ii) information of a kind specified in a determination under subsection (15); and

(q) provide that a wholesaler will use the same customer interface for dealings between:

(i) the wholesaler; and

(ii) the wholesaler's wholesale customers (other than the retailer or retailers);

as the wholesaler uses for dealings between:

(iii) the wholesaler; and

(iv) a retailer; and

(r) contain such other provisions (if any) as are specified in a determination under subsection (16); and

(s) not contain a provision of a kind specified in a determination under subsection (17).

Note: A joint functional separation undertaking is supplemented by section 151ZF (which requires eligible services to be supplied on a non-discriminatory basis) and section 151ZG (which requires related activities to be carried on on a non-discriminatory basis).

(3) An extent specified under paragraph (2)(d), (e), (f), (g) or (j) may be a nil extent.

Form etc.

(4) The undertaking must:

- (a) be in a form approved in writing by the ACCC; and
- (b) be accompanied by such information as is reasonably likely to assist the ACCC to decide whether to accept or reject the undertaking; and
- (c) be accompanied by the fee (if any) specified in, or ascertained in accordance with, a determination under subsection (18).

Expiry time

(5) The undertaking must specify the expiry time of the undertaking.

(6) The expiry time of the undertaking may be described by reference to the end of a period beginning when the undertaking comes into force.

(7) Subsection (6) does not, by implication, limit subsection (5).

(8) The expiry time of the undertaking must not be more than 10 years after the undertaking comes into force.

Fundamental provisions

(9) The undertaking:

- (a) must state that the provisions of the undertaking covered by paragraphs (2)(a), (b), (c), (h), (i), (k), (l), (m), (n), (o) and (p) are fundamental provisions; and
- (b) may state that one or more other provisions of the undertaking are fundamental provisions.

Compliance reports

(10) The undertaking must provide that a wholesaler will give the ACCC periodic reports (to be known as compliance reports) that:

- (a) relate to the wholesaler's compliance with the undertaking; and
- (b) are in a form approved in writing by the ACCC.

Note: See section 151ZJ (self-incrimination).

(11) The undertaking must provide that a retailer will give the ACCC periodic reports (to be known as compliance reports) that:

- (a) relate to the retailer's compliance with the undertaking; and
- (b) are in a form approved in writing by the ACCC.

Note: See section 151ZJ (self-incrimination).

Compliance plans

(12) The undertaking must provide that a wholesaler will:

- (a) prepare a plan (to be known as a compliance plan) setting out the actions to be taken by the wholesaler for the purpose of ensuring that the wholesaler complies with the undertaking; and

(b) give the ACCC:

(i) a copy of the compliance plan; and

(ii) a copy of any variation of the compliance plan.

(13) The undertaking must provide that a retailer will:

(a) prepare a plan (to be known as a compliance plan) setting out the actions to be taken by the retailer for the purpose of ensuring that the retailer complies with the undertaking; and

(b) give the ACCC:

(i) a copy of the compliance plan; and

(ii) a copy of any variation of the compliance plan.

ACCC may perform functions or exercise powers

(14) If the undertaking provides for the ACCC to perform functions or exercise powers in relation to the undertaking, the ACCC may perform those functions, and exercise those powers, in accordance with the undertaking.

Determinations

(15) The ACCC may, by legislative instrument, determine one or more kinds of information for the purposes of paragraphs (2)(o) and (p).

(16) The Minister may, by legislative instrument, determine one or more provisions for the purposes of paragraph (2)(r).

(17) The Minister may, by legislative instrument, determine one or more kinds of provisions for the purposes of paragraph (2)(s).

(18) The ACCC may, by legislative instrument, determine a fee, or a method of ascertaining a fee, for the purposes of paragraph (4)(c).

(19) A fee determined under, or ascertained in accordance with, subsection (18) must not be such as to amount to taxation.

151D Further information about undertaking

Scope

(1) This section applies if:

(a) a person gives the ACCC a standard functional separation undertaking; or

(b) 2 or more persons give the ACCC a joint functional separation undertaking.

Request for further information

(2) The ACCC may request the person or persons to give the ACCC further information about the undertaking.

(3) The ACCC may refuse to consider the undertaking until the person or persons give the ACCC the information.

(4) The ACCC may withdraw its request for further information, in whole or in part.

151E Withdrawal of undertaking that is under consideration

Scope

(1) This section applies if:

(a) a person gives the ACCC a standard functional separation undertaking; or

(b) 2 or more persons give the ACCC a joint functional separation undertaking.

Withdrawal

(2) The person or persons may withdraw the undertaking at any time before the ACCC makes a decision to accept or reject the undertaking.

(3) This Act does not prevent the person or persons from giving a fresh undertaking.

Refund of fee

(4) If:

(a) the person or persons withdraw the undertaking; and

(b) the person or persons have paid a fee in relation to the undertaking;

the ACCC may, on behalf of the Commonwealth, refund the whole or a part of the fee.

151F ACCC to accept or reject functional separation undertaking

Scope

(1) This section applies if:

(a) a person gives the ACCC a standard functional separation undertaking; or

(b) 2 or more persons give the ACCC a joint functional separation undertaking.

Decision to accept or reject undertaking

(2) After considering the undertaking, the ACCC must:

(a) accept the undertaking; or

(b) reject the undertaking.

Notice of decision

(3) If the ACCC accepts the undertaking, the ACCC must give the person or persons a written notice stating that the undertaking has been accepted.

(4) If the ACCC rejects the undertaking, the ACCC must give the person or persons a written notice:

(a) stating that the undertaking has been rejected; and

(b) setting out the reasons for the rejection.

ACCC to make decision within 3 months

(5) The ACCC must take all reasonable steps to ensure that a decision about the undertaking is made under subsection (2) within 3 months after receiving the undertaking.

(6) In calculating the 3-month period referred to in subsection (5), disregard:

(a) if:

(i) the ACCC has given a notice under section 151K in relation to the undertaking; and

(ii) no varied undertaking was given to the ACCC in response to the notice;

a day in the period specified in the notice; and

(b) if:

(i) the ACCC has given a notice under section 151K in relation to the undertaking; and

(ii) a varied undertaking was given to the ACCC in response to the notice; a day in the period:

(iii) beginning on the day on which the notice was given; and

(iv) ending at the end of the time limit specified by the ACCC when it published the varied undertaking under section 151G; and

(c) if the ACCC has not given a notice under section 151K in relation to the undertaking—a day in the period:

(i) beginning on the day on which the ACCC published the undertaking under section 151G; and

(ii) ending at the end of the time limit specified by the ACCC when it published the undertaking under section 151G; and

(d) if the ACCC has requested further information under section 151D in relation to the undertaking—a day during any part of which the request, or any part of the request, remains unfulfilled.

Extension of decision-making period

(7) The ACCC may, by written notice given to the person or persons, extend the 3-month period referred to in subsection (5) (the **initial 3-month period**), so long as:

(a) the extension is for a period of not more than 3 months; and

(b) the notice includes a statement explaining why the ACCC has been unable to make a decision on the undertaking within the initial 3-month period.

(8) As soon as practicable after the ACCC gives a notice under subsection (7), the ACCC must publish a copy of the notice on the ACCC's website.

151G Consultation—acceptance or rejection of undertaking

Scope

(1) This section applies if:

- (a) a person gives the ACCC a standard functional separation undertaking; or
- (b) 2 or more persons give the ACCC a joint functional separation undertaking.

Consultation

(2) Before making a decision to accept or reject the undertaking, the ACCC must:

- (a) publish on the ACCC's website a notice:
 - (i) setting out the undertaking; and
 - (ii) inviting persons to make submissions to the ACCC about the undertaking within the time limit specified in the notice; and
- (b) consider any submissions received within the time limit specified in the notice.

(3) The time limit must not be shorter than 15 business days after the notice is published.

151H Serial undertakings

(1) If:

- (a) a person gives the ACCC a standard functional separation undertaking (the ***first functional separation undertaking***); and
 - (b) the ACCC rejects the first functional separation undertaking; and
 - (c) the person subsequently gives the ACCC another standard functional separation undertaking; and
 - (d) the ACCC is satisfied that any or all of the provisions of the first functional separation undertaking are materially similar to any or all of the provisions of the other functional separation undertaking;
- the ACCC may refuse to consider the other functional separation undertaking.

(2) If:

- (a) 2 or more persons give the ACCC a joint functional separation undertaking (the ***first functional separation undertaking***); and
 - (b) the ACCC rejects the first functional separation undertaking; and
 - (c) those persons subsequently give the ACCC another joint functional separation undertaking; and
 - (d) the ACCC is satisfied that any or all of the provisions of the first functional separation undertaking are materially similar to any or all of the provisions of the other functional separation undertaking;
- the ACCC may refuse to consider the other functional separation undertaking.

Refund of fee

(3) If:

(a) the ACCC refuses to consider a functional separation undertaking under this section; and

(b) a person or persons have paid a fee in relation to the undertaking; the ACCC must, on behalf of the Commonwealth, refund the fee.

151J Criteria for accepting functional separation undertaking

Scope

(1) This section applies if:

(a) a person gives the ACCC a standard functional separation undertaking; or

(b) 2 or more persons give the ACCC a joint functional separation undertaking.

Criteria

(2) In deciding whether to accept the undertaking, the ACCC must have regard to:

(a) whether the undertaking promotes the long-term interests of end-users of carriage services or of services supplied by means of carriage services; and

(b) the matters (if any) specified in a determination that was in force under subsection (3) at the time the undertaking was given; and

(c) such other matters (if any) as the ACCC considers relevant.

(3) The Minister may, by legislative instrument, determine one or more matters for the purposes of paragraph (2)(b).

151K Variation of functional separation undertaking that is under consideration

Scope

(1) This section applies if:

(a) a person gives the ACCC a standard functional separation undertaking (the ***original undertaking***); or

(b) 2 or more persons give the ACCC a joint functional separation undertaking (the ***original undertaking***).

Notice

(2) The ACCC may give the person or persons a written notice stating that, if:

(a) the person makes, or the persons make, such variations to the original undertaking as are specified in the notice; and

(b) the person gives, or the persons give, the varied undertaking to the ACCC within the period specified in the notice;

the ACCC will consider the varied undertaking under section 151F as if the varied undertaking had been given to the ACCC instead of the original undertaking.

Treatment of varied undertaking

- (3) If the person gives, or the persons give, the ACCC a varied undertaking in response to the notice, the ACCC must consider the varied undertaking under section 151F as if the varied undertaking had been given to the ACCC instead of the original undertaking.

No duty to consider whether to give a notice

- (4) The ACCC does not have a duty to consider whether to give a notice under subsection (2).

151L Replacement of functional separation undertaking that is under consideration

Scope

- (1) This section applies if a person gives the ACCC a standard functional separation undertaking (the *original undertaking*).

Notice

- (2) The ACCC may give the person a written notice stating that, if:
(a) the person withdraws the original undertaking; and
(b) the person, together with one or more other persons specified in the notice, gives a joint functional separation undertaking in the terms specified in the notice; and
(c) the person does the things mentioned in paragraphs (a) and (b) within the time limit specified in the notice;
the ACCC would be inclined to accept the joint functional separation undertaking.
- (3) The ACCC does not have a duty to consider whether to give a notice under subsection (2).

151M Renewal of functional separation undertaking

- (1) If:
(a) a standard functional separation undertaking (the *existing undertaking*) given by a person is in force; and
(b) at least 12 months before the expiry of the existing undertaking, the person gives the ACCC another standard functional separation undertaking;
the other undertaking may be expressed to be given by way of renewal of the existing undertaking.

Note: For acceptance or rejection of the other undertaking, see section 151F.

- (2) If:
(a) a joint functional separation undertaking (the *existing undertaking*) given by 2 or more persons is in force; and
(b) at least 12 months before the expiry of the existing undertaking, those persons give another joint functional separation undertaking to the ACCC;

the other undertaking may be expressed to be given by way of renewal of the existing undertaking.

Note 1: For acceptance or rejection of the other undertaking, see section 151F.

Note 2: For consultation on a decision to accept or reject the other undertaking, see section 151G.

151N Variation of expiry time of certain functional separation undertakings

Standard functional separation undertaking

(1) If:

(a) a standard functional separation undertaking (the *existing undertaking*) given by a person is in force; and

(b) another functional separation undertaking is given to the ACCC by the person; and

(c) the ACCC rejects the other undertaking;

the ACCC may, by written notice given to the person, vary the existing undertaking by:

(d) omitting the expiry time specified in the existing undertaking; and

(e) substituting the expiry time specified in the notice.

Note: See also section 142B.

(2) The expiry time specified in the notice:

(a) must be later than the rejection of the other undertaking; and

(b) must not be later than 12 months after the rejection of the other undertaking.

(3) Subsection 151A(8) does not apply to an expiry time specified in a notice under subsection (1).

Joint functional separation undertaking

(4) If:

(a) a joint functional separation undertaking (the *existing undertaking*) given by 2 or more persons is in force; and

(b) another functional separation undertaking is given to the ACCC by a person who is one of the persons mentioned in paragraph (a); and

(c) the ACCC rejects the other undertaking;

the ACCC may, by written notice given to each of the persons mentioned in paragraph (a), vary the existing undertaking by:

(d) omitting the expiry time specified in the existing undertaking; and

(e) substituting the expiry time specified in the notice.

Note: See also section 142B.

(5) The expiry time specified in the notice:

-
- (a) must be later than the rejection of the other undertaking; and
 - (b) must not be later than 12 months after the rejection of the other undertaking.

(6) Subsection 151C(8) does not apply to an expiry time specified in a notice under subsection (4).

Consultation

(7) Before making a decision under this section to vary a functional separation undertaking, the ACCC must:

- (a) publish on the ACCC's website a notice:
 - (i) setting out the proposed variation; and
 - (ii) inviting persons to make submissions to the ACCC about the proposed variation within the time limit specified in the notice; and
- (b) consider any submissions received within the time limit specified in the notice.

(8) The time limit must not be shorter than 15 business days after the notice is published.

151P Duration of functional separation undertaking

Scope

(1) This section applies if:

- (a) either:
 - (i) a person gives the ACCC a standard functional separation undertaking (the *new undertaking*); or
 - (ii) 2 or more persons give the ACCC a joint functional separation undertaking (the *new undertaking*); and
- (b) the ACCC accepts the new undertaking.

Duration

(2) If the new undertaking is not expressed to be given by way of renewal of another functional separation undertaking:

- (a) in a case where the new undertaking is accepted before the designated commencement date—the new undertaking comes into force:
 - (i) on the designated commencement date; or
 - (ii) if a later day is specified in the new undertaking—on that day; and
- (b) in a case where the new undertaking is accepted on or after the designated commencement date—the new undertaking comes into force:
 - (i) on the day after it is accepted; or
 - (ii) if a later day is specified in the new undertaking—on that day; and
- (c) unless sooner revoked, the new undertaking continues in force until it expires.

(3) If the new undertaking is expressed to be given by way of renewal of another functional separation undertaking:

(a) the new undertaking comes into force immediately after the expiry of the other undertaking; and

(b) unless sooner revoked, the new undertaking continues in force until it expires.

151Q Variation of functional separation undertaking that is in force

Scope

(1) This section applies if:

(a) a standard functional separation undertaking given by a person is in force;
or

(b) a joint functional separation undertaking given by 2 or more persons is in force.

Variation

(2) The person or persons may give the ACCC a variation of the undertaking.

(3) If the undertaking is a standard functional separation undertaking, the undertaking as varied must comply with subsections 151A(2), (5), (8), (9), (10) and (11) and paragraph 151A(4)(a).

(4) If the undertaking is a joint functional separation undertaking, the undertaking as varied must comply with subsections 151C(2), (5), (8), (9), (10), (11), (12) and (13) and paragraph 151C(4)(a).

Form etc.

(5) The variation must:

(a) be accompanied by such information as is reasonably likely to assist the ACCC to decide whether to accept or reject the variation; and

(b) be accompanied by the fee (if any) specified in, or ascertained in accordance with, a determination under subsection (6).

(6) The ACCC may, by legislative instrument, determine a fee, or a method of ascertaining a fee, for the purposes of paragraph (5)(b).

(7) A fee determined under, or ascertained in accordance with, subsection (6) must not be such as to amount to taxation.

151R Further information about variation of functional separation undertaking

Scope

(1) This section applies if:

(a) a person gives the ACCC a variation of a standard functional separation undertaking; or

(b) 2 or more persons give the ACCC a variation of a joint functional separation undertaking.

Request for further information

(2) The ACCC may request the person or persons to give the ACCC further information about the variation.

(3) The ACCC may refuse to consider the variation until the person or persons give the ACCC the information.

(4) The ACCC may withdraw its request for further information, in whole or in part.

151S Withdrawal of variation that is under consideration

Scope

(1) This section applies if:

(a) a person gives the ACCC a variation of a standard functional separation undertaking; or

(b) 2 or more persons give the ACCC a variation of a joint functional separation undertaking.

Withdrawal

(2) The person or persons may withdraw the variation at any time before the ACCC makes a decision to accept or reject the variation.

(3) This Act does not prevent the person or persons from giving a fresh variation.

Refund of fee

(4) If:

(a) the person or persons withdraw the variation; and

(b) the person or persons have paid a fee in relation to the variation;
the ACCC may, on behalf of the Commonwealth, refund the whole or a part of the fee.

151T ACCC to accept or reject variation

Scope

(1) This section applies if:

(a) a person gives the ACCC a variation of a standard functional separation undertaking; or

(b) 2 or more persons give the ACCC a variation of a joint functional separation undertaking.

Decision to accept or reject variation

(2) After considering the variation, the ACCC must:

(a) accept the variation; or

(b) reject the variation.

Notice of decision

(3) If the ACCC accepts the variation, the ACCC must give the person or persons a written notice:

(a) stating that the variation has been accepted; and

(b) setting out the terms of the variation.

(4) If the ACCC rejects the variation, the ACCC must give the person or persons a written notice:

(a) stating that the variation has been rejected; and

(b) setting out the reasons for the rejection.

ACCC to make decision within 3 months

(5) The ACCC must take all reasonable steps to ensure that a decision about the variation is made under subsection (2) within 3 months after receiving the variation.

(6) In calculating the 3-month period referred to in subsection (5), disregard:

(a) a day in the period:

(i) beginning on the day on which the ACCC published the variation under section 151U; and

(ii) ending at the end of the time limit specified by the ACCC when it published the variation under section 151U; and

(b) if the ACCC has requested further information under section 151R in relation to the variation—a day during any part of which the request, or any part of the request, remains unfulfilled.

Extension of decision-making period

(7) The ACCC may, by written notice given to the person or persons, extend the 3-month period referred to in subsection (5) (the *initial 3-month period*), so long as:

(a) the extension is for a period of not more than 3 months; and

(b) the notice includes a statement explaining why the ACCC has been unable to make a decision on the variation within the initial 3-month period.

(8) As soon as practicable after the ACCC gives a notice under subsection (7), the ACCC must publish a copy of the notice on the ACCC's website.

151U Consultation—acceptance or rejection of variation

Scope

(1) This section applies if:

(a) a person gives the ACCC a variation of a standard functional separation undertaking; or

(b) 2 or more persons give the ACCC a variation of a joint functional separation undertaking.

Consultation

(2) Before making a decision to accept or reject the variation, the ACCC must:

(a) publish on the ACCC's website a notice:

(i) setting out the variation; and

(ii) inviting persons to make submissions to the ACCC about the variation within the time limit specified in the notice; and

(b) consider any submissions received within the time limit specified in the notice.

(3) The time limit must not be shorter than 15 business days after the notice is published.

151V Criteria for accepting variation

Scope

(1) This section applies if:

(a) a person gives the ACCC a variation of a standard functional separation undertaking; or

(b) 2 or more persons give the ACCC a variation of a joint functional separation undertaking.

Criteria

(2) In deciding whether to accept the variation, the ACCC must have regard to:

(a) whether the variation promotes the long-term interests of end-users of carriage services or of services supplied by means of carriage services; and

(b) the matters (if any) specified in a determination under subsection (3); and

(c) such other matters (if any) as the ACCC considers relevant.

(3) The Minister may, by legislative instrument, determine one or more matters for the purposes of paragraph (2)(b).

151W Revocation of functional separation undertaking

Standard functional separation undertaking

(1) If:

(a) a standard functional separation undertaking given by a person is in force; and

(b) the person has:

(i) breached a fundamental provision of the undertaking; or

(ii) contravened section 151ZF or 151ZG;

the ACCC may, by written notice given to the person, revoke the undertaking.

(2) If:

(a) a standard functional separation undertaking given by a person is in force;
and

(b) the ACCC is satisfied that the person has an unsatisfactory compliance
record in relation to functional separation;

the ACCC may, by written notice given to the person, revoke the undertaking.

(3) If:

(a) a standard functional separation undertaking given by a person is in force;
and

(b) the person requests the ACCC, in writing, to revoke the undertaking;
the ACCC must, by written notice given to the person, revoke the undertaking.

(4) A revocation under subsection (1), (2) or (3) takes effect at the time specified in
the notice of revocation. The specified time:

(a) must not be earlier than the time the notice is given; and

(b) must not be later than 12 months after the notice is given.

(5) After the giving of a notice of revocation of a standard functional separation
undertaking under subsection (1), (2) or (3):

(a) the undertaking does not apply to local access line services supplied using
a local access line that came into existence after the notice was given; and

(b) the definitions of *retail business unit* and *wholesale business unit* in
section 142A (in so far as those definitions relate to the undertaking) have
effect as if references in those definitions to the supply of local access line
services did not include the supply of local access line services using a
local access line that came into existence after the notice was given.

Joint functional separation undertaking

(6) If:

(a) a joint functional separation undertaking given by 2 or more persons is in
force; and

(b) any of those persons has:

(i) breached a fundamental provision of the undertaking; or

(ii) contravened section 151ZF or 151ZG;

the ACCC may, by written notice given to each of those persons, revoke the
undertaking.

(7) If:

(a) a joint functional separation undertaking given by 2 or more persons is in
force; and

(b) the ACCC is satisfied that any of those persons has an unsatisfactory
compliance record in relation to functional separation;

the ACCC may, by written notice given to each of those persons, revoke the
undertaking.

(8) If:

(a) a joint functional separation undertaking given by 2 or more persons is in force; and

(b) those persons request the ACCC, in writing, to revoke the undertaking; the ACCC must, by written notice given to each of those persons, revoke the undertaking.

(9) A revocation under subsection (6), (7) or (8) takes effect at the time specified in the notice of revocation. The specified time:

(a) must not be earlier than the time the notice is given; and

(b) must not be later than 12 months after the notice is given.

(10) After the giving of a notice of revocation of a joint functional separation undertaking under subsection (6), (7) or (8), the undertaking does not apply to local access line services supplied using a local access line that came into existence after the notice was given.

Matters to which the ACCC must have regard

(11) In exercising its powers under this section, the ACCC must have regard to the following matters:

(a) whether arrangements to maintain the continuity of the supply of superfast carriage services to residential customers using local access lines:

(i) have been made; or

(ii) can be made before the relevant revocation takes effect;

(b) in the case of a revocation under subsection (1) or (6)—the consequences of the breach;

(c) in the case of a revocation under subsection (2) or (7)—the consequences of the person's unsatisfactory compliance record;

(d) such other matters (if any) as the ACCC considers relevant.

151X Consultation—revocation of functional separation undertaking

Revocation of standard functional separation undertaking

(1) Before making a decision under subsection 151W(1) or (2) to revoke a standard functional separation undertaking given by a person, the ACCC must:

(a) give the person a written notice:

(i) stating that the ACCC proposes to revoke the undertaking; and

(ii) inviting the person to make a submission to the ACCC about the revocation within the time limit specified in the notice; and

(b) consider any submission received within the time limit specified in the notice.

(2) The time limit must not be shorter than 15 business days after the notice is given.

Revocation of joint functional separation undertaking

(3) Before making a decision under subsection 151W(6) or (7) to revoke a joint functional separation undertaking given by 2 or more persons, the ACCC must:

-
- (a) give each of those persons a written notice:
 - (i) stating that the ACCC proposes to revoke the undertaking; and
 - (ii) inviting those persons to make submissions to the ACCC about the revocation within the time limit specified in the notice; and
 - (b) consider any submissions received within the time limit specified in the notice.

(4) The time limit must not be shorter than 15 business days after the notice is given.

151Y Notification that a person is at risk of having an unsatisfactory compliance record in relation to functional separation

Scope

(1) This section applies to:

- (a) a breach by a person of a functional separation undertaking given by the person, so long as the breach occurred when the undertaking was in force; and
- (b) a contravention by a person of section 143B, 151ZA, 151ZB, 151ZF, 151ZG, 151ZH or 151ZI.

Note: See section 142B.

Notification

(2) If:

- (a) a functional separation undertaking given by a person is in force; and
- (b) the ACCC is aware of one or more breaches or contraventions by the person; and
- (c) the ACCC is satisfied that those breaches or contraventions do not mean that the person has an unsatisfactory compliance record in relation to functional separation; and
- (d) the ACCC is satisfied that, if there were to be a particular kind of additional breach or contravention by the person, the person would have an unsatisfactory compliance record in relation to functional separation;

the ACCC must:

- (e) give the person a written notice:
 - (i) stating that the ACCC considers that the person is at risk of having an unsatisfactory compliance record in relation to functional separation; and
 - (ii) informing the person that an unsatisfactory compliance record is a ground for revoking the undertaking; and
- (f) do so as soon as practicable after becoming satisfied as mentioned in paragraph (d).

Note: See section 142B.

-
- (3) A failure to comply with subsection (2) does not affect the validity of a revocation of a functional separation undertaking.

151Z Variation of functional separation undertaking following giving of revocation notice

Standard functional separation undertaking

(1) If:

(a) the ACCC has given a notice under section 151W revoking a standard functional separation undertaking; and

(b) the revocation has not taken effect;

the ACCC may, by written notice given to the person who gave the undertaking, vary the undertaking.

(2) The ACCC must not vary a standard functional separation undertaking under subsection (1) unless the variation:

(a) addresses the matter or matters that constituted the grounds for the revocation of the undertaking under section 151W; and

(b) does not address any other matter.

Joint functional separation undertaking

(3) If:

(a) the ACCC has given a notice under section 151W revoking a joint functional separation undertaking; and

(b) the revocation has not taken effect;

the ACCC may, by written notice given to each of the persons who gave the undertaking, vary the undertaking.

(4) The ACCC must not vary a joint functional separation undertaking under subsection (3) unless the variation:

(a) addresses the matter or matters that constituted the grounds for the revocation of the undertaking under section 151W; and

(b) does not address any other matter.

When variation takes effect

- (5) A variation under subsection (1) or (3) takes effect at the time the notice is given.

151ZA Reporting obligations following giving of revocation notice

Standard functional separation undertaking

(1) If:

(a) the ACCC has given a notice under section 151W revoking a standard functional separation undertaking; and

(b) the revocation has not taken effect;

the ACCC may, by written notice given to the person who gave the undertaking, direct the person:

(c) to give the ACCC:

- (i) a report about the person's compliance with the undertaking; or
- (ii) information about the person's compliance with the undertaking; or
- (iii) a report about action that the person has taken, is taking, or proposes to take for the purpose of ensuring that the person complies with sections 142C and 143 after the revocation takes effect; or
- (iv) information about action that the person has taken, is taking, or proposes to take for the purpose of ensuring that the person complies with sections 142C and 143 after the revocation takes effect; and

(d) to do so within the period specified in the direction.

Note: See section 151ZJ (self-incrimination).

Joint functional separation undertaking

(2) If:

(a) the ACCC has given a notice under section 151W revoking a joint functional separation undertaking; and

(b) the revocation has not taken effect;

the ACCC may, by written notice given to a person who gave the undertaking jointly with one or more other persons, direct the person:

(c) to give the ACCC:

- (i) a report about the person's compliance with the undertaking; or
- (ii) information about the person's compliance with the undertaking; or
- (iii) a report about action that the person has taken, is taking, or proposes to take for the purpose of ensuring that the person complies with sections 142C and 143 after the revocation takes effect; or
- (iv) information about action that the person has taken, is taking, or proposes to take for the purpose of ensuring that the person complies with sections 142C and 143 after the revocation takes effect; and

(d) to do so within the period specified in the direction.

Note: See section 151ZJ (self-incrimination).

Compliance with direction

(3) A person must comply with a direction under subsection (1) or (2).

Ancillary contraventions

(4) A person must not:

(a) aid, abet, counsel or procure a contravention of subsection (3); or

(b) induce, whether by threats or promises or otherwise, a contravention of subsection (3); or

(c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (3); or

(d) conspire with others to effect a contravention of subsection (3).

Civil penalty provisions

(5) Subsections (3) and (4) are ***civil penalty provisions***.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

151ZB Requirement to notify changes in control of person who gave undertaking

Notification by person who gave undertaking

(1) If:

(a) a functional separation undertaking given by a person (the ***first person***) is in force; and

(b) the first person becomes aware that:

(i) a person who was not in a position to exercise control of the first person has become in a position to exercise control of the first person; or

(ii) a person who was in a position to control the first person has ceased to be in that position;

the first person must:

(c) notify the ACCC, in writing, of that event; and

(d) do so as soon as practicable, but not later than 10 business days, after becoming so aware.

Note: See section 154.

(2) The notice must be in a form approved, in writing, by the ACCC.

Notification by controller of person who gave undertaking

(3) If:

(a) a functional separation undertaking given by a person (the ***first person***) is in force; and

(b) another person becomes aware that the other person is in a position to exercise control of the first person;

the other person must:

(c) notify the ACCC, in writing, of that position; and

(d) do so as soon as practicable, but not later than 10 business days, after becoming so aware.

Note: See section 154.

(4) The notice must be in a form approved, in writing, by the ACCC.

Ancillary contraventions

(5) A person must not:

(a) aid, abet, counsel or procure a contravention of subsection (1) or (3); or

(b) induce, whether by threats or promises or otherwise, a contravention of subsection (1) or (3); or

(c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (1) or (3); or

(d) conspire with others to effect a contravention of subsection (1) or (3).

Civil penalty provisions

(6) Subsections (1), (3) and (5) are *civil penalty provisions*.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

151ZC Register of functional separation undertakings

(1) The ACCC is to maintain a Register in which the ACCC includes:

(a) all functional separation undertakings that have been accepted by the ACCC (including those that are no longer in force); and

(b) in the case of a functional separation undertaking that, under section 151B, is taken to have been given by a corporation:

(i) the name of the corporation; and

(ii) the date the undertaking came into force; and

(c) all variations of functional separation undertakings.

(2) The Register is to be maintained by electronic means.

(3) The Register is to be made available for inspection on the ACCC's website.

(4) The Register is not a legislative instrument.

151ZD Compliance with functional separation undertaking

(1) If a functional separation undertaking given by a person is in force, the person must comply with the undertaking.

Note: See also section 142B.

Ancillary contraventions

(2) A person must not:

(a) aid, abet, counsel or procure a contravention of subsection (1); or

(b) induce, whether by threats or promises or otherwise, a contravention of subsection (1); or

(c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (1); or

(d) conspire with others to effect a contravention of subsection (1).

Civil penalty provisions

(3) Subsections (1) and (2) are *civil penalty provisions*.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

151ZE Enforcement of functional separation undertaking

(1) If:

(a) a functional separation undertaking given by a person is in force; and

(b) the Federal Court is satisfied, on the application of:

(i) the ACCC; or

(ii) a carrier; or

(iii) a carriage service provider;

that the person has breached the undertaking;

the Court may make any or all of the following orders:

(c) an order directing the person to comply with the undertaking;

(d) an order directing the disposal of network units, lines, shares or other assets;

(e) an order restraining the exercise of any rights attached to shares;

(f) an order prohibiting or deferring the payment of any sums due to a person in respect of shares held by the person;

(g) an order that any exercise of rights attached to shares be disregarded;

(h) an order directing the person to pay to the Commonwealth an amount up to the amount of any financial benefit that the person has obtained directly or indirectly and that is reasonably attributable to the breach;

(i) any order that the Court considers appropriate directing the person to compensate any other person (who may be the applicant) who has suffered loss or damage as a result of the breach;

(j) any other order that the Court considers appropriate.

Note: See also section 142B.

(2) In addition to the Federal Court's powers under subsection (1), the Court:

(a) has power, for the purpose of securing compliance with any other order made under this section, to make an order directing any person to do, or refrain from doing, a specified act; and

(b) has power to make an order containing such ancillary or consequential provisions as the Court thinks just.

(3) The Federal Court may, before making an order under this section, direct that notice of the application be given to such persons as it thinks fit or be published in such manner as it thinks fit, or both.

(4) The Federal Court may, by order, rescind, vary or discharge an order made by it under this section or suspend the operation of such an order.

Division 2C—Non-discrimination rules

151ZF Eligible services to be supplied on a non-discriminatory basis

No discrimination between wholesale customers

_____ (1) If:

_____ (a) an eligible service is supplied, or proposed to be supplied, by a person using a local access line; and

_____ (b) any of the following conditions is satisfied:

_____ (i) section 142C applies to the line;

_____ (ii) section 143 applies to the line;

_____ (iii) neither section 142C nor section 143 applies to the line, and there is in force a functional separation undertaking that relates to local access line services supplied, or proposed to be supplied, using the line;

the person must not, on or after the designated commencement date, discriminate between the person's wholesale customers, or the person's prospective wholesale customers, in relation to the supply of eligible services using the line.

_____ (2) The rule in subsection (1) does not prevent discrimination against a wholesale customer, or prospective wholesale customer, if the person has reasonable grounds to believe that the wholesale customer or prospective wholesale customer would fail, to a material extent, to comply with the terms and conditions on which the person supplies eligible services using the line.

_____ (3) Examples of grounds for believing as mentioned in subsection (2) include:

_____ (a) evidence that the wholesale customer or prospective wholesale customer is not creditworthy; and

_____ (b) repeated failures by the wholesale customer or prospective wholesale customer to comply with the terms and conditions on which the person supplied eligible services (whether or not using the line).

No discrimination by a person in favour of itself

_____ (4) If:

_____ (a) a person supplies, or proposes to supply, an eligible service using a local access line;

_____ (i) to itself; and

_____ (ii) to its wholesale customers or prospective wholesale customers; and

_____ (b) any of the following conditions is satisfied:

_____ (i) section 142C applies to the line;

_____ (ii) section 143 applies to the line;

_____ (iii) neither section 142C nor section 143 applies to the line, and there is in force a functional separation undertaking that relates to local access line services supplied, or proposed to be supplied, using the line;

the person must not, on or after the designated commencement date, discriminate in favour of itself in relation to the supply of the eligible service.

Ancillary contraventions

(5) A person must not:

- (a) aid, abet, counsel or procure a contravention of subsection (1) or (4); or
- (b) induce, whether by threats or promises or otherwise, a contravention of subsection (1) or (4); or
- (c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (1) or (4); or
- (d) conspire with others to effect a contravention of subsection (1) or (4).

Civil penalty provisions

(6) Subsections (1), (4) and (5) are ***civil penalty provisions***.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

151ZG Eligible services—related activities to be carried on on a non-discriminatory basis

Scope

(1) This section applies to a person, on and after the designated commencement date, if:

- (a) an eligible service is supplied, or proposed to be supplied, by a person using a local access line; and
- (b) any of the following conditions is satisfied:
 - (i) section 142C applies to the line;
 - (ii) section 143 applies to the line;
 - (iii) neither section 142C nor section 143 applies to the line, and there is in force a functional separation undertaking that relates to local access line services supplied, or proposed to be supplied, using the line.

No discrimination between wholesale customers

(2) The person must not, in carrying on any of the following activities, discriminate between the person's wholesale customers or the person's prospective wholesale customers:

- (a) developing a new eligible service;
- (b) enhancing an eligible service;
- (c) extending or enhancing the capability of a facility or telecommunications network by means of which an eligible service is, or is to be, supplied;
- (d) planning for a facility or telecommunications network by means of which an eligible service is, or is to be, supplied;
- (e) an activity that is preparatory to the supply of an eligible service;
- (f) an activity that is ancillary or incidental to the supply of an eligible service;
- (g) giving information to service providers about any of the above activities.

No discrimination by a person in favour of itself

(3) The person must not discriminate in favour of itself in relation to the carrying on of any of the following activities:

- (a) developing a new eligible service;
- (b) enhancing an eligible service;
- (c) extending or enhancing the capability of a facility or telecommunications network by means of which an eligible service is, or is to be, supplied;
- (d) planning for a facility or telecommunications network by means of which an eligible service is, or is to be, supplied;
- (e) an activity that is preparatory to the supply of an eligible service;
- (f) an activity that is ancillary or incidental to the supply of an eligible service;
- (g) giving information to service providers about any of the above activities.

Ancillary contraventions

(4) A person must not:

- (a) aid, abet, counsel or procure a contravention of subsection (2) or (3); or
- (b) induce, whether by threats or promises or otherwise, a contravention of subsection (2) or (3); or
- (c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (2) or (3); or
- (d) conspire with others to effect a contravention of subsection (2) or (3).

Civil penalty provisions

(5) Subsections (2), (3) and (4) are ***civil penalty provisions***.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

151ZH Statement about the differences between an access agreement and an offer etc.

(1) If:

- (a) an access agreement is entered into by a person on or after the designated commencement date; and
- (b) the eligible service to which the access agreement relates is an eligible service supplied, or proposed to be supplied, by the person using a local access line; and
- (c) any of the following conditions is satisfied:
 - (i) section 142C applies to the line;
 - (ii) section 143 applies to the line;
 - (iii) neither section 142C nor section 143 applies to the line, and there is in force a functional separation undertaking that relates to local access line services supplied, or proposed to be supplied, using the line; and

(d) immediately before the access agreement was entered into, there was published on the person's website:

(i) the terms and conditions relating to price or a method of ascertaining price; or

(ii) other terms and conditions;

on which the person offers to supply eligible services using the line; and

(e) the terms and conditions set out in the access agreement are not the same as the terms and conditions set out in the offer;

the person must, within 5 business days after the day on which the access agreement was entered into, publish on the person's website a statement, in a form approved in writing by the ACCC:

(f) identifying the parties to the access agreement; and

(g) describing the differences between the terms and conditions set out in the access agreement and the terms and conditions set out in the offer; and

(h) setting out such other information (if any) about the access agreement as is required by the form.

Note: For *access agreement*, see subsection (5).

Variation agreement

(2) If:

(a) a variation agreement is entered into by a person on or after the designated commencement date; and

(b) the eligible service to which the relevant access agreement relates is an eligible service supplied, or proposed to be supplied, by the person using a local access line; and

(c) any of the following conditions is satisfied:

(i) section 142C applies to the line;

(ii) section 143 applies to the line;

(iii) neither section 142C nor section 143 applies to the line, and there is in force a functional separation undertaking that relates to local access line services supplied, or proposed to be supplied, using the line; and

(d) immediately before the variation agreement was entered into, there was published on the person's website:

(i) the terms and conditions relating to price or a method of ascertaining price; or

(ii) other terms and conditions;

on which the person offers to supply eligible services using the line; and

(e) the terms and conditions set out in the relevant access agreement (as varied by the variation agreement) are not the same as the terms and conditions set out in the offer;

the person must, within 5 business days after the day on which the variation agreement was entered into, publish on the person's website a statement, in a form approved in writing by the ACCC:

(f) identifying the parties to the relevant access agreement (as varied by the variation agreement); and

(g) describing the differences between the terms and conditions set out in the relevant access agreement (as varied by the variation agreement) and the terms and conditions set out in the offer; and

(h) setting out such other information (if any) about the relevant access agreement (as varied by the variation agreement) as is required by the form.

Note: For *variation agreement*, see subsection (5).

Publication of offer

(2A) If:

(a) a person offers to supply eligible services to the person's wholesale customers, or prospective wholesale customers, using a local access line; and

(b) any of the following conditions is satisfied:

(i) section 142C applies to the line;

(ii) section 143 applies to the line;

(iii) neither section 142C nor section 143 applies to the line, and there is in force a functional separation undertaking that relates to local access line services supplied, or proposed to be supplied, using the line;

the person must publish on the person's website:

(c) the terms and conditions relating to price or a method of ascertaining price; or

(d) other terms and conditions;

on which the person offers to supply eligible services to the person's wholesale customers, or prospective wholesale customers, using the line.

Ancillary contraventions

(3) A person must not:

(a) aid, abet, counsel or procure a contravention of subsection (1), (2) or (2A); or

(b) induce, whether by threats or promises or otherwise, a contravention of subsection (1), (2) or (2A); or

(c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (1), (2) or (2A); or

(d) conspire with others to effect a contravention of subsection (1), (2) or (2A).

Civil penalty provisions

(4) Subsections (1), (2), (2A) and (3) are *civil penalty provisions*.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

Access agreement and variation agreement

(5) For the purposes of this section, **access agreement** and **variation agreement** have the same respective meanings as in Part XIC of the *Competition and Consumer Act 2010*. For this purpose, assume that:

- (a) each reference in section 152AF, subsections 152AG(1) and (3) and section 152BE of that Act to a declared service were a reference to an eligible service; and
- (b) subsection 152BE(2) of that Act had not been enacted.

151ZHA Judicial enforcement of non-discrimination rules

(1) If the Federal Court is satisfied that a person has, on or after the designated commencement date, contravened subsection 151ZF(1), (4) or (5), 151ZG(2), (3) or (4) or 151ZH(1), (2), (2A) or (3), the Court may, on the application of:

- (a) the ACCC; or
- (b) a carrier; or
- (c) a carriage service provider;

make all or any of the following orders:

- (d) an order directing the person to comply with that subsection;
- (e) an order directing the person to compensate any other person (who may be the applicant) who has suffered loss or damage as a result of the contravention;
- (f) any other order that the Court thinks appropriate.

(2) The Federal Court may discharge or vary an order granted under this section.

Division 3—Other provisions

151ZI Anti-avoidance

- (1) A corporation must not, either alone or together with one or more other persons:
- (a) enter into a scheme; or
 - (b) begin to carry out a scheme; or
 - (c) carry out a scheme;
- for the sole or dominant purpose of avoiding the application of any provision of this Part in relation to:
- (d) the corporation; or
 - (e) any other corporation.

Ancillary contraventions

- (2) A person must not:
- (a) aid, abet, counsel or procure a contravention of subsection (1); or
 - (b) induce, whether by threats or promises or otherwise, a contravention of subsection (1); or
 - (c) be in any way, directly or indirectly, knowingly concerned in, or party to, a contravention of subsection (1); or
 - (d) conspire with others to effect a contravention of subsection (1).

Civil penalty provisions

- (3) Subsections (1) and (2) are ***civil penalty provisions***.

Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.

Scheme

- (4) For the purposes of this section, ***scheme*** means:
- (a) any agreement, arrangement, understanding, promise or undertaking, whether express or implied; or
 - (b) any scheme, plan, proposal, action, course of action or course of conduct, whether unilateral or otherwise;
- but does not include a functional separation undertaking.

151ZJ Self-incrimination

- (1) A person is not excused from:
- (a) giving a report in compliance with a provision of a functional separation undertaking covered by subsection 151A(10) or 151C(10) or (11); or
 - (b) giving a report or information under section 151ZA;

on the ground that the report or information might tend to incriminate the person or expose the person to a penalty.

(2) However, in the case of an individual:

(a) the report or information; or

(b) giving the report or information; or

(c) any information, document or thing obtained as a direct or indirect consequence of giving the report or information;

is not admissible in evidence against the individual:

(d) in civil proceedings for the recovery of a penalty; or

(e) in criminal proceedings (other than proceedings for an offence against section 137.1 or 137.2 of the *Criminal Code* that relates to the report).

151ZK Delegation

The ACCC may, by writing, delegate to a person who is:

(a) a member of the staff of the ACCC; and

(b) an SES employee or acting SES employee;

the ACCC's powers under any of the following provisions:

(c) subsection 103(4F) (formal warning);

(d) section 151D (further information);

(e) subsection 151F(7) (extension of decision-making period);

(f) section 151H (serial undertakings);

(g) section 151R (further information);

(h) subsection 151T(7) (extension of decision-making period).

151ZL Review by the Australian Competition Tribunal

(1) If the ACCC makes a decision under section 151F to reject a functional separation undertaking that was given by a person or persons, the person or persons may apply to the Australian Competition Tribunal for a review of the decision.

(2) If the ACCC makes a decision under section 151N to vary a functional separation undertaking that was given by a person or persons, the person or persons may apply to the Australian Competition Tribunal for a review of the decision.

(3) If the ACCC makes a decision under section 151T to reject a variation that was given by a person or persons, the person or persons may apply to the Australian Competition Tribunal for a review of the decision.

(4) If the ACCC makes a decision under section 151W to revoke a functional separation undertaking that was given by a person or persons, the person or persons may apply to the Australian Competition Tribunal for a review of the decision.

(5) If the ACCC makes a decision under section 151Z to vary a functional separation undertaking that was given by a person or persons, the person or persons may apply to the Australian Competition Tribunal for a review of the decision.

(6) An application under this section for a review of a decision must be:

(a) in writing; and

(b) in the case of an application under subsection (1), (3), (4) or (5)—made within 21 days after the ACCC made the decision; and

(c) in the case of an application under subsection (2)—made within 14 days after the ACCC made the decision.

(7) If the Australian Competition Tribunal receives an application under this section for a review of a decision, the Australian Competition Tribunal must review the decision.

151ZM Functions and powers of the Australian Competition Tribunal etc.

Decision on review

(1) On a review of a decision of the ACCC of a kind mentioned in section 151ZL, the Australian Competition Tribunal may make a decision:

(a) affirming the ACCC's decision; or

(b) setting aside the ACCC's decision;

and, for the purposes of the review, the Australian Competition Tribunal may perform all the functions and exercise all the powers of the ACCC.

(2) A decision by the Australian Competition Tribunal:

(a) affirming a decision of the ACCC; or

(b) setting aside a decision of the ACCC;

is taken, for the purposes of this Act (other than this section or section 151ZL), to be a decision of the ACCC.

(3) If the Australian Competition Tribunal sets aside a decision of the ACCC under section 151F to reject a functional separation undertaking, subsection 151F(5) has effect as if the undertaking had been received by the ACCC immediately after the decision was set aside.

Note: This subsection resets the start of the 3-month decision-making period set out in subsection 151F(5).

(4) If the Australian Competition Tribunal sets aside a decision of the ACCC under section 151T to reject a variation, subsection 151T(5) has effect as if the variation had been received by the ACCC immediately after the decision was set aside.

Note: This subsection resets the start of the 3-month decision-making period set out in subsection 151T(5).

Conduct of review

(5) For the purposes of a review by the Australian Competition Tribunal, the member of the Australian Competition Tribunal presiding at the review may

require the ACCC to give such information, make such reports and provide such other assistance to the Australian Competition Tribunal as the member specifies.

(6) For the purposes of a review, the Australian Competition Tribunal may have regard to any information given, documents produced or evidence given to the ACCC in connection with the making of the decision to which the review relates.

(7) Paragraphs 103(1)(a) and (b) and 108(b) of the *Competition and Consumer Act 2010* have effect, in relation to a review, as if a reference in those paragraphs to that Act included a reference to this Part.

Note: Division 2 of Part IX of the *Competition and Consumer Act 2010* applies to proceedings before the Australian Competition Tribunal.

151ZN Provisions that do not apply in relation to an Australian Competition Tribunal review

Division 1 of Part IX of the *Competition and Consumer Act 2010* does not apply in relation to a review by the Australian Competition Tribunal of a decision of the ACCC of a kind mentioned in section 151ZL of this Act.

152 Associate

(1) For the purposes of this Part, an *associate* of a person (the *controller*) in relation to control of:

(a) a telecommunications network; or

(aa) a line; or

(b) a company;

is:

(c) a partner of the controller; or

(d) if the controller or another person who is an associate of the controller under another paragraph receives benefits or is capable of benefiting under a trust—the trustee of the trust; or

(e) a person (whether a company or not) who:

(i) acts, or is accustomed to act; or

(ii) under a contract or an arrangement or understanding (whether formal or informal) is intended or expected to act;

in accordance with the directions, instructions or wishes of, or in concert with:

(iii) the controller; or

(iv) the controller and another person who is an associate of the controller under another paragraph; or

(f) another company if:

(i) the other company is a related body corporate of the controller for the purposes of the *Corporations Act 2001*; or

(ii) the controller, or the controller and another person who is an associate of the controller under another paragraph, is or are in a position to exercise control of the other company.

(2) However, persons are not *associates* of each other if the ACCC is satisfied that:

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- (a) they do not act together in any relevant dealings relating to the network, line or company; and
 - (b) neither of them is in a position to exert influence over the business dealings of the other in relation to the network, line or company.

153 Control

In this Part, **control** includes control as a result of, or by means of, trusts, agreements, arrangements, understandings and practices, whether or not having legal or equitable force and whether or not based on legal or equitable rights.

154 Control of a company

- (1) For the purposes of this Part, the question of whether a person is in a position to exercise control of a company is to be determined under Schedule 1 to the *Broadcasting Services Act 1992*.
- (2) However, in determining that question:
 - (a) the definition of **associate** in subsection 6(1) of the *Broadcasting Services Act 1992* does not apply; and
 - (b) the definition of **associate** in section 152 of this Act applies instead.

155 When a person is in a position to exercise control of a network

- (1) For the purposes of this Part, a person (the **controller**) is in a position to exercise control of a telecommunications network if:
 - (a) the controller legally or beneficially owns the network (whether alone or together with one or more other persons); or
 - (b) the controller is in a position, either alone or together with an associate of the controller and whether directly or indirectly:
 - (i) to exercise control of the operation of all or part of the network; or
 - (ii) to exercise control of the selection of the kinds of services that are supplied using the network; or
 - (iii) to exercise control of the supply of services using the network; or
 - (c) a company other than the controller legally or beneficially owns the network (whether alone or together with one or more other persons), and:
 - (i) the controller is in a position, either alone or together with an associate of the controller, to exercise control of the company; or
 - (ii) the controller, either alone or together with an associate of the controller, is in a position to veto any action taken by the board of directors of the company; or
 - (iii) the controller, either alone or together with an associate of the controller, is in a position to appoint or secure the appointment of, or veto the appointment of, at least half of the board of directors of the company; or

(iv) the controller, either alone or together with an associate of the controller, is in a position to exercise, in any other manner, whether directly or indirectly, direction or restraint over any substantial issue affecting the management or affairs of the company; or

(v) the company or more than 50% of its directors act, or are accustomed to act, in accordance with the directions, instructions or wishes of, or in concert with, the controller, the controller and an associate of the controller acting together, or the directors of the controller; or

(vi) the company or more than 50% of its directors, under a contract or an arrangement or understanding (whether formal or informal), are intended or expected to act in accordance with the directions, instructions or wishes of, or in concert with, the controller, the controller and an associate of the controller acting together, or the directors of the controller.

(2) An employee is not, except through an association with another person, to be regarded as being in a position to exercise control of a network under subsection (1) purely because of being an employee.

(3) More than one person may be in a position to exercise control of a network.

(4) Subsections (1) to (3) do not apply in determining the meaning of an expression used in:

(a) section 142C; or

(b) sections 151ZF, 151ZG and 151ZH, to the extent to which they relate to a line to which section 142C applies; or

(c) any other provision of this Part, so far as that provision relates to:

(i) section 142C; or

(ii) section 151ZF, 151ZG or 151ZH, to the extent to which that section relates to a line to which section 142C applies.

155A When a person is in a position to exercise control of a line

(1) For the purposes of this Part, a person (the *controller*) is in a position to exercise control of a line if:

(a) the controller legally or beneficially owns the line (whether alone or together with one or more other persons); or

(b) the controller is in a position, either alone or together with an associate of the controller and whether directly or indirectly:

(i) to exercise control of the operation of all or part of the line; or

(ii) to exercise control of the selection of the kinds of services that are supplied using the line; or

(iii) to exercise control of the supply of services using the line; or

(c) a company other than the controller legally or beneficially owns the line (whether alone or together with one or more other persons), and:

(i) the controller is in a position, either alone or together with an associate of the controller, to exercise control of the company; or

(ii) the controller, either alone or together with an associate of the controller, is in a position to veto any action taken by the board of directors of the company; or

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- (iii) the controller, either alone or together with an associate of the controller, is in a position to appoint or secure the appointment of, or veto the appointment of, at least half of the board of directors of the company; or
- (iv) the controller, either alone or together with an associate of the controller, is in a position to exercise, in any other manner, whether directly or indirectly, direction or restraint over any substantial issue affecting the management or affairs of the company; or
- (v) the company or more than 50% of its directors act, or are accustomed to act, in accordance with the directions, instructions or wishes of, or in concert with, the controller, the controller and an associate of the controller acting together, or the directors of the controller; or
- (vi) the company or more than 50% of its directors, under a contract or an arrangement or understanding (whether formal or informal), are intended or expected to act in accordance with the directions, instructions or wishes of, or in concert with, the controller, the controller and an associate of the controller acting together, or the directors of the controller.
- (2) An employee is not, except through an association with another person, to be regarded as being in a position to exercise control of a line under subsection (1) purely because of being an employee.
- (3) More than one person may be in a position to exercise control of a line.
- (4) Subsections (1) to (3) do not apply in determining the meaning of an expression used in:
- (a) section 143; or
- (b) sections 151ZF, 151ZG and 151ZH, to the extent to which they relate to a line to which section 143 applies; or
- (c) any other provision of this Part, so far as that provision relates to:
- (i) section 143; or
- (ii) section 151ZF, 151ZG or 151ZH, to the extent to which that section relates to a line to which section 143 applies.

156 Deemed networks etc.

- (1) For the purposes of this Part, if:
- (a) a telecommunications network is altered or upgraded on or after 1 January 2011, but before the designated commencement date; and
- (b) as a result of the alteration or upgrade, a part of the network became capable of being used to supply a superfast carriage service to residential customers, or prospective residential customers, in Australia;
- then:
- (c) that part is taken to be a network in its own right; and

(d) the network referred to in paragraph (c) is taken to have come into existence on or after 1 January 2011, but before the designated commencement date.

(2) For the purposes of this Part, if:

(a) a telecommunications network is extended on or after 1 January 2011, but before the designated commencement date; and

(b) the extended part of the network is capable of being used to supply a superfast carriage service to residential customers, or prospective residential customers, in Australia;

then:

(c) the extended part is taken to be a network in its own right; and

(d) the network referred to in paragraph (c) is taken to have come into existence on or after 1 January 2011, but before the designated commencement date.

(3) If:

(a) a part of the infrastructure of a telecommunications network is situated in a particular area that is being or was developed as a particular stage of a real estate development project (within the ordinary meaning of that expression); and

(b) before the designated commencement date, the network is extended to another area that is being, or is to be, developed as another stage of the project;

subsection (2) does not apply to the extension.

(4) If:

(a) a telecommunications network was in existence immediately before 1 January 2011; and

(b) the network is extended on or after 1 January 2011; and

(c) no point on the infrastructure of the extension is located more than:

(i) 1 kilometre; or

(ii) if a longer distance is specified in the regulations—that longer distance;

from a point on the infrastructure of the network as the network stood immediately before 1 January 2011;

then:

(d) subsection (2) does not apply to the extension at any time before the designated commencement date; and

(e) if, at a time that occurs on or after the designated commencement date, there is in force a legally enforceable agreement that satisfies the following conditions:

(i) the agreement provides for the transfer of ownership or control of the infrastructure of the extension to an NBN corporation;

(ii) the agreement is covered by a determination made under subsection 577BA(9);

subsection (2) of this section does not apply to the extension at that time; and

(f) if, at a time that occurs on or after the designated commencement date, there is in force a legally enforceable agreement that satisfies the following conditions:

(i) the contract provides for the deactivation or decommissioning of the infrastructure of the extension;

(ii) the contract was entered into between NBN Co and the listed Optus companies (see subsection (7));

subsection (2) does not apply to the extension at that time.

(5) The regulations may provide that subsection (2) does not apply to a specified extension of a telecommunications network.

Note: For specification by class, see the *Acts Interpretation Act 1901*.

(6) Subsections (1) and (2) do not apply in determining the meaning of an expression used in:

(a) section 142C; or

(b) sections 151ZF, 151ZG and 151ZH, to the extent to which they relate to a line to which section 142C applies; or

(c) any other provision of this Part, so far as that provision relates to:

(i) section 142C; or

(ii) section 151ZF, 151ZG or 151ZH, to the extent to which that section relates to a line to which section 142C applies.

Listed Optus company

(7) For the purposes of this section, *listed Optus company* means:

(a) Optus Networks Pty Limited (ACN 008 570 330); or

(b) Optus Internet Pty Limited (ACN 083 164 532); or

(c) Optus Vision Pty Limited (ACN 066 518 821); or

(d) Optus Vision Media Pty Limited (ACN 070 870 647); or

(e) Optus Systems Pty Limited (ACN 056 541 167); or

(f) SingTel Optus Pty Limited (ACN 052 833 208).

156A Certain lines deemed to have come into existence on or after the designated commencement date

(1) For the purposes of this Part, if:

(a) a local access line came into existence before the designated commencement date; and

(b) before the designated commencement date, the line was used wholly or principally to supply a superfast carriage service to non-residential customers in Australia; and

(c) on or after the designated commencement date, following:

(i) the construction or alteration of premises; or

(ii) changes to the activities carried out at premises;

the line is used wholly or principally to supply a superfast carriage service to residential customers in Australia;

the line is taken to have come into existence on or after the designated commencement date.

(2) Subsection (1) does not apply in determining the meaning of an expression used in:

(a) section 143; or

(b) sections 151ZF, 151ZG and 151ZH, to the extent to which they relate to a line to which section 143 applies; or

(c) any other provision of this Part, so far as that provision relates to:

(i) section 143; or

(ii) section 151ZF, 151ZG or 151ZH, to the extent to which that section relates to a line to which section 143 applies.

157 Certain installations and connections are not taken to be an extension, alteration or upgrade of a network

(1) For the purposes of this Part, if:

(a) a line is or was installed for the purposes of connecting particular premises to a telecommunications network; and

(b) the installation of the line enables or enabled the occupier of the premises to become a customer in relation to carriage services supplied using the network; and

(c) the premises are in close proximity to a line that forms part of the infrastructure of the network; and

(d) the network is capable of being used to supply a superfast carriage service; and

(e) the network came into existence before 1 January 2011;

neither the installation of the line mentioned in paragraph (a), nor the connection of the premises, is taken to be an extension, alteration or upgrade of the network.

(2) Subsection (1) does not apply in determining the meaning of an expression used in:

(a) section 142C; or

(b) sections 151ZF, 151ZG and 151ZH, to the extent to which they relate to a line to which section 142C applies; or

(c) any other provision of this Part, so far as that provision relates to:

(i) section 142C; or

(ii) section 151ZF, 151ZG or 151ZH, to the extent to which that section relates to a line to which section 142C applies.

158 Local access line

(1) For the purposes of this Part, a **local access line** is a line that is part of the infrastructure of a local access network.

(2) However, a line does not form part of a **local access line** to the extent that the line is on the customer side of the boundary of a telecommunications network.

(2A) Subsection (2) has effect subject to subsection (2B).

(2B) For the purposes of:

(a) section 142C; and

(b) sections 151ZF, 151ZG and 151ZH, to the extent to which they relate to a line to which section 142C applies; and

(c) any other provision of this Part, so far as that provision relates to:

(i) section 142C; or

(ii) section 151ZF, 151ZG or 151ZH, to the extent to which that section relates to a line to which section 142C applies;

if a line in a multi-unit building is used to supply a superfast carriage service to a residential customer living in a unit in the building:

(d) the line is taken to be a **local access line**; and

(e) the line is taken to form part of the infrastructure of a telecommunications network.

(3) For the purposes of this section, the **boundary of a telecommunications network** is to be determined in the same manner in which it is determined under section 22 for the purposes of sections 20, 21 and 30.

(4) For the purposes of this section, **local access network** has the meaning generally accepted within the telecommunications industry.

158A Deemed local access lines

(1) For the purposes of this Part, if:

(a) a local access line was in existence immediately before the designated commencement date; and

(b) the line is extended on or after the designated commencement date;

then:

(c) the extension is taken to be a local access line in its own right; and

(d) the local access line referred to in paragraph (c) is taken to have come into existence on or after the designated commencement date.

(2) Subsection (1) does not apply in determining the meaning of an expression used in:

(a) section 143; or

(b) sections 151ZF, 151ZG and 151ZH, to the extent to which they relate to a line to which section 143 applies; or

(c) any other provision of this Part, so far as that provision relates to:

(i) section 143; or

(ii) section 151ZF, 151ZG or 151ZH, to the extent to which that section relates to a line to which section 143 applies.

159 Alteration

- (1) For the purposes of this Part, an ***alteration*** of a telecommunications network does not include an extension of the network.
- (2) For the purposes of this Part, an ***alteration*** of a line does not include an extension of the line.

160 Upgrade of telecommunications network

- (1) For the purposes of this Part, an ***upgrade*** of a telecommunications network does not include an extension of the network.
- (2) For the purposes of this Part, an ***upgrade*** of a line does not include an extension of the line.

161 Extended meaning of residential customer

Home-based business carried on by an individual

- (1) For the purposes of this Part, if a business is carried on (otherwise than in the capacity of trustee) by an individual, and:
- (a) most or all of the work of the business is carried out at the residence of the individual; or
- (b) the business does not occupy any premises other than the residence of the individual;
- the individual, in the individual's capacity as a customer, is taken to be a ***residential customer***.

Home-based business carried on by a partnership

- (2) For the purposes of this Part, if a business is carried on by a partnership, and:
- (a) most or all of the work of the business is carried out at the residence of an individual who is:
- (i) one of the partners of the partnership; or
- (ii) the director, or one of the directors, of a corporation that is one of the partners of the partnership; or
- (b) the business does not occupy any premises other than the residence of an individual who is:
- (i) one of the partners of the partnership; or
- (ii) the director, or one of the directors, of a corporation that is one of the partners of the partnership;
- the partnership, in its capacity as a customer, is taken to be a ***residential customer***.

Home-based business carried on by a corporation

- (3) For the purposes of this Part, if a business is carried on (otherwise than in the capacity of trustee) by a corporation, and:
- (a) most or all of the work of the business is carried out at the residence of an individual who is the director, or one of the directors, of the corporation; or

(b) the business does not occupy any premises other than the residence of an individual who is the director, or one of the directors, of the corporation; the corporation, in its capacity as a customer, is taken to be a **residential customer**.

Home-based business carried on by a trust

(4) For the purposes of this Part, if a business is carried on by a trust, and:

(a) most or all of the work of the business is carried out at the residence of an individual who is:

(i) a trustee of the trust; or

(ii) the director, or one of the directors, of a corporation that is a trustee of the trust; or

(b) the business does not occupy any premises other than the residence of an individual who is:

(i) a trustee of the trust; or

(ii) the director, or one of the directors, of a corporation that is a trustee of the trust;

a trustee of the trust, in the trustee's capacity as a customer, is taken to be a **residential customer**.

162 Close proximity

(1) The Minister may, by legislative instrument, determine that, if specified circumstances exist in relation to premises and a line, the premises are taken, for the purposes of this Part, to be in close proximity to the line.

(2) The Minister may, by legislative instrument, determine that, if specified circumstances exist in relation to premises and a line, the premises are taken, for the purposes of this Part, not to be in close proximity to the line.

(3) A determination under subsection (1) or (2) must be of a legislative character.

Delegation to the ACCC

(4) The Minister may, by writing, delegate to the ACCC any or all of the Minister's powers under the following provisions:

(a) subsection (1);

(b) subsection (2).

(5) In performing a delegated function or exercising a delegated power, the ACCC must comply with any written directions of the Minister.

Part 13—Protection of communications

Division 1—Introduction

270 Simplified outline

The following is a simplified outline of this Part:

- Carriers, carriage service providers, number-database operators, emergency call persons and their respective associates must protect the confidentiality of information that relates to:
 - (a) the contents of communications that have been, or are being, carried by carriers or carriage service providers; and
 - (b) carriage services supplied by carriers and carriage service providers; and
 - (c) the affairs or personal particulars of other persons.
- The disclosure or use of protected information is authorised in limited circumstances (for example, disclosure or use for purposes relating to the enforcement of the criminal law).
- An authorised recipient of protected information may only disclose or use the information for an authorised purpose.
- Certain record-keeping requirements are imposed in relation to authorised disclosures or uses of information.

271 Eligible person

For the purposes of this Part, an *eligible person* is a person who is:

- (a) a carrier; or
- (b) a carriage service provider; or
- (c) an employee of a carrier; or
- (d) an employee of a carriage service provider; or
- (e) a telecommunications contractor; or
- (f) an employee of a telecommunications contractor.

272 Number-database operator and eligible number-database person

- (1) For the purposes of this Part, a *number-database operator* is a person in respect of which a determination is in force under subsection 472(1).
- (2) For the purposes of this Part, an *eligible number-database person* is a person who is:
 - (a) a number-database operator; or

-
- (b) an employee of a number-database operator; or
 - (c) a number-database contractor; or
 - (d) an employee of a number-database contractor.

273 Information

A reference in this Part to **information** includes a reference to opinion.

274 Telecommunications contractor

A reference in this Part to a **telecommunications contractor** is a reference to a person who performs services for or on behalf of:

- (a) a carrier; or
- (b) a carriage service provider;

but does not include a reference to a person who performs such services in the capacity of an employee of the carrier or provider.

275 Number-database contractor

A reference in this Part to a **number-database contractor** is a reference to a person who performs services for or on behalf of a number-database operator, but does not include a reference to a person who performs such services in the capacity of an employee of the operator.

275A Location information

(1) For the purposes of this Part, information about the location of:

- (a) a mobile telephone handset; or
- (b) any other mobile communications device;

is taken to be information that relates to the affairs of the customer responsible for the handset or device.

(2) For the purposes of this Part, a document about the location of:

- (a) a mobile telephone handset; or
- (b) any other mobile communications device;

is taken to be a document that relates to the affairs of the customer responsible for the handset or device.

(3) This section is enacted for the avoidance of doubt.

275B Emergency management person

(1) In this Part:

emergency management person means a person who holds, occupies or performs the duties of an office or position specified under subsection (2).

(2) The AFP Minister may, by legislative instrument, specify either or both of the following for the purposes of the definition of *emergency management person* in subsection (1) of this section:

(a) offices;

(b) positions.

(3) Offices or positions established by or under a law of a State or Territory may be specified under subsection (2).

(4) Subsection (3) does not limit subsection (2).

(5) Before making an instrument under subsection (2), the AFP Minister must consult the Minister administering this Act.

275C Emergency

In this Part:

emergency means an emergency or disaster (however described) within the meaning of an emergency law.

275D Emergency law

(1) In this Part:

emergency law means a law specified under subsection (2).

(2) The AFP Minister may, by legislative instrument, specify a law of a State or a Territory for the purposes of the definition of *emergency law* in subsection (1) of this section.

275E Relevant information

In this Part:

relevant information means information, or the contents of a document, disclosed as permitted by section 285A.

Division 2—Primary ~~disclosure consent~~ has the meaning given by rule 1.10A.

disclosure/~~use offences option has the meaning given by rule 4A.5.~~

**276 Primary disclosure/use offence—eligible persons option management service
~~has the meaning given by rule 4A.6.~~**

Current eligible persons

(1) An eligible person must not disclose or use any information or document that:

(a) ~~in relation to a particular designated sector, has the meaning set out in a~~
~~Schedule to these rules that relates to:~~

(i) the contents or substance of a communication ~~that has been carried by~~
~~a carrier or carriage service provider; or~~sector.

(ii) the contents or substance of a communication that is being carried by
a carrier or carriage service provider (including a communication that
has been collected or received by such a carrier or provider for
carriage by it but has not been delivered by it); or

(iii) carriage services supplied, or intended to be supplied, to another
person by a carrier or carriage service provider; or

(iv) the affairs or personal particulars (including any unlisted telephone
number or any address) of another person; and

(b) comes to the person's knowledge, or into the person's possession:

(i) if the person is a carrier or carriage service provider—in connection
with the person's business as such a carrier or provider; or

(ii) if the person is an employee of a carrier or carriage service provider—
because the person is employed by the carrier or provider in
connection with its business as such a carrier or provider; or

(iii) if the person is a telecommunications contractor—in connection with
the person's business as such a contractor; or

(iv) if the person is an employee of a telecommunications contractor—
because the person is employed by the contractor in connection with
its business as such a contractor.

Former eligible persons

(2) A person who has been an eligible person must not disclose or use any
information or document that:

(a) relates to a matter mentioned in paragraph (1)(a); and

(b) came to the person's knowledge, or into the person's possession:

(i) if the person was a carrier or carriage service provider—in connection
with the person's business as such a carrier or provider; or

(ii) if the person was an employee of a carrier or carriage service
provider—because the person was employed by the carrier or provider
in connection with its business as such a carrier or provider; or

(iii) if the person was a telecommunications contractor—in connection with the person’s business as such a contractor; or

(iv) if the person was an employee of a telecommunications contractor—because the person was employed by the contractor in connection with its business as such a contractor.

Offence

(3) A person who contravenes this section commits an offence punishable on conviction by imprisonment for a term not exceeding 2 years.

Note 1: This section is subject to the exceptions in Division 3 of this Part and in Chapter 4 of the *Telecommunications (Interception and Access) Act 1979*.

Note: ~~For the banking sector, see clause 2.1 of Schedule 3 to these rules.~~

~~*fit and proper person criteria* has the meaning given by rule 1.9.~~

~~*foreign entity* means a person who:~~

~~(a) is not a body corporate established by or under a law of the Commonwealth, of a State or of a Territory; and~~

~~(b) is neither an Australian citizen, nor a permanent resident (within the meaning of the *Australian Citizenship Act 2007*).~~

Note 2: See also sections 4AA and 4B of the *Crimes Act 1914*.

~~*Scope of subsection (1)—carriage by means of electromagnetic energy* 56CA(2) of the Act.~~

(4) Subparagraphs (1)(a)(i) and (ii) do not apply to a communication that is or has been carried by a carrier or carriage service provider unless the carriage was by means of, is by means of, or is proposed to be delivered by means of, guided and/or unguided electromagnetic energy.

~~277 Primary *general research*, in relation to an accredited data recipient, means research by the accredited data recipient:~~

~~(a) using CDR data that has been de-identified in accordance with the CDR data de-identification process; and~~

~~(b) that does not relate to the provision of goods or services to any particular CDR consumer.~~

~~*goods* includes products.~~

~~*insight disclosure/use offence—eligible number-database persons consent* has the meaning given by rule 1.10A.~~

Current eligible number-database persons

(1) An eligible number-database person must not disclose or use any information or document that:

(a) relates to:

(i) carriage services supplied, or intended to be supplied, to another person by a carrier or carriage service provider; or

-
- (ii) the affairs or personal particulars (including any unlisted telephone number or any address) of another person; and
 - (b) comes to the person's knowledge, or into the person's possession:
 - (i) if the person is a number-database operator—in connection with the person's business as such an operator; or
 - (ii) if the person is an employee of a number-database operator—because the person is employed by the operator in connection with its business as such an operator; or
 - (iii) if the person is a number-database contractor—in connection with the person's business as such a contractor; or
 - (iv) if the person is an employee of a number-database contractor—because the person is employed by the contractor in connection with its business as such a contractor.

Former eligible number-database persons

- (2) A person who has been an eligible number-database person must not disclose or use any information or document that:
 - (a) relates to a matter mentioned in paragraph (1)(a); and
 - (b) came to the person's knowledge, or into the person's possession:
 - (i) if the person was a number-database operator—in connection with the person's business as such an operator; or
 - (ii) if the person was an employee of a number-database operator—because the person was employed by the operator in connection with its business as such an operator; or
 - (iii) if the person was a number-database contractor—in connection with the person's business as such a contractor; or
 - (iv) if the person was an employee of a number-database contractor—because the person was employed by the contractor in connection with its business as such a contractor.

Offence

- (3) A person who contravenes this section commits an offence punishable on conviction by imprisonment for a term not exceeding 2 years.

Note 1: This section is subject to the exceptions in Division 3 of this Part and in Chapter 4 of the *Telecommunications (Interception and Access) Act 1979*.

Note 2: See also sections 4AA and 4B of the *Crimes Act 1914*.

278 Primary ~~joint account~~:

- ~~(a) means a joint account with a data holder for which there are 2 or more joint account holders, each of which is an individual who:~~
 - ~~(i) so far as the data holder is aware, is acting in their own capacity and not on behalf of another person; and~~
 - ~~(ii) is eligible in relation to the data holder; but~~

~~(b) does not include a partnership account with a data holder.~~

~~**law relevant to the management of CDR data** means any of the following:~~

~~(a) the Act;~~

~~(b) any regulation made for the purposes of the Act;~~

~~(c) these rules;~~

~~(d) the *Corporations Act 2001* and the *Corporations Regulations 2001*;~~

~~(e) the *Privacy Act 1988*;~~

~~(f) in relation to a particular designated sector—any law that is specified for the purposes of this paragraph in a Schedule to these rules that relates to that designated sector.~~

~~Note: In relation to paragraph (f), for the banking sector, see clause 7.1 of Schedule 3.~~

~~**local agent**, in relation to a foreign entity, means a person who:~~

~~(a) is appointed by the foreign entity; and~~

~~(b) has addresses for service; and~~

~~(c) is authorised to accept service of documents on behalf of the foreign entity.~~

~~**meet the internal dispute resolution requirements**, in relation to the banking sector, has the meaning given by clause 5.1 of Schedule 3.~~

~~**nominated representative** has the meaning given by subparagraph 1.13(1)(c)(i) or subparagraph 1.13(1)(d)(i), as appropriate.~~

~~**non-disclosure/use offence—emergency call persons option** has the meaning given by rule 4A.5.~~

~~Current emergency call persons~~

~~(1) An emergency call person must not disclose or use any information or document that:~~

~~(a) relates to:~~

~~(i) the contents or substance of a communication that has been carried by a carrier or carriage ~~ordinary means of contacting~~ an account holder by a data holder means:~~

~~(a) if the data holder has agreed with the account holder on a particular means of contacting the account holder for the purposes of the relevant provision—that means; and~~

~~(b) otherwise—the default means by which the data holder contacts the account holder in relation to the account.~~

~~**outsourced** service provider; or has the meaning given by rule 1.10.~~

~~(ii) the contents or substance of a communication that is being carried by a carrier or carriage service provider; or~~

~~(iii) the affairs or personal particulars (including any unlisted telephone number or any address) of another person; and~~

~~(b) comes to the person's knowledge, or into the person's possession, in connection with the operation of an emergency call service.~~

Former emergency call persons

- (2) A person who has been an emergency call person must not disclose or use any information or document that:
- (a) relates to a matter mentioned in paragraph (1)(a); and
 - (b) came to the person's knowledge, or into the person's possession, in connection with the operation of an emergency call service.

Offence

- (3) A person who contravenes this section commits an offence punishable on conviction by imprisonment for a term not exceeding 2 years.

Note 1: This section is subject to the exceptions in Division 3 of this Part and in Chapter 4 of the *Telecommunications (Interception and Access) Act 1979*.

Note 2: See also sections 4AA and 4B of the *Crimes Act 1914*.

Scope of subsection (1)—carriage by means of electromagnetic energy

- (4) Subparagraphs (1)(a)(i) and (ii) do not apply to a communication that is or has been carried by a carrier or carriage service provider unless the carriage was by means of, is by means of, or is proposed to be delivered by means of, guided and/or unguided electromagnetic energy.

~~Division 3—Exceptions to primary~~~~partnership account~~, with a data holder, means an account with a data holder that is held by or on behalf of a partnership or the partners in a partnership.

~~pre-approval option~~ has the meaning given by rule 4A.5.

~~product data request~~ has the meaning given by rule 2.3.

~~product data request service~~ has the meaning given by rule 1.12.

~~recognised external dispute resolution scheme~~ means a dispute resolution scheme that is recognised under section 56DA of the Act.

~~redundant data~~ has the meaning given by paragraph 56EO(2)(a) of the Act.

~~Register of Accredited Persons~~ means the Register of Accredited Persons established under subsection 56CE(1) of the Act.

~~requester~~, in relation to a product data request, means the person who made the request under rule 2.3.

~~required consumer data~~, in relation to the banking sector, has the meaning given by clause 3.2 of Schedule 3.

~~required product data~~, in relation to the banking sector, has the meaning given by clause 3.1 of Schedule 3.

~~**restricted ADI** means an ADI that has an authority under section 9 of the *Banking Act 1959* to carry on a banking business in Australia for a limited time specified in accordance with section 9D of that Act.~~

~~**secondary user**: a person is a **secondary user** for an account with a data holder in a particular designated sector if:~~

- ~~—— (a) the person has account privileges in relation to the account; and~~
- ~~—— (b) the account holder has given the data holder an instruction to treat the person as a secondary user for the purposes of these rules.~~

~~**secondary user instruction** means an instruction given for the purposes of paragraph (b) of the definition of secondary user.~~

~~**service data** has the meaning given by rule 1.10.~~

74 disclosure/use offences

Subdivision A—Exceptions

279 Performance of person's duties

- (1) Section 276 does not prohibit a disclosure or use by a person of information or a document if:
- (a) the person is an employee of:
 - (i) a carrier; or
 - (ii) a carriage service provider; or
 - (iii) a telecommunications contractor; and
 - (b) the disclosure or use is made in the performance of the person's duties as such an employee.
- (2) Section 276 does not prohibit a disclosure or use by a person of information or a document if:
- (a) the person is a telecommunications contractor; and
 - (b) the disclosure or use is made in the performance of the person's duties as such a contractor.
- (3) Section 277 does not prohibit a disclosure or use by a person of information or a document if:
- (a) the person is an employee of:
 - (i) a number-database operator; or
 - (ii) a number-database contractor; and
 - (b) the disclosure or use is made in the performance of the person's duties as such an employee.
- (4) Section 277 does not prohibit a disclosure or use by a person of information or a document if:
- (a) the person is a number-database contractor; and
 - (b) the disclosure or use is made in the performance of the person's duties as such a contractor.
- (5) Section 278 does not prohibit a disclosure or use by a person of information or a document if:
- (a) the person is an employee of:
 - (i) a recognised person who operates an emergency call service; or
 - (ii) an emergency call contractor; and
 - (b) the disclosure or use is made in the performance of the person's duties as such an employee.
- (6) Section 278 does not prohibit a disclosure or use by a person of information or a document if:

-
- (a) the person is an emergency call contractor; and
 - (b) the disclosure or use is made in the performance of the person's duties as such a contractor.

280 Authorisation by or under law

(1) Division 2 does not prohibit a disclosure or use of information or a document if:

- (a) in a case where the disclosure or use is in connection with the operation of an enforcement agency—the disclosure or use is required or authorised under a warrant; or
- (b) in any other case—the disclosure or use is required or authorised by or under law.

(1A) In applying paragraph (1)(a) to the Australian Commission for Law Enforcement Integrity, the reference in that paragraph to the operation of an enforcement agency is taken to be a reference to the performance of the functions of the Integrity Commissioner (within the meaning of the *Law Enforcement Integrity Commissioner Act 2006*).

(1B) Subject to subsection (1C), paragraph (1)(b) does not apply to a disclosure of information or a document if:

- (a) the disclosure is required or authorised because of:
 - (i) a subpoena; or
 - (ii) a notice of disclosure; or
 - (iii) an order of a court;in connection with a civil proceeding; and
- (b) the information or document is kept, by a service provider (within the meaning of the *Telecommunications (Interception and Access) Act 1979*), solely for the purpose of complying with Part 5-1A of that Act; and
- (c) the information or document is not used or disclosed by the service provider for any purpose other than one or more of the following purposes:
 - (i) complying with Part 5-1A of that Act;
 - (ii) complying with the requirements of warrants under Chapters 2 and 3 of that Act or authorisations under Chapter 4 of that Act;
 - (iii) complying with requests or requirements to make disclosures provided for by sections 284 to 288 of this Act;
 - (iv) providing persons with access to their personal information in accordance with the *Privacy Act 1988*;
 - (v) a purpose prescribed by the regulations;
 - (vi) a purpose incidental to any of the purposes referred to in subparagraphs (i) to (v).

(1C) Subsection (1B) does not apply:

- (a) in circumstances of a kind prescribed by the regulations; or
- (b) to a disclosure to an enforcement agency (within the meaning of the *Telecommunications (Interception and Access) Act 1979*); or
- (c) to a disclosure that occurs during the implementation phase (within the meaning of that Act).

(2) In this section:

enforcement agency has the same meaning as in the *Telecommunications (Interception and Access) Act 1979*.

281 Witnesses

(1) Division 2 does not prohibit a disclosure by a person of information or a document if the person makes the disclosure as a witness summoned to give evidence or to produce documents.

(2) Subject to subsection (3), this section does not apply to a disclosure of information or a document by a person as a witness in a civil proceeding if the information or document:

- (a) is kept, by a service provider (within the meaning of the *Telecommunications (Interception and Access) Act 1979*), solely for the purpose of complying with Part 5-1A of that Act; and
- (b) is not used or disclosed by the service provider for any purpose other than one or more of the following purposes:
 - (i) complying with Part 5-1A of that Act;
 - (ii) complying with the requirements of warrants under Chapters 2 and 3 of that Act or authorisations under Chapter 4 of that Act;
 - (iii) complying with requests or requirements to make disclosures provided for by sections 284 to 288 of this Act;
 - (iv) providing persons with access to their personal information in accordance with the *Privacy Act 1988*;
 - (v) a purpose prescribed by the regulations;
 - (vi) a purpose incidental to any of the purposes referred to in subparagraphs (i) to (v).

(3) Subsection (2) does not apply:

- (a) in circumstances of a kind prescribed by the regulations; or
- (b) to a disclosure to an enforcement agency (within the meaning of the *Telecommunications (Interception and Access) Act 1979*); or
- (c) to a disclosure that occurs during the implementation phase (within the meaning of that Act).

284 Assisting the ACMA, the eSafety Commissioner, the ACCC or the Telecommunications Industry Ombudsman

(1) Sections 276 and 277 do not prohibit a disclosure by a person of information or a document if:

- (a) the disclosure is made to, or to a member of the staff of, the ACMA; and
- (b) the information or document may assist the ACMA to carry out its functions or powers.

(1A) Sections 276 and 277 do not prohibit a disclosure by a person of information or a document if:

(a) the disclosure is made to:

(i) the eSafety Commissioner; or

(ii) a member of the staff of the ACMA whose duties relate to the performance of the eSafety Commissioner's functions; and

(b) the information or document may assist the eSafety Commissioner to carry out his or her functions or powers.

(2) Sections 276 and 277 do not prohibit a disclosure by a person of information or a document if:

(a) the disclosure is made to, or to a member of the staff of, the ACCC; and

(b) the information or document may assist the ACCC to carry out its telecommunications functions and powers.

(3) Sections 276 and 277 do not prohibit a disclosure by a person of information or a document if:

(a) the disclosure is made to the Telecommunications Industry Ombudsman, or to an employee of the Telecommunications Industry Ombudsman; and

(b) the information or document may assist the Telecommunications Industry Ombudsman in the consideration of a complaint made to the Telecommunications Industry Ombudsman.

285 Integrated public number database

Permitted uses—general

(1) Sections 276 and 277 do not prohibit a use by a person of information or a document if:

(a) the information or document relates to information (other than information relating to an unlisted telephone number) contained in an integrated public number database; and

(b) the information or document relates to:

(i) carriage services supplied, or intended to be supplied, to another person by a carrier or carriage service provider; or

(ii) the affairs or personal particulars of another person (other than an address relating to an unlisted telephone number); and

(c) the use is made for purposes connected with:

(i) the provision of directory assistance services by or on behalf of a carriage service provider; or

(ii) the publication and maintenance of a public number directory.

Permitted disclosures—general

(1A) Sections 276 and 277 do not prohibit a disclosure by a person of information or a document if:

(a) the information or document relates to information (other than information relating to an unlisted telephone number) contained in an integrated public number database; and

(b) the information or document relates to:

(i) carriage services supplied, or intended to be supplied, to another person by a carrier or carriage service provider; or

(ii) the affairs or personal particulars of another person (other than an address relating to an unlisted telephone number); and

(c) the disclosure is made to another person for purposes connected with:

(i) the provision of directory assistance services by or on behalf of a carriage service provider; or

(ii) the publication and maintenance of a public number directory; or

(iv) the conduct of research of a kind specified in an instrument under subsection (3); and

(d) if the disclosure to the other person is for a purpose covered by subparagraph (c)(ii) or (iv)—the other person holds an authorisation in force under the integrated public number database scheme permitting the other person to use and disclose the information or document.

Permitted uses and disclosures—calls to emergency service numbers

(1B) Sections 276 and 277 do not prohibit a use or disclosure by a person of information or a document if:

(a) the information or document relates to information contained in an integrated public number database; and

(b) the information or document relates to:

(i) carriage services supplied, or intended to be supplied, to another person by a carrier or carriage service provider; or

(ii) the affairs or personal particulars of another person; and

(c) the use or disclosure is made for purposes connected with dealing with the matter or matters raised by a call to an emergency service number; and

(d) it is unreasonable or impracticable to obtain the other person's consent to ~~has the disclosure or use~~ meaning given by rule 1.10A.

Definitions

~~**trusted adviser** has the meaning given by rule 1.10C.~~

~~**type** of CDR data means a type of data that is identified in the data standards.~~

~~Note: — See paragraph 8.11(1)(d).~~

~~**use consent** has the meaning given by rule 1.10A.~~

~~**valid** has the meaning given by subrule 3.3(3) or subrule 4.3(3) as appropriate.~~

~~**voluntary consumer data**, in relation to the banking sector, has the meaning given by clause 3.2 of Schedule 3.~~

~~**voluntary product data**, in relation to the banking sector, has the meaning given by clause 3.1 of Schedule 3.~~

~~———— (2) The table has effect:~~

Meaning of references to certain terms		
	A reference, in a particular provision of these rules, to:	is, depending on the context, a reference to:
1	a CDR consumer	— (a) — a CDR consumer for any CDR data; or (b) a CDR consumer for the particular CDR data that is dealt with in relation to the reference.
2	a data holder	(a) a data holder of any CDR data; or (b) the data holder of the particular CDR data that is dealt with in relation to the reference.
3	an accredited data recipient	(a) an accredited data recipient of any CDR data; or (b) the accredited data recipient of the particular CDR data that is dealt with in relation to the reference.
4	a CDR participant	(a) a CDR participant for any CDR data; or (b) the CDR participant for the particular CDR data that is dealt with in relation to the reference.

References to ~~data holder~~

~~———— (3) In these rules, depending on the context, a reference to a data holder is a reference to a data holder that would be required or that is authorised to disclose CDR data in response to a product data request or a consumer data request that is made in accordance with these rules.~~

~~Note: ——— These rules will progressively apply to a broader range of data holders within the banking sector: see Part 6 of Schedule 3 to these rules.~~

References to a person's CDR data

~~———— (4) In these rules, a reference to a person's CDR data is a reference to the CDR data for which that person is a CDR consumer.~~

References to ~~accredited person~~

~~———— (5) In these rules, unless the contrary intention appears, a reference to an accredited person making a consumer data request, collecting CDR data, obtaining consents, providing a consumer dashboard, or using or disclosing CDR data does not include a reference to an accredited person doing those things on behalf of a principal in its capacity as the provider in an outsourced service arrangement, in accordance with the arrangement.~~

1.8 Data minimisation principle

~~Note: ——— The data minimisation principle is relevant when:~~

- ~~• ——— a CDR consumer requests an accredited person to provide goods or services to the CDR consumer or to another person; and~~

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- ~~• the accredited person needs to access the CDR consumer's CDR data in order to provide those goods or services.~~
 - ~~— The data minimisation principle is also relevant when an accredited person uses CDR data to provide requested goods or services to a CDR consumer.~~
 - ~~— The data minimisation principle limits the CDR data that an accredited person can collect, and also limits the uses that the accredited person can make of collected CDR data.~~
 - ~~— An accredited person complies with *the data minimisation principle* if:~~
 - ~~— (a) when making a consumer data request on behalf of a CDR consumer, it does not seek to collect:~~
 - ~~— (i) more CDR data than is reasonably needed; or~~
 - ~~— (ii) CDR data that relates to a longer time period than is reasonably needed;~~
 - ~~— in order to provide the goods or services requested by the CDR consumer; and~~
 - ~~— (b) when providing the requested goods or services, or using collected CDR data for any other purpose consented to by the CDR consumer, it does not use the collected CDR data, or CDR data derived from it, beyond what is reasonably needed in order to provide the requested goods or services or fulfil the other purpose.~~

1.9 Fit and proper person criteria

- ~~— (1) For these rules, the *fit and proper person criteria*, in relation to a person, are the following:~~
 - ~~— (a) whether the person, or any associated person, has, within the previous 10 years, been convicted of:~~
 - ~~— (i) a serious criminal offence; or~~
 - ~~— (ii) an offence of dishonesty;~~
 - ~~— against any law of the Commonwealth or of a State or a Territory, or a law of a foreign jurisdiction;~~
 - ~~— (b) whether the person, or any associated person, has been found to have contravened:~~
 - ~~— (i) a law relevant to the management of CDR data; or~~
 - ~~— (ii) a similar law of a foreign jurisdiction;~~
 - ~~— (c) whether the person, or any associated person, has been the subject of:~~
 - ~~— (i) a determination under paragraph 52(1)(b) or any of paragraphs 52(1A)(a), (b), (c) or (d) of the *Privacy Act 1988*; or~~
 - ~~— (ii) a finding or determination of a similar nature under a similar law of a foreign jurisdiction;~~
 - ~~— (d) if the person is a body corporate whether any of the directors (within the meaning of the *Corporations Act 2001*) of the person, or any associated person:~~
 - ~~— (i) has been disqualified from managing corporations; or~~
 - ~~— (ii) is subject to a banning order;~~

-
- ~~_____ (e) whether the person, or any associated person, has a history of insolvency or bankruptcy;~~
 - ~~_____ (f) whether the person, or any associated person, has been the subject of a determination made under an external dispute resolution scheme that:~~
 - ~~_____ (i) included a requirement to pay monetary compensation; and~~
 - ~~_____ (ii) was, at the time the determination was made:~~
 - ~~_____ (A) recognised under the *Privacy Act 1988*; or~~
 - ~~_____ (B) a recognised external dispute resolution scheme;~~
 - ~~_____ (g) any other relevant matter, including but not limited to the objects of Part IVD of the Act.~~

~~Note: _____ The objects of Part IVD are set out in section 56AA of the Act.~~

(2) In this section~~rule~~:

business includes a venture or concern in trade or commerce, whether or not conducted on a regular, repetitive or continuous basis.

educational institution includes:

- ~~_____ (a) a pre-school; and~~
- ~~_____ (b) a school; and~~
- ~~_____ (c) a college; and~~
- ~~_____ (d) a university.~~

integrated public number database means:

- ~~_____ (a) an integrated public number database maintained by Telstra Limited as mentioned in Part 4 of Schedule 2; or~~
- ~~_____ (b) an integrated public number database maintained **banning order** has the same meaning as in the *Corporations Act 2001*.~~

serious criminal offence means an offence for which, if the act or omission had taken place in the Jervis Bay Territory, a person would be liable, on first conviction, to imprisonment for a period of not less than 5 years.

~~Note: _____ Jervis Bay Territory is mentioned because it is a jurisdiction in which the Commonwealth has control over the criminal law.~~

1.10 Meaning of *outsourced service provider* and related terms

- ~~_____ (1) For these rules, where two persons are the principal and the provider in a CDR outsourcing arrangement, the provider is an **outsourced service provider** of the principal.~~
- ~~_____ (2) For these rules, a **CDR outsourcing arrangement** is a written contract between a person (the **principal**) and another person (the **provider**) under which:~~
 - ~~_____ (a) the provider will do one or both of the following:~~
 - ~~_____ (i) if the provider is an accredited person—collect CDR data from a CDR participant in accordance with these rules on behalf of the principal;~~
 - ~~_____ (ii) in any case—provide goods or services to the principal using CDR data disclosed to it by the principal; and~~
 - ~~_____ (b) the provider is required to comply with the following requirements in relation to any service data:~~

-
- ~~(i) the provider must take the steps in Schedule 2 to protect the service data as if it were an accredited data recipient; and~~
 - ~~(ii) the provider must not use or disclose the service data other than in accordance with a contract with the principal; and~~
 - ~~(iii) the provider must, when so directed by a person the principal, do any of the following:~~
 - ~~(A) provide the principal with access to any service data that it holds;~~
 - ~~(B) return to the principal CDR data that the principal disclosed to it;~~
 - ~~(C) delete any service data that it holds in accordance with the CDR data deletion process;~~
 - ~~(D) provide, to the principal, records of any deletion that are required to be made under the CDR data deletion process;~~
 - ~~(E) direct any other person to which it has disclosed CDR data to take corresponding steps; and~~
 - ~~(iv) where the provider is to collect CDR data under the contract as mentioned in section 472, subparagraph (a)(i) the provider must not further outsource that collection; and~~

public number means a number specified for use in connection with the supply of carriage services to the public in Australia (within the meaning of subsection 456(2)), but does not include an unlisted number.

public number directory means a record:

- ~~(a) that contains either or both of the following:~~
 - ~~(i) the names of persons and their public numbers (whether or not it also contains their addresses);~~
 - ~~(ii) the names of bodies and their public numbers (whether or not it also contains their addresses); and~~
- ~~(b) that, in relation to a person or body that is not a qualifying entity, contains no other information about the person or body; and~~
- ~~(c) that, in relation to a person or body that is a qualifying entity, contains no other information about the person or body apart from information:~~
 - ~~(i) that is of a kind specified in an instrument under subsection (4); and~~
 - ~~(ii) that is applicable in relation to the person or body; and~~
- ~~(d) that:~~
 - ~~(i) does not enable a person who only knows the public number of an end-user of a carriage service to readily identify the end-user's name and/or address; and~~
 - ~~(ii) does not enable a person who only knows the whole or a part of the address of an end-user of a carriage service to readily identify the end-user's name and/or public number; and~~
- ~~(e) that satisfies each requirement specified in an instrument under subsection (5).~~

qualifying entity means:

(a) a person, or body, that is:

(i) carrying on a business; and

(ii) registered under the *Australian Charities and Not-for-profits Commission Act 2012*, or not an ACNC type of entity; or

(b) a registered charity; or

(c) an educational institution that is:

(i) registered under the *Australian Charities and Not-for-profits Commission Act 2012*; or

(ii) not an ACNC type of entity; or

(e) a department of the Commonwealth, a State or a Territory; or

(f) an agency, authority or instrumentality of the Commonwealth, a State or a Territory; or

(g) any other person or body of a kind specified in an instrument under subsection (6) that is:

(i) registered under the *Australian Charities and Not-for-profits Commission Act 2012*; or

(ii) not an ACNC type of entity.

Research

- (3) The Minister may, by legislative instrument, specify kinds of research for the purposes of subparagraph (1A)(c)(iv). The Minister must not specify a kind of research unless the Minister is satisfied that the kind of research is in the public interest.

Additional information in public number directory

- (4) The Minister may, by legislative instrument, specify kinds of information for the purposes of subparagraph (c)(i) of the definition of **public number directory** in subsection (2). The Minister may specify different kinds of information in relation to different kinds of qualifying entities.

Further requirements for public number directory

- (5) The Minister may, by legislative instrument, specify requirements for the purposes of paragraph (e) of the definition of **public number directory** in subsection (2).

Qualifying entities

- (6) The Minister may, by legislative instrument, specify kinds of persons or bodies for the purposes of paragraph (g) of the definition of **qualifying entity** in subsection (2).

285A Data for emergency warnings

- (1) Sections 276 and 277 do not prohibit a disclosure by a person (the **discloser**) of information or a document if:

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- (a) the information is, or the document consists of, information (including unlisted telephone numbers) contained in an integrated public number database; and
 - (b) the disclosure is made to an emergency management person; and
 - (c) the emergency management person has given the discloser a written notice stating that the disclosure is for the purpose of the information, or the contents of the document, being later used or disclosed for either or both of the following:
 - (i) for a purpose connected with persons being alerted to an emergency or a likely emergency;
 - (ii) for the purpose of reasonable testing of whether, in the event of an emergency occurring, persons would be able to be alerted to that emergency.
- (1A) A notice given as mentioned in paragraph (1)(c) may cover one or more disclosures (including each disclosure in a series of disclosures under an arrangement between the discloser and the emergency management person).
- (1B) A notice given as mentioned in paragraph (1)(c) is not a legislative instrument.
- (2) In this section:
- integrated public number database** means:
- (a) an integrated public number database maintained by Telstra Limited as mentioned in Part 4 of Schedule 2; or
 - (b) an integrated public number database maintained by a person as mentioned in section 472.

286 Calls to emergency service number

- Division 2 does not prohibit a disclosure by a person of information or a document if:
- (a) the information or document came to the person's knowledge, or into the person's possession, because of a call to an emergency service number; and
 - (b) the information, or the contents of the document, consists of any or all of the following:
 - (i) a name;
 - (ii) a telephone number;
 - (iii) an address;
 - (iv) a location;
 - (v) the matter or matters raised by the call; and
 - (c) the disclosure is made to:
 - (i) a member of a police force or service; or
 - (ii) a member of a fire service; or
 - (iii) a member of an ambulance service; or
 - (iv) an emergency call person; or

-
- (v) if there is a numbering scheme manager—a service specified by the ACMA for the purposes of this subparagraph in a legislative instrument; or
 - (va) if there is no numbering scheme manager—a service specified for the purposes of this subparagraph in the numbering plan made by the ACMA; or
 - (vi) a service for despatching a force or service referred to in subparagraph (i), (ii), (iii), (v) or (va);
- for purposes connected with dealing with the matter or matters raised by the call.

287 Threat to person's life or health

Division 2 does not prohibit a disclosure or use by a person (the *first person*) of information or a document if:

- (a) the information or document relates to the affairs or personal particulars (including any unlisted telephone number or any address) of ~~provider must not disclose any service data to another person, otherwise than under a further CDR outsourcing arrangement;~~ and
- (ab) it is unreasonable or impracticable to obtain the other person's consent to the disclosure or use; and
- (b) the first person believes on reasonable grounds that the disclosure or use is reasonably necessary to prevent or lessen a serious threat to the life or health of a person.

288 Communications for maritime purposes

Division 2 does not prohibit a disclosure or use of information or a document if:

- (a) the disclosure or use is reasonably necessary for the purpose of the preservation of human life at sea; or
- (b) the disclosure or use:
 - (i) relates to the location of a vessel at sea; and
 - (ii) is made for maritime communications purposes.

289 Knowledge or consent of person concerned

Division 2 does not prohibit a disclosure or use by a person of information or a document if:

- (a) the information or document relates to the affairs or personal particulars (including any unlisted telephone number or any address) of another person; and
- (b) the other person:
 - (i) is reasonably likely to have been aware or made aware that information or a document of that kind is usually disclosed, or used, as the case requires, in the circumstances concerned; or
 - (ii) has consented to the disclosure, or use, as the case requires, in the circumstances concerned.

290 Implicit consent of sender and recipient of communication

Section 276 does not prohibit a disclosure or use by a person if:

- (a) the information or document relates to the contents or substance of a communication made by another person; and
- (b) having regard to all the relevant circumstances, it might reasonably be expected that the sender and the recipient of the communication would have consented to the disclosure or use, if they had been aware of the disclosure or use.

291 Business needs of other carriers or service providers

(1) Section 276 does not prohibit a disclosure or use by a person of information or a document if:

- (a) the disclosure or use is made by or on behalf of:
 - (i) a carrier (the ***first carrier***); or
 - (ii) a carriage service provider (the ***first*** — (vi) — if the ***provider***); and
- (b) the disclosure or use is made for a purpose of, or is connected with, any other carrier or service provider carrying on its business as ~~does disclose~~ such a carrier or provider; and
- (c) the information or document relates to a person (the ***third person***) who is a customer or former customer of:
 - (i) the first carrier or the first provider; or
 - (ii) the other carrier or the other provider; and
- (d) the disclosure or use is made for a purpose of, or is connected with:
 - (i) the supply, or proposed supply, by the other carrier or other provider to the third person of a carriage service or a content service; or
 - (ii) the supply, or proposed supply, by the other carrier or other provider to the third person of goods or services for use in connection with the supply of a carriage service or a content service; or
 - (iii) the installation, maintenance, operation or provision of access to a telecommunications network or a facility, where the network or facility is used, or for use, by the other carrier or the other provider to supply a carriage service or a content service to the third person; and
- (e) if the information or document relates to the location of:
 - (i) a mobile telephone handset; or
 - (ii) any other mobile communications device;the third person has consented to the disclosure, or use, as the case requires, in the circumstances concerned.

(2) Section 276 does not prohibit a disclosure or use by a person of information or a document if:

- (a) the disclosure or use is made by or on behalf of a carriage service provider; and

(b) the disclosure or use is made for a purpose of, or is connected with, an arrangement, or proposed arrangement, made by a carriage service intermediary for the supply of a carriage service by the provider to a third person; and

(c) the information or document relates to the third person; and

(d) the disclosure or use is made for a purpose of, or is connected with:

(i) the supply, or proposed supply, by the provider to the third person of that service; or

(ii) the supply, or proposed supply, by the provider to the third person of goods or services for use in connection with the supply of the first-mentioned service; or

(iii) the installation, maintenance, operation or provision of access to a telecommunications network or a facility, where the network or facility is used, or for use, by the provider to supply the first-mentioned service to the third person; and

(e) if the information or document relates to the location of:

(i) a mobile telephone handset; or

(ii) any other mobile communications device;

the third person has consented to the disclosure, or use, as the case requires, in the circumstances concerned.

(3) Section 276 does not prohibit a disclosure or use by a person of information or a document if:

(a) the disclosure or use is made by or on behalf of a carriage service intermediary; and

(b) the disclosure or use is made for a purpose of, or is connected with, an arrangement, or proposed arrangement, made by the intermediary for the supply of a carriage service by a carriage service provider to a third person; and

(c) the information or document relates to the third person; and

(d) the disclosure or use is made for a purpose of, or is connected with:

(i) the supply, or proposed supply, by the provider to the third person of that service; or

(ii) the supply, or proposed supply, by the provider to the third person of goods or services for use in connection with the supply of the first-mentioned service; or

(iii) the installation, maintenance, operation or provision of access to a telecommunications network or a facility, where the network or facility is used, or for use, by the provider to supply the first-mentioned service to the third person; and

(e) if the information or document relates to the location of:

(i) a mobile telephone handset; or

(ii) any other mobile communications device;

the third person has consented to the disclosure, or use, as the case requires, in the circumstances concerned.

291A Location dependent carriage services

(1) Sections 276 and 277 do not prohibit a disclosure by a person of information or a document if:

(a) the information or document relates to information (other than information relating to an unlisted telephone number) contained in an integrated public number database; and

(b) the disclosure is to a carrier or a carriage service provider; and

(c) the disclosure is made for a purpose of, or is connected with, the supply, or proposed supply, by a person of a location dependent carriage service.

(2) Sections 276 and 277 do not prohibit a disclosure or use by a carrier or a carriage service provider of information or a document if:

(a) the information or document relates to information (other than information relating to an unlisted telephone number) contained in an integrated public number database; and

(b) the disclosure or use is made for a purpose of, or is connected with, the supply, or proposed supply, by a person of a location dependent carriage service.

(3) In this section:

integrated public number database means:

(a) an integrated public number database maintained by Telstra Limited as mentioned in Part 4 of Schedule 2; or

(b) an integrated public number database maintained by a person as mentioned in section 472.

location dependent carriage service means a carriage service that depends for its provision on the availability of information about the addresses of end users of the carriage service.

292 Circumstances prescribed in the regulations

(1) Section 276 does not prohibit a disclosure or use of information or a document in circumstances specified in the regulations.

(2) Section 277 does not prohibit a disclosure or use of information or a document in circumstances specified in the regulations.

(3) Section 278 does not prohibit a disclosure or use of information or a document in circumstances specified in the regulations.

293 Uses connected with exempt disclosures

(1) Section 276 does not prohibit a use of information or a document if:

(a) the use is made for the purposes of, or in connection with, a disclosure of the information or document by the person; and

(b) because of this Division, the disclosure is not prohibited by section 276.

(2) Section 277 does not prohibit a use of information or a document if:

(a) the use is made for the purposes of, or in connection with, a disclosure of the information or document by the person; and

(b) because of this Division, the disclosure is not prohibited by section 277.

(3) Section 278 does not prohibit a use of information or a document if:

(a) the use is made for the purposes of, or in connection with, a disclosure of the information or document by the person; and

(b) because of this Division, the disclosure is not prohibited by section 278.

294 Effect of this Subdivision

Nothing in this Subdivision limits the generality of anything else in it or in Divisions 3 to 5 of Part 4-1 of the *Telecommunications (Interception and Access) Act 1979*.

Subdivision B—Burden of proof

295 Burden of proof

(1) For the purposes of determining the persuasive burden of proof in proceedings for an offence against Division 2, the exceptions set out in this Division or in Chapter 4 of the *Telecommunications (Interception and Access) Act 1979* are taken to be part of the description of the offence.

(2) In proceedings for an offence against Division 2, the defendant bears the evidential burden in relation to an exception set out in this Division or in Chapter 4 of the *Telecommunications (Interception and Access) Act 1979*.

(3) In this section:

evidential burden, in relation to a matter, means the burden of adducing or pointing to evidence that suggests a reasonable possibility that the matter exists or does not exist.

Division 3A—Integrated public number database authorisations

Subdivision A—ACMA scheme for the granting of authorisations

295A ACMA to make integrated public number database scheme

The ACMA must, by legislative instrument, make a scheme (the *integrated public number database scheme*) for the granting of authorisations for the purposes of paragraph 285(1A)(d).

Note 1: The ACMA may make determinations fixing charges for any matter in relation to which expenses are incurred by the ACMA under the scheme: see section 60 of the *Australian Communications and Media Authority Act 2005*.

Note 2: Various decisions under the scheme are reviewable: see section 555 and paragraphs 1(ma) to (md) of Schedule 4.

295B Scheme must deal with certain matters

(1) The scheme must make provision for and in relation to the following matters:

(a) the making of applications for authorisations;

(b) the assessment of applications;

(c) the period for which authorisations are to be in force;

(d) the notification of decisions under the scheme (including to the person who maintains the integrated public number database referred to in paragraph 285(1A)(a)).

(2) The scheme must require an applicant for an authorisation to specify the purpose for which the authorisation is sought.

Note: The relevant purposes are purposes connected with the publication and maintenance of a public number directory or with the conduct of particular research.

295C Applications may be treated differently

The scheme may make different provision for different kinds of authorisation applications.

295D Scope of authorisations

The scheme may make provision for authorisations to be in respect of:

(a) all information or documents that satisfy the matters referred to in paragraphs 285(1A)(a) and (b); or

(b) specified information or specified documents that satisfy those matters.

295E Provisional and final authorisations

The scheme may make provision for provisional authorisations and final authorisations.

295F Conditions

The scheme may make provision for the imposition of conditions on the grant of authorisations.

Note 1: Section 295P also allows the Minister to determine that authorisations are granted subject to conditions.

Note 2: Section 295R creates an offence for breaching a condition of an authorisation.

295G Varying or revoking authorisations

The scheme may make provision for the variation or revocation of authorisations. For example, the variation may be the imposition of new conditions or the variation or removal of existing conditions.

295H Scheme may confer administrative powers on the ACMA

The scheme may make provision for or in relation to a particular matter by empowering the ACMA to make decisions of an administrative character.

Note: Sections 50 and 51 of the *Australian Communications and Media Authority Act 2005* deal with the delegation of the ACMA's powers.

295J Ancillary or incidental provisions

The scheme may contain such ancillary or incidental provisions as the ACMA considers appropriate.

295K Scheme-making power not limited

Sections 295B to 295J do not, by implication, limit section 295A.

295L Variation of scheme

(1) The scheme may be varied, but not revoked, ~~CDR data~~ in accordance with subsection 33(3) of the *Acts Interpretation Act 1901* ~~subparagraph (v), it must ensure that the other person complies with the requirements of the further CDR outsourcing arrangement.~~

(2) Subsection (1) does not limit the application of subsection 33(3) of the *Acts Interpretation Act 1901* to other instruments under this Act.

295M Consultation

Making the scheme

(1) Before making the scheme, the ACMA:

(a) must consult the Information Commissioner in relation to matters that relate to the privacy functions (within the meaning of the *Australian Information Commissioner Act 2010*) and have regard to any submissions made by the Information Commissioner because of that consultation; and

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- (b) must consult the Secretary of the Department that is administered by the Minister administering the *Privacy Act 1988* and have regard to any submissions made by that Secretary because of that consultation; and
- (c) may consult such other persons as the ACMA considers appropriate and have regard to any submissions made by those persons because of that consultation.

Decisions under the scheme

- (2) Before making a decision under the scheme, the ACMA may consult such persons as the ACMA considers appropriate and have regard to any submissions made by those persons because of that consultation.

Subdivision B—Ministerial instruments

295N Criteria for deciding authorisation applications

- (1) The Minister must, by legislative instrument, specify criteria for deciding authorisation applications made under the integrated public number database scheme.
- (2) The Minister may specify different criteria for different kinds of authorisation applications.
- (3) In deciding an authorisation application, the ACMA:
- (a) must apply the criteria applicable to that application; and
- (b) may have regard to any other matters that it thinks are relevant.

295P Conditions

- (1) The Minister may, by legislative instrument, do either or both of the following:
- (a) determine that all authorisations under the integrated public number database scheme are granted subject to specified conditions;
- (b) determine that a specified kind of authorisation under that scheme is granted subject to specified conditions.

- (2) An authorisation under that scheme is granted subject to any condition specified in an instrument under this section that is applicable to that authorisation.

Note 1: An authorisation may also be granted subject to conditions imposed~~Note:~~ See rule 1.18 for the definition of “CDR data deletion process”.

- ~~(3) For subparagraph (2)(a)(ii), the principal is taken to disclose CDR data to the provider if the principal gives the provider permission to access or use CDR data collected by the provider on behalf of the principal.~~
- ~~(4) For these rules, the *service data* in relation to a CDR outsourcing arrangement consists of any CDR data that:~~

~~(a) was collected from a CDR participant in accordance with that scheme: see section 295F, the arrangement; or~~

Note 2: ~~Section 295R creates an offence for breaching a condition of an authorisation.~~

295Q Other reviewable decisions

~~The Minister may, by legislative instrument, specify decisions under the integrated public number database scheme (b) was disclosed to the provider in the CDR outsourcing arrangement for the purposes of paragraph 1(md) of Schedule 4.~~

Subdivision C—Enforcing compliance with conditions of authorisations

295R Offence of breaching a condition

~~A person commits an offence if:~~

- ~~(a) the person is the holder of an authorisation under the integrated public number database scheme; and~~
- ~~(b) the person does an actarrangement; or omits to do an act; and~~
- ~~(c) the actdirectly or omission breaches indirectly derives from such CDR data.~~

1.10A Types of consents

~~(1) For these rules:~~

~~(a condition of the authorisation.) a **collection consent** is a consent given by a CDR consumer under these rules for an accredited person to collect particular CDR data from a CDR participant for that CDR data; and~~

~~Penalty: 60 penalty units.~~

295S Remedial directions for breaching a condition

~~(1) This section applies if the ACMA is satisfied that a person has contravened, or is contravening, a condition of an authorisation in force under the integrated public number database scheme.~~

~~(2) The ACMA may give the person a written direction requiring the person to take specified action directed towards ensuring that the person does not contravene the condition, or is unlikely to contravene the condition, in the future.~~

~~(3) A person must not contravene a direction under subsection (2).~~

~~(4) Subsection (3) is a **civil penalty provision**.~~

~~Note: Part 31 provides for pecuniary penalties for breaches of civil penalty provisions.~~

~~(5) A direction given under subsection (2) is not a legislative instrument.~~

295T Formal warnings for breaching a condition

The ACMA may issue a formal warning if the ACMA is satisfied that a person has contravened, or is contravening, a condition of an authorisation in force under the integrated public number database scheme.

Subdivision D—Report to Minister

295U Report to Minister

(1) At the time an annual report prepared by the Chair of the ACMA is given to the Minister under section 46 of the *Public Governance, Performance and Accountability Act 2013*, the ACMA must give the Minister a separate report on the following matters:

(a) the compliance by persons with authorisations granted under the integrated public number database scheme;

(b) any other matter—(b) a ~~use consent~~ is a consent given by a CDR consumer under these rules for an accredited data recipient of particular CDR data to use that CDR data in a particular way; and

(c) a ~~disclosure consent~~ is a consent given by a CDR consumer under these rules for an accredited data recipient of particular CDR data to disclose that CDR data:

(i) to an accredited person in response to a consumer data request (an ~~AP disclosure consent~~); or

(ii) to an accredited person for the purposes of direct marketing; or

(iii) to a trusted adviser of the CDR consumer (a ~~TA disclosure consent~~); or

(iv) to a specified person in accordance with an insight disclosure consent; and

(d) a ~~direct marketing consent~~ is a consent given by a CDR consumer under these rules for an accredited data recipient of particular CDR data to use or disclose the CDR data for the purposes of direct marketing; and

(e) a ~~de-identification consent~~ is a consent given by a CDR consumer under these rules for an accredited data recipient of particular CDR data to de-identify some or all of the collected CDR data and do either or both of the following:

(i) use the de-identified data for general research;

(ii) disclose (including by selling) the de-identified data.

(2) For these rules, each of the following is a ~~category~~ of consents:

(a) collection consents;

(b) ~~use consents~~ relating to the operation of that scheme that the ACMA considers appropriate.

(2) The ACMA is not required to include in the separate report any material:

(a) that is of a confidential nature; or

(b) the disclosure of which is likely to prejudice the fair trial of a person.

(3) The Minister must cause a copy of the separate report to be tabled in each House of the Parliament within 15 sitting days of that House after the day on which the Minister receives the separate report.

Division 3B—Emergency warnings

295V Use or disclosure of information by emergency management persons

Likely emergencies

- (1) If an emergency management person believes on reasonable grounds that an emergency is likely to occur, the person may use or disclose relevant information (other than the names of persons) for a purpose connected with persons being alerted to that likely emergency.

Actual emergencies

- (2) If an emergency occurs, an emergency management person may use ~~goods or~~ disclose relevant information (other than the names of persons) for a purpose connected with persons being alerted to that emergency.

Testing

- (3) An emergency management person may use or disclose relevant information (other than the names of persons) for the purpose of reasonable testing of whether, in the event of an emergency occurring, persons would be able to be alerted to that emergency.

Other

- (4) An emergency management person may disclose relevant information (other than the names of persons) to another person for the purpose of the information being later used or disclosed for a purpose connected with persons being alerted to an emergency or a likely emergency.

295W Use or disclosure of information by other persons

Actual or likely emergencies

- (1) If information is disclosed to a person as permitted by subsection 295V(1) or (2) or this subsection, the person may use or disclose the information for a purpose connected with persons being alerted to the emergency or likely emergency concerned.

Testing

- (2) If information is disclosed to a person as permitted by subsection 295V(3) or this subsection, the person may use or disclose the information for the purpose of reasonable testing of whether, in the event of an emergency occurring, persons would be able to be alerted to that emergency.

Other

- (3) If information is disclosed to a person as permitted ~~services requested by~~ subsection 295V(4) or this subsection, the person may use or disclose the information for a purpose connected with persons being alerted to an emergency or a likely emergency ~~the CDR consumer;~~

295X Effect on telecommunications network

In using or disclosing information that is permitted by section 295V or 295W, a person must take reasonable steps to ensure that the use or disclosure does not adversely affect the operation of a telecommunications network.

295Y Coronial and other inquiries

~~The (e) — direct marketing consents;~~

~~(d) de-identification consents;~~

~~(e) AP disclosure of relevant information to: consents;~~

~~(a) a coronial inquiry; or~~

~~(b) another inquiry specified by the AFP Minister, by legislative instrument, for the purposes of this paragraph;~~

~~in relation to an emergency or likely emergency is taken, for the purposes of this Division, to be a) TA disclosure for a purpose connected with persons being alerted to the emergency or likely emergency concerned. consents;~~

~~295Z Offence—use or (g) — insight disclosure of information consents.~~

- (3) For these rules, an ***insight disclosure consent*** in relation to particular CDR data of a CDR consumer held by an accredited data recipient is a consent given by the CDR consumer under these rules that:

~~(a) authorises the accredited data recipient to disclose the CDR data to a specified person for one or more of the following purposes:~~

~~(i) verifying the consumer's identity;~~

~~(ii) verifying the consumer's account balance;~~

~~(iii) verifying the details of credits to or debits from the consumer's accounts; but~~

~~(b) where the CDR data relates to more than one transaction — does not authorise the accredited data recipient to disclose an amount or date in relation to any individual transaction.~~

1.10C Trusted advisers

- (1) An accredited person may invite a CDR consumer to nominate one or more persons as ***trusted advisers*** of the CDR consumer for the purposes of this rule.

- (2) A trusted adviser must belong to one of the following classes:

~~(a) qualified accountants within the meaning of the *Corporations Act 2001*;~~

~~(b) persons who are admitted to the legal profession (however described) and hold a current practising certificate under a law of a State or Territory that regulates the legal profession;~~

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- ~~———— (c) registered tax agents, BAS agents and tax (financial) advisers within the meaning of the *Tax Agent Services Act 2009*;~~
 - ~~———— (d) financial counselling agencies within the meaning of the *ASIC Corporations (Financial Counselling Agencies) Instrument 2017/792*;~~
 - ~~———— (e) relevant providers within the meaning of the *Corporations Act 2001* other than:
 - ~~———— (i) provisional relevant providers under section 910A of that Act; and~~
 - ~~———— (ii) limited service time sharing advisers under section 910A of that Act;~~~~
 - ~~———— (f) mortgage brokers within the meaning of the *National Consumer Credit Protection Act 2009*.~~
- ~~———— (3) Where the accredited person has taken reasonable steps to confirm that a person nominated as a trusted adviser was, and remains, a member of a class mentioned in subrule (2), the person is taken to be a member of that class for the purposes of this rule.~~
- ~~———— (4) The accredited person must not make:~~
- ~~———— (a) the nomination of a trusted adviser; or~~
 - ~~———— (b) the nomination of a particular person as a trusted adviser; or~~
 - ~~———— (c) the giving of a TA disclosure consent;~~
- ~~———— a condition for supply of the goods or services requested by the CDR consumer.~~

Division 1.4—General provisions relating to data holders and to accredited persons

Subdivision 1.4.1—Preliminary

1.11—Simplified outline of Division

This Division sets out:

- general obligations of data holders which relate to product data requests and consumer data requests; and
- general obligations for data holders and accredited persons to provide CDR consumers with consumer dashboards, which contain information relating to consumer data requests, and a functionality for amending or withdrawing consents, and for withdrawing authorisations, under these rules.

Subdivision 1.4.2—Services for making requests under these rules

1.12—Product data request service

- (1) A data holder must provide an online service that:
 - (a) can be used to make product data requests; and
 - (b) enables requested data to be disclosed in machine-readable form; and
 - (c) conforms with the data standards.

Note 1: See rule 2.3 for the meaning of “product data request”.

Note 2: This subrule is a civil penalty provision (see rule 9.8).

- (2) Such a service is a *product data request service*.

1.13—Consumer data request service

- (1) A data holder must provide:
 - (a) an online service that:
 - (i) can be used by eligible CDR consumers to make consumer data requests directly to the data holder; and
 - (ii) allows a request to be made in a manner that is no less timely, efficient and convenient than any of the online services that are ordinarily used by emergency management persons customers of the data holder to deal with it; and
 - (iii) enables requested data to be disclosed in human-readable form; and
 - (iv) sets out any fees for disclosure of voluntary consumer data; and
 - (v) conforms with the data standards; and
 - (b) an online service that:
 - (i) can be used by accredited persons to make consumer data requests, on behalf of eligible CDR consumers, to the data holder; and

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- ~~(ii) enables requested data to be disclosed in machine-readable form; and~~
 - ~~(iii) conforms with the data standards; and~~
 - ~~(c) for each eligible CDR consumer that is not an individual—a service that can be used to:~~
 - ~~(i) nominate one or more individuals (*nominated representatives*) who are able to give, amend and manage authorisations to disclose CDR data for the purposes of these rules on behalf of the CDR consumer; and~~
 - ~~(ii) revoke such a nomination; and~~
 - ~~(d) for each partnership that relates to a partnership account with the data holder—a service that can be used to:~~
 - ~~(i) nominate one or more individuals (*nominated representatives*) who are able to give, amend and manage authorisations to disclose CDR data that relate to the partnership accounts of that partnership for the purposes of these rules on behalf of the CDR consumers who are its partners; and~~
 - ~~(ii) revoke such a nomination; and~~
 - ~~(e) in relation to each account in relation to which a person has account privileges—a service that can be used by the account holder to:~~
 - ~~(i) make a secondary user instruction; and~~
 - ~~(ii) revoke the instruction.~~

~~Note 1: See rule 3.3 for the meaning of “consumer data request” in relation to a request made by a CDR consumer directly to a data holder.~~

~~Note 2: See rule 4.4 for the meaning of “consumer data request” in relation to a request made by an accredited person to a data holder on behalf of a CDR consumer.~~

~~Note 3: In the circumstances of paragraphs (1)(c) and (d), a person or partnership that does not have a nominated representative will not be able to give or amend authorisations, or use the dashboard to manage authorisations (see subrule 1.15(2A)), and accordingly, the data holder will be neither required nor permitted to disclose the requested CDR data under these rules.~~

~~Note 4: The services of paragraphs (c), (d) and (e) may, but need not, be online.~~

~~Note 5: This subrule is a civil penalty provision (see rule 9.8).~~

- ~~(2) The service referred to in paragraph (1)(a) is the data holder’s *direct request service*.~~
- ~~(3) The service referred to in paragraph (1)(b) is the data holder’s *accredited person request service*.~~
- ~~(4) A data holder does not contravene subrule (1) in relation to subparagraph (1)(a)(ii) so long as it takes reasonable steps to ensure that the online service complies with that subparagraph.~~

Subdivision 1.4.3—Services for managing consumer data requests made by accredited persons

1.14 Consumer dashboard—accredited person

- ~~———— (1) Subject to subrule (5), an accredited person must provide each eligible CDR consumer on whose behalf the accredited person makes a consumer data request with an online service that:~~
- ~~———— (a) can be used by the CDR consumer to manage:~~
- ~~———— (i) such requests; and~~
- ~~———— (ii) associated consents; and~~
- ~~———— (b) contains the details of each consent specified in subrule (3) and the information specified in subrule (3A); and~~
- ~~———— (c) has a functionality that:~~
- ~~———— (i) allows the CDR consumer, at any time, to:~~
- ~~———— (A) withdraw current consents; and~~
- ~~———— (B) elect that redundant data be deleted in accordance with these rules and withdraw such an election; and~~
- ~~———— (ii) is simple and straightforward to use; and~~
- ~~———— (iii) is prominently displayed.~~
- ~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~
- ~~———— (2) Such a service is the accredited person's *consumer dashboard* for that consumer.~~
- ~~———— (2A) The consumer dashboard may, on and after 1 July 2021, also include a functionality that allows a CDR consumer to amend a current consent.~~
- ~~———— (3) For paragraph (1)(b), the information is the following for each consent:~~
- ~~———— (a) details of the CDR data to which the consent relates;~~
- ~~———— (b) for a use consent—details of the specific use or uses for which the CDR consumer has given their consent;~~
- ~~———— (c) when the CDR consumer gave the consent;~~
- ~~———— (d) whether the consent applies:~~
- ~~———— (i) on a single occasion; or~~
- ~~———— (ii) over a period of time;~~
- ~~———— (e) if a collection consent or disclosure consent applies over a period of time:~~
- ~~———— (i) what that period is; and~~
- ~~———— (ii) how often data has been, and is expected to be, collected or disclosed over that period;~~
- ~~———— (ea) for an insight disclosure consent—a description of the CDR insight and to whom it was disclosed;~~
- ~~———— (f) if the consent is current—when it is scheduled to expire;~~
- ~~———— (g) if the consent is not current—when it expired;~~
- ~~———— (h) information relating to CDR data that was collected or disclosed pursuant to the consent (see rule 7.4 and rule 7.9);~~
- ~~———— (i) details of each amendment (if any) that has been made to the consent.~~

~~Note 1: For paragraph (f), consents expire at the latest 12 months after they are given or, in some circumstances, amended: see paragraph 4.14(1)(d).~~

~~Note 2: For the specific uses that are possible, see the data minimisation principle (rule 1.8).~~

~~Note 3: The consumer dashboard could contain other information too, for example, the written notices referred to in rule 7.15 (which deals with correction requests under privacy safeguard 13, section 56EP of the Act).~~

- ~~(3A) For paragraph (1)(b), the other information is:~~
- ~~(a) a statement that the CDR consumer is entitled to request further records in accordance with rule 9.5; and~~
 - ~~(b) information about how to make such a request.~~
- ~~(4) An accredited person does not contravene subrule (1) in relation to subparagraph (1)(c)(ii) so long as it takes reasonable steps to ensure that the functionality complies with that subparagraph.~~

1.15 Consumer dashboard—data holder

- ~~(1) If a data holder receives a consumer data request from an accredited person on behalf of a CDR consumer, the data holder must ensure that it provides the CDR consumer with an online service that:~~
- ~~(a) can be used by the CDR consumer to manage authorisations to disclose CDR data in response to consumer data requests; and~~
 - ~~(b) contains the details of each authorisation to disclose CDR data specified in subrule (3); and~~
 - ~~(ba) contains any information in the data standards that is specified as information for the purposes of this rule; and~~
 - ~~(bb) contains any information on the Register of Accredited Persons that is specified as information for the purposes of this rule; and~~
 - ~~(c) has a functionality that:~~
 - ~~(i) allows for withdrawal, at any time, of authorisations to disclose CDR data; and~~
 - ~~(ii) is simple and straightforward to use; and~~
 - ~~(iii) is no more complicated to use than the process for giving the authorisation to disclose CDR data; and~~
 - ~~(iv) is prominently displayed; and~~
 - ~~(v) as part of the withdrawal process, displays a message relating to the consequences of the withdrawal in accordance with the data standards; and~~
 - ~~(d) contains any other details, and has any other functionality, required by a provision of these rules.~~

~~Note 1: This subrule is a civil penalty provision (see rule 9.8).~~

- ~~(2) Such a service is the data holder's **consumer dashboard** for that consumer.~~

~~Note: If the consumer data request relates to a joint account, there may be an obligation to provide all joint account holders with consumer dashboards: see rule 4A.13.~~

~~(2A) For subrule (1), the online service must allow only nominated representatives to manage authorisations in the following circumstances:~~

- ~~(a) where the CDR consumer is not an individual;~~
- ~~(b) where the CDR data relates to a partnership account.~~

~~(3) For paragraph (1)(b) and paragraph (5)(a), for each authorisation:~~

- ~~(a) details of the CDR data that has been authorised to be disclosed;~~
- ~~(b) when the CDR consumer gave the authorisation;~~
- ~~(c) the period for which the CDR consumer gave the authorisation;~~
- ~~(d) if the authorisation is current—when it is scheduled to expire;~~
- ~~(e) if the authorisation is not current—when it expired;~~
- ~~(f) information relating to CDR data that was disclosed pursuant to the authorisation (see rule 7.9);~~
- ~~(g) for a disclosure of CDR data that relates to the authorisation but that was pursuant to a request under subsection 56EN(4) of the Act—that fact.~~

~~Note 1: For paragraph (d), authorisations to disclose CDR data expire at the latest 12 months after they are given: see paragraph 4.26(1)(e).~~

~~Note 2: The consumer dashboard could contain other information too, for example, the written notice referred to in rules 7.10 (which deals with quality of CDR data under privacy safeguard 11, section 56EN of the Act) and 7.15 (which deals with correction requests under privacy safeguard 13, section 56EP of the Act).~~

~~(4) A data holder does not contravene subrule (1) in relation to subparagraphs (1)(c)(ii) and (iii) so long as it takes reasonable steps to ensure that the functionality complies with those subparagraphs.~~

Secondary users ~~An emergency management person commits an offence if:~~

~~(a) the person uses or discloses~~

~~(5) If the CDR consumer is a secondary user for an account, the data holder must also provide the account holder with an online service that:~~

- ~~(a) for each authorisation to disclose CDR data given by the secondary user—contains the details specified in subrule (3); and~~
- ~~(b) has a functionality that:~~
 - ~~(i) allows for the account holder to, at any time, give the indication referred to in subparagraph 4.6A(a)(ii) in relation to a particular accredited person; and~~
 - ~~(ii) allows for the withdrawal of the secondary user instruction; and~~
 - ~~(iii) is simple and straightforward to use; and~~
 - ~~(iv) is no more complicated to use than the processes for giving the authorisations or instructions; and~~
 - ~~(v) is prominently displayed; and~~
 - ~~(vi) as part of the withdrawal process, displays a message relating to the consequences of the withdrawal in accordance with the data standards.~~

~~Note 1: This subrule is a civil penalty provision (see rule 9.8).~~

~~Note 2: If the account holder makes an indication in accordance with subparagraph (5)(b)(i), the data holder will no longer be able to disclose CDR data relating to that account to that accredited person: see subrules 4.6(2) and (4) and subrule 4.6A(1).~~

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- ~~(6) A data holder does not contravene subrule (5) in relation to subparagraphs (5)(b)(iii) and (iv) so long as it takes reasonable steps to ensure that the functionality complies with those subparagraphs.~~
- ~~(7) If the data holder provides a consumer dashboard for the account holder, the service mentioned in subrule (5) must be included in the consumer dashboard.~~
- ~~Note: This subrule is a civil penalty provision (see rule 9.8).~~

Subdivision 1.4.4—Other obligations of accredited persons

1.16—Obligations relating to CDR outsourcing arrangements

- (1) If an accredited person is the principal in a CDR outsourcing arrangement, it must ensure that the provider complies with its requirements under the arrangement.

Note: ——— This subrule is a civil penalty provision (see rule 9.8).

- (2) If an accredited person collects CDR data on behalf of another accredited person (the *principal*) under a CDR outsourcing arrangement:
- (a) rule 7.4 and rule 7.9 apply only in relation to the principal; and
- (b) paragraph 7.10(1)(a) requires the principal to be identified.

Subdivision 1.4.5—Deletion and de-identification of CDR data

1.17 CDR data de-identification process

- ~~(1) This rule sets out the *CDR data de-identification process* for particular CDR data (the *relevant data*).~~

~~Note: This process is applied by an accredited data recipient when de-identifying CDR data in accordance with a consent from a CDR consumer (see Subdivision 4.3.3) and when de-identifying redundant data for the purposes of privacy safeguard 12 (see rule 7.12).~~

- ~~(2) First, the accredited data recipient must consider whether, having regard to the following:~~
- ~~(a) the DDF;~~
 - ~~(b) the techniques that are available for de-identification of data;~~
 - ~~(c) the extent to which it would be technically possible for any person to be once more identifiable, or reasonably identifiable, after de-identification in accordance with such techniques;~~
 - ~~(d) the likelihood (if any) of any person once more becoming so identifiable, or reasonably identifiable from the data after de-identification;~~
 - ~~it would be possible to de-identify the relevant data to the extent (the *required extent*) that no person would any longer be identifiable, or reasonably identifiable, from:~~
 - ~~(e) the relevant data after the proposed de-identification; and~~
 - ~~(f) other information that would be held, following the completion of the de-identification process, by any person.~~
- ~~(3) If this is possible, the accredited data recipient must:~~
- ~~(a) determine the technique that is appropriate in the circumstances to de-identify the relevant data to the required extent; and~~
 - ~~(b) apply that technique to de-identify the relevant data to the required extent; and~~
 - ~~(c) delete, in accordance with the CDR data deletion process, any CDR data that must be deleted in order to ensure that no person is any longer identifiable, or reasonably identifiable, from the information referred to in paragraphs (2)(e) and (f); and~~
 - ~~(d) as soon as practicable, make a record to evidence the following:~~
 - ~~(i) its assessment that it is possible to de-identify the relevant data to the required extent;~~
 - ~~(ii) that the relevant information; and data was de-identified to that extent;~~
 - ~~(b) the use or disclosure is not permitted under section 295V.~~

Penalty: Imprisonment for 2 years.

295ZA Offence—use or disclosure of information by other persons

~~_____ (iii) —how the relevant data was de-identified, including records of the technique that was used;~~

~~_____ (iv) —any persons to whom the de-identified data is disclosed.~~

~~_____ (4) If this is not possible, the accredited data recipient must delete the relevant data and any CDR data directly or indirectly derived from it in accordance with the CDR data deletion process.~~

~~Note: —For the CDR data deletion process, see rule 1) _____ A .18.~~

~~_____ (5) For this rule, the **DDF** is *The De-Identification Decision-Making Framework* published by the Office of the Australian Information Commissioner and Data61, as in force from time to time.~~

~~Note: —The *De-Identification Decision-Making Framework* could in 2020 be downloaded from Data61's website (<https://www.data61.csiro.au/>).~~

1.17A Identification of otherwise redundant data that is not to be deleted

~~_____ (1) Where the accredited data recipient has identified CDR data as redundant, it must identify whether any of the following provisions of the Act apply to the CDR data:~~

~~_____ (a) paragraphs 56BAA(2)(a), (b) or (c) of the Act (deletion request by consumer);~~

~~_____ (b) paragraphs 56EO(2)(b) or (c) of the Act (privacy safeguard 12).~~

~~_____ (2) Where one of those provisions applies, the accredited person commits must retain the CDR data while that provision applies.~~

~~_____ (3) For the purposes of paragraph 56BAA(2)(c) of the Act, in relation to CDR data of a CDR consumer, the person may:~~

~~_____ (a) request the CDR consumer to state whether or not proceedings of the kind mentioned in that paragraph are current or anticipated; and~~

~~_____ (b) rely on that statement.~~

1.18 CDR data deletion process

~~_____ For these rules, the **CDR data deletion process** in relation to a person that holds CDR data that is to be deleted consists of the following steps:~~

~~_____ (a) delete, to the extent reasonably practicable, that CDR data and any copies of that CDR data;~~

~~_____ (b) make a record to evidence the deletion; and~~

~~_____ (c) where another person holds the CDR data on its behalf and will perform those steps—direct that person to notify it when those steps have been performed.~~

~~Note: The CDR data deletion process is applied by an offence if: accredited data recipient when deleting CDR data in accordance with a CDR consumer's right to deletion (see Subdivision 4.3.4) and when deleting redundant data for the purposes of privacy safeguard 12 (see rule 7.13).~~

(a) ~~information~~Part 2 — Product data requests

2.1 ~~Simplified outline of this Part~~

~~This Part deals with product data requests. Such requests are made using a data holder's product data request service.~~

~~A product data request may be for required product data, voluntary product data, or both. Schedule 3 to these rules provides for what is required product data and voluntary product data for the banking sector.~~

~~When requested in accordance with this Part, a data holder:~~

- ~~• must, subject to an exception outlined in this Part, disclose required product data; and~~
- ~~• may, but is not required to, disclose voluntary product data.~~

~~In either case, the data is disclosed to the person as permitted by subsection 295V(1) or (2) or 295W(1); and~~

~~(b) the person uses or discloses the information; and~~

~~(c) the use or disclosure referred to in paragraph (b) of this subsection is not for a purpose connected with persons being alerted to the emergency or likely emergency concerned.~~

~~Penalty: Imprisonment for 2 years.~~

~~(2) A person commits an offence if:~~

~~(a) information is who made the request, in machine-readable form and in accordance with the data standards. A data holder must not impose conditions, restrictions or limitations of any kind on the use of the disclosed to the person as permitted by subsection 295V(3) or 295W(2); and data.~~

~~A fee cannot be charged for the disclosure of required product data, but could be charged for the disclosure of voluntary product data.~~

2.2 ~~Making product data requests — flowchart~~

~~The following is a flowchart for how product data requests are made:~~

~~Person makes a request for product data using a data holder's product data request service.~~

~~For any required product data, the data holder must (unless covered by an exception) disclose the data to the requester.~~

~~For any voluntary product data, the data holder may, but is not required to, disclose the data to the requester.~~

~~In either case, the data is disclosed through the data holder's product data request service.~~

2.3 Product data requests

- ~~(1) A person may:~~
- ~~(a) using the data holder's product data request service; and~~
 - ~~(b) the person uses in accordance with the data standards;~~
- ~~request a data holder to disclose some or all of the CDR data that relates to one or more products that are offered by or on behalf of the data holder.~~

~~Note: These rules will progressively permit product data requests to be made to a broader range of data holders within the banking sector, and in relation to a broader range of CDR data, according to the timetable set out in Part 6 of Schedule 3.~~

- ~~(2) Such a request is a **product data request**.~~

~~Note: A fee cannot be charged for making a product data request.~~

2.4 Disclosing product data in response to product data request

- ~~(1) This rule applies if a data holder has received a product data request.~~
- ~~(2) The data holder may disclose any requested voluntary product data to the requester.~~
- ~~Note: See rule 1.7 for the definition of "voluntary product data", and see clause 3.1 of Schedule 3 for the definition of "voluntary product data" in relation to the banking sector.~~
- ~~(2A) If the data holder discloses the information, and any requested voluntary product data to the requester, it must do so:~~
- ~~(c) the use or disclosure referred to in paragraph (b) of this subsection is not for the purpose of reasonable testing of whether, in the event of an emergency occurring, persons would be able to be alerted to that emergency.~~

Penalty: Imprisonment for 2 years.

- ~~(3) A person commits an offence if:~~

-
- (a) information is disclosed to the person as permitted by subsection 295V(4) or 295W(3); and
 - (b) the person uses or discloses the information; and
 - (c) the use or disclosure referred to in paragraph (b) of this subsection is not for a purpose connected with persons being alerted to an emergency or a likely emergency.

Penalty: Imprisonment for 2 years.

295ZB Reports of access

(1) If an emergency management person discloses relevant information, the person must give a written report to the AFP Minister and to the ACMA that covers the following matters:

- (a) if the disclosure occurred under subsection 295V(1) or (2)—a description of the emergency or likely emergency concerned and its location;
- (b) in any case—the number of telephone numbers that were disclosed and the day that disclosure occurred;
- (c) in any case—the number of persons to whom the emergency management person disclosed those numbers and the purpose of each disclosure.

(2) The emergency management person must give the report to the AFP Minister and to the ACMA as soon as practicable after the last disclosure referred to in paragraph (1)(c) of this section occurs (disregarding section 295Y).

295ZC Annual reports to the ACMA and Information Commissioner

If an emergency management person discloses relevant information during a financial year, the person must, within 2 months after the end of that financial year, give a written report to the ACMA and to the Information Commissioner that covers the following matters in relation to each such disclosure:

- (a) if the disclosure occurred under subsection 295V(1) or (2)—a description of the emergency or likely emergency concerned and its location;
- (b) in any case—the number of telephone numbers that were disclosed and the day that disclosure occurred;
- (c) in any case—the number of persons to whom the emergency management person disclosed those numbers and the purpose of each disclosure (whether the disclosure occurred in that financial year or the following financial year).

295ZD Arrangements with States and Territories

(1) The AFP Minister may make arrangements with a Minister of a State or a Territory with respect to the performance of functions or duties, or the exercise of powers, by an emergency management person under this Division.

-
- (2) An instrument by which an arrangement under this section is made is not a legislative instrument.

295ZE Commonwealth immunity

No action, suit or proceeding lies against the Commonwealth in relation to loss, damage or injury to any person or property as a result of the use or disclosure of relevant information:

- (a) for a purpose connected with persons being alerted to an emergency or a likely emergency; or
- (b) for the purpose of reasonable testing of whether, in the event of an emergency occurring, persons would be able to be alerted to that emergency.

Division 4—Secondary disclosure/use offences

296 Performance of person's duties

- _____ If:
- _____ (a) information or a document is disclosed to a person for a particular purpose as permitted by section 279 or this section; and
- _____ (b) the information or the contents of the document does not relate to the person's affairs or personal particulars;
- the person must not — (a) — through its product data request service; and
- _____ (b) in accordance with the data standards.
- Note: _____ This subrule is a civil penalty provision (see rule 9.8).
- _____ (3) The data holder must, subject to subrule (4) and rule 2.5:
- _____ — (a) — disclose or use the information or document except for that purpose.

297 Authorisation by or under law

_____ If information or a document is disclosed to a person for a particular purpose as permitted by section 280 or this section, the person must not disclose or use the information or document unless the disclosure or use ~~is the requested~~ required or authorised by or under law. ~~product data to the requester.~~

299 Assisting the ACMA, the eSafety Commissioner, the ACCC or the Telecommunications Industry Ombudsman

- _____ (1) If information or a document is disclosed to a person as permitted by subsection 284(1) or this subsection, the person must not disclose or use the information or document except for the purpose of, or in connection with, the carrying out of the ACMA's functions and powers.
- _____ (1A) If information or a document is disclosed to a person as permitted by subsection 284(1A) or this subsection, the person must not disclose or use the information or document except for the purpose of, or in connection with, the carrying out of the eSafety Commissioner's functions and powers.
- _____ (2) If information or a document is disclosed to a person as permitted by subsection 284(2) or this subsection, the person must not disclose or use the information or document except for the purpose of, or in connection with, the carrying out of the ACCC's telecommunications functions and powers.
- _____ (3) If information or a document is disclosed to a person as permitted by subsection 284(3) or this subsection, the person must not disclose or use the information or document except for the purpose of, or in connection with, assisting the Telecommunications Industry Ombudsman in the consideration of a complaint made to the Telecommunications Industry Ombudsman.

Note: ~~Section 284 (i) through its product data request service; and~~
~~(ii) in accordance with the data standards; and~~
~~(b) include in the disclosed data any required product data that is:~~
~~(i) the subject of the product data request; and~~
~~(ii) contained:~~
~~(A) on the data holder's website; or~~
~~(B) in a disclosure document that relates to the product.~~

Note 1: ~~See rule 1.7 for the definition of "required product data", and see clause 3.1 of Schedule 3 for the definition of "required product data" in relation to the banking sector.~~

Note 2: ~~This subrule is a civil penalty provision (see rule 9.8).~~

Note 3: ~~A fee cannot be charged for the disclosure of required product data: see section 56BU of the Act.~~

- ~~(4) If:~~
~~(a) a data holder (the **first data holder**) receives a request for CDR data that relates to a product (the **relevant product**); and~~
~~(b) the first data holder offers the relevant product on behalf of another data holder (the **second data holder**), such that the second data holder is the data holder that enters into contracts with consumers to provide the relevant product;~~
~~the first data holder is not required to disclose the requested required product data under subrule (3).~~
- ~~(5) If:~~
~~(a) the second data holder receives such a request; and~~
~~(b) the data holders have agreed in writing that, in such a case, the first data holder will disclose the requested required product data;~~
~~then:~~
~~(c) subrule (3) applies as if:~~
~~(i) it permitted the CDR data to be disclosed through the first data holder's product data request service; and~~
~~(ii) in the case that the first data holder disclosed CDR data in response to the request—the reference to the data holder's website in sub-subparagraph (3)(b)(ii)(A) was to the first data holder's website; and~~
~~(d) rule 2.6 applies as if it applied in relation to each of the first data holder and the second data holder.~~
- ~~(6) In this rule, **disclosure document** includes:~~
~~(a) a Product Disclosure Statement within the meaning of the *Corporations Act 2001*; or~~
~~(b) a key facts sheet within the meaning of the *National Consumer Credit Protection Act 2009*; or~~
~~(c) a similar document that is required by law to be disclosed to a customer prior to entering into a contract with that customer.~~

2.5 Refusal to disclose required product data in response to product data request

~~———— (1) Despite subrule 2.4(3), the data holder may refuse to disclose required product data in response to the request in circumstances (if any) set out in the data standards.~~

~~———— (2) The data holder must inform the requester of such a refusal in accordance with the data standards.~~

~~———— Civil penalty:~~

~~———— (a) for an individual — \$50,000; and~~

~~———— (b) for a body corporate — \$250,000.~~

2.6 Use of data disclosed pursuant to product data request

~~———— A data holder that discloses CDR data in response to a product data request must not impose conditions, restrictions or limitations of any kind on the use of the disclosed data.~~

~~Note: ——— This rule is a civil penalty provision (see rule 9.8).~~

~~Part 3—Consumer data requests made by eligible CDR consumers~~

~~Division 3.1—Preliminary~~

~~3.1—Simplified outline of this Part~~

~~This Part deals with consumer data requests that are made directly by eligible CDR consumers to data holders. Such requests are made using the data holder's direct request service.~~

~~A request may be for the CDR consumer's required consumer data, their voluntary consumer data, or both. Schedule 3 to these rules:~~

- ~~• provides for what is required consumer data and voluntary consumer data for the banking sector; and~~
- ~~• sets out the circumstances in which CDR consumers are eligible to request their banking sector CDR data.~~

~~When validly requested in accordance with this Part, a data holder:~~

- ~~• must, subject to an exception outlined in this Part, disclose required consumer data; and~~
- ~~• may, but is not required to, disclose voluntary consumer data.~~

~~In either case, the data is disclosed to the CDR consumer who made the request, in human readable form and in accordance with the data standards.~~

~~Special rules apply to joint accounts with 2 or more individual joint account holders. These are set out in Part 4A.~~

~~A fee cannot be charged for the disclosure of required consumer data, but could be charged for the disclosure of voluntary consumer data.~~

3.2 How an eligible CDR consumer makes a consumer data request—flowchart

The following is a flowchart for how an eligible CDR consumer makes a consumer data request under this Part:

A CDR consumer who is eligible to do so makes a consumer data request to a data holder via the data holder's direct request service.

For any required consumer data, the data holder must (unless covered by an exception) disclose the requested data to the CDR consumer.

For any voluntary consumer data, the data holder may (but is not required to) disclose the requested data to the CDR consumer.

In either case, the data is disclosed through the data holder's direct request service.

Division 3.2—Consumer data requests made by CDR consumers

3.3 Consumer data requests made by CDR consumers

- ~~———— (1) A CDR consumer may, using the data holder’s direct request service, request a data holder to disclose some or all of their CDR data.~~

~~Note: ——— These rules will progressively permit consumer data requests to be made to a broader range of data holders within the banking sector, and in relation to a broader range of CDR data, according to the timetable set out in Part 6 of Schedule 3.~~

- ~~———— (2) Such a request is a *consumer data request* made by a CDR consumer.~~

~~Note: ——— A fee cannot be charged for the disclosure of required consumer data: see section 56BU of the Act.~~

- ~~———— (3) A consumer data request made under this Part is *valid* if it is made by a CDR consumer who is eligible to make the request.~~

~~Note: ——— See subrule 1.7(1) for the meaning of “eligible”. For the banking sector, see clause 2.1 of Schedule 3 for when a CDR consumer is eligible.~~

3.4 Disclosing consumer data in response to a valid consumer data request

- ~~———— (1) This rule applies if a data holder has received a request that it reasonably believes to be a valid consumer data request made under this Part, for disclosure of CDR data of which it is the data holder.~~

- ~~———— (2) The data holder may disclose any requested voluntary consumer data to the CDR consumer who made the request.~~

~~Note: ——— See rule 1.7 for the definition of “voluntary consumer data”, and see clause 3.2 of Schedule 3 for the definition of “voluntary consumer data” in relation to the banking sector.~~

- ~~———— (3) The data holder must, subject to rule 3.5, disclose any requested required consumer data to the CDR consumer who made the request:~~

- ~~———— (a) through its direct request service; and~~
~~———— (b) in accordance with the data standards.~~

~~Note 1: ——— See rule 1.7 for the definition of “required consumer data”, and see clause 3.2 of Schedule 3 for the definition of “required consumer data” in relation to the banking sector.~~

~~Note 2: ——— For a request that relates to a joint account, see rules 4A.10 and 4A.15 for additional circumstances in which data relating to the joint account might not be disclosed under these rules.~~

~~Note 3: ——— This subrule is a civil penalty provision (see rule 9.8).~~

~~Note 4: ——— A fee cannot be charged for the disclosure of required consumer data: see section 56BU of the Act.~~

3.5 Refusal to disclose required consumer data in response to consumer data request

- ~~———— (1) Despite subrule 3.4(3), the data holder may refuse to disclose required consumer data in response to the request:~~

-
- ~~(a) if the data holder considers this to be necessary to prevent physical, psychological or financial harm or abuse; or~~
- ~~(aa) in relation to an account that is blocked or suspended; or~~
- ~~(b) in circumstances (if any) set out in the data standards.~~
- ~~(2) The data holder must inform the CDR consumer of such a refusal in accordance with the data standards.~~
- ~~Civil penalty:~~
- ~~(a) for an individual \$50,000; and~~
- ~~(b) for a body corporate \$250,000.~~

Part 4—Consumer data requests made by accredited persons

Division 4.1—Preliminary

4.1—Simplified outline of this Part

This Part deals with consumer data requests that are made to CDR participants by accredited persons on behalf of CDR consumers. Such requests, if made to a data holder, are made using the data holder's accredited person request service.

In order for such a request to be made, the CDR consumer must have first asked the accredited person to provide goods or services to the CDR consumer or to another person, where provision of those goods or services requires the use of the CDR consumer's CDR data.

Before making a consumer data request on behalf of a CDR consumer, the consumer must first have consented to the accredited person collecting and using specified CDR data to provide the requested goods or services.

Subject to certain limitations, the requested data can be any CDR data that relates to the CDR consumer.

Collection and use of CDR data under this Part is limited by the data minimisation principle, under which the accredited person:

- (a) — must not collect more data than is reasonably needed in order to provide the requested goods or services; and
- (b) — may use the collected data only as reasonably needed in order to provide the requested goods or services or as otherwise consented to by the consumer.

A request may be for the CDR consumer's required consumer data, their voluntary consumer data, or both. Schedule 3 to these rules:

- • — provides for what is required consumer data and voluntary consumer data for the banking sector; and
- • — sets out the circumstances in which CDR consumers are eligible in relation to a request for their banking sector CDR data.

Consumer data requests made to data holders

Subject to exceptions outlined in this Part, if a request is made to a data holder, the data holder:

- • — must seek the CDR consumer's authorisation to disclose required consumer data; and
- • — must seek the CDR consumer's authorisation to disclose any voluntary consumer data that it intends to disclose.

The data holder then must disclose, to the accredited person, the required consumer data it is authorised to disclose, and may (but is not required to)

~~disclose the voluntary consumer data it is authorised to disclose. The data is disclosed in machine-readable form and in accordance with the data standards.~~

~~Consumer data requests made to accredited data recipients~~

~~If a request is made to an accredited data recipient, the accredited data recipient:~~

- ~~— • — may (but is not required to) seek the CDR consumer's consent to disclose the requested CDR data; and~~
- ~~— • — once that consent is obtained, may (but is not required to) disclose that CDR data to the accredited person.~~

~~Special rules apply to joint accounts with 2 or more individual joint account holders. These are set out in Part 4A.~~

~~A fee cannot be charged for the disclosure by a data holder of required consumer data, but could be charged for the disclosure by a data holder of voluntary consumer data, or by an accredited data recipient for disclosure of any CDR data.~~

~~Division 4.2—Consumer data requests made by accredited persons to CDR participants~~

~~Subdivision 4.2.1—Preliminary~~

~~4.2—Consumer data requests made by accredited persons to CDR participants— flowchart~~

~~————— The following is a flowchart for how an accredited person makes a consumer data request to a CDR participant under this Division.~~

~~A CDR consumer has requested an accredited person to provide goods or services, which require the use of the CDR consumer's CDR data.~~

~~The CDR consumer consents to the accredited person collecting certain specified CDR data from a CDR participant and using it to provide those goods or services.~~

~~Consumer data request to data holder~~

~~The accredited person makes a consumer data request, on the CDR consumer's behalf, to a data holder using the data holder's accredited person request service.~~

~~Consumer data request to accredited data recipient~~

~~The accredited person makes a consumer data request, on the CDR consumer's behalf, to an accredited data recipient.~~

~~For any required consumer data, the data holder must (unless covered by an exception) ask the CDR consumer to authorise disclosure of the requested data.~~

~~For any voluntary consumer data, the data holder may (but is not required to) ask the CDR consumer to authorise disclosure.~~

~~The accredited data recipient may (but is not required to) ask the CDR consumer to consent to it disclosing the requested CDR data to the accredited person, if such a consent is not already in place.~~

~~The data holder must disclose, to the accredited person, the required consumer data it is authorised to disclose, and may disclose the voluntary consumer data it is authorised to disclose.~~

~~In either case, the data is disclosed through the data holder's direct request service.~~

~~If the CDR consumer gives or has given a disclosure consent, the accredited data recipient may (but is not required to) disclose the requested CDR data to the accredited person.~~

~~The accredited person may use and disclose the CDR data it collects as a result of the consumer data request, in accordance with the Act and these rules, to provide the requested goods and services to the CDR consumer, and as otherwise consented to by the CDR consumer.~~

Subdivision 4.2.2—Requests to seek to collect CDR data from CDR participants

4.3 Request for accredited person to seek to collect CDR data

- (1) This rule applies if:
- (a) a CDR consumer requests an accredited person to provide goods or services to the CDR consumer or to another person; and
- (b) the accredited person needs to collect the CDR consumer's CDR data from a CDR participant under these rules and use it in order to provide those goods or services.
- (2) The accredited person may, in accordance with Division 4.3, ask the CDR consumer to give:
- (a) a collection consent for the accredited person to collect their CDR data from the CDR participant; and
- (b) a use consent for the accredited person to use that CDR data;
- in order to provide those goods or services.

Note 1: ——— In order to provide goods or services in accordance with the CDR consumer's request, it might be necessary for the accredited person to request CDR data from more than 1 CDR participant.

Note 2: ——— The accredited person is able to collect and use CDR data only in accordance with the data minimisation principle: see rule 1.8.

- (3) In giving the consents, the CDR consumer gives the accredited person a **valid** request to seek to collect that CDR data from the CDR participant.

Note: ——— If the accredited person seeks to collect CDR data under this Part without a valid request, it will contravene privacy safeguard 3 (a civil penalty provision under the Act): see section 56EF of the Act.

- (4) The request ceases to be **valid** if the collection consent is withdrawn.

Note: ——— So long as the use consent is not also withdrawn, the accredited person could continue to use CDR data it had already collected in order to provide the requested goods or services. However, the notification requirement of rule 4.18A would apply.

- (5) If an accredited person asks for a CDR consumer's consents for the purpose of making a consumer data request under this Part, the accredited person must do so in accordance with Division 4.3.

Note: ——— This subrule is a civil penalty provision (see rule 9.8).

Subdivision 4.2.3—Consumer data requests by accredited persons to data holders

4.4 Consumer data request by accredited person to data holder

- (1) If:
- (a) a CDR consumer has given an accredited person a request under rule 4.3 to seek to collect CDR data from a data holder; and
- (b) the request is valid;

~~the accredited person may request the data holder to disclose, to the accredited person, some or all of the CDR data that:~~

- ~~(c) is the subject of the relevant collection consent and use consent; and~~
- ~~(d) it is able to collect and use in compliance with the data minimisation principle.~~

~~Note: See rule 1.8 for the definition of the “data minimisation principle”.~~

- ~~(2) Such a request is a *consumer data request* by an accredited person to a data holder on behalf of a CDR consumer.~~

~~Note 1: An accredited person might need to make consumer data requests to several CDR participants in order to provide the goods or services requested by the CDR consumer, and might need to make regular consumer data requests over a period of time in order to provide those goods or services.~~

~~Note 2: These rules will progressively permit consumer data requests to be made in relation to CDR data held by a broader range of data holders within the banking sector, and in relation to a broader range of CDR data, according to the timetable set out in Part 6 of Schedule 3.~~

- ~~(3) An accredited person must, if it makes a consumer data request under this Subdivision, make the request:~~

- ~~(a) using the data holder’s accredited person request service; and~~
- ~~(b) in accordance with the data standards.~~

~~Note 1: A data holder cannot charge an accredited person a fee for making a consumer data request in relation to required consumer data.~~

~~Note 2: This subrule is a civil penalty provision (see rule 9.8).~~

4.5 Data holder must ask eligible CDR consumer to authorise disclosure

- ~~(1) This rule applies if:~~

- ~~(a) a data holder receives a consumer data request under rule 4.4; and~~
- ~~(b) there is no current authorisation for the data holder to disclose the requested data to the person who made the request; and~~
- ~~(c) the data holder reasonably believes that the request was made by an accredited person on behalf of an eligible CDR consumer.~~

~~Note: See subrule 1.7(1) for the meaning of “eligible”. For the banking sector, see clause 2.1 of Schedule 3 for when a CDR consumer is eligible.~~

- ~~(2) If the data holder is considering disclosing any of the requested voluntary consumer data, the data holder must ask the CDR consumer on whose behalf the request was made to authorise the disclosure:~~

- ~~(a) in accordance with Division 4.4; and~~
- ~~(b) in accordance with the data standards.~~

~~Note 1: See rule 1.7 for the definition of “voluntary consumer data”, and see clause 3.2 of Schedule 3 for the definition of “voluntary consumer data” in relation to the banking sector.~~

~~Note 2: This subrule is a civil penalty provision (see rule 9.8).~~

~~(3) The data holder must, subject to rule 4.7, ask the CDR consumer on whose behalf the request was made to authorise the disclosure of any requested required consumer data:~~

~~(a) in accordance with Division 4.4; and~~

~~(b) in accordance with the data standards.~~

Note 1: ~~See rule 1.7 for the definition of “required consumer data”, and see clause 3.2 of Schedule 3 for the definition of “required consumer data” in relation to the banking sector.~~

Note 2: ~~This subrule is a civil penalty provision (see rule 9.8).~~

~~4.6 Disclosing consumer data in response to a consumer data request~~

~~(1) This rule applies if:~~

~~(a) a data holder has received a consumer data request made under rule 4.4 for disclosure or use of information or documents to assist the ACMA, the eSafety Commissioner, the ACCC or the Telecommunications Industry Ombudsman, of CDR data; and~~

299A Integrated public number database

Public number directory

~~(b) the CDR consumer on whose behalf the request was made has given the data holder a current authorisation to disclose some or all of that CDR data.~~

~~(2) The data holder may, subject to rule 4.6A, disclose, to the person who made the request, any of the requested voluntary consumer data that it is authorised to disclose.~~

Note 1: ~~See rule 1.7 for the definition of “voluntary consumer data”, and see clause 3.2 of Schedule 3 for the definition of “voluntary consumer data” in relation to the banking sector.~~

Note 2: ~~For requests that relate to joint accounts, additional requirements need to be met in order for the data holder to be authorised to disclose requested CDR data that relates to the joint account: see Part 4A.~~

~~(3) It must do so:~~

~~(a) through its accredited person request service; and~~

~~(b) in accordance with the data standards.~~

Note: ~~This subrule is a civil penalty provision (see rule 9.8).~~

~~(4) The data holder must, subject to rule 4.6A and rule 4.7, disclose, to the person who made the request, the requested required consumer data that it is authorised to disclose:~~

~~(a) through its accredited person request service; and~~

~~(b) in accordance with the data standards.~~

Note 1: ~~See rule 1.7 for the definition of “required consumer data”, and see clause 3.2 of Schedule 3 for the definition of “required consumer data” in relation to the banking sector.~~

Note 2: ~~For requests that relate to joint accounts, additional requirements need to be met in order for the data holder to be authorised to disclose requested CDR data that relates to the joint account: see Part 4A.~~

~~Note 3: A fee cannot be charged for the disclosure of required consumer data: see section 56BU of the Act.~~

~~Note 4: Rule 7.4 (which deals with privacy safeguard 5, paragraph 56EH(a) of the Act) requires the accredited person to update its consumer dashboard for the CDR consumer on whose behalf the request was made to indicate the CDR data that was collected.~~

~~Note 5: Rule 7.9 (which deals with privacy safeguard 10, paragraph 56EM(1)(a) of the Act) requires the data holder to update its consumer dashboard for the CDR consumer on whose behalf the request was made to indicate the CDR data that was disclosed.~~

~~Note 6: This subrule is a civil penalty provision (see rule 9.8).~~

4.6A Disclosure of CDR data relating to account not permitted if not approved by account holder

~~Despite subrules 4.6(2) and (4), the data holder must not disclose requested CDR data that relates to a particular account to the person who made the request if:~~

~~(a) both of the following are satisfied:~~

- ~~(i) the request was made on behalf of a secondary user of the account;~~
- ~~(ii) the account holder has indicated, through their consumer dashboard, that they no longer approve CDR data relating to that account being disclosed to that accredited person in response to consumer data requests made by that secondary user; or~~

~~(b) a Schedule to the rules provides that the requested CDR data must not be disclosed.~~

~~Note 1: For subparagraph (a)(ii), the account holder is able to indicate this using the functionality referred to in subparagraph 1.15(5)(b)(i).~~

~~Note 2: For paragraph (b), for the banking sector, see clause 4.13 of Schedule 3 to these rules.~~

4.7 Refusal to disclose required consumer data in response to consumer data request

~~(1) Despite subrules 4.5(3) and 4.6(4), a data holder may refuse to ask for an authorisation in relation to the relevant CDR data, or refuse to disclose required consumer data in response to the request:~~

- ~~(a) if the data holder considers this to be necessary to prevent physical, psychological or financial harm or abuse; or~~
- ~~(b) if the data holder has reasonable grounds to believe that disclosure of some or all of that data would adversely impact the security, integrity or stability of:
 - ~~(i) the Register of Accredited Persons; or~~
 - ~~(ii) the data holder's information and communication technology systems; or~~~~
- ~~(c) in relation to an account that is blocked or suspended; or~~
- ~~(d) in circumstances (if any) set out in the data standards.~~

~~(3) The data holder must inform the accredited person of such a refusal in accordance with the data standards.~~

~~Civil penalty:~~

~~(a) for an individual—\$50,000; and~~

~~(b) for a body corporate—\$250,000.~~

~~Subdivision 4.2.4—Consumer data requests by accredited persons to accredited data recipients~~

~~4.7A—Consumer data request by accredited person to accredited data recipient~~

(1) If:

~~(a) information or a document is disclosed to a person as permitted by subsection 285(1A); and~~

~~(a) a CDR consumer has given an accredited person a request under rule 4.3 to seek to collect CDR data from an accredited data recipient; and~~

~~(b) the request is valid;~~

~~the accredited person may request the accredited data recipient to disclose, to the accredited person, some or all of the CDR data that:~~

~~(c) is the subject of the relevant collection consent and use consent; and~~

~~(d) it is able to collect and use in compliance with the data minimisation principle.~~

~~Note: See rule 1.8 for the definition of the “data minimisation principle”.~~

~~(2) Such a request is a *consumer data request* by an accredited person to an accredited data recipient on behalf of a CDR consumer.~~

~~Note: An accredited person might need to make consumer data requests to several CDR participants in order to provide the goods or services requested by the CDR consumer, and might need to make regular consumer data requests over a period of time in order to provide those goods or services.~~

~~4.7B—Accredited data recipient may ask eligible CDR consumer for AP disclosure is for a purpose covered by subparagraph 285(1A)(c)(ii); consent~~
~~then:~~

~~(c) during the period the person holds an authorisation in force under the integrated public number database scheme in relation to the information or document—the person must not disclose or use the information or document except for that purpose; and~~

~~(d) if—(1) This rule applies if:~~

~~(a) an accredited data recipient receives, or reasonably anticipates receiving, a consumer data request under rule 4.7A; and~~

~~(b) there is no current AP disclosure consent for the accredited data recipient to disclose the requested data to the person who made the request; and~~

~~(c) the accredited data recipient reasonably believes that the request was or will be made by an accredited person on behalf of an eligible CDR consumer.~~

~~Note: See subrule 1.7(1) for the person does not hold meaning of “eligible”. For the banking sector, see clause 2.1 of Schedule 3 for when a CDR consumer is eligible.~~

~~(2) The accredited data recipient may, in accordance with Division 4.3, ask the CDR consumer for such an authorisation—the person must not AP disclosure consent.~~

~~Note: If the CDR consumer consents to the disclosure, the accredited data recipient is authorised (but not required) to disclose or use the information or document the requested CDR data to the accredited person: see paragraph 7.5(1)(f) and rules 7.6, 7.7 and 7.8.~~

Research

(2) If:

(a) information or a document is disclosed to a person as permitted by subsection 285(1A); and

(b) the —(3)— If an accredited data recipient asks for an AP disclosure is for a purpose covered by subparagraph 285(1A)(c)(iv);

then:

(c) during the period the person holds an authorisation in force under the integrated public number database scheme in relation to the information or document—the person must not disclose or use the information or document except for that purpose; and

(d) if the person does not hold such an authorisation—the person must not disclose or use the information or document.

(3) If information or a document is disclosed to a person for a particular purpose as permitted by subsection (2) or this subsection, the person must not disclose or use the information or document except for that purpose.

300 Threat to person's life or health

(1) This section applies if:

(a) information or a document is disclosed to a person (the **first person**) as permitted by section 287 or this section; and

(b) the information or the contents of the document relate to the affairs or personal particulars (including any unlisted telephone number or any address) of another person.

(2) The first person must not disclose or use the information or document unless:

(a) it is unreasonable or impracticable to obtain the other person's consent to the disclosure or use; and

(b) either of the following apply:

(i) the disclosure or use is for the purpose of, or in connection with, preventing or lessening a serious threat to the life or health of a person;

(ii) the first person believes on reasonable grounds that the disclosure or use is reasonably necessary to prevent or lessen a serious threat to the life or health of a person.

Note: Section 287 deals with the disclosure or use of information or documents by a person where the person believes on reasonable grounds that the disclosure or use is reasonably necessary to prevent or lessen a serious threat to the life or health of a person.

301 Communications for maritime for the purposes of subrule (2), it must do so in accordance with Division 4.3.

If information or a document is disclosed to a person as permitted by section 288 or this section, the person must not disclose or use the information or document unless:

- (a) the disclosure or use is reasonably necessary for the purpose of the preservation of human life at sea; or
- (b) the disclosure or use:
 - (i) relates to the location of a vessel at sea; and
 - (ii) is made for maritime communications purposes.

Note: Section 288 deals with the disclosure or use of information or documents where the disclosure or use is made for certain maritime purposes.

302 Business needs of other carriers or service providers

If information or a document is disclosed to a person as permitted by section 291 or this section, a person must not disclose or use the information or document except for:

- (a) the purpose of, or in connection with, the carrying on by:
 - (i) a carrier; or
 - (ii) a service provider;of its business as such a carrier or provider; and
- (b) the purpose of, or in connection with:
 - (i) the supply, or proposed supply, by a carrier or service provider of a carriage service or a content service; or
 - (ii) the supply, or proposed supply, by a carrier or service provider of goods or services for use in connection with the supply of a carriage service or a content service; or
 - (iii) the installation, maintenance, operation or provision of access to a telecommunications network or a facility, where the network or facility is used, or for use, by a carrier or service provider to supply a carriage service or a content service to a person.

Note: Section 291 deals with the disclosure or use of information or documents for the purposes of a carrier or a service provider carrying on its business as such a carrier or provider.

302A Location dependent carriage services

- (1) If information or a document is disclosed to a person as permitted by section 291A or this subsection, a person must not disclose or use the information or document except for the purpose of, or in connection with, the supply, or proposed supply, by a person of a location dependent carriage service.

Note: Section 291A deals with the disclosure or use of information or documents for the purposes of the supply, or proposed supply, by a person of a location dependent carriage service.

- (2) In this section:

location dependent carriage service means a carriage service that depends for its provision on the availability of information about the addresses of end users of the carriage service.

303 Secondary offence—contravening~~Note: — This subrule is a civil penalty provision (see rule 9.8).~~

~~Division 4.3—Giving and amending consents~~

~~Subdivision 4.3.1—Preliminary~~

~~4.8—Purpose of Division~~

~~————— This Division deals with giving and amending collection consents, use consents and disclosure consents, as well as related matters.~~

~~4.9—Object~~

~~————— **The object of this Division is to ensure that a consent is:**~~

~~————— A person who contravenes this Division commits an offence punishable on conviction by imprisonment for a term not exceeding 2 years.~~

~~Note: See also sections 4AA and 4B of the *Crimes Act 1914*.~~

303A Generality of Division not limited

~~————— Nothing in this Division limits the generality of anything else in it.~~

Division 4A—Relationship with the Privacy Act 1988

303B Acts taken to be authorised by this Act for purposes of Privacy Act

- _____ (1) If a disclosure or use of information by a person would be prohibited by Division 2 apart from a provision of Division 3, the disclosure or use is taken for the purposes of the *Privacy Act 1988*, and of a registered APP code (as defined in that Act), to be authorised by this Act.
- _____ (2) If a disclosure or use of information by a person would be prohibited by a provision of Division 4 apart from the fact that the disclosure or use is covered by an exception in that provision to the prohibition, the disclosure or use is taken for the purposes of the *Privacy Act 1988*, and of a registered APP code (as defined in that Act), to be authorised by this Act.

303C Prosecution of an offence against this Part does not affect proceedings under the *Privacy Act 1988*

- _____ (1) The prosecution of an offence against Division 2 or 4 of this Part for disclosure or use of information or a document does not prevent civil proceedings or administrative action from being taken under the *Privacy Act 1988* or a registered APP code (as defined in that Act) in relation to the disclosure or use.
- _____ (2) This section applies regardless of the outcome of the prosecution.
- _____ (3) This section does not affect the operation of section 49 of the *Privacy Act 1988*.

Division 5—Record-keeping requirements

304 Associate

A reference in this Division to an *associate* of a carrier, carriage service provider or number-database operator is a reference to:

- (a) an employee of the carrier, provider or operator; or
- (b) a person (other than an employee) who performs services for or on behalf of the carrier, provider or operator; or
- (c) an employee of a person covered by paragraph (b).

305 Authorisations under the *Telecommunications (Interception and Access) Act 1979*

(1) This section applies if:

- (a) a carrier, carriage service provider or number-database operator; or
- (b) an associate of a carrier, carriage service provider or number-database operator;

is notified of an authorisation made under Division 4 or 4A of Part 4-1 of the *Telecommunications (Interception and Access) Act 1979*.

Note: Section 184 of the *Telecommunications (Interception and Access) Act 1979* deals with notification of such authorisations.

(2) The carrier, carriage service provider or number-database operator must retain the notification for 3 years.

306 Record of disclosures—general

(1) This section applies if:

- (a) an eligible person or an eligible number-database person discloses information or a document; and
- (b) the disclosure is authorised by:
 - (i) a provision of Division 3 (other than section 279, 285, 285A, 290, 291 or 291A); or
 - (ii) section 177, 178 or 179, subsection 180(3) or section 180A of the *Telecommunications (Interception and Access) Act 1979*.

(2) If the person is a carrier, carriage service provider or number-database operator, the carrier, provider or operator must:

- (a) make a record of the disclosure as soon as practicable after the disclosure and, in any event, within 5 days after the disclosure; and
- (b) retain that record for 3 years.

(3) If the person is an associate of a carrier, carriage service provider or number-database operator, the person must:

- (a) make a record of the disclosure as soon as practicable after the disclosure and, in any event, within 5 days after the disclosure; and
- (b) give a copy of that record to the carrier, provider or operator within 5 days after the making of the record.

(4) If a copy of a record is given to a carrier, carriage service provider or number-database operator under subsection (3), the carrier, provider or operator must retain that copy for 3 years.

(5) A record made under subsection (2) or (3) must set out:

(a) the name of the person who disclosed the information or document concerned; and

(b) the date of the disclosure; and

(c) a statement of the grounds for the disclosure; and

(d) if the disclosure is made on the grounds of an authorisation under the *Telecommunications (Interception and Access) Act 1979*:

(i) the name of the person who made the authorisation; and

(ii) the date of the making of the authorisation; and

(e) if paragraph (d) does not apply and the disclosure was at the request of another body or person:

(i) the name of the body or person; and

(ii) the date of the request; and

(f) if the information or document relates to the contents or substance of a communication that was carried by means of a carriage service—
particulars of that carriage service.

(6) A record, or a copy of a record, may be made, given or retained under this section:

(a) in written form; or

(b) in electronic form.

(7) A person who contravenes this section commits an offence punishable on conviction by a fine not exceeding 300 penalty units.

Note: See also sections 4AA and 4B of the *Crimes Act 1914*.

306A Record of disclosures—prospective authorisation under the *Telecommunications (Interception and Access) Act 1979*

(1) This section applies if:

(a) an eligible person or an eligible number-database person discloses information or a document; and

(b) the disclosure or disclosures are authorised by an authorisation under section 180 or 180B of the *Telecommunications (Interception and Access) Act 1979* (in so far as the authorisation is of a kind referred to in subsection 180(2) or 180B(2) of that Act).

(2) If the person is a carrier, carriage service provider or number-database operator, the carrier, provider or operator must:

(a) make a record of the disclosure or disclosures as soon as practicable after the day on which the authorisation ceases to be in force and, in any event, within 5 days after that day; and

(b) retain that record for 3 years.

(3) If the person is an associate of a carrier, carriage service provider or number-database operator, the person must:

(a) make a record of the disclosure or disclosures as soon as practicable after the day on which the authorisation ceases to be in force and, in any event, within 5 days after that day; and

(b) give a copy of that record to the carrier, provider or operator within 5 days after the making of the record.

(4) If a copy of a record is given to a carrier, carriage service provider or number-database operator under subsection (3), the carrier, provider or operator must retain that copy for 3 years.

(5) A record made under subsection (2) or (3) must set out:

(a) the name of the person or persons who made the disclosure or disclosures; and

(b) one of the following:

(i) if only 1 disclosure is made because of the authorisation—the date of the disclosure;

(ii) if more than 1 disclosure is made because of the authorisation—the date of the first disclosure and the date of the last disclosure; and

(c) a statement of the grounds for the disclosure or disclosures; and

(d) the name of the person who made the authorisation and the date of the making of the authorisation.

(6) A record, or a copy of a record, may be made, given or retained under this section:

(a) in written form; or

(b) in electronic form.

(7) A person who contravenes this section commits an offence punishable on conviction by a fine not exceeding 300 penalty units.

Note: See also sections 4AA and 4B of the *Crimes Act 1914*.

307 Incorrect records

(1) A person must not, in purported compliance with section 306 or 306A, make a record of any matter or thing in such a way that it does not correctly record the matter or thing.

(2) A person who contravenes subsection (1) commits an offence punishable on conviction by imprisonment for a term not exceeding 6 months.

Note: See also sections 4AA and 4B of the *Crimes Act 1914*.

308 Annual reports to the ACMA by carriers, carriage service providers or number-database operators

(1) If:

(a) information or a document is disclosed during a financial year; and

(b) either:

(i) under section 306 or 306A, a carrier, carriage service provider or number-database operator makes a record of the disclosure; or

(ii) under section 306 or 306A, a carrier, carriage service provider or number-database operator is given a copy of a record of the disclosure;

the carrier, carriage service provider or number-database operator must, within 2 months after the end of the financial year, give the ACMA a written report relating to the disclosure.

(2) The report must set out such information about the disclosure as the ACMA requires.

309 Monitoring by the Information Commissioner

(1) In addition to the functions conferred on the Information Commissioner by the *Privacy Act 1988*, the Information Commissioner has the function of monitoring compliance with this Division.

(1A) The function conferred on the Information Commissioner by subsection (1) is a privacy function for the purposes of the *Australian Information Commissioner Act 2010*.

(2) In particular, the function conferred on the Information Commissioner by subsection (1) includes monitoring:

(a) whether a record made under section 306 or 306A sets out a statement of the grounds for a disclosure; and

(b) whether that statement is covered by Division 3 of this Part or Chapter 4 of the *Telecommunications (Interception and Access) Act 1979* (which deal with exceptions).

(3) A carrier, carriage service provider or number-database operator must give the Information Commissioner such access to the records of the carrier, provider or operator as the Information Commissioner reasonably requires for the purposes of the performance of the function conferred by subsection (1).

(4) The Information Commissioner may give the Minister a written report about any matters arising out of the performance of the function conferred by subsection (1).

Division 6—Instrument-making powers not ~~(a) voluntary; and~~

~~(b) express; and~~

~~(c) informed; and~~

~~(d) specific as to purpose; and~~

~~(e) time limited; and~~

310 Instrument-making powers not limited

~~(f) easily withdrawn.~~

Subdivision 4.3.2 Giving consents

Note: Under rule 4.3, if an accredited person asks a CDR consumer for their consent to collect and use their CDR data, it must do so in accordance with this Division, and in particular, rules 4.10, 4.11 and 4.12. A failure to do so could contravene one or more civil penalty provisions: see section 56EF of the Act and rule 4.3.

4.10 Requirements relating to accredited person's processes for seeking consent

- (1) ~~An accredited person's processes for asking a CDR consumer to give and amend a consent:~~

~~(a) must:~~

~~(i) accord with any consumer experience data standards; and~~

~~(ii) having regard to any consumer experience guidelines developed by the Data Standards Body, be as easy to understand as practicable, including by use of concise language and, where appropriate, visual aids; and~~

~~(b) must not:~~

~~(i) include or refer to the accredited person's CDR policy or other documents so as to reduce comprehensibility; or~~

~~(ii) bundle consents with other directions, permissions, consents or agreements.~~

4.11 Asking CDR consumer to give consent

Asking CDR consumer to give consent

- ~~(1A) An accredited person must not ask a CDR consumer to give a disclosure consent in relation to CDR data unless the consumer has already given the collection and use consents required to collect the CDR data to be disclosed.~~

Note: ~~This Part does not, by implication, limit a power conferred by or under this Act prevent the accredited person from asking for a disclosure consent in relation to CDR data that has yet to be collected.~~

- ~~(1) When asking a CDR consumer to give a consent, an accredited person must:~~

~~(a) allow the CDR consumer to choose the types of CDR data to which the consent will apply by enabling the CDR consumer to actively select or otherwise clearly indicate:~~

~~(i) in the case of a collection consent or a disclosure consent—the particular types of CDR data to which the consent will apply; and~~

~~(ii) in the case of a use consent—the specific uses of collected data to which they are consenting; and~~

~~(b) allow the CDR consumer to choose the period of the collection consent, use consent, or disclosure consent (as appropriate) by enabling the CDR~~

consumer to actively select or otherwise clearly indicate whether the consent would apply:

- ~~_____ (i) on a single occasion; or~~
- ~~_____ (ii) over a specified period of time; and~~
- ~~_____ (ba) in the case of a disclosure consent—allow the CDR consumer to select the person to whom the CDR data may be disclosed;~~
- ~~_____ (c) ask for the CDR consumer's express consent to the choices referred to in paragraphs (a), (b) and (ba) for each relevant category of consents; and~~
- ~~_____ (d) if the accredited person intends to charge a fee for disclosure of CDR data, or pass on to the CDR consumer a fee charged by a data holder for disclosure of CDR data:~~
 - ~~_____ (i) clearly distinguish between the CDR data for which a fee will, and will not, be charged or passed on; and~~
 - ~~_____ (ii) allow the CDR consumer to actively select or otherwise clearly indicate whether they consent to the collection or disclosure, as appropriate, of the CDR data for which a fee will be charged or passed on; and~~
- ~~_____ (e) allow the CDR consumer to make an instrument election in relation to deletion of redundant data in accordance with rule 4.16.~~

~~_____ (2) Example: _____ For a collection consent, an accredited person could present the CDR consumer with a set of un-filled boxes corresponding to different types of data, and permit the CDR consumer to select the boxes that correspond to the data they consent to the accredited person collecting.~~

~~Note 1: _____ An accredited person could not infer consent, or seek to rely on an implied consent.~~

~~Note 2: _____ For paragraph (b), the specified period may not be more than 12 months: see subrule 4.12(1). After the end of the period, redundant data would need to be dealt with in accordance with subsection 56EO(2) of the Act (privacy safeguard 12) and rules 7.12 and 7.13.~~

~~Note 3: _____ For paragraph (d), a data holder could charge a fee for disclosure of voluntary consumer data, while an accredited data recipient could charge a fee for the disclosure of any CDR data.~~

- ~~_____ (2) The accredited person must not present pre-selected options to the CDR consumer for the purposes of subrule (1).~~

~~Information presented to CDR consumer when asking for consent~~

- ~~_____ (3) When asking a CDR consumer to give consent, the accredited person must give the CDR consumer the following information:~~
 - ~~_____ (a) its name;~~
 - ~~_____ (b) its accreditation number;~~
 - ~~_____ (c) in the case of a collection consent or a use consent—how the collection or use (as applicable) indicated in accordance with subrule (1) complies with the data minimisation principle, including how:~~

-
- ~~———— (i) in the case of a collection consent — that collection is reasonably needed, and relates to no longer a time period than is reasonably needed; and~~
 - ~~———— (ii) in the case of a use consent — that use would not go beyond what is reasonably needed;~~
 - ~~———— in order to provide the requested goods or services to the CDR consumer or make the other uses consented to;~~
 - ~~———— (ca) in the case of an insight disclosure consent — an explanation of the CDR insight that will make clear to the CDR consumer what the CDR insight would reveal or describe;~~
 - ~~———— (d) if the accredited person intends passing a fee on, or charging a fee, to the CDR consumer as described in paragraph (1)(d) — the following information:~~
 - ~~———— (i) the amount of the fee;~~
 - ~~———— (ii) the consequences if the CDR consumer does not consent to the collection, or to the disclosure, of that data;~~
 - ~~———— (e) if the accredited person is seeking a de-identification consent — the additional information specified in rule 4.15;~~
 - ~~———— (f) if the CDR data may be disclosed to, or collected by, an outsourced service provider (including one that is based overseas) of the accredited person:~~
 - ~~———— (i) a statement of that fact; and~~
 - ~~———— (ii) a link to the accredited person’s CDR policy; and~~
 - ~~———— (iii) a statement that the consumer can obtain further information about such disclosures from the policy if desired;~~
 - ~~———— (g) the following information about withdrawal of consents:~~
 - ~~———— (i) a statement that, at any time, the consent can be withdrawn;~~
 - ~~———— (ii) instructions for how the consent can be withdrawn;~~
 - ~~———— (iii) a statement indicating the consequences (if any) to the CDR consumer if they withdraw the consent;~~
 - ~~———— (h) the following information about redundant data:~~
 - ~~———— (i) a statement, in accordance with rule 4.17, regarding the accredited person’s intended treatment of redundant data;~~
 - ~~———— (ii) a statement outlining the CDR consumer’s right to elect that their redundant data be deleted;~~
 - ~~———— (iii) instructions for how the election can be made.~~

~~Note: — For paragraph (e), if the accredited person is seeking the CDR consumer’s consent to de-identification as referred to in paragraph (e), the accredited person would need to indicate how that would comply with the data minimisation principle.~~

4.12 Restrictions on seeking consent

- ~~———— (1) An accredited person must not specify a period of time for the purposes of paragraph 4.11(1)(b) that is more than 12 months.~~
- ~~———— (2) An accredited person must not ask for a collection consent or a use consent unless it would comply with the data minimisation principle in respect of that collection or those uses.~~

~~Note: — See rule 1.8 for the definition of “data minimisation principle”.~~

-
- ~~(3) An accredited person must not ask for a consent:~~
- ~~(a) that is not in a category of consents; or~~
 - ~~(b) subject to subrule (4), for using the CDR data, including by aggregating the data, for the purpose of:~~
 - ~~(i) identifying; or~~
 - ~~(ii) compiling insights in relation to; or~~
 - ~~(iii) building a profile in relation to;~~
- ~~any identifiable person who is not the CDR consumer who made the consumer data request.~~
- ~~(4) Paragraph (3)(b) does not apply in relation to a person whose identity is readily apparent from the CDR data, if the accredited person is seeking consent to:~~
- ~~(a) derive, from that CDR data, CDR data about that person's interactions with the CDR consumer; and~~
 - ~~(b) use that derived CDR data in order to provide the requested goods or services.~~

~~Subdivision 4.3.2A Amending consents~~

~~4.12A Amendment of consent~~

~~An amendment of a consent takes effect when the CDR consumer amends the consent.~~

~~Note: It is not possible for the CDR consumer to specify a different day or time.~~

~~4.12B Inviting CDR consumer to amend consent~~

- ~~(1) An accredited person may invite a CDR consumer to amend a consent given in accordance with this Division only in accordance with this rule.~~
 - ~~(2) The accredited person may give the invitation:~~
 - ~~(a) if its consumer dashboard offers the consent amendment functionality referred to in subrule 1.14(2A) via its consumer dashboard; or~~
 - ~~(b) in writing directly to the CDR consumer.~~
 - ~~(3) The accredited person may invite a CDR consumer to amend a current consent if:~~
 - ~~(a) the amendment would better enable the accredited person to provide the goods or services referred to in paragraph 4.3(1)(a); or~~
 - ~~(b) the amendment would:~~
 - ~~(i) be consequential to an agreement between the accredited person and the CDR consumer to modify those goods or services; and~~
 - ~~(ii) enable the accredited person to provide the modified goods or services.~~
 - ~~(4) The accredited person must not, for an invitation to amend the period referred to in paragraph 4.11(1)(b):~~
-

-
- ~~———— (a) give the invitation any earlier than a reasonable period before the current consent is expected to expire; or~~
 - ~~———— (b) give more than a reasonable number of such invitations within this period.~~
 - ~~———— (5) The accredited person must not give such an invitation before 1 July 2021.~~

4.12C Process for amending consents

- ~~———— (1) Subject to this rule, if an accredited person allows CDR consumers to amend consents, it must allow them to do so in the same manner that it asks for CDR consumers to give consents.~~
- ~~———— (2) Despite subrule 4.11(2), in the case of an amendment to a consent, an accredited person may present, as pre-selected options, the following details of the current consent:~~
 - ~~———— (a) the selections or indications referred to in paragraphs 4.11(1)(a), (b) and (ba);~~
 - ~~———— (b) the election (if any) referred to in paragraph 4.11(1)(c).~~
- ~~———— (3) In the case of an amendment to a consent, in addition to the information referred to in subrule 4.11(3), the accredited person must give the CDR consumer:~~
 - ~~———— (a) a statement that indicates the consequences of amending a consent; and~~
 - ~~———— (b) a statement that the accredited person will be able to continue to use any CDR data that has already been disclosed to it to the extent allowed by the amended consent.~~

Subdivision 4.3.2B — Withdrawing consents

4.13 Withdrawal of consents, and notifications

- ~~———— (1) The CDR consumer who gave a consent may withdraw the consent at any time:~~
 - ~~———— (a) by using the accredited person's consumer dashboard; or~~
 - ~~———— (b) by using a simple alternative method of communication to be made available by the accredited person for that purpose.~~
- ~~———— (2) The accredited person must:~~
 - ~~———— (a) if the withdrawal was in accordance with paragraph (1)(b) — give effect to the withdrawal as soon as practicable, and in any case within 2 business days after receiving the communication; and~~
 - ~~———— (b) if a collection consent was withdrawn, in any case — notify the data holder of the withdrawal in accordance with the data standards.~~

~~Note 1: — When a data holder is notified of the withdrawal of a collection consent, an authorisation to disclose the CDR data expires: see paragraph 4.26(1)(d).~~

~~Note 2: — This subrule is a civil penalty provision (see rule 9.8).~~

- ~~———— (3) Withdrawal of a consent does not affect an election under rule 4.16 that the CDR consumer's collected CDR data be deleted once it becomes redundant.~~

Subdivision 4.3.2C — Duration of consent

4.14 Duration of consent

- ~~———— (1) A consent expires at the earliest of the following:~~
- ~~———— (a) if the consent was withdrawn in accordance with paragraph 4.13(1)(b) — the earlier of the following:~~
- ~~———— (i) when the accredited person gave effect to the withdrawal;~~
- ~~———— (ii) 2 business days after the accredited person received the communication;~~
- ~~———— (b) if the consent was withdrawn in accordance with paragraph 4.13(1)(a) — when the consent was withdrawn;~~
- ~~———— (d) the end of the period of 12 months after:~~
- ~~———— (i) the consent was given; or~~
- ~~———— (ii) if the period of the consent has been amended in accordance with this Subdivision — the consent was last amended;~~
- ~~———— (e) at the end of the period the CDR consumer consented to in accordance with rule 4.11;~~
- ~~———— (f) if the consent expires as a result of the operation of another provision of these rules that references this paragraph.~~

~~Note: ——— Clause 7.2 of Schedule 3 is an example of a provision referencing paragraph (f). This relates to when an accredited data recipient of CDR data becomes instead a data holder of that CDR data.~~

- ~~———— (1A) If:~~
- ~~———— (a) an accredited person is notified, under paragraph 4.25(2)(b), of the withdrawal of an authorisation to disclose CDR data; and~~
- ~~———— (b) the collection consent has not expired in accordance with subrule (1);~~
- ~~———— the collection consent to collect that CDR data expires when the accredited person receives that notification.~~

~~Note: ——— This would not result in the use consent relating to any CDR data that had already been collected expiring. However, see the notification requirement of rule 4.18A.~~

- ~~———— (1B) If:~~
- ~~———— (a) an accredited person has a collection consent to collect particular CDR data from a particular accredited data recipient; and~~
- ~~———— (b) the accredited data recipient has an AP disclosure consent to disclose that CDR data to that accredited person;~~
- ~~———— then if one of those consents expires, the other expires when the accredited person or accredited data recipient is notified of the first mentioned expiry.~~
- ~~———— (1C) If an accredited person becomes a data holder, rather than an accredited data recipient, of particular CDR data as a result of subsection 56AJ(4) of the Act, all of that accredited person's consents given under these rules that relate to that CDR data expire.~~

-
- ~~(2) If an accredited person's accreditation is revoked or surrendered in accordance with rule 5.17, all of the accredited person's consents expire when the revocation or surrender takes effect.~~

~~Subdivision 4.3.3—Information relating to de-identification of CDR data~~

~~4.15 Additional information relating to de-identification of CDR data~~

~~For paragraph 4.11(3)(c), the additional information relating to de-identification is the following:~~

- ~~(a) what the CDR data de-identification process is;~~
- ~~(b) if it would disclose (by sale or otherwise) the de-identified data to one or more other persons;~~
 - ~~(i) that fact; and~~
 - ~~(ii) the classes of persons to which it would disclose that data;~~
 - ~~(iii) why it would so disclose that data;~~
- ~~(c) if the accredited person would use the de-identified data for general research—that fact, together with a link to a description in the accredited person's CDR policy of:~~
 - ~~(i) the research to be conducted; and~~
 - ~~(ii) any additional benefit to be provided to the CDR consumer for consenting to the use;~~
- ~~(e) that the CDR consumer would not be able to elect, in accordance with rule 4.16, to have the de-identified data deleted once it becomes redundant data.~~

~~Subdivision 4.3.4—Election to delete redundant data~~

~~4.16 Election to delete redundant data~~

- ~~(1) The CDR consumer who gave a consent relating to particular CDR data may elect that the collected data, and any data derived from it, be deleted when it becomes redundant data:~~
- ~~(a) when giving the consent; or~~
 - ~~(b) at any other time before the consent expires.~~

~~Note: See rule 7.12 for the effect of an election.~~

- ~~(2) The CDR consumer may make the election:~~
- ~~(a) by communicating it to the accredited person in writing; or~~
 - ~~(b) by using the accredited person's consumer dashboard.~~
- ~~(3) This rule does not apply if the accredited person:~~
- ~~(i) has a general policy of deleting redundant data; and~~
 - ~~(ii) when seeking the consent, informs the CDR consumer that their CDR data will be deleted when it becomes redundant data.~~

~~Note: See paragraph 4.17(1)(a).~~

-
- ~~(4) This rule does not require the deletion of derived CDR data that was de-identified in accordance with the CDR data de-identification process before the collected data from which it was derived became redundant.~~

~~4.17 Information relating to redundant data~~

- ~~(1) For subparagraph 4.11(3)(h)(i), the accredited person must state whether they have a general policy, when collected CDR data becomes redundant data, of:~~
- ~~(a) deleting the redundant data; or~~
 - ~~(b) de-identifying the redundant data; or~~
 - ~~(c) deciding, when the CDR data becomes redundant data, whether to delete it or de-identify it.~~
- ~~(2) An accredited person that gives the statement referred to in paragraph (1)(b) or (c) must also state:~~
- ~~(a) that, if it de-identifies the redundant data:~~
 - ~~(i) it would apply the CDR data de-identification process; and~~
 - ~~(ii) it would be able to use or, if applicable, disclose (by sale or otherwise) the de-identified redundant data without seeking further consent from the CDR consumer; and~~
 - ~~(b) what de-identification of CDR data in accordance with the CDR data de-identification process means; and~~
 - ~~(c) if applicable, examples of how it could use the redundant data once de-identified.~~

~~Note: For the CDR data de-identification process, see rule 1.17.~~

~~Subdivision 4.3.5 Notification requirements~~

~~4.18 CDR receipts~~

- ~~(1) The accredited person must give the CDR consumer a notice that complies with this rule (a ***CDR receipt***) as soon as practicable after:~~
- ~~(a) the CDR consumer gives the accredited person a collection consent, a use consent or a disclosure consent; or~~
 - ~~(aa) the CDR consumer amends such a consent in accordance with this Part; or~~
 - ~~(b) the CDR consumer withdraws such a consent in accordance with rule 4.13~~

~~Note: This subrule is a civil penalty provision (see rule 9.8).~~

- ~~(2) A CDR receipt given for the purposes of paragraph (1)(a) must set out:~~
- ~~(a) the details that relate to the consent that are listed in paragraphs 1.14(3)(a) to (f); and~~
 - ~~(b) in the case of a collection consent—the name of each CDR participant the CDR consumer has consented to the collection of CDR data from; and~~
 - ~~(ba) in the case of a disclosure consent—the name of the person the CDR consumer has consented to the disclosure of CDR data to; and~~

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- ~~———— (c) any other information the accredited person provided to the CDR consumer when obtaining the consent (see rule 4.11).~~
 - ~~———— (2A) A CDR receipt given for the purposes of paragraph (1)(aa) must set out details of each amendment that has been made to the consent.~~
 - ~~———— (3) A CDR receipt given for the purposes of paragraph (1)(b) must set out when the consent expired.~~
 - ~~———— (4) A CDR receipt must be given in writing otherwise than through the CDR consumer's consumer dashboard.~~
 - ~~———— (5) A copy of the CDR receipt may be included in the CDR consumer's consumer dashboard.~~

~~4.18A Notification if collection consent expires~~

- ~~———— (1) This rule applies if, in relation to particular goods or services an accredited person is providing as referred to in subrule 4.3(1):~~
 - ~~———— (a) the collection consent expires; but~~
 - ~~———— (b) the use consent is current.~~
- ~~———— (2) The accredited person must notify the CDR consumer as soon as practicable that, at any time, they:~~
 - ~~———— (a) may withdraw the use consent; and~~
 - ~~———— (b) may make the election to delete redundant data in respect of that CDR data under rule 4.16.~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

- ~~———— (3) The notification must be given in writing otherwise than through the CDR consumer's consumer dashboard.~~
- ~~———— (4) The notification may also be included in the CDR consumer's consumer dashboard.~~

~~4.18B Notification if collection consent or AP disclosure consent expires~~

- ~~———— (1) This rule applies if:~~
 - ~~———— (a) an accredited person has a collection consent relating to particular CDR data and a particular accredited data recipient; and~~
 - ~~———— (b) the accredited data recipient has an AP disclosure consent relating to that CDR data and that accredited person.~~

- ~~———— (2) If the collection consent expires in accordance with these rules, the accredited person must notify the accredited data recipient as soon as practicable of the expiry.~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

- ~~———— (3) If the AP disclosure consent expires in accordance with these rules, the accredited data recipient must notify the accredited person as soon as practicable of the expiry.~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

4.18C Notification if collection consent is amended

- ~~———— (1) This rule applies if:~~
 - ~~———— (a) an accredited person has a collection consent relating to particular CDR data and a particular CDR participant; and~~
 - ~~———— (b) the CDR consumer amends the consent.~~
- ~~———— (2) The accredited person must notify:~~
 - ~~———— (a) if the CDR participant is a data holder — the data holder, in accordance with the data standards, that the consent has been amended; and~~
 - ~~———— (b) if the CDR participant is an accredited data recipient — the accredited data recipient as soon as practicable that the consent has been amended.~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

4.19 Updating consumer dashboard

- ~~———— An accredited person must update a CDR consumer's consumer dashboard as soon as practicable after the information required to be contained on the dashboard changes.~~

~~Note: ——— This rule is a civil penalty provision (see rule 9.8).~~

4.20 Ongoing notification requirement — collection consents and use consents

- ~~———— (1) This rule applies in relation to a collection consent or a use consent if:~~
 - ~~———— (a) the consent is current; and~~
 - ~~———— (b) 90 days have elapsed since the latest of the following:~~
 - ~~———— (i) the CDR consumer gave the consent;~~
 - ~~———— (ia) the CDR consumer last amended the consent;~~
 - ~~———— (ii) the CDR consumer last used their consumer dashboard;~~
 - ~~———— (iii) the accredited person last sent the CDR consumer a notification in accordance with this rule.~~
- ~~———— (2) The accredited person must notify the CDR consumer in accordance with this rule that the consent is still current.~~
- ~~———— (3) The notification must be given in writing otherwise than through the CDR consumer's consumer dashboard.~~
- ~~———— (4) A copy of the notification may be included in the CDR consumer's consumer dashboard.~~

Division 4.4—Authorisations to disclose CDR data

~~Note: Under rule 4.5, if a data holder is considering disclosing voluntary consumer data in response to a consumer data request, or if required consumer data was requested, the data holder must seek an authorisation from the CDR consumer to disclose the CDR data in accordance with (among other things) this Division, and in particular, rules 4.23, 4.24 and 4.25. A failure to do so could contravene one or more civil penalty provisions: see rule 4.5.~~

4.21 Purpose of Division

~~———— This Division deals with authorisations to disclose CDR data for the purposes of rule 4.5, and amendments to authorisations.~~

4.22 Requirements relating to data holder's processes for seeking authorisation

~~———— A data holder's processes for asking a CDR consumer to give or amend an authorisation must:~~

- ~~———— (a) accord with the data standards; and~~
- ~~———— (b) having regard to any consumer experience guidelines developed by the Data Standards Body, be as easy to understand as practicable, including by use of concise language and, where appropriate, visual aids.~~

4.22A Inviting CDR consumer to amend a current authorisation

~~———— (1) If a data holder has received a notice under rule 4.18C, the data holder must, in accordance with this Division, invite the CDR consumer to amend the authorisation to disclose CDR data accordingly.~~

~~Note: This subrule is a civil penalty provision (see rule 9.8).~~

~~———— (2) An amendment of an authorisation to disclose CDR data other than in accordance with subrule (1) is of no effect.~~

4.23 Asking CDR consumer to give authorisation to disclose CDR data or inviting CDR consumer to amend a current authorisation

~~———— (1) When asking a CDR consumer to authorise the disclosure of CDR data, or amend a current authorisation, a data holder must give the CDR consumer the following information about the authorisation or amendment:~~

- ~~———— (a) subject to subrule (2), the name of the accredited person that made the request;~~
- ~~———— (b) the period of time to which the CDR data that was the subject of the request relates;~~
- ~~———— (c) the types of CDR data for which the data holder is seeking an authorisation to disclose;~~
- ~~———— (d) whether the authorisation is being sought for:~~
 - ~~———— (i) disclosure of CDR data on a single occasion; or~~
 - ~~———— (ii) disclosure of CDR data over a period of time of not more than 12 months;~~
- ~~———— (e) if authorisation is being sought for disclosure over a period of time what that period is;~~

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- ~~———— (f) a statement that, at any time, the authorisation can be withdrawn;~~
 - ~~———— (g) instructions for how the authorisation can be withdrawn.~~
 - ~~———— (2) The data holder must also give the CDR consumer any information that the Register of Accredited Persons holds in relation to the accredited person that is specified as information for the purposes of this rule.~~

4.24 Restrictions when asking CDR consumer to authorise disclosure of CDR data

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- ~~———— When asking a CDR consumer to authorise the disclosure of CDR data or to amend a current authorisation, the data holder must not do any of the following:~~
 - ~~———— (a) add any requirements to the authorisation process beyond those specified in the data standards and these rules;~~
 - ~~———— (b) provide or request additional information during the authorisation process beyond that specified in the data standards and these rules;~~
 - ~~———— (c) offer additional or alternative services as part of the authorisation process;~~
 - ~~———— (d) include or refer to other documents.~~

4.25 Withdrawal of authorisation to disclose CDR data and notification

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- ~~———— (1) The CDR consumer who gave, to a data holder, an authorisation to disclose particular CDR data to an accredited person may withdraw the authorisation at any time:~~
 - ~~———— (a) by using the data holder's consumer dashboard; or~~
 - ~~———— (b) by using a simple alternative method of communication to be made available by the data holder for that purpose.~~
 - ~~———— (2) The data holder must:~~
 - ~~———— (a) if the withdrawal was in accordance with paragraph (1)(b) — give effect to the withdrawal as soon as practicable, and in any case within 2 business days after receiving the communication; and~~
 - ~~———— (b) in any case — notify the accredited person of the withdrawal in accordance with the data standards.~~

~~Note 1: — Upon notification a consent for the accredited person to collect the CDR data expires: see paragraph 4.14(1)(b).~~

~~Note 2: — This subrule is a civil penalty provision (see rule 9.8).~~

4.26 Duration of authorisation to disclose CDR data

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- ~~———— (1) An authorisation to disclose particular CDR data to an accredited person expires at the earliest of the following:~~
 - ~~———— (a) if the authorisation was withdrawn in accordance with paragraph 4.25(1)(b) — the earlier of the following:~~
 - ~~———— (i) when the data holder gave effect to the withdrawal;~~
 - ~~———— (ii) 2 business days after the data holder received the communication;~~
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- ~~(b) if the authorisation was withdrawn in accordance with paragraph 4.25(1)(a) when the authorisation was withdrawn;~~
- ~~(c) if the CDR consumer ceases to be eligible in relation to the data holder;~~
- ~~(d) if the data holder was notified, under paragraph 4.13(2)(b), of the withdrawal of a consent to collect that CDR data when the data holder received that notification;~~
- ~~(e) the end of the period of 12 months after the authorisation was given;~~
- ~~(f) if the authorisation was for disclosure of CDR data on a single occasion after the CDR data has been disclosed;~~
- ~~(g) if the authorisation was for disclosure of CDR data over a specified period the end of:~~
- ~~(i) that period; or~~
- ~~(ii) if the period of the authorisation has been amended in accordance with this Division that period as last amended;~~
- ~~(h) if the authorisation expires as a result of the operation of a provision of these rules that references this paragraph.~~
- Note: ~~Clause 7.2 of Schedule 3 is an example of a provision satisfying paragraph (h). This relates to when an accredited data recipient of CDR data becomes instead a data holder of that CDR data.~~
- ~~(2) If an accredited person's accreditation is revoked or surrendered in accordance with rule 5.17, all authorisations for a data holder to disclose CDR data to that accredited person expire when the data holder is notified of the revocation or surrender.~~

4.27 Updating consumer dashboard

- ~~A data holder must update a CDR consumer's consumer dashboard as soon as practicable after the information required to be contained on the dashboard changes.~~
- Note: ~~This rule is a civil penalty provision (see rule 9.8).~~

4.28 Notification requirements for consumer data requests on behalf of secondary users

- ~~(1) This rule applies if:~~
- ~~(a) an accredited person makes a consumer data request under this Part does not, by implication, limit behalf of a secondary user for a particular account; and~~
- ~~(b) the secondary user amends or withdraws an authorisation, or an authorisation given by the secondary user expires.~~
- ~~(2) The data holder must, as soon as practicable, notify the account holder of that fact through its ordinary means of contacting the account holder.~~
- Note: ~~This subclause is a civil penalty provision (see rule 9.8).~~

Part 4A—Joint accounts

Note: —When this Part commences, it will be subject to transitional provisions that operate until July 2022.

Division 4A.1—Preliminary

4A.1 Purpose of Part

~~Special rules apply in relation to consumer data requests under Part 4 under which there is a request for disclosure of CDR data that relates to one or more joint accounts. This Part sets out those rules.~~

4A.2 Simplified outline of this Part

~~CDR data that relates to a joint account can be disclosed under these rules only in accordance with the disclosure option that applies to the account. Division 4A.2 sets out:~~

- ~~— the three disclosure options, with the default option being the pre-approval option; and~~
- ~~— an obligation for data holders to provide a service (a disclosure option management service) for all joint accounts to which this Part applies through which joint account holders can change the disclosure option that applies to the account, or propose a change to the other account holders; and~~
- ~~— when one joint account holder proposes to change the disclosure option—a process by which the other joint account holders can either agree with or reject the proposal; and~~
- ~~— some associated notification requirements.~~

~~Any joint account holder can choose that the non-disclosure option will apply.~~

~~If the pre-approval option applies, any joint account holder can choose that the co-approval option will apply.~~

~~A change from the non-disclosure option to another option, or a change from the co-approval option to the pre-approval option, requires the agreement of all the joint account holders.~~

~~When an accredited person makes a consumer data request under Part 4 on behalf of a CDR consumer, and the request includes CDR data relating to one or more joint accounts of which the CDR consumer is a joint account holder, Division 4A.3 deals with how the request is processed.~~

Division 4A.3 also deals with how requests are processed when the accredited person makes a consumer data request on behalf of a secondary user of the joint account.

4A.3 Interpretation

For this Part, in relation to a consumer data request to a data holder under Part 4 where the CDR data requested includes CDR data that relates to a joint account:

- (a) the **requester** is the person on whose behalf the consumer data request was made; and
- (b) the **relevant account holders** are:
 - (i) if the requester is a secondary user — all joint account holders; and
 - (ii) if the requester is a joint account holder — the other joint account holders; and
- (c) the **joint account data** is the CDR data relating to the joint account that was the subject of the request.

Note: The CDR data that can be requested on behalf a CDR consumer is governed by the relevant general provisions in the sector Schedules, so that, for example, customer data that relates to another joint account holder cannot be covered by a consumer data request (see paragraphs 3.2(3)(b) of Schedule 3 and 3.2(3)(b) of Schedule 4).

Division ~~4A.2~~—Disclosure options

~~4A.4~~ Simplified outline of this Division

~~This Division sets out the disclosure options that can apply to a joint account. These disclosure options are relevant when an accredited person makes a consumer data request on behalf of one joint account holder or a secondary user under Part 4.~~

~~The default option is the pre-approval option. If this option applies, when the data holder receives a consumer data request, the other account holders are treated as having approved disclosing the data relating to the joint account in response to that request. However, the other account holders can withdraw this presumed approval in relation to that request at any time.~~

~~Another option is the non-disclosure option. If this option applies, joint account data cannot be disclosed under these rules.~~

~~The third option is the co-approval option. If this option applies, joint account data can be disclosed under these rules only with the approval of all the account holders.~~

~~Data holders must offer the pre-approval option and non-disclosure option on joint accounts, and may offer the co-approval option.~~

~~The process for changing the disclosure option is set out in this Division.~~

~~For each joint account, a data holder must offer a disclosure option management service that can be used by joint account holders to select and manage these disclosure options.~~

~~However, the data holder will not be liable for a failure to comply with this Part if it is considered that the relevant act or omission was necessary in order to prevent physical, psychological or financial harm or abuse to any person.~~

~~4A.5~~ Disclosure options for joint accounts

Disclosure options

- ~~———— (1) Disclosure of joint account data may be authorised only as permitted by the **disclosure option** that applies to the joint account. This may be any of the following:~~
 - ~~———— (a) the **pre-approval option**, under which joint account data may be disclosed in response to a valid consumer data request on the authorisation of the requester without the approval of the relevant account holders;~~

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- ~~———— (b) the **co-approval option**, under which joint account data may be disclosed in response to a valid consumer data request only after:
 - ~~———— (i) the requester has authorised the disclosure; and~~
 - ~~———— (ii) each of the relevant joint account holders has approved the disclosure;~~~~
 - ~~———— (c) the **non-disclosure option**, under which joint account data may not be disclosed even in response to a valid consumer data request.~~
 - ~~———— (2) The data holder must provide for the pre-approval and non-disclosure options to be available for a joint account.~~
 - ~~———— (3) The data holder may provide for the co-approval option to be available for a joint account.~~
 - ~~———— (4) For the purposes of rule 4A.12, where the pre-approval option applies to a joint account and the requester authorises the disclosure of joint account data in response to a valid consumer data request:
 - ~~———— (a) each relevant account holder is taken to have approved the disclosure; and~~
 - ~~———— (b) if an approval is withdrawn, the joint account data may not be disclosed despite the authorisation.~~~~

Default option

- ~~———— (5) Unless a sector Schedule provides otherwise, the pre-approval option applies to a joint account by default.~~
- ~~———— (6) The disclosure option that applies to a joint account may be changed in accordance with rule 4A.7 or 4A.8.~~

~~4A.6 Obligation to provide disclosure option management service~~

Obligation to provide disclosure option management service

- ~~———— (1) For each joint account to which this Part applies, the data holder must provide a service to each joint account holder that allows the joint account holder to:
 - ~~———— (a) change the disclosure option that applies to the account in accordance with rule 4A.7; and~~
 - ~~———— (b) propose a change in the disclosure option to the other joint account holders in accordance with rule 4A.8; and~~
 - ~~———— (c) respond to a proposal by another joint account holder to change the disclosure option.~~~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

- ~~———— (2) Such a service is a **disclosure option management service**.~~

Requirements for disclosure option management service

- ~~———— (3) The service must be provided online and, if there is a data holder's consumer dashboard for a joint account holder, may be included in the dashboard.~~
 - ~~———— (4) The service may, but need not, also be provided other than online.~~
 - ~~———— (5) The service must give effect to a change in the disclosure option as soon as practicable.~~
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- ~~———— (6) The service must not do any of the following in relation to the processes that it provides for changing or proposing to change the disclosure option that applies to the joint account, or responding to such a proposal (the *processes*):~~
 - ~~———— (a) add any requirements to the processes beyond those specified in the data standards and these rules;~~
 - ~~———— (b) offer additional or alternative services as part of the processes;~~
 - ~~———— (c) include or refer to other documents, or provide any other information, so as to reduce comprehensibility;~~
 - ~~———— (d) offer any pre-selected options.~~
 - ~~———— (7) The service must indicate to the joint account holder which disclosure option currently applies.~~
 - ~~———— (8) The service must be in accordance with the data standards.~~

4A.7 Changing to a more restrictive disclosure option

- ~~———— (1) A joint account holder may at any time choose that the non-disclosure option will apply to the joint account, using the disclosure option management service.~~
- ~~———— (2) If the pre-approval option applies to a joint account, a joint account holder may at any time choose that the co-approval option will apply to the joint account, using the disclosure option management service.~~
- ~~———— (3) If a joint account holder (*account holder A*) changes the disclosure option that applies to the account in accordance with this rule, the data holder must, as soon as practicable through its ordinary means of contacting the other joint account holders:
 - ~~———— (a) explain to each of them what the consumer data right is; and~~
 - ~~———— (b) inform them which disclosure option previously applied to the account; and~~
 - ~~———— (c) inform them that account holder A has changed the disclosure option, and of the disclosure option that now applies; and~~
 - ~~———— (d) explain to them the mechanisms for changing the disclosure option again.~~~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

4A.8 Obtaining agreement on change to a less restrictive disclosure option

Application of rule

- ~~———— (1) This rule applies in relation to a particular joint account if:~~
 - ~~———— (a) the non-disclosure option applies to the account, and a joint account holder (*account holder A*) proposes, using the disclosure option management service, to change to the co-approval or pre-approval disclosure option; or~~
 - ~~———— (b) the co-approval option applies to the account, and a joint account holder (*account holder A*) proposes, using the disclosure option management service, to change to the pre-approval option.~~

Inviting other account holders to respond to proposal

- ~~———— (2) The data holder must, as soon as practicable through its ordinary means of contacting the other joint account holders:~~
- ~~———— (a) explain to each of them what the consumer data right is; and~~
 - ~~———— (b) inform them which disclosure option currently applies to the account; and~~
 - ~~———— (c) inform them that account holder A has proposed that the co-approval or pre-approval option apply to the account, as the case may be; and~~
 - ~~———— (d) explain to them that this change requires the agreement of all account holders; and~~
 - ~~———— (e) explain to them any alternative options for change that are available and how they can be made; and~~
 - ~~———— (f) invite them to either agree to or reject the proposal within a specified period.~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

- ~~———— (3) At the end of the specified period, the data holder must, as soon as practicable through its ordinary means of contacting the joint account holders, inform them whether:~~
- ~~———— (a) all the joint account holders have approved the change, and as a result the new disclosure option applies to the joint account; or~~
 - ~~———— (b) not all the joint account holders have approved the change, and as a result the disclosure option is unchanged.~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

~~Division 4A.3—Consumer data requests that relate to joint accounts~~

~~Subdivision 4A.3.1—Preliminary~~

~~4A.9 Application of Division~~

- ~~—— (1) This Division applies in relation to a consumer data request to a data holder under Part 4 where the CDR data requested includes joint account data.~~
- ~~—— (2) If the CDR data requested includes joint account data in relation to more than one joint account, this Division applies separately in relation to each such joint account.~~
- ~~—— (3) In this Division a reference to a consumer data request is a reference to the consumer data request only to the extent that it relates to a particular joint account.~~

~~Subdivision 4A.3.2—How consumer data requests to data holders under Part 4 that relate to joint accounts are handled~~

~~4A.10 How data holder is to deal with a consumer data request~~

- ~~—— (1) This rule applies when the data holder receives a consumer data request to which this Division applies:~~

~~Note: Under rule 4A.5, data holders are required to offer the pre-approval disclosure option, which applies by default. Data holders may, but are not required to, offer the co-approval option.~~

~~Pre-approval option~~

- ~~—— (2) If the pre-approval option applies to the joint account, rules 4.5 to 4.7 apply subject to subrule (3).~~
- ~~—— (3) If a relevant account holder has withdrawn their approval using their consumer dashboard, the data holder must not disclose any, or any further, requested CDR data.~~

~~Co-approval option~~

- ~~—— (4) If the co-approval option applies to the joint account, the data holder must, subject to subrule (5):~~
 - ~~—— (a) ask the requester for authorisation in accordance with rule 4.5 and Division 4.4; and~~
 - ~~—— (b) if the authorisation is given, invite the approval of the relevant account holders in accordance with rule 4A.11; and~~
 - ~~—— (c) if all the relevant account holders give their approval, or are taken to have given their approval, comply with rules 4.6 to 4.7.~~

~~Note: The data holder must provide each relevant account holder with a consumer dashboard in accordance with rule 4A.13.~~

- ~~(5) If a relevant account holder who approved the disclosure in accordance with rule 4A.11 within the time specified has withdrawn the approval using their consumer dashboard, the data holder must not disclose any, or any further, requested CDR data.~~

~~*Non-disclosure option*~~

- ~~(6) If the non-disclosure option applies to the joint account, the data holder must refuse to disclose the requested CDR data.~~

4A.11 Asking relevant account holders for approval to disclose joint account data

- ~~For the purposes of paragraph 4A.10(4)(b), the data holder must, through its ordinary means of contacting each relevant account holder:~~
- ~~(a) indicate that an accredited person has requested disclosure of CDR data that relates to the joint account on behalf of the requester; and~~
 - ~~(b) indicate that:~~
 - ~~(i) the requester has authorised, under Division 4.4, the disclosure of the joint account data; and~~
 - ~~(ii) a co-approval option applies to the joint account; and~~
 - ~~(c) indicate the matters that may be dealt with by codes or standards referred to in Part 6, paragraphs 4.23(1)(a), (b), (c), (d) and (e) so far as they relate to the request; and~~
 - ~~(d) ask the relevant account holder to approve or not approve disclosure of the joint account data; and~~
 - ~~(e) specify the time by which the data holder needs to receive any approval, and inform them that if an approval is not received by that time, the joint account data will not be disclosed; and~~
 - ~~(f) inform them that any relevant account holder may, at any time, withdraw the approval using their consumer dashboard; and~~
 - ~~(g) indicate what the effect of removing the approval would be.~~

~~Note: For removal of an approval, see rule 4A.12.~~

4A.12 Continuation and removal of approvals

- ~~(1) If a relevant account holder:~~
- ~~(a) approves of the disclosure of joint account data in accordance with this Division; or~~
 - ~~(b) is taken to have approved of the disclosure under the pre-approval option;~~
- ~~the approval is taken to apply while the authorisation referred to in paragraph 4A.10(4)(b) is current, unless withdrawn sooner in accordance with this Division.~~
- ~~(2) Any relevant account holder may withdraw an approval given under this Division at any time, using their consumer dashboard.~~

4A.13 Consumer dashboard for joint account holders

Note: ~~Where this Division applies, the data holder must provide a consumer dashboard for the requester under rule 1.15. Under this rule, in some circumstances, the data holder must also provide a consumer dashboard for each relevant account holder and the dashboards must have additional functionality.~~

Obligation for data holder to provide relevant account holders with consumer dashboard

- ~~(1) Where:~~
- ~~(a) this Division applies in relation to a consumer data request; and~~
 - ~~(b) either the co-approval option or the pre-approval option applies, or has applied, to the joint account;~~
- ~~the data holder must provide each relevant account holder with an online service that:~~
- ~~(c) contains the details referred to in paragraph 1.15(1)(b) that relate to the joint account data; and~~
 - ~~(d) has a functionality that:~~
 - ~~(i) can be used by the relevant account holder to manage approvals in relation to each authorisation to disclose joint account data made by a requester; and~~
 - ~~(ii) allows for withdrawal, at any time, of such an approval; and~~
 - ~~(iii) is simple and straightforward to use; and~~
 - ~~(iv) is prominently displayed; and~~
 - ~~(v) as part of the withdrawal process, displays a message relating to the consequences of the withdrawal in accordance with the data standards.~~

Note: ~~This subrule is a civil penalty provision (see rule 9.8).~~

- ~~(2) Where the data holder already provides a consumer dashboard for the relevant account holder under rule 1.15, the service under subrule (1) must be included in the consumer dashboard.~~
- ~~(3) This section~~Where the data holder does not, by implication, limit subsection 33(3B)~~already provide a consumer dashboard for that relevant account holder under rule 1.15, the service under subrule (1) is the data holder's~~
consumer dashboard ~~for the relevant account holder.~~
- ~~(4) A data holder does not contravene subrule (1) in relation to subparagraphs (1)(d)(iii) and (iv) so long as it takes reasonable steps to ensure that the functionality complies with those subparagraphs.~~

Common information on consumer dashboard

- ~~(5) For paragraph 1.15(1)(d), if a relevant account holder's consumer dashboard contains details of approvals under this Division, the dashboards of the other joint account holders must contain those details.~~

4A.14 Notification requirements for consumer data requests on joint accounts

- ~~———— (1) For this rule, an **approval notification** is a notice given by the data holder:~~
- ~~———— (a) to a relevant account holder, to inform them that the requester has given, amended or withdrawn an authorisation, or that the authorisation has expired; or~~
- ~~———— (b) to the requester, to inform them that:~~
- ~~———— (i) one or more of the relevant account holders has not given their approval for disclosure within the time frame referred to in paragraph 4A.11(c); or~~
- ~~———— (ii) a relevant account holder has withdrawn an approval previously given;~~
- ~~———— in accordance with the data standards.~~
- ~~———— (2) The data holder must make the appropriate approval notification to a joint account holder in relation to an event mentioned in subrule (1):~~
- ~~———— (a) as soon as practicable after the event occurs, unless the joint account holder has selected an alternative schedule of notifications; and~~
- ~~———— (b) through its ordinary means of contacting the joint account holders.~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

- ~~———— (3) The data holder must, in accordance with any relevant data standards:~~
- ~~———— (a) provide for alternative notification schedules (including reducing the frequency of notifications or not receiving notifications); and~~
- ~~———— (b) give each joint account holder a means of selecting such an alternative, and of changing a selection.~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

4A.15 Avoidance of harm

- ~~———— A data holder is not liable under these rules for a failure to comply with this Part if it considered that the relevant act or omission was necessary in order to prevent physical, psychological or financial harm or abuse to any person.~~

~~Part 5 — Rules relating to accreditation etc.~~

~~Division 5.1 — Preliminary~~

~~5.1 — Simplified outline of this Part~~

~~A person may apply under this Part to be an accredited person. The Data Recipient Accreditor may accredit a person, under section 56CA of the Act, if satisfied that the person meets the criteria for accreditation specified in this Part. This Part also deals with:~~

- ~~• how applications are dealt with by the Data Recipient Accreditor; and~~
- ~~• obligations of accredited persons; and~~
- ~~• the transfer, suspension, surrender and revocation of accreditations; and~~
- ~~• related functions of the Data Recipient Accreditor.~~

~~This Part deals with how entries are added to the Register of Accredited Persons, and how that Register is updated, amended and corrected.~~

~~Division 5.2—Rules relating to accreditation process~~

~~Subdivision 5.2.1—Applying to be accredited person~~

~~5.2—Applying to be an accredited person~~

~~Note:—There is currently only a single level of accreditation, the “unrestricted” level.~~

- ~~—— (1) A person may apply to the Data Recipient Accreditor to be an accredited person.~~
- ~~—— (2) The application must:~~
 - ~~—— (a) be in the form approved, by the Data Recipient Accreditor, for the purposes of this paragraph (the *approved form*); and~~
 - ~~—— (b) include any documentation or other information required by the approved form; and~~
 - ~~—— (c) state:~~
 - ~~—— (i) the applicant’s addresses for service; or~~
 - ~~—— (ii) if the applicant is a foreign entity:~~
 - ~~—— (A) the applicant’s local agent; and~~
 - ~~—— (B) the local agent’s addresses for service; and~~
 - ~~—— (d) describe the sorts of goods or services using CDR data that the applicant intends to offer to CDR consumers if they are accredited; and~~
 - ~~—— (e) if the applicant is not a person who was specified in a designation instrument (see paragraph 56AC(2)(b) of the Act) indicate whether it is or expects to be the data holder of any CDR data that is specified in a designation instrument.~~

~~Note 1:—For paragraph (c), see rule 1.7 for the meaning of “addresses for service”. The physical address for service could be a registered office (within the meaning of the *Corporations Act 2001*).~~

~~Note 2: For paragraph (c), changes to the addresses for service must be notified in accordance with paragraph 5.14(c). Documents may be served on an applicant in accordance with regulation 12 of the *Competition and Consumer Regulations 2010* by the Commission, or in accordance with section 28A of the *Acts Interpretation Act 1901* and section 9 of the *Electronic Transactions Act 1999*.~~

~~Subdivision 5.2.2 — Consideration of application to be accredited person~~

~~5.3 Data Recipient Accreditor may request further information~~

- ~~———— (1) The Data Recipient Accreditor may request that the accreditation applicant provide further information to support the application.~~
- ~~———— (2) Without limiting subrule (1), the Data Recipient Accreditor may request the further information:—~~
 - ~~———— (a) in writing; or~~
 - ~~———— (b) in an interview with the Data Recipient Accreditor; or~~
 - ~~———— (c) by phone, email, videoconferencing or any other form of electronic communication.~~

~~Note: ——— If the accreditation applicant does not provide the further information as requested under this rule, the Data Recipient Accreditor might not be in a position to be satisfied, under section 56CA of the Act, that the applicant meets the criteria for accreditation.~~

~~5.4 Data Recipient Accreditor may consult~~

- ~~———— (1) When making a decision under this Part, the Data Recipient Accreditor may consult with:—~~
 - ~~———— (a) other Commonwealth, State or Territory authorities as relevant, including, but not limited to:—~~
 - ~~———— (i) the Information Commissioner; and~~
 - ~~———— (ii) the Australian Securities and Investments Commission; and~~
 - ~~———— (iii) the Australian Prudential Regulation Authority; and~~
 - ~~———— (iv) the Australian Financial Complaints Authority; and~~
 - ~~———— (b) similar authorities of foreign jurisdictions.~~
- ~~———— (2) The functions of the Australian Prudential Regulation Authority include providing the Data Recipient Accreditor with advice or assistance if consulted in accordance with this rule.~~
- ~~———— (3) The Australian Securities and Investments Commission may disclose information as reasonably necessary in order to provide the Data Recipient Accreditor with advice or assistance if consulted in accordance with this rule.~~

~~5.5 Criteria for accreditation —unrestricted level~~

~~Note: ——— Under subsection 56CA(1) of the Act, the Data Recipient Accreditor may, in writing, accredit a person if the Data Recipient Accreditor is satisfied that the person meets the criteria for accreditation specified in the consumer data rules. This rule specifies those criteria for the “unrestricted” level of accreditation.~~

- ~~———— The criterion for accreditation at the “unrestricted” level is that the accreditation applicant:—~~
 - ~~———— (a) would, if accredited, be able to comply with the obligations set out in rule 5.12; or~~

~~(b) where a Schedule to these rules sets out criteria for streamlined accreditation in relation to the relevant designated sector—meets those criteria.~~

~~Note 1: For paragraph (b), for the banking sector, see clause 7.3 of Schedule 3.~~

~~Note 2: See Schedules to these rules for other circumstances in which this provision might operate differently for different designated sectors.~~

~~Note 3: For the banking sector, see clause 7.3 of Schedule 3.~~

~~5.6 Accreditation decision—accreditation number~~

~~The Data Recipient Accreditor must, if it accredits an accreditation applicant, give the applicant a unique number by which it may be identified as an accredited person (their *accreditation number*).~~

~~5.7 Accreditation decision—notifying accreditation applicant~~

~~(1) The Data Recipient Accreditor must notify an accreditation applicant, in writing, as soon as practicable after making a decision to accredit, or refuse to accredit, the applicant under subsection 56CA(1) of the Act.~~

~~(2) If the Accreditor decided to accredit the applicant, the notice must include the following:~~

~~(a) that fact;~~

~~(b) the level of accreditation;~~

~~(c) any conditions that were imposed when the accreditation decision was made;~~

~~(d) their accreditation number.~~

~~Note: For paragraph (c), for conditions on accreditations, see rule 5.10.~~

~~(3) If the Accreditor decided not to accredit the applicant, the notice must include the following:~~

~~(a) that fact;~~

~~(b) the applicant's rights to have the decision to refuse reviewed by the Administrative Appeals Tribunal.~~

~~5.8 When accreditation takes effect~~

~~An accreditation takes effect when the fact that the Data Recipient Accreditor has decided to accredit the person is included in the Register of Accredited Persons.~~

~~5.9 Default conditions on accreditation~~

~~An accreditation is subject to the conditions set out in Schedule 1.~~

~~5.10 Other conditions on accreditation~~

~~(1) The Data Recipient Accreditor may, in writing:~~

~~(a) impose any other condition on an accreditation; and~~

~~(b) vary or remove any conditions imposed under this rule or rule 5.9.~~

-
- ~~(1A) The Data Recipient Accreditor may exercise a power under subrule (1):~~
- ~~(a) at the time of accreditation under subsection 56CA(1) of the Act; or~~
- ~~(b) at any time after accreditation.~~
- ~~(2) Before exercising a power under this rule, the Accreditor must:~~
- ~~(a) inform the accreditation applicant or accredited person, as appropriate, of the proposed imposition or variation; and~~
- ~~(b) give the accreditation applicant or accredited person, as appropriate, a reasonable opportunity to be heard in relation to the proposal.~~
- ~~Note 1: Contravention of a condition could lead to suspension or revocation of accreditation: see items 6 and 7 of the table to rule 5.17.~~
- ~~Note 2: Applications may be made to the Administrative Appeals Tribunal to review a decision under this rule: see paragraph 9.2(a).~~
- ~~(3) If the reasons for imposing or varying a condition on an existing accreditation are such that, in the opinion of the Data Recipient Accreditor, complying with subrule (2) would create a real risk of:~~
- ~~(a) harm or abuse to an individual; or~~
- ~~(b) adversely impacting the security, integrity or stability of:~~
- ~~(i) the Register of Accredited Persons; or~~
- ~~(ii) information and communication technology systems that are used by CDR participants to disclose or collect CDR data;~~
- ~~the Accreditor may impose or vary the condition without complying with that subrule, but must, as soon as practicable, give the accredited person a reasonable opportunity to be heard in relation to the imposition or variation.~~
- ~~(4) A condition imposed under this rule, or a variation of such a condition, must include the time or date on which it takes effect.~~
- ~~Example: A condition could take effect from when the accredited person receives notice of it.~~
- ~~(5) The Accreditor:~~
- ~~(a) may, but need not, give public notice of a condition or variation imposed or removed under this rule; and~~
- ~~(b) may do so in any way that the Accreditor thinks fit.~~
- ~~Example: The Accreditor could give public notice of a description of the effect of the conditions, rather than of the conditions themselves.~~

5.11 Notification to accredited person relating to conditions

- ~~(1) The Data Recipient Accreditor must notify the accredited person, in writing, as soon as practicable after the imposition, variation or removal of a condition on an accreditation under rule 5.10.~~
- ~~(2) The notice must include the following:~~
- ~~(a) if a condition is imposed or varied:~~
- ~~(i) the condition or the condition as varied;~~

-
- ~~(ii) if applicable — the applicant’s rights to have the decision reviewed by the Administrative Appeals Tribunal; and~~
- ~~(b) if a condition is removed — that fact.~~

Subdivision 5.2.3 — Obligations of accredited person

5.12 — Obligations of accredited person at the “unrestricted” level

- ~~———— (1) A person who is accredited at the “unrestricted” level must:~~
- ~~———— (a) take the steps outlined in Schedule 2 which relate to protecting CDR data from:~~
- ~~———— (i) misuse, interference and loss; and~~
- ~~———— (ii) unauthorised access, modification or disclosure; and~~
- ~~———— (b) have internal dispute resolution processes that meet the internal dispute resolution requirements in relation to one or more designated sectors; and~~
- ~~———— (c) be a member of a recognised external dispute resolution scheme in relation to CDR consumer complaints; and~~
- ~~———— (d) have addresses for service; and~~
- ~~———— (e) if the applicant is a foreign entity — have a local agent that has addresses for service; and~~
- ~~———— (f) ensure that it is licensed or otherwise authorised to use any CDR logo, including as required by the data standards.~~

~~Note 1: — See Schedules to these rules for how this provision might operate differently for different designated sectors.~~

~~Note 2: — For the banking sector, see clause 7.4 of Schedule 3.~~

~~Note 3: — For paragraph (a), the steps outlined in Schedule 2 relate to privacy safeguard 12 (see subsection 56EO(1) of the Act and rule 7.11 of these rules).~~

~~Note 4: — For paragraph (b), see the definition of “meets the internal dispute resolution requirements” in relation to the banking sector in subrule 1.7(1), and see clause 5.1 of Schedule 3.~~

~~Note 5: — For paragraphs (d) and (e), see rule 1.7 for the meaning of “addresses for service”.~~

~~Note 6: — This subrule is a civil penalty provision (see rule 9.8).~~

- ~~———— (2) A person who is accredited at the “unrestricted” level must:~~
- ~~———— (a) be, having regard to the fit and proper person criteria, a fit and proper person to be accredited at that level; and~~
- ~~———— (b) have adequate insurance, or a comparable guarantee, in light of the risk of CDR consumers not being properly compensated for any loss that might reasonably be expected to arise from a breach of obligations under any of the following to the extent that they are relevant to the management of CDR data:~~
- ~~———— (i) the Act;~~
- ~~———— (ii) any regulation made for the purposes of the Act;~~
- ~~———— (iii) these rules.~~

5.13 Accredited person must comply with conditions

~~————— An accredited person must comply with the conditions of their accreditation.~~

~~Note 1: ——— This rule applies to the default conditions set out in Schedule 1 and any conditions imposed or varied under rule 5.10.~~

~~Note 2: ——— This rule is a civil penalty provision (see rule 9.8).~~

5.14 Notification requirements

~~————— An accredited person must notify the Data Recipient Accreditor within 5 business days if any of the following occurs:~~

- ~~————— (a) any material change in its circumstances that might affect its ability to comply with its obligations under this Subdivision;~~
- ~~————— (b) any matter that could be relevant to a decision as to whether the person is, having regard to the fit and proper person criteria, a fit and proper person to be accredited at the person's level of accreditation;~~
- ~~————— (c) there is a change to, or the accredited person becomes aware of an error in, any of the information provided to the Accreditor to be entered on the Register under rule 5.24.~~

~~Note: ——— This rule is a civil penalty provision (see rule 9.8).~~

5.15 Provision of information to the Accreditation Registrar

~~————— The Data Recipient Accreditor must:~~

~~————— (a) notify the Accreditation Registrar, in writing, as soon as practicable after:~~

- ~~————— (i) an accreditation; or~~
- ~~————— (ii) the imposition, variation or removal of a condition on an accreditation; or~~
- ~~————— (iii) a surrender, suspension or an extension of a suspension; or~~
- ~~————— (iv) a suspension ceasing to have effect; or~~
- ~~————— (v) a revocation of an accreditation; or~~
- ~~————— (vi) a notification under paragraph 5.14(1)(c), or subrule 5.14(2), (3) or (5); and~~

~~————— (b) include in the notice:~~

- ~~————— (i) any information the Registrar is required to enter into the Register of Accredited Persons; and~~
- ~~————— (ii) any information the Registrar requires in order to amend an entry in the Register.~~

~~Subdivision 5.2.4—Transfer, suspension, surrender and revocation of accreditation~~

~~5.16—Transfer of accreditation~~

~~—An accreditation cannot be transferred.~~

~~5.17—Revocation, suspension, or surrender of accreditation~~

~~—(1) The table has effect:~~

Grounds for revocation, suspension and surrender of accreditation as accredited person		
	If:	the Data Recipient Accreditor:
1	an accredited person applies to the Data Recipient Accreditor, in writing, to surrender their accreditation;	must, in writing, accept that surrender.
2	the Data Recipient Accreditor is satisfied that an accredited person's accreditation was granted as the result of statements or other information, by the accreditation applicant or by any other person, that were false or misleading in a material particular;	may, in writing: (a) suspend; or (b) revoke; the person's accreditation, as appropriate.
3	subject to items 6 and 7, the Data Recipient Accreditor is satisfied that the accredited person or an associated person of the accredited person has been found to have contravened a law relevant to the management of CDR data; Note: See rule 1.7 for the meaning of "associated person" and "law relevant to the management of CDR data".	may, in writing: (a) suspend; or (b) revoke; the accredited person's accreditation, as appropriate.

Grounds for revocation, suspension and surrender of accreditation as accredited person		
	If:	the Data Recipient Accreditor:
4	the Data Recipient Accreditor reasonably believes that revocation or suspension is necessary in order to: (a) protect consumers; or (b) protect the security, integrity and stability of: — (i) — the Register of Accredited Persons or the associated database; or — (ii) — information and communication technology systems that are used by CDR participants to disclose or collect CDR data; Note: — See rule 1.7 for the meaning of “law relevant to the management of CDR data”.	may, in writing: (a) suspend; or (b) revoke; the person’s accreditation, as appropriate.
5	the following are satisfied: (a) the accredited person was, at the time of the accreditation, an ADI; (b) the accredited person is no longer an ADI for the reason that its authority to carry on banking business is no longer in force;	may, in writing: (a) suspend; or (b) revoke; the person’s accreditation, as appropriate.
6	the Data Recipient Accreditor reasonably believes that the accredited person has or may have contravened: (a) an offence provision of the Act or a civil penalty provision of the Act or these rules; or (b) one or more data standards;	may, in writing, suspend the person’s accreditation.
7	the accredited person has been found to have contravened: (a) an offence provision of the Act or a civil penalty provision of the Act or these rules; or (b) one or more data standards;	may, in writing: (a) suspend; or (b) revoke; the person’s accreditation, as appropriate.
8	the Data Recipient Accreditor is no longer satisfied that the accredited person is, having regard to the fit and proper person criteria, a fit and proper person to be accredited at the person’s level of accreditation;	may, in writing: (a) suspend; or (b) revoke; the person’s accreditation, as appropriate.

Grounds for revocation, suspension and surrender of accreditation as accredited person		
	If:	the Data Recipient Accreditor:
9	a relevant contract between the accredited person and a CDR consumer has been found to have a term that is unfair;	may, in writing: (a) suspend; or (b) revoke; the person's accreditation, as appropriate.
10	the Data Recipient Accreditor reasonably believes that a relevant contract between the accredited person and a CDR consumer has a term that is unfair;	may, in writing, suspend the person's accreditation.

———— (2) For items 9 and 10:

- (a) **relevant contract** means a standard form contract that is a consumer contract or a small business contract within the meaning of section 23 of the Australian Consumer Law that arises from a request by a CDR consumer under subrule 4.3(1); and
- (b) **unfair** has the meaning given by section 24 of the Australian Consumer Law; and
- (c) **Australian Consumer Law** has the meaning given by section 130 of the Act.

5.18 Revocation of accreditation — process

- (1) Before revoking an accredited person's accreditation under rule 5.17, the Data Recipient Accreditor must:
- (a) inform the accredited person of:
- (i) the proposed revocation; and
- (ii) when it is proposed to take effect; and
- (b) give the accredited person a reasonable opportunity to be heard in relation to the proposed revocation.
- (2) If the Accreditor revokes an accredited person's accreditation under rule 5.17, the Accreditor must notify the person, in writing, of the revocation.
- Note: ——— The decision to revoke an accredited person's accreditation can be reviewed by the Administrative Appeals Tribunal: see paragraph 9.2(b).

5.19 Suspension of accreditation — duration

- (1) Without limitation, the Data Recipient Accreditor, under rule 5.17:
- (a) may suspend an accreditation:
- (i) for a period of time that ends at a specified date; or

-
- ~~————— (ii) for a period of time that ends with the occurrence of a specified event; and~~
 - ~~————— (b) may, subject to the same conditions on which an accreditation was suspended, extend the suspension.~~
 - ~~————— (2) The Data Recipient Accreditor may, in writing, at any time, remove a suspension.~~

5.20 General process for suspension of accreditation or extension of suspension

- ~~————— (1) This rule applies subject to rule 5.21.~~
- ~~————— (2) Before suspending an accreditation under rule 5.17, or extending a suspension, the Data Recipient Accreditor must:~~
 - ~~————— (a) inform the accredited person of:~~
 - ~~————— (i) the proposed suspension or extension (including the proposed duration); and~~
 - ~~————— (ii) in the case of a suspension — when it is proposed to take effect; and~~
 - ~~————— (b) give the accredited person a reasonable opportunity to be heard in relation to the proposed suspension or extension.~~
- ~~————— (3) If the Accreditor suspends an accredited person's accreditation under rule 5.17, the Accreditor must notify the person, in writing, of the suspension and the period of the suspension.~~

~~Note: ——— The decision to suspend an accredited person's accreditation can be reviewed by the Administrative Appeals Tribunal: see paragraph 9.2(b).~~
- ~~————— (4) If the Accreditor extends a suspension, the Accreditor must notify the person, in writing, of the extension and the period of the suspension as extended.~~

~~Note: ——— The decision to extend a suspension can be reviewed by the Administrative Appeals Tribunal: see paragraph 9.2(b).~~

5.21 Process for urgent suspensions or extensions

- ~~————— (1) This rule applies if:~~
 - ~~————— (a) the Data Recipient Accreditor proposes to suspend an accreditation, or extend a suspension, on urgent grounds; and~~
 - ~~————— (b) in the opinion of the Data Recipient Accreditor, because of the urgency, it is not possible to comply with rule 5.20 prior to the suspension or extension.~~
- ~~————— (2) The Accreditor may suspend the accreditation, or extend the suspension, without first complying with rule 5.20.~~
- ~~————— (3) However, as soon as practicable after suspending the accreditation or extending the suspension, the Accreditor must:~~
 - ~~————— (a) inform the accredited person of the suspension or extension; and~~
 - ~~————— (b) give the accredited person a reasonable opportunity to be heard in relation to whether the suspension should be removed.~~

5.22 ~~When surrender, revocation or suspension takes effect~~

~~A surrender, revocation or suspension takes effect when the fact that the accreditation has been surrendered, revoked or suspended is included in the Register of Accredited Persons.~~

5.23 ~~Consequences of surrender, suspension or revocation of accreditation~~

Application of rule

- ~~(1) This rule applies if an accredited person's accreditation is surrendered, suspended or revoked.~~

Ongoing obligations following surrender, suspension or revocation of an accreditation

- ~~(2) If the person's accreditation has been surrendered or revoked, the person must comply with the following provisions as if the person still were an accredited data recipient:~~

- ~~(a) section 56EI of the Act (privacy safeguard 6);~~
- ~~(b) section 56EJ of the Act (privacy safeguard 7);~~
- ~~(c) section 56EO of the Act (privacy safeguard 12).~~

~~Note: This subrule is a civil penalty provision (see rule 9.8).~~

- ~~(3) The person:~~

- ~~(a) must not, after the revocation or surrender, or while the accreditation is suspended, seek to collect any, or any further, CDR data under these rules; and~~

- ~~(b) if the person has collected any CDR data under these rules must notify each person who has consented to the accredited person collecting CDR data for which they are a CDR consumer:~~

- ~~(i) that their accreditation has been surrendered, suspended or revoked, as the case may be; and~~

- ~~(ii) in the case of a suspension of the following:~~

- ~~(A) that any consents to collect and to use CDR data may be withdrawn at any time; and~~

- ~~(B) the effect of any such withdrawal.~~

~~Note 1: If an accredited person's accreditation is suspended, they remain an accredited person, and continue to be subject to the obligations of an accredited person whose accreditation has not been suspended.~~

~~Note 2: This subrule is a civil penalty provision (see rule 9.8).~~

- ~~(4) If:~~

- ~~(a) the person's accreditation has been surrendered or revoked; and~~
- ~~(b) the person has collected CDR data under these rules; and~~

-
- ~~(c) the person is not required to retain that CDR data by or under an Australian law or a court/tribunal order; and~~
- ~~(d) the CDR data does not relate to any current or anticipated:~~
- ~~(i) legal proceedings; or~~
- ~~(ii) dispute resolution proceedings;~~
- ~~to which the person is a party; and~~
- ~~(e) where there is a CDR consumer for the CDR data, the CDR data does not relate to any current or anticipated:~~
- ~~(i) legal proceedings; or~~
- ~~(ii) dispute resolution proceedings;~~
- ~~to which the CDR consumer is a party;~~
- ~~the person must delete or de-identify that data by taking the steps specified in rule 7.12 or 7.13, as appropriate.~~
- Note 1: ~~In addition:~~
- ~~• if an accreditation is revoked or surrendered:
— any consents to collect and use CDR data expire: see subrule 4.14(2); and
— any authorisations to disclose CDR data expire: see subrule 4.26(2); and~~
 - ~~• if an accreditation is suspended, the accredited person is not able to collect data while the suspension is in effect.~~
- Note 2: ~~This subrule is a civil penalty provision (see rule 9.8).~~
- ~~(5) For the purposes of paragraph (4)(c), if paragraphs (4)(a) to (d) apply in relation to the CDR data of the CDR consumer, the person may:~~
- ~~(a) request the CDR consumer to state whether or not such proceedings are current or anticipated; and~~
- ~~(b) rely on that statement.~~

Division 5.3—Rules relating to Register of Accredited Persons

5.24 Maintaining the Register of Accredited Persons

~~—————~~ The Accreditation Registrar must enter the following details on the Register of Accredited Persons:

- ~~—————~~ (a) ~~the following details about the accredited person:~~
- ~~—————~~ (i) ~~the accredited person’s name;~~
 - ~~—————~~ (ii) ~~the accredited person’s accreditation number;~~
 - ~~—————~~ (iii) ~~the accredited person’s addresses for service;~~
 - ~~—————~~ (iv) ~~if the accredited person is a foreign entity —the name and addresses for service of the accredited person’s local agent;~~
- ~~—————~~ (b) ~~the level of the person’s accreditation;~~
- ~~—————~~ (c) ~~either:~~
- ~~—————~~ (i) ~~any conditions on the accreditation; or~~
 - ~~—————~~ (ii) ~~if the Data Recipient Accreditor so directs —a description of the effect of any such conditions;~~
- ~~—————~~ (d) ~~if the accreditation has been revoked —that fact and the date of the revocation;~~
- ~~—————~~ (e) ~~if the accreditation has been suspended —that fact and the period of the suspension;~~
- ~~—————~~ (f) ~~if a decision to suspend an accreditation has been revoked, or the suspension otherwise is no longer in effect:~~
- ~~—————~~ (i) ~~that fact; and~~
 - ~~—————~~ (ii) ~~the date from which the accreditation is once more in effect;~~
- ~~—————~~ (g) ~~if the accreditation is surrendered —that fact and the date of the surrender;~~
- ~~—————~~ (h) ~~each brand name under which the accredited person provides goods or services where, in order to provide the good or service, the accredited person needs to access a CDR consumer’s CDR data;~~
- ~~—————~~ (i) ~~a hyperlink to each of the following:~~
- ~~—————~~ (i) ~~the relevant web site address of the accredited person;~~
 - ~~—————~~ (ii) ~~the accredited person’s CDR policy;~~
 - ~~—————~~ (iii) ~~if the accredited person has a CDR policy for a brand name under which the accredited person provides goods or services where, in order to provide the good or service, the accredited person needs to access a CDR consumer’s CDR data —that policy.~~

Note 1: ~~—————~~ For paragraphs (a), see rule 1.7 for the meaning of “addresses for service”.

Note 2: ~~—————~~ For paragraph (b), the only level of accreditation is the “unrestricted” level.

Note 3: ~~—————~~ For paragraphs (a) to (g), see rule 5.15.

5.25 Other information to be kept in association with Register of Accredited Persons

- ~~———— (1) The Accreditation Registrar must create and maintain, in association with the Register of Accredited Persons, a database that includes:~~
 - ~~———— (a) a list of data holders; and~~
 - ~~———— (b) for each data holder:~~
 - ~~———— (i) each brand name under which the data holder offers products in relation to which consumer data requests may be made under these rules; and~~
 - ~~———— (ii) a hyperlink to:~~
 - ~~———— (A) the relevant web site address of the data holder; and~~
 - ~~———— (B) the data holder's CDR policy; and~~
 - ~~———— (C) if the data holder has a CDR policy for a brand name under which the data holder offers products in relation which consumer data requests may be made under these rules — that policy; and~~
 - ~~———— (iii) the universal resource identifier for the data holder's product data request service; and~~
- ~~———— (c) such other information relating to each data holder and each accredited person as the Accreditation Registrar considers is required in order for requests under these rules to be processed in accordance with these rules and the data standards.~~

Note 1: ~~———— For subparagraph (b)(i), for the banking sector, see Part 6 of Schedule 3 for the staged application of these rules.~~

Note 2: ~~———— For the banking sector, see subclause 6.3(2) of Schedule 3 for additional information to be included.~~

Accreditation Registrar may request further information

- ~~———— (2) The Accreditation Registrar may:~~
 - ~~———— (a) request a data holder or accredited person to provide the information referred to in subrule (1), or updates to that information; and~~
 - ~~———— (b) specify the form in which the information or updates are to be provided.~~
 - ~~———— (3) The data holder or accredited person must comply with a request under subrule (2).~~
- ~~———— Civil penalty:~~
- ~~———— (a) for an individual — \$50,000; and~~
 - ~~———— (b) for a body corporate — \$250,000.~~

Obligation to inform Accreditation Registrar to keep information up-to-date

- ~~———— (4) Subrule (5) applies if a data holder or an accredited person:~~
 - ~~———— (a) has provided information to the Accreditation Registrar in accordance with this rule; and~~
 - ~~———— (b) becomes aware that the information:~~
 - ~~———— (i) is out of date; or~~

-
- ~~(ii) needs to be amended in order for product data requests and consumer data requests made under these rules to be processed in accordance with these rules and the data standards.~~
- ~~(5) The data holder or accredited person, as appropriate, must inform the Accreditation Registrar of the amendment that should be made to the database in the form approved by the Registrar for the purposes of this subrule and as soon as practicable after the data holder or accredited person becomes aware of either of the matters mentioned in paragraph (4)(b).~~
- ~~Civil penalty:~~
- ~~(a) for an individual \$50,000; and~~
- ~~(b) for a body corporate \$250,000.~~

5.26 Amendment and correction of entries in Register of Accredited Persons and database

- ~~The Accreditation Registrar:~~
- ~~(a) must, as soon as practicable after receiving information from the Data Recipient Accreditor that must be entered on the Register, enter that information on the Register; and~~
- ~~(b) must, as soon as practicable after receiving information from the Data Recipient Accreditor that requires the Registrar to update information on the Register, update the Register; and~~
- ~~(c) may, to the extent the Accreditation Registrar considers necessary, amend the database referred to in subrule 5.25(1) to reflect any amendment the Registrar has been informed of in accordance with rule 5.25; and~~
- ~~(d) may make clerical amendments to entries in the Register or database as appropriate to ensure the accuracy of the Register or database.~~

5.27 Publication or availability of specified information in the Register of Accredited Persons

- ~~For paragraph 56CE(4)(c) of the Act, the Accreditation Registrar must, in the manner the Registrar thinks fit, make the following information publicly available:~~
- ~~(a) the information referred to in rule 5.24;~~
- ~~(b) the information referred to in paragraphs 5.25(1)(a) and (b).~~

~~Note: For the banking sector, see subclause 6.3(3) of Schedule 3 for other information the Accreditation Registrar must make publicly available.~~

5.28 Making information available to the Commission, the Information Commissioner and the Data Recipient Accreditor

- ~~The Accreditation Registrar must make available to the Commission, the Information Commissioner and the Data Recipient Accreditor, on request:~~

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- ~~— (a) all or part of the Register of Accredited Persons or the associated database;
or~~
 - ~~— (b) specified information in the Register or the associated database; or~~
 - ~~— (c) any information held by the Registrar in relation to the Register or the associated database.~~

5.29 Publication of specified information by the Commission

- ~~— The Commission may publish information made available to it by the Accreditation Registrar relating to the performance and availability of systems to respond to requests under these rules.~~

5.30 Other functions of Accreditation Registrar

- ~~— For paragraph 56CL(1)(b) of the Act, the other functions of the Accreditation Registrar include the following:~~
- ~~— (a) enabling information included in the Register of Accredited Persons and associated database to be communicated to data holders and accredited persons to facilitate the making and processing of requests under these rules in accordance with these rules and the data standards;~~
- ~~— (b) maintaining the security, integrity and stability of the Register and associated database, including undertaking or facilitating any testing by CDR participants for that purpose;~~
- ~~— (c) requesting a data holder or an accredited person to do specified things where that is necessary or convenient in order for the Accreditation Registrar to perform its functions or exercise its powers;~~
 - ~~Example: The Accreditation Registrar could request data holders or accredited persons to undertake and complete testing where it is necessary or convenient for the Registrar to perform its functions under paragraph (b).~~
- ~~— (d) informing the Data Recipient Accreditor of any failure of an accredited person to comply with a condition of its accreditation or to do things requested by the Registrar in the performance of its functions or the exercise of its powers.~~

~~Note: The Accreditation Registrar has the power to do all things necessary or convenient to be done for or in connection with the performance of its functions. See subsection 56CL(2) of the Act.~~

5.31 Obligation to comply with Accreditation Registrar's request

- ~~— (1) The Accreditation Registrar may request a data holder or an accredited person to do a specified thing in order to ensure the security, integrity and stability of the Register of Accredited Persons or associated database.~~
- ~~— (2) The data holder or accredited person must comply with such a request.~~

~~Note: This subrule is a civil penalty provision (see rule 9.8).~~

5.32 Automated decision-making Accreditation Registrar

- ~~— The Accreditation Registrar may automate processes (including decision making) under these rules.~~

5.33 Temporary restriction on use of the Register in relation to data holder

- ~~———— (1) The Accreditation Registrar may take steps to prevent the Register of Accredited Persons and associated database from being used to make consumer data requests to a data holder, for a period of up to 10 days, if the Accreditation Registrar reasonably believes it is necessary to do so in order to ensure the security, integrity and stability of the Register or associated database.~~
- ~~———— (2) The steps taken by the Accreditation Registrar may include amending the information in the associated database relating to a data holder that is used to facilitate the making and processing of requests.~~
- ~~———— (3) Before, or as soon as practicable after, taking steps under subrule (1), the Accreditation Registrar must:~~
 - ~~———— (a) inform the data holder of the steps to be taken, or that have been taken; and~~
 - ~~———— (b) give the data holder a reasonable opportunity to be heard in relation to the matter.~~
- ~~———— (4) Despite anything else in these rules, a data holder is not required to disclose CDR data in response to a request, where responding to the request would require the data holder to use the Register of Accredited Persons or associated database in a way that is not available to the data holder at that time by reason of steps taken under this rule.~~

5.34 Temporary direction to refrain from processing consumer data requests

- ~~———— (1) The Accreditation Registrar may, by written notice:~~
 - ~~———— (a) direct an accredited person not to make consumer data requests; or~~
 - ~~———— (b) direct a data holder not to respond to consumer data requests;~~~~for a period of up to 10 days, if the Accreditation Registrar reasonably believes it is necessary to do so in order to ensure the security, integrity and stability of the Register or associated database.~~
- ~~———— (2) The notice must specify:~~
 - ~~———— (a) whether the direction applies to all consumer data requests or to requests made to a particular data holder or by a particular accredited person; and~~
 - ~~———— (b) the period of application.~~
- ~~———— (3) Before, or as soon as practicable after, giving a direction, the Accreditation Registrar must give the accredited person or data holder a reasonable opportunity to be heard in relation to the matter.~~
- ~~———— (4) Despite anything else in these rules:~~
 - ~~———— (a) an accredited person must not make a consumer data request contrary to a direction it has received under this rule; and~~
 - ~~———— (b) a data holder must not disclose CDR data in response to a consumer data request contrary to a direction it has received under this rule.~~

~~Civil penalty:~~

~~(a) for an individual—\$50,000; and~~

~~(b) for a body corporate—\$250,000.~~

Part 6 — Rules relating to dispute resolution

6.1 Requirement for data holders — internal dispute resolution

~~———— A data holder in relation to a particular designated sector must have internal dispute resolution processes that meet the internal dispute resolution requirements in relation to that sector.~~

~~Note 1: — See the definition of “meets the internal dispute resolution requirements” in relation to the banking sector in subrule 1.7(1), see and clause 5.1 of Schedule 3.~~

~~Note 2: — An accredited person must also have internal dispute resolution processes that meet those internal dispute resolution requirements: see paragraph 5.12(1)(b).~~

~~Note 3: — This rule is a civil penalty provision (see rule 9.8).~~

6.2 Requirement for data holders — external dispute resolution

~~———— A data holder must be a member of a recognised external dispute resolution scheme in relation to CDR consumer complaints.~~

~~Note 1: — See the definition of “recognised external dispute resolution scheme” in subrule 1.7(1), and see subrule 1.7(3) for the interpretation of references to “data holder”.~~

~~Note 2: — An accredited person must also be a member of such a recognised external dispute resolution scheme: see paragraph 5.12(1)(c).~~

~~Note 3: — This rule is a civil penalty provision (see rule 9.8).~~

~~Part 7—Rules relating to privacy safeguards~~

~~Division 7.1—Preliminary~~

~~7.1—Simplified outline of this Part~~

~~The privacy safeguards are an additional protection given to CDR data under Part IV of the Act. The privacy safeguards apply only to CDR data for which there are one or more CDR consumers (such as required consumer data and voluntary consumer data); they do not apply to CDR data for which there are no CDR consumers (such as required product data and voluntary product data).~~

~~Several of the privacy safeguards depend on matters specified in these rules for their operation. This Part sets out the rules that relate to the privacy safeguards.~~

~~This Part also sets out some additional civil penalty provisions that protect the privacy or confidentiality of CDR consumers' CDR data.~~

~~Division 7.2—Rules relating to privacy safeguards~~

~~Subdivision 7.2.1—Rules relating to consideration of CDR data privacy~~

~~7.2 Rule relating to privacy safeguard 1—open and transparent management of CDR data~~

~~Policy about the management of CDR data~~

- ~~———— (1) For paragraph 56ED(3)(b) of the Act, the Information Commissioner may approve a form for a CDR policy.~~
- ~~———— (2) For paragraph 56ED(3)(b) of the Act, a CDR entity's CDR policy must be in the form of a document that is distinct from any of the CDR entity's privacy policies.~~

~~Additional information for CDR policy~~

- ~~———— (3) In addition to the information referred to in subsection 56ED(4) of the Act, a data holder's CDR policy must indicate:~~
 - ~~———— (a) whether it accepts requests for:~~
 - ~~———— (i) voluntary product data; or~~
 - ~~———— (ii) voluntary consumer data; and~~
 - ~~———— (b) if so:~~
 - ~~———— (i) whether it charges fees for disclosure of such data; and~~
 - ~~———— (ii) if it does—how information about those fees can be obtained.~~
- ~~———— (4) In addition to the information referred to in subsection 56ED(5) of the Act, an accredited data recipient's CDR policy must:~~
 - ~~———— (a) include a statement indicating the consequences to the CDR consumer if they withdraw a consent to collect and use CDR data; and~~
 - ~~———— (b) include a list of the outsourced service providers of the accredited data recipient (whether based in Australia or based overseas, and whether or not any is an accredited person); and~~
 - ~~———— (c) for each such service provider—include:~~
 - ~~———— (i) the nature of the services it provides; and~~
 - ~~———— (ii) the CDR data or classes of CDR data that may be disclosed to it; and~~
 - ~~———— (ca) if the accredited person wishes to undertake general research using the CDR data:~~
 - ~~———— (i) a description of the research to be conducted; and~~
 - ~~———— (iii) a description of any additional benefit to be provided to the CDR consumer for consenting to the use; and~~
 - ~~———— (d) if the accredited data recipient is likely to disclose CDR data of a kind referred to in subsection 56ED(5) of the Act to such a service provider that:~~

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- ~~_____ (i) is based overseas; and~~
 - ~~_____ (ii) is not an accredited person;~~
 - ~~_____ include the countries in which such persons are likely to be based if it is practicable to specify those countries in the policy; and~~
 - ~~_____ (e) if applicable include the following information about de-identification of CDR data that is not redundant data:~~
 - ~~_____ (i) how the accredited data recipient uses CDR data that has been de-identified in accordance with the CDR data de-identification process to provide goods or services to CDR consumers;~~
 - ~~_____ (ii) the further information specified in subrule (5); and~~
 - ~~_____ (f) include the following information about deletion of redundant CDR data:~~
 - ~~_____ (i) when it deletes redundant data;~~
 - ~~_____ (ii) how a CDR consumer may elect for this to happen;~~
 - ~~_____ (iii) how it deletes redundant data; and~~
 - ~~_____ (g) if applicable include the following information about de-identification of redundant CDR data:~~
 - ~~_____ (i) if the de-identified data is used by the accredited data recipient—examples of how the accredited data recipient ordinarily uses de-identified data; and~~
 - ~~_____ (ii) the further information specified in subrule (5); and~~
 - ~~_____ (h) include the following information about the CDR consumer's election to delete their CDR data:~~
 - ~~_____ (i) information about how the election operates and its effect;~~
 - ~~_____ (ii) information about how CDR consumers can exercise the election.~~

~~Note 1: The specified service providers are the accredited data recipient's "outsourced service providers".~~

~~Note 2: For paragraph (d), if the service provider is an accredited person who is based overseas, paragraph 56ED(5)(f) of the Act requires similar information to be contained in the accredited data recipient's CDR policy.~~

~~Note 3: This subrule is a civil penalty provision (see rule 9.8).~~

- ~~_____ (5) For subparagraphs (4)(e)(ii) and (g)(ii), the further information is:~~
 - ~~_____ (a) how the accredited data recipient de-identifies CDR data, including a description of techniques that it uses to de-identify data; and~~
 - ~~_____ (b) if the accredited data recipient ordinarily discloses (by sale or otherwise) de-identified data to one or more other persons:~~
 - ~~_____ (i) that fact; and~~
 - ~~_____ (ii) to what classes of person it ordinarily discloses such data; and~~
 - ~~_____ (iii) why it so discloses such data.~~
 - ~~_____ (6) In addition to the information referred to in paragraphs 56ED(4)(b) and (5)(d) of the Act, a CDR participant's CDR policy must include the following information in relation to the participant's internal dispute resolution processes:~~
 - ~~_____ (a) where a CDR consumer complaint can be made;~~
 - ~~_____ (b) how a CDR consumer complaint can be made;~~
 - ~~_____ (c) when a CDR consumer complaint can be made;~~
 - ~~_____ (d) when acknowledgement of a CDR consumer complaint can be expected;~~
 - ~~_____ (e) what information is required to be provided by the complainant;~~
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- ~~— (f) the participant's process for handling CDR consumer complaints;~~
 - ~~— (g) time periods associated with various stages in the CDR consumer complaint process;~~
 - ~~— (h) options for redress;~~
 - ~~— (i) options for review, both internally (if available) and externally.~~

~~Note: — This subrule is a civil penalty provision (see rule 9.8).~~

- ~~— (7) If an accredited data recipient proposes to store CDR data other than in Australia or an external territory, its CDR policy must specify any country in which they propose to store CDR data.~~

~~Note: — This subrule is a civil penalty provision (see rule 9.8).~~

Availability of policy

- ~~— (8) For paragraph 56ED(7)(b) of the Act, a CDR participant must make its CDR policy readily available through each online service by means of which the CDR participant ordinarily deals with CDR consumers.~~

~~Note: — This subrule is a civil penalty provision (see rule 9.8).~~

- ~~— (9) For subsection 56ED(8) of the Act, if a copy of a the CDR participant's policy is requested by a CDR consumer, the participant must give the CDR consumer a copy:~~

- ~~— (a) electronically; or~~
- ~~— (b) in hard copy;~~
- ~~— as directed by the consumer.~~

~~Note: — This subrule is a civil penalty provision (see rule 9.8).~~

7.3 Rule relating to privacy safeguard 2— anonymity and pseudonymity

- ~~— For subsection 56EE(3) of the Act, subsection 56EE(1) of the Act does not apply if:~~

- ~~— (a) the accredited data recipient is required or authorised by law or by a court/tribunal order to deal with an identified CDR consumer in relation to particular CDR data; or~~
- ~~— (b) in relation to particular CDR data, it is impracticable for the accredited data recipient to deal with a CDR consumer that has not been identified.~~

~~Subdivision 7.2.2—Rules relating to collecting CDR data~~

~~7.4 Rule relating to privacy safeguard 5—notifying of the collection of CDR data~~

~~For section 56EH of the Act, an accredited person that collects CDR data in accordance with section 56EF of the Act as a result of a collection consent must update the person's consumer dashboard as soon as practicable to indicate:~~

- ~~(a) what CDR data was collected; and~~
- ~~(b) when the CDR data was collected; and~~
- ~~(c) the CDR participant for the CDR data from which the CDR data was collected.~~

~~Note 1: See paragraph 1.14(3)(h).~~

~~Note 2: See rule 1.16 for how this rule applies in the case of a CDR outsourcing arrangement in which a provider collects CDR data on behalf of a principal.~~

Subdivision 7.2.3—Rules relating to dealing with CDR data

7.5 ~~Meaning of permitted use or disclosure and relates to direct marketing~~

Permitted uses or disclosures that do not relate to direct marketing

- ~~(1) For this Subdivision, for an accredited data recipient that has collected CDR data under a consumer data request under Part 4 on behalf of a CDR consumer, each of the following is a **permitted use or disclosure**:~~
- ~~(a) using the CDR consumer's CDR data to provide goods or services requested by the CDR consumer (the **existing goods or services**):~~
 - ~~(i) in compliance with the data minimisation principle; and~~
 - ~~(ii) in accordance with a current use consent from the CDR consumer, other than a direct marketing consent;~~
 - ~~(aa) in accordance with a current use consent, de-identifying the CDR consumer's CDR data in accordance with the CDR data de-identification process and:~~
 - ~~(i) using the de-identified data for general research; or~~
 - ~~(ii) disclosing (including by selling) the de-identified data;~~
 - ~~(b) directly or indirectly deriving CDR data from the collected CDR data in order to use the data in accordance with paragraph (a) or (aa);~~
 - ~~(c) for the purpose of providing the existing goods or services—disclosing, to the CDR consumer, any of their CDR data;~~
 - ~~(ca) subject to rule 7.5A, disclosing the CDR consumer's CDR data in accordance with a current disclosure consent;~~
 - ~~(d) disclosing the CDR consumer's CDR data to an outsourced service provider of the accredited data recipient under a CDR outsourcing arrangement:~~
 - ~~(i) for the purpose of doing the things referred to in paragraphs (a) to (c); and~~
 - ~~(ii) to the extent reasonably needed to do those things;~~
 - ~~(e) disclosing (by sale or otherwise), to any person, CDR data that has been de-identified in accordance with the CDR data de-identification process;~~
 - ~~(f) where the accredited data recipient collected the CDR data as a provider in a CDR outsourcing arrangement—disclosing service data to the principal under the arrangement;~~
 - ~~(g) disclosing CDR data to an accredited person if the CDR consumer has:~~
 - ~~(i) given the accredited person:~~
 - ~~(A) a collection consent to collect the CDR data from the accredited data recipient; and~~
 - ~~(B) a use consent; and~~
 - ~~(ii) given the accredited data recipient an AP disclosure consent to disclose the CDR data to the accredited person.~~
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- ~~(2) However:~~
- ~~(a) a disclosure is not a *permitted use or disclosure* unless it is done in accordance with the data standards; and~~
 - ~~(b) none of the uses or disclosures of CDR data referred to in subrule 4.12(3) is a *permitted use or disclosure*.~~

~~*Permitted uses or disclosures that relate to direct marketing*~~

- ~~(3) For this Subdivision, a use or disclosure of the CDR consumer's CDR data by an accredited data recipient that is not itself a permitted use or disclosure under subrule (1) is nevertheless a *permitted use or disclosure* that *relates to direct marketing* if it consists of one of the following:~~
 - ~~(a) in accordance with a direct marketing consent from the CDR consumer — sending to the CDR consumer:~~
 - ~~(i) information about upgraded or alternative goods or services to existing goods or services; or~~
 - ~~(ii) an offer to renew existing goods or services when they expire; or~~
 - ~~(iii) information about the benefits of existing goods or services; ; or~~
 - ~~(iv) information about other goods or services provided by another accredited person, if the accredited data recipient:~~
 - ~~(A) reasonably believes that the CDR consumer might benefit from those other goods or services; and~~
 - ~~(B) sends such information to the CDR consumer on no more than a reasonable number of occasions;~~
 - ~~(aa) in accordance with a direct marketing consent from the CDR consumer disclosing CDR data to an accredited person to enable the accredited person to provide the goods or services referred to in subparagraph (a)(iv); if the CDR consumer has:~~
 - ~~(i) given the accredited person:~~
 - ~~(A) a collection consent to collect the CDR data from the accredited data recipient; and~~
 - ~~(B) a use consent; and~~
 - ~~(ii) given the accredited data recipient a disclosure consent to disclose the CDR data to the accredited person;~~
 - ~~(b) using the CDR data in a way and to the extent that is reasonably needed in order to send to the CDR consumer something permitted under paragraph (a) or paragraph (aa) (including by analysing the CDR data to identify the appropriate information to send);~~
 - ~~(c) disclosing the CDR consumer's CDR data to an outsourced service provider of the accredited data recipient:~~
 - ~~(i) for the purpose of doing the things referred to in paragraphs (a), (aa) or (b); and~~
 - ~~(ii) to the extent reasonably needed to do those things.~~

~~**7.5A Limitation to disclosures of CDR data under a disclosure consent**~~

- ~~(1) Despite paragraph 7.5(1)(ca), disclosure of CDR data to an accredited person under an AP disclosure consent is not a *permitted use or disclosure* until the earlier of the following:~~

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- ~~(a) 1 July 2021;~~
- ~~(b) the day the Data Standards Chair makes the data standard about the matter referred to in subparagraph 8.11(1)(c)(iii).~~
- ~~(2) Despite paragraph 7.5(1)(ca), disclosure of CDR data to a trusted adviser under a TA disclosure consent is not a **permitted use or disclosure** until the earlier of the following:~~
- ~~(a) 1 February 2022;~~
- ~~(b) the day the Data Standards Chair makes the data standard about the matter referred to in subparagraph 8.11(1)(c)(iv).~~
- ~~(3) Despite paragraph 7.5(1)(ca), disclosure of a CDR insight under an insight disclosure consent is not a **permitted use or disclosure** until the earlier of the following:~~
- ~~(a) 1 February 2022;~~
- ~~(b) the day the Data Standards Chair makes the data standard about the matters referred to in subrule 8.11(1A).~~
- ~~(4) Despite paragraph 7.5(1)(ca), disclosure of a CDR insight under an insight disclosure consent is not a **permitted use or disclosure** if the CDR insight includes or reveals sensitive information within the meaning of the *Privacy Act 1988*.~~

~~7.6 Use or disclosure of CDR data by accredited data recipients, outsourced service providers and others~~

- ~~(1) Subject to the Act and these rules, an accredited data recipient that has collected CDR data under a consumer data request under Part 4 made on behalf of a CDR consumer must not use or disclose it, or CDR data directly or indirectly derived from it, other than for a permitted use or disclosure (whether or not one that relates to direct marketing).~~

~~Note: This subrule is a civil penalty provision (see rule 9.8).~~

- ~~(2) For this rule:~~
- ~~(a) any use or disclosure of service data by the provider under a CDR outsourcing arrangement is taken to have been by the principal under the arrangement; and~~
- ~~(b) it is irrelevant whether the use or disclosure:~~
- ~~(i) is in accordance with the arrangement; or~~
- ~~(ii) is taken to have been by the provider by an application of this subrule to another CDR outsourcing arrangement in which it is the principal.~~

~~Note: See rule 1.10 for the definition of “service data”.~~

7.7 Rule relating to privacy safeguard 6—use or disclosure of CDR data by accredited data recipients

~~Note: Paragraph 56EI(1)(b) of the Act provides that an accredited data recipient of CDR data must not use or disclose it unless the use or disclosure is otherwise required, or authorised, under the consumer data rules. This rule provides an authorisation for that paragraph.~~

~~Section 56EI of the Act applies only in relation to CDR data for which there are one or more CDR consumers: subsection 56EB(1) of the Act.~~

~~For paragraph 56EI(1)(b) of the Act, the use or disclosure of CDR data for which there is a CDR consumer by an accredited data recipient of the CDR data is authorised under these rules if it is a permitted use or disclosure, other than one that relates to direct marketing.~~

7.8 Rule relating to privacy safeguard 7—use or disclosure of CDR data for direct marketing by accredited data recipients

~~Note: Paragraph 56EJ(1)(b) of the Act provides that an accredited data recipient of CDR data must not use or disclose it for direct marketing unless the use or disclosure is authorised under the consumer data rules in accordance with a valid consent of a CDR consumer for the CDR data. This rule provides an authorisation for that paragraph.~~

~~Section 56EJ of the Act applies only in relation to CDR data for which there are one or more CDR consumers: subsection 56EB(1) of the Act.~~

~~For paragraph 56EJ(1)(b) of the Act, the use or disclosure of CDR data for which there is a CDR consumer by an accredited data recipient of the CDR data for direct marketing is authorised under these rules if it is a permitted use or disclosure that relates to direct marketing.~~

7.9 Rule relating to privacy safeguard 10—notifying of the disclosure of CDR data

~~(1) For subsection 56EM(1) of the Act, a data holder that discloses CDR data to an accredited person as a result of a consumer data request must, as soon as practicable, update each consumer dashboard that relates to the request to indicate:~~

~~(a) what CDR data was disclosed; and~~

~~(b) when the CDR data was disclosed; and~~

~~(c) the accredited data recipient, identified in accordance with any entry on the Register of Accredited Persons specified as being for that purpose.~~

~~Note 1: For correction requests, see section 56EP of the Act (privacy safeguard 13) and Subdivision 7.2.5 of these rules.~~

~~Note 2: If a consumer data request is made that relates to a joint account, the other joint account holder's consumer dashboard may not be required to be similarly updated. See clause 4A.13.~~

~~Note 3: See paragraph 1.15(3)(f).~~

~~Note 4: See rule 1.16 for how this rule applies in the case of a CDR outsourcing arrangement in which a provider collects CDR data on behalf of a principal.~~

~~(2) For subsection 56EM(2) of the Act, an accredited data recipient that discloses CDR data to an accredited person must, as soon as practicable, update each consumer dashboard that relates to the request to indicate:~~

~~(a) what CDR data was disclosed; and~~

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- ~~(b) when the CDR data was disclosed; and~~
- ~~(c) the accredited person, identified in accordance with any entry on the Register of Accredited Persons specified as being for that purpose.~~
- ~~(3) For subsection 56EM(2) of the Act, an accredited data recipient that discloses CDR data to a trusted adviser must, as soon as practicable, update each consumer dashboard that relates to the request to indicate:~~
- ~~(a) what CDR data was disclosed; and~~
- ~~(b) when the CDR data was disclosed; and~~
- ~~(c) the trusted adviser.~~
- ~~(4) For subsection 56EM(2) of the Act, an accredited data recipient that discloses a CDR insight must, as soon as practicable, update each consumer dashboard that relates to the request to indicate:~~
- ~~(a) what CDR data was disclosed; and~~
- ~~(b) when the CDR data was disclosed; and~~
- ~~(c) the person to whom it was disclosed.~~

Subdivision 7.2.4—Rules relating to integrity and security of CDR data

7.10—Rule relating to privacy safeguard 11—quality of CDR data

- ~~———— (1) If a CDR participant makes a disclosure of a kind referred to in paragraphs 56EN(3)(a) and (b) of the Act to an accredited person, the CDR participant must provide the CDR consumer on whose behalf the disclosure was made, by electronic means, with a written notice that:~~
- ~~———— (a) identifies the accredited person to whom the CDR data was disclosed; and~~
 - ~~———— (b) states the date of the disclosure; and~~
 - ~~———— (c) identifies the CDR data that was incorrect in the sense referred to in paragraph 56EN(3)(b) of the Act; and~~
 - ~~———— (d) states that:~~
 - ~~———— (i) the CDR consumer can request the CDR participant to disclose the corrected CDR data to the accredited person; and~~
 - ~~———— (ii) if such a request is made, the corrected CDR data will be so disclosed.~~
- ~~Note 1: For paragraph (d), see subsection 56EN(4) of the Act.~~
- ~~Note 2: The written notice could be given through the CDR participant's consumer dashboard (see rule 1.14 and rule 1.15).~~
- ~~Note 3: See rule 1.16 for how this rule applies in the case of a CDR outsourcing arrangement in which a provider collects CDR data on behalf of a principal.~~
- ~~———— (2) A single notice may deal with one or more such disclosures.~~
- ~~———— (3) The notice must be provided:~~
- ~~———— (a) as soon as practicable; and~~
 - ~~———— (b) in any event within 5 business days;~~
- ~~———— after the CDR participant becomes aware of the matter referred to in paragraph 56EN(3)(b) of the Act.~~

7.11—Rule relating to privacy safeguard 12—security of CDR data

- ~~———— For subsection 56EO(1) of the Act, the steps are set out in Schedule 2.~~

~~Note: Broadly speaking, the steps are for an accredited data recipient of CDR data to:~~

- ~~• define and implement security governance in relation to CDR data; and~~
- ~~• define the boundaries of the CDR data environment; and~~
- ~~• have and maintain an information security capability; and~~
- ~~• implement a formal controls assessment program; and~~
- ~~• manage and report security incidents.~~

7.12—Rule relating to privacy safeguard 12—de-identification of redundant data

- ~~———— (1) For subsection 56EO(2) of the Act, this rule applies if:~~
- ~~———— (a) the accredited data recipient, when it asked for consent to collect and use the CDR data, gave the CDR consumer the statement referred to in paragraph 4.17(1)(b) or (c); and~~
 - ~~———— (b) the CDR consumer has not elected, in accordance with rule 4.16, that their redundant data should be deleted; and~~

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- ~~(c) in the case of a statement referred to in paragraph 4.17(1)(c) the accredited person thinks it appropriate in the circumstances to de-identify rather than delete the redundant data.~~

Note 1: ~~The CDR data de-identification process is set out in rule 1.17.~~

Note 2: ~~If this rule does not apply, rule 7.13 applies: see subrule 7.13(1).~~

~~(2) The steps are:~~

- ~~(a) to apply the CDR data de-identification process to the redundant data; and~~

- ~~(b) direct any outsourced service provider of the accredited data recipient that had been provided with a copy of the redundant data:~~

~~(i) either to:~~

- ~~(A) return the redundant data to the accredited data recipient; or~~

- ~~(B) delete the redundant data, as well as any CDR data that has been directly or indirectly derived from it, and notify the accredited data recipient of the deletion; and~~

- ~~(ii) if the outsourced service provider has provided any such data to another person to:~~

- ~~(A) direct the person to take either of the steps referred to in subparagraph (i) in relation to that data; and~~

- ~~(B) cause similar directions to be made to any person to whom such data has been further disclosed.~~

Note: ~~If the redundant data cannot be de-identified in accordance with the CDR data de-identification process, it must be deleted in accordance with the CDR data deletion process: see subrule 1.17(4).~~

7.13 Rule relating to privacy safeguard 12—deletion of redundant data

- ~~(1) For subsection 56EO(2) of the Act, this rule applies if rule 7.12 does not apply.~~

- ~~(2) The step is to apply the CDR data deletion process to the redundant data.~~

Note: ~~See rule 1.18 for the CDR data deletion process.~~

Subdivision 7.2.5—Rules relating to correction of CDR data

7.14 No fee for responding to or actioning correction request

- ~~———— (1) A data holder must not charge a fee for responding to or actioning a request under subsection 56EP(1) of the Act.~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

- ~~———— (2) An accredited data recipient must not charge a fee for responding to or actioning a request under subsection 56EP(2) of the Act.~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

7.15 Rule relating to privacy safeguard 13—steps to be taken when responding to correction request

~~———— The recipient of a request under subsection 56EP(1) or (2) of the Act must:~~

- ~~———— (a) acknowledge receipt of the request as soon as practicable; and~~
- ~~———— (b) within 10 business days after receipt of the request, and to the extent that the recipient considers appropriate in relation to the CDR data that was the subject of the request:~~
- ~~———— (i) correct the data; or~~
- ~~———— (ii) do both of the following:~~
- ~~———— (A) include a statement with the data to ensure that, having regard to the purpose for which it is held, the data is accurate, up to date, complete and not misleading;~~
- ~~———— (B) where practicable, attach an electronic link to a digital record of the data in such a way that the statement will be apparent to any users of the data; and~~
- ~~———— (c) give the requester a written notice, by electronic means, that:~~
- ~~———— (i) indicates what the recipient did in response to the request; and~~
- ~~———— (ii) if the recipient did not think it appropriate to do either of the things referred to in subparagraphs (b)(i) or (ii)—states why a correction or statement is unnecessary or inappropriate; and~~
- ~~———— (iii) sets out the complaint mechanisms available to the requester.~~

~~Note 1: ——— In relation to subparagraph (c)(iii), see Part 6.~~

~~Note 2: ——— The written notice could be given through the accredited person's or the data holder's consumer dashboard (see rules 1.14 and 1.15).~~

~~Part 8 — Rules relating to data standards~~

~~Division 8.1 — Preliminary~~

~~8.1 — Simplified outline of this Part~~

~~Product data requests and consumer data requests under these rules are made in accordance with data standards, which are made under Division 6 of Part IVD of the Act.~~

~~This Part of these rules sets out rules relating to data standards.~~

~~The Data Standards Chair is established by the Act and is responsible for making data standards. The Data Standards Chair is required to establish a Data Standards Advisory Committee to advise the Chair about data standards.~~

~~This Part also sets out procedural requirements for making, amending and reviewing data standards, and specifies data standards that the Data Standards Chair is required to make. These are all binding data standards.~~

~~Division 8.2—Data Standards Advisory Committee~~

~~8.2 Establishment of Data Standards Advisory Committee~~

~~— The Data Standards Chair must, by written instrument, establish and maintain a committee to advise the Chair about data standards (the *Data Standards Advisory Committee*).~~

~~Note: — For variation and revocation, see subsection 33(3) of the *Acts Interpretation Act 1901* and paragraph 13(1)(a) of the *Legislation Act 2003*.~~

~~8.3 Functions of Data Standards Advisory Committee~~

~~— The function of the Data Standards Advisory Committee is to advise the Data Standards Chair about:~~

- ~~— (a) any matters identified in the instrument establishing the Committee; and~~
- ~~— (b) any other matter referred to the Committee by the Chair.~~

~~8.4 Appointment to Data Standards Advisory Committee~~

~~— (1) The Data Standards Chair:~~

~~— (a) must appoint to the Data Standards Advisory Committee:~~

~~— (i) 1 or more consumer representatives; and~~

~~— (ii) 1 or more privacy representatives; and~~

~~— (b) may appoint others to the Committee as the Chair sees fit.~~

~~— (2) An appointment must be in writing.~~

~~— (3) The Chair may determine the terms and conditions of an appointment in writing.~~

~~Note: — An appointee may be reappointed: see section 33AA of the *Act Interpretation Act 1901* and paragraph 13(1)(a) of the *Legislation Act 2003*.~~

~~8.5 Termination of appointment and resignation~~

~~— (1) The Data Standards Chair may, by writing, terminate an appointment to the Data Standards Advisory Committee at any time.~~

~~— (2) An appointee to the Committee may resign his or her appointment by giving the Chair a written resignation.~~

~~— (3) The resignation takes effect on the day it is received by the Chair or, if a later day is specified in the resignation, on that later day.~~

~~8.6 Procedural directions~~

~~— The Data Standards Chair may give the Data Standards Advisory Committee written directions as to:~~

~~— (a) the way in which the Committee is to carry out its functions; and~~

~~— (b) procedures to be followed in relation to meetings.~~

~~Note: — For variation and revocation, see subsection 33(3) of the *Acts Interpretation Act 1901* and paragraph 13(1)(a) of the *Legislation Act 2003*.~~

8.7 Observers

- ~~———— (1) Any of the following:~~
 - ~~———— (a) the Commission;~~
 - ~~———— (b) the Information Commissioner;~~
 - ~~———— (c) the Department of the Treasury;~~
 - ~~———— may elect to be an observer on the Data Standards Advisory Committee.~~
- ~~———— (2) The Data Standards Chair may invite any other person to act as an observer on the Committee.~~

Division 8.3—Reviewing, developing and amending data standards

8.8 Notification when developing or amending data standards

- ~~———— (1) Subject to subrule (2), the Data Standards Chair must notify the Commission and the Information Commissioner, in writing, of a proposal to make or amend a data standard.~~
- ~~———— (2) If the standard or amendment is urgent, the Chair may instead notify the Commission and the Information Commissioner after it has been made.~~
- ~~———— (3) A failure to comply with this rule does not affect the validity or enforceability of a data standard or an amendment to a data standard.~~

8.9 Consultation when developing or amending data standards

- ~~———— (1) This rule does not apply in relation to:~~
 - ~~———— (a) a data standard or an amendment to a data standard that is made before 1 August 2020; or~~
 - ~~———— (b) an amendment to a data standard that is, in the opinion of the Data Standards Chair, minor or urgent.~~
- ~~———— (2) Before making or amending a data standard, the Data Standards Chair must:~~
 - ~~———— (a) prepare a draft of the proposed standard or amendment (the *consultation draft*); and~~
 - ~~———— (b) consult with:~~
 - ~~———— (i) the Data Standards Advisory Committee; and~~
 - ~~———— (ii) the Commission; and~~
 - ~~———— (iii) the Information Commissioner;~~
 - ~~———— on the consultation draft; and~~
 - ~~———— (c) cause the consultation draft to be published on the website of the Data Standards Body; and~~
 - ~~———— (d) invite submissions in relation to the consultation draft from interested members of the public to be made by a specified date that is no earlier than 28 days after the draft is published.~~
- ~~———— (3) The Data Standards Chair may extend the date for consultation.~~
- ~~———— (4) A failure to comply with this rule does not affect the validity or enforceability of a data standard or an amendment to a data standard.~~

8.10 Matters to have regard to when making or amending data standards

- ~~———— When making or amending a data standard, the Data Standards Chair must have regard to the following:~~
 - ~~———— (a) the advice or submissions (if any) received from:~~
 - ~~———— (i) the Data Standards Advisory Committee; or~~
 - ~~———— (ii) the Commission; or~~
 - ~~———— (iii) the Information Commissioner;~~

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- ~~on a draft of the proposed standard or amendment (the *consultation draft*);~~
 - ~~(b) submissions (if any) received during the public consultation (if any) that was undertaken in relation to the consultation draft in accordance with rule 8.9;~~
 - ~~(c) any advice from any other relevant committee, advisory panel or consultative group that has been established by the Chair (see paragraph 56FH(2)(a) of the Act).~~

Division 8.4—Data standards that must be made

8.11 Data standards that must be made

- ~~———— (1) The Data Standards Chair must make one or more data standards about each of the following:~~
 - ~~———— (a) the processes for:~~
 - ~~———— (i) making and responding to product data requests and consumer data requests; and~~
 - ~~———— (ii) obtaining authorisations and consents, and withdrawal of authorisations and consents;~~
 - ~~———— (b) the collection and use of CDR data, including requirements to be met by CDR participants in relation to seeking consent from CDR consumers;~~
 - ~~———— (c) the disclosure and security of CDR data, including:~~
 - ~~———— (i) authentication of CDR consumers to a standard which meets, in the opinion of the Chair, best practice security requirements; and~~
 - ~~———— (ii) seeking authorisations to disclose CDR data in response to consumer data requests; and~~
 - ~~———— (iii) consumer experience data standards for disclosure of CDR data to accredited persons; and~~
 - ~~———— (iv) consumer experience data standards for disclosure of CDR data to trusted advisers;~~
 - ~~———— (v) consumer experience data standards for disclosure of CDR insights;~~
 - ~~———— (d) the types of CDR data and descriptions of those types, to be used by CDR participants in making and responding to requests;~~
 - ~~———— (e) the formats in which CDR data is to be provided in response to requests;~~
 - ~~———— (f) requirements to be met by CDR participants in relation to:~~
 - ~~———— (i) performance and availability of systems to respond to requests; and~~
 - ~~———— (ii) public reporting of information relating to compliance with those requirements;~~
 - ~~———— (g) the processes for CDR participants to notify other CDR participants of withdrawal of consent or authorisations by CDR consumers;~~
 - ~~———— (h) the provision of administrative or ancillary services by CDR participants to facilitate the management and receipt of communications between CDR participants.~~
- ~~———— (1A) The standards for the purposes of paragraph (1)(a)(ii) that relate to obtaining insight disclosure consents must include provisions that cover the following:~~
 - ~~———— (a) how the accredited person can meet the requirement to explain a CDR insight in accordance with paragraph 4.11(3)(ca);~~
 - ~~———— (b) ensuring that the CDR consumer is made aware that their data will leave the CDR system when it is disclosed.~~
- ~~———— (2) Each such standard must indicate that it is binding and must specify the date on which it commences and the date by which it must be fully complied with.~~

~~Note: ——— See sections 56FD and 56FE of the Act for the legal effect of a binding data standard.~~

~~(3) The data standards must be subject to such consumer testing as the Data Standards Chair considers appropriate.~~

~~Part 9—Other matters~~

~~Division 9.1—Preliminary~~

~~9.1 Simplified outline of this Part~~

~~This Part deals with a range of miscellaneous matters, including:~~

- ~~• decisions that can be reviewed by the Administrative Appeals Tribunal; and~~
- ~~• rules relating to reporting, record keeping and auditing; and~~
- ~~• civil penalty provisions of the consumer data rules, which are enforced under the enforcement provisions of the Act.~~

~~Division 9.2—Review of decisions~~

~~9.2 Review of decisions by the Administrative Appeals Tribunal~~

~~Applications may be made to the Administrative Appeals Tribunal to review any of the following decisions:~~

- ~~(a) a decision of the Data Recipient Accreditor under rule 5.10 to:~~
 - ~~(i) impose a condition on an accreditation; or~~
 - ~~(ii) vary a condition that has been imposed;~~
- ~~(b) a decision of the Data Recipient Accreditor under rule 5.17 to:~~
 - ~~(i) suspend an accreditation; or~~
 - ~~(ii) extend a suspension; or~~
 - ~~(iii) revoke an accreditation.~~

Division 9.3—Reporting, record keeping and audit

Subdivision 9.3.1—Reporting and record keeping

9.3 Records to be kept and maintained

Records to be kept and maintained—data holder

- ~~—— (1) A data holder must keep and maintain records that record and explain the following:~~
 - ~~—— (a) authorisations given by CDR consumers to disclose CDR data;~~
 - ~~—— (b) amendments to or withdrawals of authorisations to disclose CDR data;~~
 - ~~—— (c) notifications of withdrawals of consents to collect CDR data;~~
 - ~~—— (d) disclosures of CDR data made in response to consumer data requests;~~
 - ~~—— (da) any written agreement of a kind referred to in subrule 2.4(5) the data holder has entered into;~~
 - ~~—— (e) instances where the data holder has refused to disclose requested CDR data and the rule or data standard relied upon to refuse to disclose the CDR data;~~
 - ~~—— (f) CDR complaint data;~~
 - ~~—— (g) the processes by which the data holder asks CDR consumers for their authorisation to disclose CDR data and for an amendment to their authorisation, including a video of each process.~~
- ~~—— Civil penalty:~~
 - ~~—— (a) for an individual—\$50,000; and~~
 - ~~—— (b) for a body corporate—\$250,000.~~

Records to be kept and maintained—accredited data recipient

- ~~—— (2) An accredited data recipient must keep and maintain records that record and explain the following:~~
 - ~~—— (a) all consents, including, if applicable, the uses of the CDR data that the CDR consumer has consented to under any use consents;~~
 - ~~—— (b) amendments to or withdrawals of consents by CDR consumers;~~
 - ~~—— (c) notifications of withdrawals of authorisations received from data holders;~~
 - ~~—— (d) CDR complaint data;~~
 - ~~—— (e) collections of CDR data under these rules;~~
 - ~~—— (ea) disclosures of CDR data to accredited persons under these rules, and the accredited persons to which any CDR data was disclosed;~~
 - ~~—— (eb) disclosures of CDR data to trusted advisers, and trusted advisers to whom CDR data was disclosed;~~
 - ~~—— (ec) any steps taken for the purposes of subrule 1.10C(3) to confirm that a trusted adviser is a member of a class of trusted advisers;~~
 - ~~—— (ed) disclosures of CDR insights, including a copy of each CDR insight disclosed, to whom it was disclosed and when;~~
 - ~~—— (f) elections to delete and withdrawals of those elections;~~

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- ~~— (g) the use of CDR data by the accredited data recipient;~~
 - ~~— (h) the processes by which the accredited data recipient asks CDR consumers for their consent and for an amendment to their consent, including a video of each process;~~
 - ~~— (i) if applicable:~~
 - ~~— (i) arrangements that may result in CDR data being collected by or disclosed to outsourced service providers, including copies of agreements with outsourced service providers; and~~
 - ~~— (ii) the use and management of CDR data by those providers;~~
 - ~~— (j) if CDR data was de-identified in accordance with a consent referred to in paragraph 4.11(3)(e):~~
 - ~~— (i) how the data was de-identified; and~~
 - ~~— (ii) how the accredited data recipient used the de-identified data; and~~
 - ~~— (iii) if the accredited data recipient disclosed (by sale or otherwise) the de-identified data to another person as referred to in paragraph 4.15(b):~~
 - ~~— (A) to whom the data was so disclosed; and~~
 - ~~— (B) why the data was so disclosed;~~
 - ~~— (iv) if the use is for general research—records of any additional benefit to be provided to the CDR consumer for consenting to the use;~~
 - ~~— (k) records that are required to be made for the purposes of the CDR data de-identification process when applied as part of privacy safeguard 12;~~
 - ~~— (l) records of any matters that are required to be retained under Schedule 2 to these rules;~~
 - ~~— (m) any terms and conditions on which the accredited data recipient offers goods or services where the accredited data recipient collects or uses, or discloses to an accredited person, CDR data in order to provide the good or service.~~

~~Note: For paragraph (k), see section 56EO of the Act and rule 7.12.~~

- ~~— Civil penalty:~~
 - ~~— (a) for an individual—\$50,000; and~~
 - ~~— (b) for a body corporate—\$250,000.~~

~~*Specificity of records*~~

- ~~— (3) Each record referred to in this rule must include the date and time when the record was made and, if applicable, the date and time when the event described by the record occurred.~~

~~*Translation of records*~~

- ~~— (4) Where a record referred to in this rule is kept in a language other than English, an English translation of the record must be made available within a reasonable time to a person who:~~

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- ~~_____ (a) is entitled to inspect the records under Subdivision 9.3.2; and~~
 - ~~_____ (b) asks for the English translation.~~

~~Period for retention of records~~

- ~~_____ (5) Each record referred to in this rule must be kept for a period of 6 years beginning on the day the record was created.~~

~~_____ Civil penalty:~~

- ~~_____ (a) for an individual \$50,000; and~~
- ~~_____ (b) for a body corporate \$250,000.~~

9.4 Reporting requirements

~~Reports that must be prepared—data holder~~

- ~~_____ (1) A data holder must prepare a report for each reporting period that:~~
 - ~~_____ (a) is in the form approved by the Commission for the purposes of this rule; and~~
 - ~~_____ (b) summarises the CDR complaint data that relates to that reporting period; and~~
 - ~~_____ (c) sets out the number (if any) of:~~
 - ~~_____ (i) product data requests; and~~
 - ~~_____ (ii) consumer data requests made by eligible CDR consumers; and~~
 - ~~_____ (iii) consumer data requests made by accredited persons on behalf of eligible CDR consumers;~~
 - ~~_____ received by the data holder during the reporting period; and~~
 - ~~_____ (d) sets out, for each of the types of requests referred to in subparagraphs (c)(i), (ii) and (iii):~~
 - ~~_____ (i) the number of times the data holder has refused to disclose CDR data; and~~
 - ~~_____ (ii) the rule or data standard relied upon to refuse to disclose that data; and~~
 - ~~_____ (iii) the number of times the data holder has relied on each of those rules or data standards as a ground of refusal.~~

~~Note: For the meaning of *product data request* see rule 2.3. For the meaning of *consumer data request* see rule 3.3 (requests made by CDR consumers) and rules 4.4 and 4.7A (requests by accredited persons).~~

~~_____ Civil penalty:~~

- ~~_____ (a) for an individual \$50,000; and~~
- ~~_____ (b) for a body corporate \$250,000.~~

~~Reports that must be prepared—accredited data recipient~~

- ~~_____ (2) An accredited data recipient must prepare a report for each reporting period that:~~
 - ~~_____ (a) is in the form approved by the Commission for the purposes of this rule; and~~
 - ~~_____ (b) summarises the CDR complaint data that relates to that reporting period; and~~

-
- ~~(c) describes any goods or services that they offer to CDR consumers using CDR data that were not:~~
 - ~~(i) described in the relevant application to be an accredited person; or~~
 - ~~(ii) previously included in a report prepared under this rule; and~~
 - ~~(d) in relation to any good or service that is required to be described under paragraph (c):~~
 - ~~(i) describes the CDR data that is needed in order to offer the good or service to CDR consumers; and~~
 - ~~(ii) explains why that data is needed in order to offer the good or service to CDR consumers; and~~
 - ~~(e) describes any material changes that have been made to any goods or services offered by the accredited data recipient since the previous reporting period, including any changes to the matters referred to in paragraph (c); and~~
 - ~~(f) sets out the following:~~
 - ~~(i) the number of consumer data requests made by the accredited data recipient during the reporting period;~~
 - ~~(ii) the proportion of CDR consumers who, at the date of the report, had exercised the election to delete, by reference to each brand of the accredited person;~~
 - ~~(iii) the number of consumer data requests the accredited data recipient received from an accredited person on behalf of a CDR consumer during the reporting period;~~
 - ~~(iv) the number of times the accredited data recipient disclosed consumer data to an accredited person in response to such a consumer data request during the reporting period;~~
 - ~~(v) the total number of CDR consumers the accredited data recipient provided goods or services to using CDR data during the reporting period;~~
 - ~~(vi) the number of consents received from CDR consumers during the reporting period to disclose CDR data to trusted advisers;~~
 - ~~(vii) for each class of trusted advisers the number of trusted advisers to whom CDR data was disclosed during the reporting period;~~
 - ~~(viii) the number of insight disclosure consents received from CDR consumers during the reporting period.~~
-

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- ~~Civil penalty:~~
~~(a) for an individual \$50,000; and~~
~~(b) for a body corporate \$250,000.~~

Provision of reports

- ~~(3) Each report must be submitted to:~~
~~(a) the Commission; and~~
~~(b) the Information Commissioner;~~
~~within 30 days after the end of each reporting period.~~

- ~~Civil penalty:~~
~~(a) for an individual \$50,000; and~~
~~(b) for a body corporate \$250,000.~~

- ~~(4) Either the Commission or the Information Commissioner may:~~
~~(a) publish any report received under this rule; or~~
~~(b) require an accredited data recipient to publish, on its website, a report that it has prepared under subrule (2).~~
- ~~(5) For this rule, the **reporting periods** are:~~
~~(a) 1 January to 30 June of each year; and~~
~~(b) 1 July to 31 December of each year.~~

9.5 Requests from CDR consumers for copies of records

Requests to data holders of CDR data

- ~~(1) A CDR consumer may request a data holder for copies of records relating to the information referred to in paragraphs 9.3(1)(a), (b), (d) and (f) that relates to the CDR consumer.~~

Requests to accredited data recipients

- ~~(2) A CDR consumer may request an accredited data recipient for copies of records relating to the information referred to in:~~
~~(a) paragraphs 9.3(2)(a), (b), (c), (d), (e), (ea), (eb), (ec), (ed), (f) and (m); and~~
~~(b) paragraphs 9.3(2A)(d), (e), (f), (g), (h), (i) and (o);~~
~~that relates to the CDR consumer.~~

Form for requests

- ~~(3) A request under this rule must be in the form (if any) approved by the Commission for the purposes of this subrule.~~

Dealing with requests under this rule

- ~~(4) A person who receives a request under this rule must provide the requested copies, in the form (if any) approved by the Commission for the purposes of this rule, as soon as practicable, but no later than 10 business days, after receiving the request.~~

~~Civil penalty:~~
~~(a) for an individual \$50,000; and~~
~~(b) for a body corporate \$250,000.~~

~~(5) A data holder must not charge a fee for making or responding to a request under subrule (1).~~

~~Civil penalty:~~
~~(a) for an individual \$50,000; and~~
~~(b) for a body corporate \$250,000.~~

~~(6) An accredited data recipient must not charge a fee for making or responding to a request under subrule (2).~~

~~Civil penalty:~~
~~(a) for an individual \$50,000; and~~
~~(b) for a body corporate \$250,000.~~

Subdivision 9.3.2 Audits

9.6 Audits by the Commission and the Information Commissioner

- ~~———— (1) The Commission may, at any time, audit the compliance of any CDR participant with any or all of the following:
 - ~~———— (a) Part IVD of the Act, including Division 5 of Part IVD to the extent that it relates to these rules;~~
 - ~~———— (b) these rules;~~
 - ~~———— (c) the data standards.~~~~
- ~~———— (2) The Information Commissioner may, at any time, audit the compliance of any CDR participant with any or all of the following:
 - ~~———— (a) the privacy safeguards (Division 5 of Part IVD of the Act);~~
 - ~~———— (b) these rules to the extent that they relate to:
 - ~~———— (i) the privacy safeguards (see in particular Part 7 of these rules); or~~
 - ~~———— (ii) the privacy and confidentiality of CDR data.~~~~~~
- ~~———— (3) For the purposes of conducting an audit or otherwise monitoring the compliance of the CDR participant with the provisions mentioned in subrules (1) and (2), the Commission, or the Information Commissioner, may give a CDR participant a written notice that requests the CDR participant to produce, within the time specified in the notice:
 - ~~———— (a) copies of records that are required by this Division to be kept; or~~
 - ~~———— (b) information from such records.~~~~
- ~~———— (4) The CDR participant must comply with a request under subrule (3).~~

~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~

9.7 Audits by the Data Recipient Accreditor

- ~~———— (1) The Data Recipient Accreditor may, at any time, audit the compliance of an accredited data recipient with any or all of the following:
 - ~~———— (a) the obligations under rule 5.12;~~
 - ~~———— (b) any conditions imposed on their accreditation.~~~~
 - ~~———— (2) For the purposes of conducting an audit or otherwise monitoring the compliance of the CDR participant with the criteria and conditions mentioned in subrule (1), the Data Recipient Accreditor may give an accredited data recipient a written notice that requests the accredited data recipient to produce:
 - ~~———— (a) copies of records that are required by this Division to be kept; or~~
 - ~~———— (b) information from such records.~~~~
 - ~~———— (3) The accredited data recipient must comply with a request under subrule (2).~~
- ~~Note: ——— This subrule is a civil penalty provision (see rule 9.8).~~
- ~~———— (4) The Data Recipient Accreditor must provide a copy of any audit report to the Commission and the Information Commissioner.~~

Division 9.4—Civil penalty provisions

9.8 Civil penalty provisions

~~For section 56BL of the Act, the following provisions of these rules are civil penalty provisions (within the meaning of the Regulatory Powers Act):~~

- ~~(a) subrule 1.12(1);~~
- ~~(b) subrule 1.13(1);~~
- ~~(c) subrule 1.14(1);~~
- ~~(d) subrule 1.15(1);~~
- ~~(e) subrule 1.15(5)~~
- ~~(f) subrule 1.15(7)~~
- ~~(g) subrule 1.16(1);~~
- ~~(h) subrule 1.16A(2);~~
- ~~(i) subrule 2.4(2A);~~
- ~~(j) subrule 2.4(3);~~
- ~~(k) rule 2.6;~~
- ~~(l) subrule 3.4(3);~~
- ~~(m) subrule 4.3(5);~~
- ~~(n) subrule 4.3C(2);~~
- ~~(o) subrule 4.4(3);~~
- ~~(p) subrule 4.5(2);~~
- ~~(q) subrule 4.5(3);~~
- ~~(r) subrule 4.6(3);~~
- ~~(s) subrule 4.6(4);~~
- ~~(t) subrule 4.7B(3)~~
- ~~(u) subrule 4.13(2);~~
- ~~(v) subrule 4.18(1);~~
- ~~(w) subrule 4.18A(2);~~
- ~~(x) subrule 4.18B(2);~~
- ~~(y) subrule 4.18B(3);~~
- ~~(z) subrule 4.18C(2);~~
- ~~(aa) rule 4.19;~~
- ~~(bb) subrule 4.20(2);~~
- ~~(cc) subrule 4.22A(1)~~
- ~~(dd) subrule 4.25(2);~~
- ~~(ee) rule 4.27;~~
- ~~(ff) subrule 4.28(2);~~
- ~~(gg) subrule 4A.6(1);~~
- ~~(hh) subrule 4A.7(3);~~
- ~~(ii) subrule 4A.8(2);~~

~~(jj) subrule 4A.8(3);~~
~~(kk) subrule 4A.13(1);~~
~~(ll) subrule 4A.14(2);~~
~~(mm) subrule 4A.14(3);~~
~~(nn) subrule 5.1B(2);~~
~~(oo) subrule 5.1B(3);~~
~~(pp) subrule 5.1B(4);~~
~~(qq) subrule 5.1B(5);~~
~~(rr) subrule 5.12(1);~~
~~(ss) rule 5.13;~~
~~(tt) subrule 5.14(1);~~
~~(uu) subrule 5.23(2);~~
~~(vv) subrule 5.23(3);~~
~~(ww) subrule 5.23(4);~~
~~(xx) subrule 5.31(2);~~
~~(yy) rule 6.1;~~
~~(zz) rule 6.2;~~
~~(aaa) subrule 7.2(4);~~
~~(bbb) subrule 7.2(6);~~
~~(ccc) subrule 7.2(7);~~
~~(ddd) subrule 7.2(8);~~
~~(eee) subrule 7.2(9);~~
~~(fff) subrule 7.3(2);~~
~~(ggg) subrule 7.3A(1);~~
~~(hhh) subrule 7.6(1);~~
~~(iii) subrule 7.8A(1);~~
~~(jjj) subrule 7.8A(2);~~
~~(kkk) subrule 7.10A(1);~~
~~(lll) subrule 7.14(1);~~
~~(mmm) subrule 7.14(2);~~
~~(nnn) subrule 7.16(1);~~
~~(ooo) subrule 9.6(4);~~
~~(ppp) subrule 9.7(3);~~

Note: ~~Subrules 2.5(2), 3.5(2), 4.7(3), 5.25(3), 5.25(5), 5.34(4), 9.3(1), 9.3(2), 9.3(2A), 9.3(5), 9.4(1), 9.4(2), 9.4(2A), 9.4(3), 9.5(4), 9.5(5) and 9.5(6) are also civil penalty provisions within the meaning of the Regulatory Powers Act.~~

Schedule 1—Default conditions on accreditations

Part 1—Preliminary

1.1 Purpose of Schedule

— This Schedule sets out the default conditions on accreditations, for rule 5.9 of these rules.

Part 2 — Default conditions on accreditations

2.1 Ongoing reporting obligation on accredited persons

~~———— (1) In this clause:~~

~~*ASAE* followed by a number means the standard with that number issued by the Auditing and Assurance Standards Board of the Australian Government (AUASB).~~

~~*approved* means approved for the purposes of this clause in guidelines issued by the Data Recipient Accreditor.~~

~~*assurance report* means a report that:~~

~~———— (a) is made in accordance with:~~

~~———— (i) ASAE 3150; or~~

~~———— (ii) an approved standard, report or framework; and—~~

~~Note: ——— See the *CDR Accreditation Guidelines*, which could in 2020 be downloaded from the Commission's website (<https://www.waccc.gov.au>).~~

~~———— ASAE 3150 could in 2020 be downloaded from the Auditing and Assurance Standards Board's website (https://www.auasb.gov.au/admin/file/content102/e3/Jan15-ASAE_3150_Assurance_Engagements_on_Controls.pdf).~~

~~———— (b) does not include the information that must be provided in an attestation statement.~~

~~*attestation statement* means a statement in the form of a responsible party's statement on controls and system description that is made in accordance with ASAE 3150.~~

~~*Attestation statements*~~

~~———— (2) The accredited person must provide an attestation statement to the Data Recipient Accreditor within 3 months after the end of:~~

~~———— (a) the first reporting period; and~~

~~———— (b) every second reporting period thereafter;~~

~~———— that covers the reporting period.~~

~~*Assurance reports*~~

~~———— (3) The accredited person must provide an assurance report to the Data Recipient Accreditor within 3 months after the end of:~~

~~———— (a) the reporting period after the first reporting period; and~~

~~———— (b) every second reporting period thereafter;~~

~~———— that covers the reporting period.~~

~~*Reporting periods*~~

~~———— (4) For this clause, subject to subclause (5), a *reporting period* for an accredited person is either a financial year or a calendar year, as determined for the accredited person by the Data Recipient Accreditor.~~

Schedule 1—Default conditions on accreditations

-
- ~~(5) However the *first* reporting period for an accredited person is taken to be the period that:~~
- ~~(a) if the accreditation decision takes effect within 3 months before the end of a reporting period—starts on the day the accreditation takes effect and ends on the last day of the following reporting period; and~~
- ~~(b) otherwise—starts on the day the accreditation decision takes effect and ends on the last day of that reporting period.~~

~~Example 1: For paragraph (a) if an accreditation decision takes effect on 30 May 2022, the first reporting period starts on 30 May 2022 and ends on 30 June 2023.~~

~~Example 2: For paragraph (b) if an accreditation decision takes effect on 1 January 2023, the first reporting period starts on 1 January 2023 and ends on 30 June 2023.~~

Schedule 2—Steps for privacy safeguard 12—security of CDR data held by accredited data recipients

Part 1—Steps for privacy safeguard 12

1.1 Purpose of Part

— This Part sets out steps for the purpose of subsection 56EO(1) of the Act, which relate to privacy safeguard 12 (see rule 7.11 and paragraph 5.12(1)(a) of these rules).

Note: — An accredited data recipient must take the steps set out in this Schedule to protect CDR data from misuse, interference and loss, and unauthorised access, modification or disclosure, under subsection 56EO(1) of the Act. Subsection 56EO(1) is a civil penalty provision (see section 56EU of the Act).

1.2 Interpretation

— In this Schedule:

CDR data environment means the information technology systems used for, and processes that relate to, the management of CDR data.

information security capability, of an accredited data recipient:

- (a) means the accredited data recipient's ability to manage the security of its CDR data environment in practice through the implementation and operation of processes and controls; and
- (b) includes the accredited data recipient being able to allocate adequate budget and resources, and provide for management oversight.

senior management, of an accredited data recipient that is a body corporate, means:

- (a) the accredited data recipient's directors; and
- (b) any person who is an associated person, within the meaning of paragraph (a) of the definition of that term, of the accredited data recipient.

1.3 Step 1—Define and implement security governance in relation to CDR data

- (1) An accredited data recipient of CDR data must establish a formal governance framework for managing information security risks relating to CDR data setting out the policies, processes, roles and responsibilities required to facilitate the oversight and management of information security.
- (2) The accredited data recipient must clearly document its practices and procedures relating to information security and management of CDR data, including the specific responsibilities of senior management.
- (3) The accredited data recipient must have and maintain an information security policy that details:
 - (a) its information security risk posture setting out the exposure and potential for harm to the accredited data recipient's information assets, including CDR data that it holds, from security threats; and

Schedule 2—Steps for privacy safeguard 12—security of CDR data held by accredited data recipients

- ~~————— (b) how its information security practices and procedures, and its information security controls, are designed, implemented and operated to mitigate those risks.~~
- ~~————— (4) The accredited data recipient must review and update the framework for appropriateness:~~
 - ~~————— (a) in response to material changes to both the extent and nature of threats to its CDR data environment and its operating environment; or~~
 - ~~————— (b) where no such material changes occur—at least annually.~~

1.4 Step 2—Define the boundaries of the CDR data environment

- ~~————— (1) An accredited data recipient must assess, define and document the boundaries of its CDR data environment.~~
- ~~————— (2) The accredited data recipient must review the boundaries of its CDR data environment for completeness and accuracy:~~
 - ~~————— (a) as soon as practicable when it becomes aware of material changes to the extent and nature of threats to its CDR data environment; or~~
 - ~~————— (b) where no such material changes occur—at least annually.~~

1.5 Step 3—Have and maintain an information security capability

- ~~————— (1) The accredited data recipient must have and maintain an information security capability that:~~
 - ~~————— (a) complies with the information security controls specified in Part 2 of this Schedule; and~~
 - ~~————— (b) is appropriate and adapted to respond to risks to information security, having regard to:~~
 - ~~————— (i) the extent and nature of threats to CDR data that it holds; and~~
 - ~~————— (ii) the extent and nature of CDR data that it holds; and~~
 - ~~————— (iii) the potential loss or damage to one or more CDR consumers if all or part of the consumer's data were to be:~~
 - ~~————— (A) misused, interfered with or lost; or~~
 - ~~————— (B) accessed, modified or disclosed without authorisation.~~
- ~~————— (2) The accredited data recipient must review and adjust its information security capability:~~
 - ~~————— (a) in response to material changes to both the nature and extent of threats and its CDR data environment; or~~
 - ~~————— (b) where no such material changes occur—at least annually.~~

1.6 Step 4—Implement a formal controls assessment program

- ~~———— (1) An accredited data recipient must establish and implement a testing program to review and assess the effectiveness of its information security capability which:
 - ~~———— (a) is appropriate having regard to the factors set out in paragraph 1.5(1)(b); and~~
 - ~~———— (b) requires testing at a frequency, and to an extent, that is appropriate having regard to:
 - ~~———— (i) the rate at which vulnerabilities and threats change; and~~
 - ~~———— (ii) material changes to the boundaries of its CDR data environment; and~~
 - ~~———— (iii) the likelihood of failure of controls having regard to the results of previous testing.~~~~~~
- ~~———— (2) The accredited data recipient must monitor and evaluate the design, implementation and operating effectiveness of its security controls relating to the management of CDR data in accordance with its obligations under Part IVD of the Act and these rules, and having regard to the information security controls in Part 2 of this Schedule.~~
- ~~———— (3) The accredited data recipient must escalate and report to senior management the results of any testing that identifies design, implementation or operational deficiencies in information security controls relevant to its CDR data environment.~~
- ~~———— (4) The accredited data recipient must ensure that testing is conducted by appropriately skilled persons who are independent from the performance of controls over the CDR data environment.~~
- ~~———— (5) The accredited data recipient must review the sufficiency of its testing program referred to in subclause (1):
 - ~~———— (a) when there is a material change to the nature and extent of threats to its CDR data environment or to the boundaries of its CDR data environment as soon as practicable; or~~
 - ~~———— (b) where no such material changes occur at least annually.~~~~

1.7 Step 5—Manage and report security incidents

- ~~———— (1) An accredited data recipient must have procedures and practices in place to detect, record, and respond to information security incidents as soon as practicable.~~
- ~~———— (2) The accredited data recipient must create and maintain plans to respond to information security incidents that it considers could plausibly occur (***CDR data security response plans***).~~
- ~~———— (3) The accredited data recipient's CDR data security response plans must include procedures for:
 - ~~———— (a) managing all relevant stages of an incident, from detection to post-incident review; and~~
 - ~~———— (b) notifying CDR data security breaches to the Information Commissioner and to CDR consumers as required under Part IIC of the *Privacy Act 1988*; and~~~~

Schedule 2—Steps for privacy safeguard 12—security of CDR data held by accredited data recipients

~~(c) notifying information security incidents to the Australian Cyber Security Centre as soon as practicable and in any case no later than 30 days after the accredited data recipient becomes aware of the security incident.~~

~~Note: For paragraph (3)(b), see section 56ES of the Act for the extended application of Part IIC of the *Privacy Act 1988*.~~

~~(4) The accredited data recipient must review and test its CDR data security response plans:~~

~~(a) when there is a material change to the nature and extent of threats to its CDR data environment or to the boundaries of its CDR data environment as soon as practicable; and~~

~~(b) where no such material changes occur at least annually.~~

~~(5) In this clause:~~

~~*Australian Cyber Security Centre* means the cyber security function within the Australian Signals Directorate.~~

Part 2 — Minimum information security controls

2.1 Purpose of Part

————— This Part sets out the information security controls, for the purpose of paragraph 1.5(1)(a) of this Schedule.

2.2 Information security controls

————— The information security controls are set out in the following table:

	Control requirements		Minimum controls	Description of minimum controls
(1)	An accredited data recipient must have processes in place to limit the risk of inappropriate or unauthorised access to its CDR data environment.	(a)	Multi-factor authentication or equivalent control	Multi-factor authentication or equivalent control is required for all access to CDR data. Note: ——— This minimum control does not apply to access to CDR data by CDR consumers.
		(b)	Restrict administrative privileges	Administrative privileges are granted only on an as needs basis for users to perform their duties and only for the period they are required for. Privileges granted on an ongoing basis are regularly reviewed to confirm their ongoing need.
		(c)	Audit logging and monitoring	Critical events are identified, logged and retained to help ensure traceability and accountability of actions. These logs are reviewed regularly to identify irregularities and deviations from expected processing. Note: ——— In relation to retention, see paragraph 9.3(2)(l) of these rules.

Schedule 2—Steps for privacy safeguard 12—security of CDR data held by accredited data recipients

	Control requirements		Minimum controls	Description of minimum controls
		(d)	Access security	Processes, including automatic processes, are implemented to limit unauthorised access to the CDR data environment. At the minimum these include: (a) provision and timely revocation for users who no longer need access; and (b) monitoring and review of the appropriateness of user access privileges on at least a quarterly basis.
		(e)	Limit physical access	Physical access to facilities where CDR data is stored, hosted or accessed (including server rooms, communications rooms, and premises of business operation) is restricted to authorised individuals.
		(f)	Role-based access	Role-based access is implemented to limit user access rights to only that necessary for personnel to perform their assigned responsibilities. Role-based access is assigned in accordance with the principle of least necessary privileges and segregation of duties.
		(g)	Unique IDs	Use of generic, shared and/or default accounts is restricted to those necessary to run a service or a system. Where generic, shared and/or default accounts are used, actions performed using these accounts are monitored and logs are retained. Note: — In relation to retention, see paragraph 9.3(2)(l) of these rules.
		(h)	Password authentication	Strong authentication mechanisms are enforced prior to allowing users to access systems within the CDR data environment;

	Control requirements		Minimum controls	Description of minimum controls
				including, but not limited to, general security requirements relating to password complexity, account lockout, password history, and password ageing.
		(i)	Encryption in transit	Implement robust network security controls to help protect data in transit, including: encrypting data in transit and authenticating access to data in accordance with the data standards (if any) and industry best practice, implementing processes to audit data access and use, and implementing processes to verify the identity of communications.
(2)	An accredited data recipient of CDR data must take steps to secure their network and systems within the CDR data environment.	(a)	Encryption	Encryption methods are utilised to secure CDR data at rest by encrypting file systems, end user devices, portable storage media and backup media. Cryptographic keys are securely stored, backed-up and retained. Appropriate user authentication controls (consistent with control requirement 1) are in place for access to encryption solutions and cryptographic keys.
		(b)	Firewalls	Firewalls are used to limit traffic from untrusted sources. This could be achieved by implementing a combination of strategies including, but not limited to: (a) restricting all access from untrusted networks; and (b) denying all traffic aside from necessary protocols; and (c) restricting access to configuring firewalls, and review configurations on a regular basis.
		(c)	Server hardening	Processes are in place to harden servers running applications,

Schedule 2—Steps for privacy safeguard 12—security of CDR data held by accredited data recipients

	Control requirements		Minimum controls	Description of minimum controls
				databases and operating systems in accordance with accepted industry standards.
		(d)	End-user devices	End-user devices, including bring-your-own-device (BYOD) systems, are hardened in accordance with accepted industry standards.
		(e)	Data Segregation	CDR data that is stored or hosted on behalf of an accredited data recipient or CDR representative is segregated from other CDR data to ensure it is accessible only by the accredited data recipient for whom consent was given and remains directly attributable to that accredited data recipient.
(3)	An accredited data recipient must securely manage information assets within the CDR data environment over their lifecycle.	(a)	Data loss prevention	Data loss and leakage prevention mechanisms are implemented to prevent data leaving the CDR data environment, including, but not limited to: (a) blocking access to unapproved cloud computing services; and (b) logging and monitoring the recipient, file size and frequency of outbound emails; and (c) email filtering and blocking methods that block emails with CDR data in text and attachments; and (d) blocking data write access to portable storage media.
		(b)	CDR data in non-production environments	CDR data is secured from unauthorised access by masking data, prior to being made available in non-production environments.
		(c)	Information asset lifecycle (as it relates to CDR data)	The accredited data recipient must document and implement

	Control requirements		Minimum controls	Description of minimum controls
				processes that relate to the management of CDR data over its lifecycle, including an information classification and handling policy (which must address the confidentiality and sensitivity of CDR data) and processes relating to CDR data backup, retention, and, in accordance with rules 7.12 and 7.13, deletion and de-identification.
(4)	An accredited data recipient must implement a formal vulnerability management program to identify, track and remediate vulnerabilities within the CDR data environment in a timely manner.	(a)	Security patching	A formal program is implemented for identifying, assessing the risk of and applying security patches to applications and operating as soon as practicable.
		(b)	Secure coding	Changes to the accredited data recipient's systems (including its CDR data environment) are designed and developed consistent with industry accepted secure coding practices, and are appropriately tested prior to release into the production environment.
		(c)	Vulnerability management	A formal vulnerability management program is designed and implemented, which includes regular vulnerability scanning and penetration testing on systems within the CDR data environment.
(5)	An accredited data recipient must take steps to limit prevent, detect and remove malware in regards to their CDR data environment.	(a)	Anti-malware anti-virus	Anti-virus and anti-malware solutions are implemented on endpoint devices and on servers to detect and remove malware from the CDR data environment and are updated on a regular basis. End-user systems are updated with the latest virus definitions when they connect to the network. Reports or dashboards highlighting compliance metrics are regularly generated and monitored, and non-compliant items are actioned as soon as practicable.

Schedule 2—Steps for privacy safeguard 12—security of CDR data held by accredited data recipients

	Control requirements		Minimum controls	Description of minimum controls
		(b)	Web and email content filtering	Solutions are implemented to identify, quarantine and block suspicious content arising from email and the web.
		(e)	Application whitelisting	Download of executables and installation of software on infrastructure and end-user devices (including on BYOD devices) is restricted to authorised software only.
(6)	An accredited data recipient must implement a formal information security training and awareness program for all personnel interacting with CDR data.	(a)	Security training and awareness	All users undergo mandatory security and privacy training prior to interacting with the CDR data environment, with 'refresher courses' provided at least annually.
		(b)	Acceptable use of technology	A policy relating to the CDR data environment is created, implemented, communicated and agreed to by all personnel prior to being able to access the CDR data environment. This policy sets out the responsibilities of these personnel in interacting with the CDR data environment and is regularly made aware to personnel.
		(c)	Human resource security	Background checks are performed on all personnel prior to being able to access the CDR data environment. These may include, but are not limited to, reference checks and police checks.

Schedule 3—Provisions relevant to the banking sector

Part 1—Preliminary

1.1 Simplified outline of this Schedule

This Schedule deals with how these rules apply in relation to the banking sector.

Some defined terms apply only in relation to the banking sector. These are defined in Part 1 of this Schedule.

Part 2 of this Schedule deals with eligible CDR consumers in relation to the banking sector.

Part 3 of this Schedule deals with CDR data that can or must be disclosed when product data requests and consumer data requests are made in relation to the banking sector.

Part 5 of this Schedule deals with internal dispute resolution requirements in relation to the banking sector.

Part 6 of these rules deals with the staged application of these rules to the banking sector. Over time, as set out in this Part, these rules will apply to a progressively broader range of data holders within the banking sector, and to a progressively broader range of banking products.

Part 7 deals with provisions of these rules that apply differently in relation to the banking sector.

1.2 Interpretation

— In this Schedule:

account data has the meaning given by clause 1.3 of this Schedule.

accredited ADI has the meaning given by clause 6.2 of this Schedule.

any other relevant ADI has the meaning given by clause 6.2 of this Schedule.

associate has the meaning given by the banking sector designation instrument.

banking business has the meaning given by the banking sector designation instrument.

banking sector means the sector of the Australian economy that is designated by the banking sector designation instrument.

banking sector designation instrument means the *Consumer Data Right (Authorised Deposit Taking Institutions) Designation 2019* as in force from time to time.

customer data has the meaning given by clause 1.3 of this Schedule.

Schedule 3—Provisions relevant to the banking sector

~~foreign ADI~~ has the meaning given by the *Banking Act 1959*.

~~initial data holder~~ has the meaning given by clause 6.2 of this Schedule.

~~phase 1 product~~ has the meaning given by clause 1.4 of this Schedule.

~~phase 2 product~~ has the meaning given by clause 1.4 of this Schedule.

~~phase 3 product~~ has the meaning given by clause 1.4 of this Schedule.

~~product~~ has the meaning given by the banking sector designation instrument.

~~product specific data~~ has the meaning given by clause 1.3 of this Schedule.

~~transaction data~~ has the meaning given by clause 1.3 of this Schedule.

1.3 ~~Meaning of customer data, account data, transaction data and product specific data~~

For this Schedule, a term listed in column 1 of the table has the meaning given by column 2.

Meaning of customer data, account data, transaction data and product specific data	
Column 1	Column 2
1 customer data, in relation to a particular person	(a) means information that identifies or is about the person; and (b) includes: (i) the person's name; and (ii) the person's contact details, including their: (A) telephone number; and (B) email address; and (C) physical address; and (iii) any information that: (A) the person provided at the time of acquiring a particular product; and (B) relates to their eligibility to acquire that product; and (iv) if the person operates a business the following: (A) the person's business name; (B) the person's ABN (within the meaning of the <i>A New Tax System (Australian Business Number) Act 1999</i>); (C) the person's ACN (within the meaning of the <i>Corporations Act 2001</i>); (D) the type of business; (E) the date the business was established; (F) the registration date; (G) the organisation type; (H) the country of registration; (I) whether the business is a charitable or not for profit organisation; and (c) if the person is an individual does not include the person's date of birth.

Meaning of customer data, account data, transaction data and product specific data	
Column 1	Column 2
2 account data , in relation to a particular account	(a) means information that identifies or is about the operation of the account; and (b) includes: — (i) — the account number, other than to the extent that an account number is masked (whether as required by law or in accordance with any applicable standard or industry practice); and — (ii) — the account name; and — (iii) — account balances; and — (iv) — any authorisations on the account, including: — (A) direct debit deductions, including, to the extent available: (I) identifying information for the merchant or party that has debited the account; and (II) the amount the merchant or party has debited on the last occasion; and (III) the date the merchant or party has debited the account; and — (B) scheduled payments (for example, regular payments, payments to billers and international payments); and — (C) details of payees stored with the account, such as those entered by the customer in a payee address book.
3 transaction data , in relation to a particular transaction	(a) means information that identifies or describes the characteristics of the transaction; and — (b) — includes: — (i) — the date on which the transaction occurred; and — (ii) — any identifier for the counter party to the transaction; and — (iii) — if the counter party is a merchant — any information that was provided by the merchant in relation to the transaction; and — (iv) — the amount debited or credited pursuant to the transaction; and — (v) — any description of the transaction; and — (vi) — the “simple categorisation” of the transaction (for example, whether the transaction is a debit, a credit, a fee or interest).
4 product specific data , in relation to a particular product	(a) means information that identifies or describes the characteristics of the product; and (b) includes the following data about the product: — (i) — its type; — (ii) — its name; — (iii) — its price, including fees, charges and interest rates (however described); — (iv) — associated features and benefits, including discounts and bundles; — (v) — associated terms and conditions; — (vi) — customer eligibility requirements.

Schedule 3—Provisions relevant to the banking sector

Meaning of customer data, account data, transaction data and product specific data	
Column 1	Column 2
1.4 Meaning of phase 1 product, phase 2 product and phase 3 product	
For this Schedule, the table has effect:	
Meaning of phase 1 product, phase 2 product and phase 3 product	
The following term:	means a product that is publicly offered and is generally known as being of any of the following types:
1 phase 1 product	(a) a savings account; (b) a call account; (c) a term deposit; (d) a current account; (e) a cheque account; (f) a debit card account; (g) a transaction account; (h) a personal basic account; (i) a GST or tax account; (j) a personal credit or charge card account; (k) a business credit or charge card account. —
2 phase 2 product	(a) a residential home loan; (b) a home loan for an investment property; (c) a mortgage offset account; (d) a personal loan.
3 phase 3 product	(a) business finance; (b) a loan for an investment; (c) a line of credit (personal); (d) a line of credit (business); (e) an overdraft (personal); (f) an overdraft (business); (g) asset finance (including leases); (h) a cash management account; (i) a farm management account; (j) a pensioner deeming account; (k) a retirement savings account; (l) a trust account; (m) a foreign currency account; (n) a consumer lease.

Meaning of *phase 1 product*, *phase 2 product* and *phase 3 product*

The following term: means a product that is publicly offered and is generally known as being of any of the following types:

Part 2—Eligible CDR consumers—banking sector

2.1 Meaning of *eligible*—banking sector

- ~~———— (1) This clause is made for the purposes of the definition of *eligible* in subrule 1.7(1) of these rules.~~
- ~~———— (2) For the banking sector, in relation to a particular data holder at a particular time, a CDR consumer is *eligible* if, at that time, the CDR consumer:~~
 - ~~———— (a) is either:~~
 - ~~———— (i) an individual who is 18 years of age or older; or~~
 - ~~———— (ii) a person who is not an individual; and~~
 - ~~———— (b) is an account holder or a secondary user for an account with the data holder that:~~
 - ~~———— (i) is open; and~~
 - ~~———— (ii) is set up in such a way that it can be accessed online by the CDR consumer.~~
- ~~———— (3) For the banking sector, in relation to a particular data holder at a particular time, a CDR consumer is also *eligible* if, at that time:~~
 - ~~———— (a) the CDR consumer is a partner in a partnership for which there is a partnership account with the data holder; and~~
 - ~~———— (b) the partnership account:~~
 - ~~———— (i) is open; and~~
 - ~~———— (ii) is set up in such a way that it can be accessed online.~~

2.2 Meaning of *account privileges*—banking sector

- ~~———— (1) This clause is made for the purposes of the definition of *account privileges* in subrule 1.7(1) of these rules.~~
- ~~———— (2) For the banking sector, a person has account privileges in relation to an account with a data holder if:~~
 - ~~———— (a) the account is for a phase 1, a phase 2 or a phase 3 product; and~~
 - ~~———— (b) the person is able to make transactions on the account.~~

~~Part 3—CDR data that may be accessed under these rules— banking sector~~

~~3.1A Application of Part~~

~~————— This Part applies in relation to:~~

- ~~————— (a) phase 1 products; and~~
- ~~————— (b) phase 2 products; and~~
- ~~————— (c) phase 3 products.~~

~~Note: ——— See Part 6 of this Schedule for the staged application of these rules to the banking sector. CDR data relating to different phase products will become available at different times, in accordance with that Part.~~

~~3.1 Meaning of required product data and voluntary product data—banking sector~~

- ~~————— (1) For these rules, **required product data**, in relation to the banking sector, means CDR data for which there are no CDR consumers:~~
- ~~————— (a) that is within a class of information specified in the banking sector designation instrument; and~~
 - ~~————— (b) that is about the eligibility criteria, terms and conditions, price, availability or performance of a product; and~~
 - ~~————— (c) in the case where the CDR data is about availability or performance—that is publicly available; and~~
 - ~~————— (d) that is product specific data about a product; and~~
 - ~~————— (e) that is held in a digital form.~~

~~Note: ——— Paragraphs (b) and (c) are based on subsection 56BF(1) of the Act.~~

- ~~————— (2) For these rules, **voluntary product data**, in relation to the banking sector, means CDR data for which there are no CDR consumers:~~
- ~~————— (a) that is within a class of information specified in the banking sector designation instrument; and~~
 - ~~————— (b) that is product specific data about a product; and~~
 - ~~————— (c) that is not required product data.~~

~~3.2 Meaning of required consumer data and voluntary consumer data—banking sector~~

- ~~————— (1) For these rules, subject to this clause, **required consumer data**, in relation to the banking sector, means CDR data for which there are one or more CDR consumers:~~
- ~~————— (a) that is within a class of information specified in the banking sector designation instrument; and~~
 - ~~————— (b) that is:~~
 - ~~————— (i) customer data in relation to a CDR consumer; or~~

Schedule 3—Provisions relevant to the banking sector

- ~~(ii) account data in relation to an account of any of the following types (whether or not the account can be accessed online, and, subject to subclauses (4) and (5), whether or not open):~~
 - ~~(A) an account held by a CDR consumer in their name alone;~~
 - ~~(B) a joint account;~~
 - ~~(C) a partnership account; or~~
- ~~(iii) transaction data in relation to a transaction on any such account; or~~
- ~~(iv) product specific data in relation to a product that a CDR consumer uses and that relates to any such account; and~~
- ~~(c) that is held by the data holder in a digital form.~~

~~Note 1: For sub-subparagraph (b)(ii)(B), consumer data requests cannot be made under these rules in relation to any other kinds of joint accounts.~~

~~Note 2: For subparagraph (b)(iv), for a consumer data request, product specific data could include the following:~~

- ~~• any product prices that were negotiated individually with a CDR consumer;~~
- ~~• the interest rates that are current at the time of the request, as well as any other interest rates applicable to the product, and any terms and conditions associated with those interest rates;~~
- ~~• any features and benefits negotiated individually with a CDR consumer.~~

~~Note 3: So long as the CDR consumer is eligible to make a consumer data request in relation to a particular data holder, they will be able to make or cause to be made a consumer data request that relates to any account they have with the data holder, including closed accounts (subject to subclauses (4) and (5)) or accounts that cannot be accessed online.~~

~~Note 4: A person is not a data holder of CDR data that was held by or on behalf of them before the earliest holding day (see paragraph 56AJ(1)(b) of the Act). Accordingly, such data cannot be requested under these rules.~~

- ~~(2) For these rules, subject to this clause, CDR data is **voluntary consumer data** in relation to the banking sector if:~~
 - ~~(a) there is a CDR consumer for the CDR data; and~~
 - ~~(b) the CDR data is not required consumer data.~~
- ~~(3) For this clause:~~
 - ~~(a) CDR data is neither **required consumer data** nor **voluntary consumer data** at a particular time if the data is:~~
 - ~~(i) account data in relation to an account that is not any of the following:~~
 - ~~(A) an account held in the name of a single person;~~
 - ~~(B) a joint account;~~
 - ~~(C) a partnership account; or~~
 - ~~(ii) account data in relation to a joint account or partnership account for which any of the individuals who are account holders is less than 18 years of age at that time; or~~
 - ~~(iv) transaction data in relation to a transaction on any such account; or~~
 - ~~(v) product specific data in relation to a product relating to any such account; and~~
 - ~~(b) for a consumer data request made by or on behalf of a particular person, customer data in relation to any account holder or secondary user other~~

Endnotes

Endnote 1—About the endnotes

than that person is neither ~~required consumer data~~ nor ~~voluntary consumer data~~.

~~Exception to required consumer data—open accounts~~

- ~~———— (4) Despite subclause (1), for an account that is open at a particular time, the following CDR data is not **required consumer data** at that time:~~
- ~~———— (a) transaction data in relation to a transaction that occurred more than 7 years before that time;~~
- ~~———— (b) account data that relates to an authorisation on an account for a direct debit deduction that occurred more than 13 months before that time.~~

~~Note: ——— As a result, such CDR data would be **voluntary consumer data**.~~

~~Exception to required consumer data—closed accounts~~

- ~~———— (5) Despite subclause (1), for an account that is closed at a particular time, the following CDR data is not **required consumer data** at that time:~~
- ~~———— (a) account data that relates to an authorisation on an account for direct debit deductions;~~
- ~~———— (b) where the account was closed no more than 24 months before that time—transaction data in relation to a transaction that occurred more than 12 months before the account was closed;~~
- ~~———— (c) where the account was closed more than 24 months before that time:~~
 - ~~———— (i) account data that relates to the account; and~~
 - ~~———— (ii) transaction data that relates to any transaction on the account; and~~
 - ~~———— (iii) product specific data in relation to a product relating to any such account.~~

~~Note: ——— As a result, such CDR data would be **voluntary consumer data**.~~

Part 5—Internal dispute resolution—banking sector

Note: See the definition of “meets the internal dispute resolution requirements” in subrule 1.7(1) of these rules, paragraph 5.12(b) of these rules, and rule 6.1 of these rules.

5.1 Internal dispute resolution—banking sector

- (1) For the banking sector, a CDR participant *meets the internal dispute resolution requirements* if its internal dispute resolution processes comply with provisions of Regulatory Guide 165 that deal with the following:
- (a) guiding principles or standards that its internal dispute resolution procedures or processes must meet regarding the following:
 - (i) commitment and culture;
 - (ii) the enabling of complaints;
 - (iii) resourcing;
 - (iv) responsiveness;
 - (v) objectivity;
 - (vi) fairness;
 - (vii) complaint data collection or recording;
 - (viii) internal reporting and analysis of complaint data;
 - (b) outsourcing internal dispute resolution procedures;
 - (c) the manner in which, and timeframes within which, it should acknowledge, respond to and seek to resolve complaints;
 - (d) multi-tiered internal dispute resolution procedures;
 - (e) tailoring internal dispute resolution procedures to its business;
 - (f) documenting internal facing internal dispute resolution processes, policies and/or procedures;
 - (g) establishing appropriate links between internal dispute resolution and external dispute resolution;
- as if references in Regulatory Guide 165 to:
- (h) complaints or disputes were references to CDR consumer complaints; and
 - (i) financial firms and financial service providers were references to CDR participants.

- (2) In this clause:

Regulatory Guide 165 means Regulatory Guide 165 published by the Australian Securities & Investments Commission, as in force from time to time.

Note: Regulatory Guide 165 could in 2020 be accessed from the Australian Securities & Investments Commission’s website (<https://asic.gov.au>).

~~Part 6—Staged application of these rules to the banking sector~~

~~Division 6.1—Preliminary~~

~~6.1 Interpretation~~

~~————— In this Part:~~

~~*commencement table* has the meaning given by clause 6.6.~~

~~*Phase 1* means phase 1 product.~~

~~*Phase 2* means phase 2 product.~~

~~6.2 Meaning of initial data holder, accredited ADI, any other relevant ADI and accredited non-ADI~~

~~————— For this Part, a term listed in column 1 of the table has the meaning given by column 2.~~

Meaning of initial data holder, accredited ADI, any other relevant ADI and accredited non-ADI	
Column 1	Column 2
1 <i>initial data holder</i>	Any of the following ADIs: (a) Australia and New Zealand Banking Group Limited (ANZ); (b) Commonwealth Bank of Australia (CBA); (c) National Australia Bank Limited (NAB); (d) Westpac Banking Corporation (Westpac).
2 <i>accredited ADI</i>	An ADI that: (a) is an accredited person; and (b) is not: — (i) — an initial data holder; or — (ii) — a foreign ADI; or — (iii) — a foreign branch of a domestic bank. Note: — A restricted ADI could be an “accredited ADI”. However, a restricted ADI could not be an “initial data holder”, a “voluntarily participating ADI” or “any other relevant ADI”.
4 <i>any other relevant ADI</i>	An ADI that is not: (a) an initial data holder; or (c) an accredited ADI; or (d) a foreign ADI; or — (e) — a foreign bank branch of a domestic bank; or

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Meaning of initial data holder, accredited ADI, any other relevant ADI and accredited non-ADI	
Column 1	Column 2
	(f) a restricted ADI.
5 <i>accredited non-ADI</i>	An accredited person that is: (a) a data holder; but (b) not an ADI.

Division 6.2—Staged application of rules

6.4 Staged application of rules—requirement to disclose CDR data

- (1) This clause applies if:
 - (a) a product data request or a consumer data request is made to a data holder of a kind referred to in column 1 of the commencement table; and
 - (b) the request is made under a Part of these rules referred to in column 2 of the commencement table; and
 - (c) the request is made after the commencement of these rules and during a period referred to in any of the other columns of the commencement table.
- (2) Despite clause 3.1A of this Schedule, for the request, Part 3 of this Schedule applies in relation to the kinds of product referred to in the relevant cell of the commencement table.
- (3) Where a table cell includes the term *JAE* (for “joint accounts excepted”), despite these rules, the data holder is not required to disclose required consumer data about a product that relates to joint accounts.
- (4) Where a table cell includes the term *CODE* (for “certain other data excepted”), despite these rules, the data holder is not required to disclose required consumer data about a phase 1 product that:
 - (a) relates to any of the following:
 - (i) closed accounts;
 - (ii) direct debits;
 - (iii) scheduled payments;
 - (iv) payees; or
 - (b) is “get account detail” or “get customer detail” data within the meaning of the data standards.

6.5 Authorisation to disclose CDR data before required to do so

- (1) This clause applies if:
 - (a) a request for disclosure of CDR data has been made in accordance with Part 2, Part 3 or Part 4 of these rules (the *relevant data request Part*); and
 - (b) the requested CDR data is any of the following:
 - (i) required product data;
 - (ii) voluntary product data;
 - (iii) required consumer data;
 - (iv) voluntary consumer data; and
 - (c) the requested CDR data includes some pre-application CDR data.
- (2) For these rules, the data holder may disclose any or all of the pre-application CDR data in response to the request in accordance with the relevant data request Part.

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~~(3) In this clause, *pre-application CDR data* means CDR data that, but for the operation of this Part, the data holder would be required or authorised by the relevant data request Part to disclose in response to the request.~~

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Endnote 1—About the endnotes

6.6 Commencement table

(1) For this Part, the *commencement table* is:

Data-holder	Data sharing obligations	Start-date to 31-Jan-2021	1-Feb-2021 to 28-Feb-2021	1-Mar-2021 to 30-Jun-2021	1-Jul-2021 to 31-Oct-2021	1-Nov-2021 to 31-Jan-2022	1-Feb-2022 to 30-Jun-2022	1-Jul-2022 onward
Initial data holders (NAB, CBA, ANZ, Westpac branded products)	Part 2	All product phases	All product phases	All product phases	All-product phases	All product phases	All product phases	All product phases
	Part 3	-	-	-	-	-	-	-
	Part 4	Phase-1 Phase-2	All product phases	All product phases	All-product phases	All product phases	All product phases	All product phases
Any other relevant ADI and initial data holders for non-primary brands	Part 2	Phase-1	Phase-1 Phase-2	Phase-1 Phase-2	All-product phases	All product phases	All product phases	All product phases
	Part 3	-	-	-	-	-	-	-
	Part 4	-	-	-	Phase-1 JAE CODE	Phase-1 Phase-2 JAE	All product phases JAE	All product phases
Accredited ADI and accredited non-ADI (reciprocal data-holder)	Part 2	All product phases	All product phases	All product phases	All-product phases	All product phases	All product phases	All product phases
	Part 3	-	-	-	-	-	-	-
	Part 4	-	-	Phase-1 JAE CODE	All-product phases JAE	All product phases JAE	All product phases JAE	All product phases

6.7 Application of certain rules

(1) In this clause, the *affected provisions* are provisions of these rules that impose obligations on data holders in relation to:

- (a) CDR consumers that are not individuals; or
- (b) partnerships; or
- (c) nominated representatives; or
- (d) secondary users.

(2) The affected provisions apply in relation to initial data holders in respect of NAB, CBA, ANZ, Westpac branded products on and from 1 November 2021.

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~~—— (3) Otherwise, the affected provisions apply in relation to data holders on and from 1 November 2022.~~

~~Part 7—Other rules, and modifications of these rules, for the banking sector~~

~~7.1 Laws relevant to the management of CDR data—banking sector~~

~~For paragraph (f) of the definition of “law relevant to the management of CDR data” in rule 1.7 of these rules, the *Australian Securities and Investments Commission Act 2001* is a law relevant to the management of CDR data in relation to the banking sector.~~

~~7.2 Conditions for accredited person to be data holder~~

~~(1) For paragraph 56AJ(4)(c) of the Act, this clause sets out conditions for a person that has collected CDR data in accordance with a consumer data request under Part 4 of these rules to be a data holder (rather than an accredited data recipient) of that CDR data and any CDR data that it directly or indirectly derived from that CDR data (together, the *relevant* CDR data):~~

~~(2) The conditions are that:~~

~~(a) the person is an ADI; and~~

~~(b) the CDR consumer has acquired a product from the person; and~~

~~(c) the person:~~

~~(i) reasonably believes that the relevant CDR data is relevant to its provision of the product to the CDR consumer; and~~

~~(ii) has asked the CDR consumer to agree to the person being a data holder, rather than an accredited data recipient, of the relevant CDR data; and~~

~~(iii) has explained to the CDR consumer:~~

~~(A) that, as a result, the privacy safeguards, to the extent that they apply to an accredited data recipient of CDR data, would no longer apply to the person in relation to the relevant CDR data; and~~

~~(B) the manner in which it proposes to treat the relevant CDR data; and~~

~~(C) why it is entitled to provide the CDR consumer with this option; and~~

~~(iv) has outlined the consequences, to the CDR consumer, of not agreeing to this; and~~

~~(d) the CDR consumer has agreed to the person being a data holder, rather than an accredited data recipient, of the relevant CDR data.~~

Related modifications of these rules

~~(3) If a person becomes a data holder, rather than an accredited data recipient, of CDR data as a result of subsection 56AJ(4) of the Act and this clause:~~

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- ~~———— (b) for paragraph 4.26(1)(h) of these rules, any authorisations to disclose CDR data in relation to the consumer data request expire; and~~
- ~~———— (c) if the person's accreditation has been surrendered or revoked, the following do not apply to the person in relation to that CDR data:~~
 - ~~———— (i) subrule 5.23(2);~~
 - ~~———— (ii) paragraph 5.23(3)(b).~~

7.3 Streamlined accreditation—banking sector

- ~~———— For paragraph 5.5(b) of these rules, for the banking sector, the criteria for streamlined accreditation are that the accreditation applicant:~~
 - ~~———— (a) is an ADI; but~~
 - ~~———— (b) is not a restricted ADI.~~

7.4 Exemptions to accreditation criteria—banking sector

- ~~———— (1) This clause sets out how the accreditation criteria operate in relation to the banking sector, for the purposes of rule 5.12 of these rules.~~
- ~~———— (2) An accredited person that:~~
 - ~~———— (a) is an ADI; but~~
 - ~~———— (b) is not a restricted ADI;~~~~———— need not comply with paragraph 5.12(2)(b) of these rules.~~

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

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Endnote 1—About the endnotes

~~If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.~~

Misdescribed amendments

~~A misdescribed amendment is an amendment that does not accurately describe the amendment to be made. If, despite the misdescription, the amendment can be given effect as intended, the amendment is incorporated into the compiled law and the abbreviation “(md)” added to the details of the amendment included in the amendment history.~~

~~If a misdescribed amendment cannot be given effect as intended, the abbreviation “(md not incorp)” is added to the details of the amendment included in the amendment history.~~

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Endnote 1—About the endnotes

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
e = clause(s)	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous (prev...) = previously
def = definition(s)	Pt = Part(s)
Dict = Dictionary	r = regulation(s)/rule(s)
disallowed = disallowed by Parliament	reloc = relocated
Div = Division(s)	renum = renumbered
ed = editorial change	rep = repealed
exp = expires/expired or ceases/ceased to have effect	rs = repealed and substituted
F = Federal Register of Legislation	s = section(s)/subsection(s)
gaz = gazette	Sch = Schedule(s)
LA = <i>Legislation Act 2003</i>	Sdiv = Subdivision(s)
LIA = <i>Legislative Instruments Act 2003</i>	SLI = Select Legislative Instrument
(md) = misdescribed amendment can be given effect	SR = Statutory Rules
(md not incorp) = misdescribed amendment cannot be given effect	Sub-Ch = Sub-Chapter(s)
mod = modified/modification	SubPt = Subpart(s)
No. = Number(s)	<u>underlining</u> = whole or part not commenced or to be commenced

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Endnote 1—About the endnotes

Endnote 3—Legislation history

Name	Registration	Commencement	Application, saving and transitional provisions
Competition and Consumer (Consumer Data Right) Rules 2020	5 February 2020 (F2020L00094)	6 February 2020	—
Competition and Consumer (Consumer Data Right) Amendment Rules (No. 1) 2020	18 June 2020 (F2020L00757)	19 June 2020	—
Competition and Consumer (Consumer Data Right) Amendment Rules (No. 2) 2020	1 October 2020 (F2020L01278)	2 October 2020	—
Competition and Consumer (Consumer Data Right) Amendment Rules (No. 3) 2020	22 December 2020 (F2020L01688)	23 December 2020	Schedule 1, item 105

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Name	Registration	Commencement	Application, saving and transitional provisions
Competition and Consumer (Consumer Data Right) Amendment Rules (No. 1) 2021	5 October 2021 (F2021L01392)	Sch 1: <u>1 February 2022</u> (s 2(1) item 2) Sch 2 and Sch 6 (items 1–3, 15, 18, 19): <u>19</u> <u>October 2021 (s 2(1)</u> <u>items 3, 5)</u> Remainder: 6 October 2021 (s 2(1) items 1, 4, 6, 7)	Schedule 7

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Endnote 1—About the endnotes

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
Division 1.1	
r 1.2	rep LA s 48D
Division 1.2	
r 1.4	am F2020L01688
r 1.6	am F2020L01278, F2020L01688, <u>F2021L01392</u>
Division 1.3	
r 1.7	am F2020L00757, F2020L01278, F2020L01688, F2021L01392 (<u>Sch 1 item 2; Sch 2 items 1–3</u>)
r 1.8	am F2020L01688
r 1.9	am F2020L01688
r 1.10	rs F2020L01278
	am <u>F2021L01392</u>
r 1.10AA	ad <u>F2021L01392</u>
r 1.10A	ad F2020L01688
	am F2021L01392 (<u>Sch 2 item 5</u>)
r 1.10C	ad F2021L01392
r 1.10D	ad <u>F2021L01392</u>
Division 1.4	
Subdivision 1.4.1	
r 1.11	am F2020L01688
Subdivision 1.4.2	
r 1.13	am F2020L00757, F2020L01688
Subdivision 1.4.3	

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Endnote 1—About the endnotes

Provision affected	How affected
r 1.14	am F2020L01688; F2021L01392 (Sch 1 item 4; Sch 2 item 6)
r 1.15	rs F2020L01688
	am F2021L01392
Subdivision 1.4.4	
Subdivision 1.4.4 heading	am F2020L01688
r 1.16	rs F2020L01278
	am F2021L01392
	ed C4
r 1.16A	ad <u>F2021L01392</u>
Subdivision 1.4.5	
r 1.17	am F2021L01392
r 1.18	am F2020L01278; F2020L01688
Part 2	
r 2.3	am F2020L01688
r 2.4	am F2020L01688
Part 3	
Division 3.1	
r 3.1	am F2021L01392
Division 3.2	
r 3.4	am F2021L01392
r 3.5	am F2020L00757; F2021L01392
Part 4	
Division 4.1	
Division 4.1	rs F2020L01688
r 4.1	am F2021L01392 (Sch 2 item 8)
Division 4.2	

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Endnote 1—About the endnotes

Provision affected	How affected
Division 4.2 heading	am F2020L01688
Subdivision 4.2.1	
Subdivision 4.2.1	ad F2020L01688
Subdivision 4.2.2	
Subdivision 4.2.2 heading	ad F2020L01688
r 4.3	rs F2020L01688
	am F2021L01392
r 4.3A	ad F2021L01392
r 4.3B	ad F2021L01392
r 4.3C	ad F2021L01392
Subdivision 4.2.3	
Subdivision 4.2.3 heading	ad F2020L01688
r 4.4	rs F2020L01688
	am F2021L01392
r 4.5	am F2020L01688
r 4.6	am F2020L01688; F2021L01392
r 4.6A	ad F2020L01688
r 4.7	am F2020L00757; F2021L01392
Subdivision 4.2.4	
Subdivision 4.2.4	ad F2020L01688
r 4.7A	am F2021L01392
Division 4.3	
Division 4.3	rs F2020L01688
Subdivision 4.3.2	
r 4.10	am F2021L01392
r 4.11	am F2021L01392 (Sch 1 item 6; Sch 2 item 13)

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Endnote 1—About the endnotes

Provision affected	How affected
Subdivision 4.3.4	
r 4.16	am F2021L01392
Subdivision 4.3.5	
r 4.20A	ad F2021L01392
Division 4.4	
Division 4.4	rs F2020L01688
Part 4A	
Part 4A	ad F2021L01392
Division 4A.1	
r 4A.1	ad F2021L01392
r 4A.2	ad F2021L01392
r 4A.3	ad F2021L01392
Division 4A.2	
r 4A.4	ad F2021L01392
r 4A.5	ad F2021L01392
r 4A.6	ad F2021L01392
r 4A.7	ad F2021L01392
r 4A.8	ad F2021L01392
Division 4A.3	
Subdivision 4A.3.1	
r 4A.9	ad F2021L01392
Subdivision 4A.3.2	
r 4A.10	ad F2021L01392
r 4A.11	ad F2021L01392
r 4A.12	ad F2021L01392
r 4A.13	ad F2021L01392

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Endnote 1—About the endnotes

Provision affected	How affected
r 4A.14	ad <u>F2021L01392</u>
r 4A.15	ad <u>F2021L01392</u>
Part 5	
Division 5.2	
Subdivision 5.2.1A	
Subdivision 5.2.1A	ad <u>F2021L01392</u>
r 5.1A	ad <u>F2021L01392</u>
r 5.1B	ad <u>F2021L01392</u>
Subdivision 5.2.1	
r 5.2	am <u>F2021L01392</u>
Subdivision 5.2.2	
r 5.5	am <u>F2021L01392</u>
r 5.10	am F2020L01688
Subdivision 5.2.3	
r 5.12	am F2020L01688; <u>F2021L01392</u>
r 5.14	am <u>F2021L01392</u>
Subdivision 5.2.4	
r 5.16	am <u>F2021L01392</u>
r 5.17	am F2020L00757; <u>F2021L01392</u>
r 5.18	am F2020L00757; <u>F2021L01392</u>
Division 5.3	
r 5.24	am F2020L00757; <u>F2021L01392</u>
r 5.30	am F2020L00757
r 5.33	ad F2020L01688
r 5.34	ad F2020L01688
Part 7	

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Endnote 1—About the endnotes

Provision affected	How affected
Division 7.2	
Subdivision 7.2.1	
r 7.2	am F2020L01278, F2020L01688; F2021L01392
r 7.3	am F2021L01392
r 7.3A	ad F2021L01392
Subdivision 7.2.2	
r 7.4	am F2020L01278, F2020L01688 rs F2021L01392
Subdivision 7.2.3	
r 7.5	am F2020L01278, F2020L01688; F2021L01392 (Sch 1 item 27; Sch 2 item 19, 20) ed C4
r 7.5A	ad F2020L01688 am F2021L01392
r 7.6	am F2020L01278; F2021L01392
r 7.8A	ad F2021L01392
r 7.9	am F2020L01278, F2020L01688; F2021L01392 (Sch 2 item 24)
Subdivision 7.2.4	
r 7.10	am F2020L01278, F2020L01688
r 7.10A	ad F2021L01392
r 7.11	am F2021L01392
r 7.12	am F2020L01278; F2021L01392
Subdivision 7.2.5	
r 7.16	ad F2021L01392
Part 8	
Division 8.4	

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Endnote 1—About the endnotes

Provision affected	How affected
r 8.11	am F2020L01688; F2021L01392
Part 9	
Division 9.3	
Subdivision 9.3.1	
r 9.3	am F2020L01278, F2020L01688; F2021L01392 (Sch 1 item 29; Sch 2 item 30)
r 9.4	am F2020L01688; F2021L01392 (Sch 1 items 30–32; Sch 2 items 31, 32)
r 9.5	am F2020L01688; F2021L01392
Subdivision 9.3.2	
r 9.7	am F2020L01688
Division 9.4	
r 9.8	am F2020L01278, F2020L01688 rs F2021L01392
Schedule 1	
Part 2	
e 2.1	am F2020L01688; F2021L01392
e 2.2	ad F2021L01392
Schedule 2	
Part 1	
e 1.5	am F2021L01392
Part 2	
e 2.2	am F2020L00757, F2020L01278, F2021L01392
Schedule 3	
Part 1	
e 1.1	am F2021L01392
e 1.2	am F2020L01688; F2021L01392

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Endnote 1—About the endnotes

Provision affected	How affected
e 1.3	am F2020L00757
Part 2	
e 2.1	am F2020L00757, F2020L01688
e 2.2	ad F2020L01688
Part 3	
e 3.2	am F2020L00757, F2020L01688
Part 4	rs F2020L01688
	rep F2021L01392
Part 6	
Division 6.1	
e 6.1	am F2020L01688
e 6.2	am F2020L01688
e 6.3	rep F2020L01688
Division 6.2	
e 6.4	am F2020L01688; F2021L01392
e 6.5	rs F2020L01688
e 6.6	rs F2020L01688; F2021L01392
e 6.7	ad F2020L01688
Part 7	
e 7.2	am F2020L01688

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Endnotes

Endnote 1 — **About the endnotes**

Endnote 5 — **Editorial changes**

~~In preparing this compilation for registration, the following kinds of editorial change(s) were made under the *Legislation Act 2003*:~~

Subrule 1.16(1) (note)

Kind of editorial change

~~Give effect to the misdescribed amendment as intended~~

Details of editorial change

~~Schedule 6 item 9 of the *Competition and Consumer (Consumer Data Right) Amendment Rules (No. 1) 2021* instructs to omit “rule” and insert “subrule” in the note to subrule 1.16(1).~~

~~The word “rule” appears twice in the note to subrule 1.16(1).~~

~~This compilation was editorially changed to omit the word “rule” (first occurring) and substitute the word “subrule” in the note to subrule 1.16(1) to give effect to the misdescribed amendment as intended.~~

Subrule 7.5(3)

Kind of editorial change

~~Give effect to the misdescribed amendment as intended~~

Details of editorial change

Endnote 1 — About the endnotes

~~Schedule 6 item 17 of the *Competition and Consumer (Consumer Data Right) Amendment Rules (No. 1) 2021* instructs to insert “by an accredited data recipient” after “CDR consumer’s data” in subrule 7.5(3).~~

~~The words “CDR consumer’s data” do not appear in subrule 7.5(3). However, the words “CDR consumer’s CDR data” do appear.~~

~~This compilation was editorially changed to insert “by an accredited data recipient” after “CDR consumer’s CDR data” (first occurring) in subrule 7.5(3) to give effect to the misdescribed amendment as intended.~~